

The Laws

NOMOI

Plato

translated by Thomas Taylor (1804)

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The Laws

Book I

624a

Do you think, O guests, that a God, or some man, was the cause of the establishment of laws?

624a

Clinias: A God, O guest, a God, as it is most just to assert: with us, indeed, Jupiter; but, with the Lacedæmonians (whence originated this our guest), I think, Apollo dictated the laws. Is it not so?

624a

Megillus: It is.

624a

Guest: Whether, therefore, do

624b

you speak according to Homer, viz. that Minos¹ every year, for

624c

the space of nine years, went to converse with his father, and

624e

established laws for your cities, according to his conceptions?

625a

Clinias: It is so said by us: and, likewise, that his brother Rhadamanthus (you have heard the name) was most just. We Cretans, therefore, say that he obtained this praise, from his distributing, at that time, things pertaining to justice in a proper manner.

625b

Guest: His renown is indeed beautiful, and highly becoming the son of Jupiter. But since both you and this other have been educated in legal institutions of this kind, I persuade myself, it will not be unpleasant to us to speak and hear about the establishment of cities and laws, at the

same time that we are proceeding on our journey. But the way from Cnossus to the cavern² and temple of Jupiter is, as we have heard, sufficiently long; and the resting-places along the road are, as it is proper they should be during the present hot weather, shady, from their position under lofty trees. It will likewise be suitable to our age, to rest in them frequently; and thus, by the allurements of discourse, render the whole of our journey easy.

625b

Clinias: Indeed, O guest, in the course of our journey, we shall meet in the groves with cypress trees of an admirable height and beauty, and meadows in which while we rest we may discourse.

625c

Guest: You speak rightly.

625c

Clinias: Entirely so. We shall however speak with more confidence when we become spectators of these. But let us now proceed on our journey with good fortune.

625c

Guest: Let it be so. But inform me, why the law instituted for you public feasts, gymnastic exercises, and the custom of using arms.

625c

Clinias: I think, O guest, that these particulars respecting us may be apprehended with perfect ease.

625d

For you see that the nature of the whole region of Crete is not plain, like that of Thessaly. On this account, with them, horses are more used, and, with us, courses on foot. For this, irregularity of the ground is more adapted to the exercise of pedestrian races. Hence, for this purpose, it is necessary that the arms should be lighter, that they may not hinder the race by their weight. But lightness of bows and arrows seems to be adapted to this purpose. All these particulars, therefore, are subservient to our use in war; and the legislator, as it appears to me, looking to this, established every thing. For he seems to have

instituted public banquets, in consequence of perceiving that all men, when they engaged in war, were compelled by the thing itself, for the sake of their own defence, to feast at that time together. But he appears to me to be charged with folly by the multitude, in consequence of their not having learnt that cities are perpetually at war with each other.

625e

But if during the time of war it is necessary to feast together for the sake of defence, and that certain governors and men governed should be the armed defenders of them, this also should be done in the time of peace. For that which most men call peace, is only a name; but, in reality, war is perpetually proclaimed according to nature, by all cities, against all.

626a

And thus considering, you will nearly find that the Cretan legislator established for us all the laws, both public and private, as if looking to war; and ordered them to defend these laws in such a manner as if nothing else was useful, either of possessions or studies, unless a man became victorious in war; and as considering that all the goods of the vanquished become the property of the victors.

626b

Guest: You appear to me, O guest, to be well exercised for the purpose of explaining the Cretan laws. But explain this yet more clearly to me. For you seem to me to say that a city is then well established when it is so constituted as to be able to vanquish other cities in war. Is it not so?

626c

Clinias: It is perfectly so; and I think that this our other guest will be of the same opinion.

626c

Megillus: How can a Lacedæmonian, O divine man, answer otherwise?

626c

Guest: Whether, therefore, is this right from cities towards cities, but not from one village towards another?

626c

Clinias: By no means.

626c

Guest: Is it therefore the same?

626c

Clinias: It is.

626c

Guest: But what then? Is it likewise the same from one house to another in the same village, and from one man to another?

626d

Clinias: The same.

626d

Guest: But what shall we say of one man towards himself? Shall we consider the relation as that of an enemy to an enemy? Or, how shall we say?

626d

Clinias: O Athenian guest! for I am not willing to call you Attic, because you appear to me rather to deserve to be called by the surname of the Goddess Minerva³. For, rightly reducing the discourse to its principle, you render it more clear; and, by this mean, are able to find with facility that which has now been rightly asserted,—I mean, that all men are enemies to all, both publicly and privately, and likewise, that each individual is an enemy to himself.

626e

Guest: How do you say, O wonderful man?

626e

Clinias: This, O guest; that for a man to vanquish himself is the first and best of all victories, but to be vanquished by himself is a thing the most shameful and vile. For these things signify that there is war in each of us against ourselves.

627a

Guest: Again, therefore, let us resume the discourse. For, since each of us is either better or worse than himself, whether shall we say that a house, a village, and a city, have this same thing in them, or not?

627a

Clinias: Do you mean that one is better, and the other worse than itself?

627a

Guest: I do.

627a

Clinias: Concerning this also you have rightly inquired. For this does not less happen to cities, but in the highest degree. For, in those in which the better vanquish the multitude and the worse, such a city is with propriety said to be better than itself, and may with the greatest justice be praised for such a victory. But the contrary must be the case with a contrary city.

627b

Guest: Whether, therefore, here, the worse is at any time more excellent than the better, must be left uninvestigated; (for it would require a prolix discussion;) but I understand what is at present asserted by you, thus: That sometimes citizens who are allied to each other, and of the same city, being unjust and numerous, will forcibly attack the just, being fewer in number, that they may subject them to slavery; and that, when they conquer, the city may be justly said to be inferior to itself, and at the same time depraved, but, when they are conquered, better than itself, and good.

627c

Clinias: What is now said, O guest, is wonderful in the extreme; but, at the same time, thus to confess is most necessary.

627c

Guest: Come then, let us again consider this. Many brothers may be born from one father, and from one mother. Nor is it at all wonderful that the greater part of them should be unjust, and the lesser just.

627c

Clinias: It is not wonderful.

627d

Guest: Nor will it be proper for me and you to investigate this, that when the base vanquish, both the house and every kind of alliance may be called inferior to themselves, but better than themselves when the base are vanquished. For we do not investigate these things at present for the sake of an elegant or inelegant arrangement of words, according to the manner of many, but for the sake of discovering what is natural rectitude and error concerning laws.

627d

Clinias: You speak most truly, O guest.

627d

Megillus: It appears to me, too, that what has hitherto been said is beautiful.

627d

Guest: Let us besides consider this: Can any one become a judge of such brothers as we have just spoken of?

627e

Clinias: Doubtless.

627e

Guest: Which therefore will be the better judge? he who cuts off those that are unworthy, and orders the worthy to govern themselves? or he who causes the worthy to govern, but suffers the unworthy to live, when they are willing to be governed? But we will say that a third is a judge with respect to virtue, if such a one can be found, who, receiving one discordant alliance, will not destroy any one, but, reconciling the disagreeing parties, will establish for them laws by which they may be enabled to preserve friendship towards each other.

628a

Clinias: Such a judge and legislator will be by far the best.

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Guest: And he will frame laws for them, by acting in a manner contrary to looking at war.

628a

Clinias: This indeed is true.

628a

Guest: But what—Whether does he who aptly constitutes a city look to external war, and by this mean principally adorn the lives of the citizens, or to the war produced within the city, which is called sedition, which every one would particularly wish not to arise in his city; and that, when it arises, the city may be liberated from it with the utmost celerity?

628b

Clinias: It is evident that he would look to the latter.

628b

Guest: Whether would any one choose that peace should be the result of sedition, in consequence of one part of the citizens being destroyed, and the other part being victorious, or rather that peace and friendship should be the consequence of reconciliation, and thus the mind of the citizens be necessarily directed to external wars?

628c

Clinias: Every one would rather wish that the latter should happen to his city, than the former.

628c

Guest: Would not a legislator in a similar manner?

628c

Clinias: He would.

628c

Guest: Does not every one establish all laws for the sake of that which is best?

628c

Clinias: How should he not?

628d

Guest: But neither war nor sedition is the best of things (for to be in want of these is execrable), but mutual peace and benevolence. Nor is that victory by which a city vanquishes itself, one of the best of things, but it ranks among things necessary. But to think that the best state of a city consists in fighting and conquering, is just as if any one should think that a wearied body, when undergoing medicinal purification, then acted in the best manner, but should pay no attention to a body which was not at all indigent of medical assistance. And if any one thinks in a similar manner, either of the felicity of a city or of a private man, he will never become a politician, while he thus alone and primarily looks to external war; nor will he be an accurate legislator, unless he establishes laws respecting war for the sake of peace, rather than laws respecting peace for the sake of war.

628e

Clinias: These things, O guest, appear in a certain respect to be rightly said. But I should wonder to find any one contending that our laws, and likewise those of the Lacedæmonians, were not with all possible attention framed for the sake of war.

629a

Guest: Perhaps this is the case. We ought not, however, to investigate the present affair in a contentious but in a quiet manner; the greatest diligence being employed, both by us and them, about things of this kind. Attend therefore to my discourse. In the first place, we shall adduce Tyrtaeus⁴, who was by birth an Athenian, but afterwards a citizen of Lacedæmonia, and who most of all men applied himself to these particulars: "I shall not then (says he) consider that man as worthy of being mentioned, or of any consequence, though he should be the most wealthy of all men, and should possess abundance of goods (and he enumerates almost all goods), who does not always conduct himself in the most excellent manner in warlike affairs." These poems perhaps you also have heard. For this other associate of ours is, I think, satiated with them.

629b

Megillus: Entirely so.

629b

Clinias: And these also have reached us, being brought from Lacedæmonia.

629c

Guest: Let us, therefore, in common interrogate this poet thus: O most divine poet, Tyrtæus! for you appear to us to be wise and good, because you have in the highest degree celebrated those who in the highest degree excel in war. I, therefore, and this Clinias the Cnossian, appear very much to agree with you in this particular. But we wish clearly to know, whether or not we speak about the same men. Inform us, therefore, whether you also as well as we are clearly of opinion, that there are two kinds of war? Or how do you say? For I think that a man much worse than Tyrtæus would answer that there are two kinds;

629d

one, which we all denominate sedition, and which we consider as the most grievous of all wars; but the other kind, I think, is that which we all consider as milder than the former, and which we employ against those who do not belong to the city, and who are of a different tribe.

629e

Clinias: How is it possible he should answer otherwise?

629e

Guest: Inform us, therefore, who were the men, and what the kind of war, in which you have so transcendently praised some, and blamed others. For you appear to have praised those that fought in external wars. Thus, you say in your poems, that you can by no means endure those who are not hardy enough to behold bloody slaughter, and to aspire after fierce battle, hand to hand. From this, O Tyrtæus, we should infer, that you praise those who have been eminently illustrious in waging external war. Shall we say that Tyrtæus would grant this?

630b

Clinias: Certainly.

630b

Guest: But we, since these are good, shall assert that those are far better who evidently excel in the greatest war. We have too the poet Theognis⁵ a witness in our favour, who was a citizen of the Megarensians in Sicily. For he says:

630b

Who faithful in insane sedition keeps,
With silver and with ruddy gold may vie.

630b

We say, therefore, that such a one will conduct himself in the most difficult war in a manner nearly as much superior to the other, as justice, temperance, and prudence, when conjoined with fortitude, are superior to fortitude alone. For no one can be found faithful and sound in seditions, without the whole of virtue. But, as Tyrtæus says, there are a great number of mercenaries who fight intrepidly and die willingly in battle, most of whom are ferocious, injurious, reproachful, and, with a very few exceptions, are the most stupid of all men. But to what does all this tend? And what did he perspicuously intend to signify by these assertions?

630c

It is evidently this, that both he who framed laws here from Jupiter, and every other legislator who profits cities in the smallest degree, establishes laws by always looking as much as possible to the greatest virtue. But it is, as Theognis says, confidence in dire events, which may be denominated perfect justice. But that which Tyrtæus so highly praises is indeed beautiful, and opportunely celebrated by the poet; yet it may most rightly be said to be honourable, the fourth in number, and in power.

630d

Clinias: Shall we, therefore, O guest, rank our legislator among remote legislators?

630d

Guest: Not him indeed, most excellent man, but ourselves, since we are of opinion, that both Lycurgus and Minos established all the laws in Lacedæmon, and here, in consequence of especially directing their attention to war.

630d

Clinias: In what manner then ought we to speak?

630e

Guest: As truth and justice, I think, require those should speak who discourse about a divine republic; for such ought not to be considered as looking to a certain part of virtue, and that the most abject, but as regarding the whole of virtue, and inquiring after laws, according to the species of virtue;—not, indeed, investigating those species which many at present propose;

631a

for, at present, every one proposes to inquire after that which he is principally in want of. Thus, one inquires about an inheritance, another about women who are left the only heirs, another about an injury, and others about ten thousand things of a similar kind. But we say that inquiries about laws rank among good inquiries, when they are such as we have just now begun. And, indeed, I in every respect approve of the manner in which you have entered on the discussion of laws. For you are certainly right in beginning from virtue, and asserting that for its sake laws are framed. But you do not appear to me to be right in saying, that the legislator framed all his laws by regarding a part of virtue, and this the least; and this has been the cause of all that was afterwards said by me.

631b

Are you, however, willing I should tell you in what manner I wish you to distinguish in this affair?

631c

Clinias: Entirely so.

631c

Guest: It is proper, O guest, to assert that the laws of the Cretans are not rashly approved by all men, and particularly by all the Greeks. For they are rightly framed, since they render those who use them happy; and this because they impart every good. But there are two kinds of goods, one human, and the other divine; and the former is suspended from the latter. And if any city receives the greater goods, it also possesses the lesser; but if not, it is deprived of both. But the lesser goods are those of which health is the leader, beauty the second in order, and strength for the course, and all the other motions pertaining to the body, the third. But riches rank in the fourth place, which are not blind⁶, but perceive acutely, if they follow prudence. However, that which is the first leader of all divine goods is prudence⁷. That which ranks in the second place after intellect is a temperate habit of the soul.

631d

From these mingled with fortitude, the third in order will be justice. And the fourth will be fortitude. All which are to be placed, according to nature before those human goods. A legislator, therefore, ought to follow this order, and should command the citizens to look to these divine goods in all their actions. But, of these, human should be referred to divine goods, and all divine goods to their leader intellect. After these things he ought to pay attention to the marriages of the citizens, and to the procreation and education of children, both male and female, and likewise to the young, and those who are advancing to old age.

631e

Such too, among these, as behave well, he should honour as they deserve, but should reprobate in all the conversations of these, their pains, pleasures, and desires. He should likewise consider, and act as a guardian over, the studies of all lovers; and, through the laws, praise such as are worthy, and blame the contraries to these. With respect to anger and fear, too, he will show what in each of these is laudable, and what to be avoided; likewise what perturbations are produced in the

soul through misfortune, and what the means by which these are avoided in prosperity. Lastly, he will show what passions men are subject to, through disease, war, poverty, or the contraries to these;

632a

and in all such things he will teach and define what is beautiful, or otherwise, in the disposition of each. After this, it is necessary that the legislator should pay attention to the possessions and expenses of the citizens, so as to know how they are conducted, together with societies, and their dissolutions, whether voluntarily or involuntarily instituted; where justice is found among these, and where it is wanting;

632b

that by these means he may distribute honours to those that obey the laws, and punish those who cannot be persuaded to obey them. In the last place, having instituted every thing as far as to the end of every polity, it is necessary he should establish the manner in which the monuments of the dead should be raised, and what honours are to be paid to them.

632c

The legislator, having established all these particulars, should place over them guardians, some of whom conduct public affairs according to prudence, but others according to true opinion; so that intellect, binding all these together, may evince that the city follows temperance and justice, and not riches or ambition. After this manner, O guests, I have wished, and am now desirous, you would explain how all these particulars are to be found in those laws which are called the laws of Jupiter, in those of Pythian Apollo, and in those which Minos and Lycurgus established; and how, being assumed in a certain order, they may become evident to one who is skilled in the legislative science, either by art or from certain customs, though to us they are by no means apparent.

632d

Clinias: How then, O guest, ought we to discuss what follows?

632e

Guest: It appears to me that we ought to commence our discussion from the beginning (as we began to do); considering in the first place the pursuits of fortitude, and afterwards discussing another and another species of virtue, if you are willing; and that we may discuss the first object of our inquiry, we will endeavour to establish a paradigm, and refer to it the other particulars, that by mutual converse of this kind we may beguile the tediousness of the way. But afterwards we will consider the pursuits of the whole of virtue, and evince that our present discussion, if divinity is willing, looks thitherward.

633a

Clinias: You speak well. Endeavour therefore, in the first place, to judge for us respecting this praiser of Jupiter.

633a

Guest: I will endeavour to do this, both for you and myself. For the discourse is common. Speak therefore. Shall we say that common banquets and gymnastic exercises were invented by the legislator, for the purposes of war?

633b

Clinias: They were.

633b

Guest: And is this the case with a third or fourth thing? For, perhaps, it is proper thus to enumerate in the things pertaining to another virtue, whether it is right to call them parts, or any thing else, for the sake of perspicuity.

633b

Megillus: I, therefore, as well as every Lacedæmonian, should say that hunting was invented as the third thing. But we should endeavour, if possible, to discover the fourth or fifth thing.

633c

I therefore shall endeavour to evince that the fourth thing consists in the endurance of pain. For we are much exercised in this, in fighting

with each other with our hands, and in certain violent seizures, each of these being attended with a multitude of wounds. Besides this we have an exercise, which is called a certain concealment⁸, which is wonderfully laborious, and is undertaken for the purpose of strengthening our endurance. Besides, in winter, without shoes, without any covering to our body, and without servants, waiting indeed on ourselves, we wander both night and day through every region. Further still: in the exercises of naked young men, severe endurances take place among us, when we contend with the strength of suffocating heat; and there are many other things of this kind among us, which it would not be easy to enumerate.

633d

Guest: You speak well, O Lacedæmonian guest. But whether or not shall we place fortitude as simply consisting in a contest alone with fears and pains? or, shall we say that it likewise consists in opposing desires and pleasures, and certain vehement flatteries, which soften the minds of those who are considered as venerable persons, and besides this render them like wax?

633d

Megillus: I think it likewise consists in opposing all these.

633d

Guest: If, therefore, we call to mind what was advanced above, this our other guest said, that some city was inferior to itself, and some man to himself. Was it not so, O Cnossian guest?

633e

Clinias: Entirely so.

633e

Guest: Now, then, which ought we to call the inferior,—he who is subdued by pain, or he who is subdued by pleasure?

633e

Clinias: It appears to me, he who is subdued by pleasure. And, in every respect, we should rather say that he who is vanquished by pleasures

is disgracefully inferior to himself, and, prior to this, to him who is vanquished by pains.

634a

Guest: Did therefore the legislators of Jupiter and Apollo establish by law fortitude as lame, and consider it as alone able to oppose things on its left hand, but incapable of resisting elegancies and flatteries on its right hand? or, did they consider it as able to oppose both?

634a

Clinias: Both, I think.

634a

Guest: Let us, therefore,

634b

again relate what those pursuits are, in both your cities, which taste of pleasures, and do not avoid them, in the same manner as they do not avoid pain, but bring them into the midst, and cause the citizens to vanquish them, partly by force, and partly by the allurements of honour. But, inform me where the same thing is ordained in your laws respecting pleasures, as respecting pains; and what that is which renders you similarly brave both with respect to pain and pleasures; which renders you victorious over those things which you ought to vanquish, and by no means suffers you to be inferior to your neighbouring and most grievous enemies?

634b

Megillus: I cannot, O guest, so easily adduce a multitude of laws opposite to pleasures, as I can a multitude opposite to pains. Nor perhaps is it easy to speak of pleasures according to great and apparent parts, but only according to such as are small.

634c

Clinias: Nor am I able in a similar manner to render the same apparent in the Cretan laws.

634c

Guest: This, O best of guests, is by no means wonderful. If any one, therefore, who is desirous of perceiving that which is true and at the

same time most excellent, should find something to reprehend in the laws of our respective countries, we should behave towards each other with mildness, and not with severity.

634d

Clinias: You speak well, O Athenian guest; and therefore we ought to follow your advice.

634d

Guest: Indeed, Clinias, a conduct of this kind becomes men of your age.

634e

Clinias: Certainly.

634e

Guest: The next question, therefore, will be, whether or not the Laconian and Cretan polity is reprehensible. Perhaps, indeed, I can better relate what is said by the multitude on this occasion, than either of you. As to your laws, though they should be but of a moderate degree of excellence, yet you certainly have one most beautiful law, which forbids any youth from inquiring whether the laws are well or ill established, but orders them all to accord, with one voice, and with one mouth, that they are all beautifully constituted, as if they had been established by the Gods; and that, if any young man asserts the contrary, no one shall by any means listen to his discourse: but that an old man, if he has any thing to urge against them, shall relate his objections to the rulers, and his equals in age, yet not in the presence of any young man.

634e

Clinias: You speak most properly, O guest: and though at the time this law was established you was absent from the thought of the founder, yet you appear to me to conjecture his intention sufficiently, as if you were a prophet, and to speak the truth in the most eminent degree.

635a

Guest: At present, therefore, let us be free from young men, but we, on account of our old age, are permitted by the legislator to speak about

the laws among ourselves, without committing any offence.

635b

Clinias: We are so. Do not spare, therefore, but freely reprove our laws. For it is not dishonourable to know if any thing is not beautifully established; but, by this mean, a remedy is applied, when what is asserted is received with a benevolent, and not an envious mind.

635b

Guest: You speak well. I shall

635c

not, however, reprehend the laws till I have diligently considered them to the utmost of my ability; or rather, I shall proceed in this affair by doubting. For you alone, of all the Greeks and Barbarians with whom we are acquainted, the legislator has ordered to abstain from the greatest pleasures and sports, and not to taste them. But with respect to pains and fears, which we have lately discussed, he was of opinion, that if any one avoided them from his infancy, when he came to endure necessary pains, fears, and labours, he would avoid those who are exercised in them, and would become their slave. This legislator ought, in my opinion, to have thought the same respecting pleasures, and to have said to himself: If the citizens should from childhood be unexperienced in the greatest pleasures, and never be taught how to sustain the attacks of pleasure, or informed that they should never be compelled to do any thing base for the sake of the sweetness with which pleasure is attended, they

635d

would be induced to act in the same manner as those who are vanquished by fear, and would become servile in a different and yet baser manner than those who are able to endure the assaults of pleasure, but yet procure pleasures for themselves, and are sometimes the worst of men. The soul of such, likewise, is partly a slave, and partly free; and they do not deserve to be called simply brave, and free. Consider, therefore, whether any thing that has been now said appears to you to be proper.

635e

Clinias: It does. But immediately and readily to assent to things of such great importance would be the province of young men, or rather of stupid men.

636a

Guest: Shall we then, O Clinias and Lacedæmonian guest, after this, discuss what we at first proposed; (for after fortitude we shall speak of temperance,) I mean, what difference there is between these polities and those which are governed by chance, in the same manner as we have now spoken about war?

636a

Megillus: This is not very easy to accomplish.

636a

Clinias: Yet it appears that the common banquets, and gymnastic exercises, were beautifully invented by both polities.

636b

Guest: It appears, O guests, to be a difficult undertaking to introduce, in reality as well as in discourse, the indubitable, respecting polities. For it seems that, as in bodies it is not possible to accommodate any one pursuit to any one body, because the same thing is seen to injure some and benefit others, the like takes place in cities. For gymnastic exercises, public banquets, and a multitude of other things, at one time are beneficial to cities, but in seditions they are hurtful. The truth of this is evinced by the Milesians, Bœotians, and Thurians. But this antient, legal, and natural pursuit appears to have perverted the venereal pleasures, not only of men, but of beasts.

636c

And your cities may be first accused of this, and such others as have particularly applied themselves to gymnastic exercises. And whether things of this kind ought to be considered jocosely, or seriously, still we must be convinced that, when the male and female unite for the purpose of producing offspring, the pleasure attending such a conjunction appears to be imparted according to nature; but, that the

conjunction of males with males, or of females with females, is contrary to nature. We must likewise assert, that he who first dared to act in this manner was induced by the incontinence of pleasure. We all of us, indeed, blame the fable of the Cretans about Ganymedes, as discoursing about these particulars.

636d

For, as they believe that their laws were given by Jupiter, they have devised this fable against Jupiter, that they may give themselves up to this pleasure, following the example of the God. But let us bid farewell to the fable. Again, with respect to those who make the laws the subject of their speculation, almost all their attention should be directed to pleasures and pains, both in the manners of cities and of individuals. For these two fountains are permitted to flow by nature; of which, he who draws whence, when, and as much as he ought, is happy; and this is equally true of a city, an individual, and of every animal: but he who draws unscientifically, and at an improper time, will, on the contrary, live unhappy.

636e

Megillus: These things, O guest, are so beautifully said, as to render us incapable of urging any thing against them. But, at the same time, the Lacedæmonian legislator appears to me to have very properly forbidden the avoiding of pleasure. But this our other guest can, if he pleases, assist us with respect to the Cnossian laws. For it appears to me that the institutions in Sparta about pleasures are the most beautiful of all institutions;

637a

since that through which men principally fall into the greatest pleasures, the most injurious conduct, and every kind of folly, our law exterminates from the whole of our country: nor will you see in the fields, nor in any of the Spartan cities, banquets, nor such other particulars attendant on these, as excite, according to their power, every kind of pleasure. Nor is there any one who, happening to meet with a person wanton through intoxication, would not immediately

inflict on him the greatest punishment. Nor would the pretext of celebrating the festival of Bacchus absolve him from chastisement, as I once saw was the case with your people in carriages. And in Tarentum, with those of our colony, I have seen all the city intoxicated during the Bacchic festival. With us, however, there is nothing of the kind.

637b

Guest: O Lacedæmonian guest, all such things as these are laudable where they are attended with certain endurances;

637c

but, where they are permitted, they are of a most slothful nature. For some one, defending our institutions, would very readily reprove you by showing the licentiousness of your women. But one answer appears to liberate all such particulars, in Tarentum, with us, and with you, from not being base, but upright. For every one who answers may say to an admiring stranger, on his beholding things unusual in his own country: Wonder not, O guest, that this law is established among us, but with you a different law, perhaps about the same things. At present, however, O friends, our discourse is not about different men, but about the vice and virtue of the legislators. But let us speak more fully about all intoxication. For it is not a thing of a trifling nature; nor is the knowledge of it the province of a depraved legislator. I do not mean to inquire, whether wine ought to be drunk or not, but about intoxication itself,—whether it is to be used, as the Scythians and Persians use it, and besides these the Carthaginians, Celtæ, Iberians, and Thracians, who all of them are warlike nations; or, as it is used by you; for you (as you say) entirely abstain from it.

637d

But the Scythians and Thracians use it unmingled with water, women as well as men, and pour it on their garments, thinking that thus they are engaged in a beautiful and blessed pursuit. But the Persians are very much given to other luxuries, which you reject; yet, O best of men, they are more orderly in these than the Scythians and Thracians.

637e

Megillus: All these, however, we shall put to flight, when we take up arms.

637e

Guest: O best of men, do not speak in this manner.

638a

For many flights and pursuings have taken place, and will take place, of which it is impossible to form any conjecture; on which account, we cannot at any time give an evident definition, but are involved in doubts about beautiful and base pursuits, when we speak of victory and flight in war; especially since the greater vanquish in battle, and enslave the lesser cities. Thus, the Locrians were vanquished and enslaved by the Syracusans, who appear to have possessed the best laws of all the neighbouring nations;

638b

and the Cei by the Athenians; and innumerable instances of the same kind may be found. Neglecting, therefore, the consideration of victory and being vanquished, we will endeavour to speak and persuade ourselves about every pursuit; and to show how this thing is beautiful, and that is not so. But, first of all, hear me, how we ought to consider what is good or bad in things of this kind.

638c

Megillus: How do you say?

638d

Guest: All those who introduce any dispute in their discourse, and immediately propose to praise or blame it, appear to me to act by no means in a proper manner, but to do just the same as if, any one praising a piece of bread as good, another should immediately discommend it, without either understanding its operation or utility, and without knowing after what manner, by whom, and with whom it was prepared, and the past and present habit of the bodies to whom it ought to be offered. But we appear to act in the very same manner, at present, in our discourses. For, upon only hearing intoxication mentioned, some of us immediately blamed, and others praised it; and

this very absurdly. For, employing witnesses and those who praise, we likewise praised; and some of us thought that we advanced something seasonable, because we adduced a multitude of witnesses; but others, because those who make no use of wine conquer in battle. This, however, is to us ambiguous. If then we proceed in this manner in the discussion of other particulars pertaining to laws, we shall not in my opinion proceed rationally. But adducing intoxication as an instance, I will endeavour to the utmost of my ability to point out a right method for us, about all such subjects of inquiry; since innumerable nations, who are doubtful about these particulars, will verbally contend with your two cities.

638d

Megillus: We must not through sluggishness refuse to hear, whether we possess any right consideration about these affairs.

638e

Guest: Let us, therefore, thus consider. If any one should praise the employment of nurturing goats, and the possession of that species of animals, as a beautiful thing, but another should blame it, in consequence of seeing that goats are fed in cultivated places without a shepherd, and that every kind of cattle is either without a shepherd, or is under the direction of bad shepherds; should we consider the accusation of such a one as sane, or not?

639a

Megillus: How is it possible we could?

639b

Guest: But, whether will a pilot be useful in a ship, if he alone possesses the nautical science, whether he is troubled with sea sickness or not? or how shall we say?

639b

Megillus: This passion which you speak of is not in any respect connected with the nautical art.

639b

Guest: But what shall we say of the general of an army? Is he to be considered as sufficient to the purposes of commanding, if he possesses the warlike science, though, being timid in dangers, yet through intoxication he should loath fear?

639b

Megillus: How can he?

639b

Guest: But what shall we say, if he does not possess art, and is timid?

639c

Megillus: You speak of one in every respect depraved, and who is by no means a ruler of men, but of some extremely weak women.

639c

Guest: But he who praises or blames a community, which is naturally capable of being governed, and which with a proper governor is a useful society, but, at the same time, has either never seen it well governed, or has always beheld it without governors, can he with propriety ever praise or blame such a community?

639c

Megillus: How is it possible he can, who has never beheld a society well governed?

639d

Guest: Attend then: Do we not consider guests and banquets as one certain association out of many communities?

639d

Megillus: We do in the highest degree.

639d

Guest: Has no one, therefore, ever beheld this subsisting in a proper manner?

639e

But it is easy for you to answer, that this has never in any respect been beheld (for this is neither according to the manner of your country nor your laws). But I have met with many, and in many places, and

have diligently inquired, as I may say, about all of them. And, indeed, I have scarcely seen or heard of one whole community that has been established in a proper manner; but I have seen that this has been the case with certain few and small parts, while many have, as I may say, been entirely faulty.

640a

Clinias: How do you say, O guest? Speak still more perspicuously. For we, as you say, being unskilled in such things, and perhaps not having met with them, cannot immediately know what in them is right or wrong.

640a

Guest: You speak probably: but, while I speak, endeavour to learn. Do you then acknowledge, that, in all associations and communions of actions whatever, it is proper for each to have a governor?

640a

Clinias: How is it possible I should not?

640a

Guest: But we have already said, that the governor of warlike affairs ought to be brave.

640b

Clinias: We have.

640b

Guest: But the brave will be less disturbed by fear than the timid man.

640b

Clinias: And this also will be the case.

640b

Guest: If any method could be devised by which a general of an army might be rendered neither timid, nor subject to perturbation, should we not accomplish this by all possible means?

640b

Clinias: In the greatest degree.

640b

Guest: But now we do not speak of an army which is governed in the inimical associations of inimical men, in war, but of the benevolence of friends communicating with each other in peace.

640c

Clinias: Right.

640c

Guest: But an association of this kind, if it is attended with intoxication, will not be without perturbation. Or, do you think it will?

640c

Clinias: How should it be without?

640c

Guest: In the first place, therefore, these have need of a governor.

640c

Clinias: Most of all.

640c

Guest: Whether, therefore, is it proper to choose for them, if possible, a governor who is free from perturbation?

640c

Clinias: How can it be otherwise?

640c

Guest: And, indeed, as it appears, he ought to be prudent with respect to association. For he should be the guardian of their friendship, and should take care that it may be increased through this their association.

640d

Clinias: You speak most truly.

640d

Guest: It is proper, therefore, to place over the intoxicated a sober and wise governor, and not the contrary. For, if the governor of the intoxicated is himself intoxicated, young, and not wise, he must be abundantly fortunate if he does not accomplish some mighty evil.

640d

Clinias: Abundantly indeed.

640d

Guest: If, therefore, any one should blame drinking associations, though they should be as well instituted as possible in cities, while he accuses the thing itself, he will perhaps very properly blame them. But if he should blame all drinking associations, merely because he had seen one defective; in the first place, it is evident he is ignorant that this was not well instituted; and, in the next place, every thing after this manner will appear base, although the master and governor should be sober.

640e

Or, do you not perceive, that when the pilot is intoxicated, or any other governor, he will subvert every thing, whether

641a

it is a ship, or a chariot, or an army, or any thing else that is governed by him?

641b

Clinias: You speak, O guest, in every respect, true. But inform me what advantage can be derived from drinking associations when they are well conducted. As that which we just now asserted, that an army well commanded would procure victory in war, which is no small good; and in the same manner we must judge of other things. But what great advantage will accrue either to individuals, or cities, from drinking associations being properly instituted?

641c

Guest: What great advantage can a city derive from one boy, or one company being properly educated? or shall we not reply to him who asks this question, that the city derives but very little advantage from the education of an individual, or a company? But, if you inquire universally about the education of youth, of what great advantage it is to a city, it is not difficult to reply, that, when boys are well educated, they will become good men; and that, in consequence of becoming good men, they will both act in other respects in a beautiful manner,

and will vanquish their enemies in battle. Discipline, therefore, will give victory, but victory sometimes produces ignorance. For many becoming insolent through victory in war are filled, in consequence of their insolence, with a thousand other evils. And discipline indeed has never at any time been Cadmeian; but there have been, and will be, many victories of this kind among men.

641d

Clinias: You seem to say, O friend, that associations for the purpose of drinking wine form a great part of discipline, if they are properly conducted.

641d

Guest: Certainly.

641d

Clinias: Will you after this be able to prove that your assertion is true?

641d

Guest: To contend, O guest, that these things are true, since many doubt about them, is alone the province of divinity; but, if it be requisite to assert what appears to me, I think no one will be envious, since our intention, at present, is to discourse about laws and a polity.

641e

Clinias: We will therefore endeavour to learn what is your opinion with respect to these ambiguities.

641e

Guest: It is proper to do so; and, besides this, that you should endeavour to learn, and I to teach, and that this should be the whole business of our discourse. But, first of all, hear what follows. All the Greeks consider this city of ours as philological, and abounding in words. But with respect to Lacedæmon and Crete, the former is considered as sparing of words, but the latter, as more remarkable for abundance of sagacity than abundance of words.

642a

But I am afraid I shall appear to you to speak much about a small affair,—I mean intoxication. An emendation of it, indeed, according to

nature cannot be accomplished with perspicuity, without musical rectitude, nor be sufficiently handled in discourse. But music cannot be discussed without the whole of erudition. And all this requires a multitude of words. Consider, therefore, what we shall do: whether we shall omit these things at present, and pass on to some other question about laws.

642b

Megillus: Perhaps you do not know, O Athenian guest, that our family is the public guest of your city. Perhaps, therefore, a certain benevolence will immediately enter into the minds of all boys towards a city, when they hear that they are the public guests of that city; and they will consider it as another native country, which ranks in the second place after their own. And this is the case with myself at present. For I have heard the Lacedæmonian youth, as often as they praised or blamed any thing belonging to the Athenians, say, Your city, O Megillus, has been the cause of this evil, or that good.

642c

But, on hearing this, I have fought against those who blamed your city, in consequence of possessing all possible benevolence towards it. And now, indeed, your voice is grateful to me; and that which is said by many, that such of the Athenians as are good are so in a remarkable degree, appears to be most truly asserted. For they alone, without necessity, spontaneously, and from a divine allotment, are truly and not fictitiously good. Therefore, for my sake, my friend, you may boldly say whatever you please.

642d

Clinias: And hearing and receiving, O guest, what I have to advance, you may confidently speak what you please. For you have perhaps heard, that Epimenides was a divine man, who was of our family, and who ten years prior to the Persian war came to your city through the admonition of an oracle, and performed certain sacrifices which the God had enjoined. And besides this, he told the Athenians, who were terrified at the Persian expedition, that the Persians would not come

for the space of ten years; and that, when they came, they would depart without accomplishing any thing which they hoped to accomplish, and would suffer greater evils than they caused.

642e

At that time our ancestors hospitably received yours; and, in consequence of this, both myself and our parents are benevolently disposed towards you.

643a

Guest: You therefore, as it appears, are prepared to hear; but I am indeed prepared so far as relates to my will, but not altogether with respect to my ability. I shall however endeavour to gratify your request. In the first place then, as preparatory to our discourse, let us define what discipline is, and what power it possesses. For we say that through this the discourse proposed by us at present must proceed, until it arrives at divinity.

643a

Clinias: We ought entirely to act in this manner, if agreeable to you.

643b

Guest: While, therefore, I assert what it is proper to say discipline is, do you consider whether my assertion accords with your opinion.

643b

Clinias: You may begin when you please.

643c

Guest: I say, then, that those who are hereafter to become great men ought from their very childhood to meditate both in sport, and when acting seriously, things accommodated to the objects of their pursuit. Thus, if any one is to become a good husbandman or architect, he ought from childhood, even in play, either to till the ground, or build certain puerile houses. And he who is intrusted with the education of both these should provide each of them with small instruments, which are imitations of the true ones. And besides this, he should learn such disciplines as are necessary to be previously learned. Thus, a workman should learn how to measure, or use a rule. He who is

destined to be a warrior should in sport ride on horseback, or do something else of a similar kind. And the master of the children should endeavour, by sports, to turn the pleasures and desires of the children thither, where when arrived, it is proper they should receive their consummation. But we say that the head or summit of discipline is a right education, which especially leads the soul of him who sports to a love of that which it will be requisite for him to do when he has arrived at manhood, and has acquired perfection in the virtue of his art. Consider therefore, now, whether (as I said) what has been thus far asserted pleases you.

643c

Clinias: How is it possible it should not?

643e

Guest: Neither, therefore, should that which we have said discipline is, be left indefinite. For now, when we blame or praise the education of particular persons, we say that such a one is endued with discipline, but another is undisciplined, although he may possess the greatest skill in cooking, or navigation, and other things of this kind. For we do not, as it appears, consider these to be discipline, but that which causes a citizen from his childhood to desire and love virtue, and through which acquiring perfection, he may know how to govern and be governed with justice. This is what our discourse defines to be education;

644a

from which it appears, that this alone ought to be called discipline, according to our sentiments; but that the education which tends to the acquisition of wealth, or bodily strength, or any other particular wisdom, without intellect and justice, is mechanical and illiberal, and does not in any respect deserve to be called discipline. We shall not, however, contend about a word. But let what we have just now assented to remain, that those who are properly disciplined become nearly all of them good. So that it is by no means proper to despise discipline, because it is present to the most excellent men, the first of

all beautiful things. And if at any time one properly disciplined should depart from right conduct, he is capable of being put in the right way; and this he may always accomplish according to his ability, through the whole of life.

644b

Clinias: Right: and we assent to what you say.

644b

Guest: But we formerly granted, that those are good who are capable of governing themselves, but those bad, who do not possess this ability.

644c

Clinias: You speak most rightly.

644c

Guest: We will therefore resume this assertion, that what we say may become more clear. And receive me through an image, if in any respect I may be able to manifest to you a thing of this kind.

644c

Clinias: Only speak.

644c

Guest: Do we not consider each of us as one?

644c

Clinias: We do.

644c

Guest: But that we contain in ourselves two counsellors, contrary to each other, and foolish, which we denominate pleasure and pain?

644d

Clinias: This also we admit.

644d

Guest: With these are connected the opinions of things future, the common name of which is hope. But, properly speaking, the hope prior to pain is fear, but that which is prior to its contrary is confidence. But in all these there is a reasoning process, determining

which of them is better or worse; and which, when it becomes the common dogma of the city, is denominated law.

644d

Clinias: I can scarcely follow you. However, proceed with what remains, as if I were able to follow you.

644d

Megillus: I likewise am affected in the same manner.

644e

Guest: But we should thus think about these things. We should consider that each of us is reckoned a prodigy by divine animals⁹, whether we were produced as their sport, or as the result of a serious operation: for of this we are ignorant. This however we know, that these passions are inherent in our nature like nerves or ropes, that they draw contrary to each other, being themselves contrary, and that they draw us to contrary actions, where virtue and vice are situated apart from each other.

645a

For reason says, that we ought always to follow one of the drawings, and should never abandon it, but through this draw in a contrary direction to the other nerves; and that this is the golden and sacred guidance of the reasoning energy, which is called the common law of the city. It adds, that the other drawings are hard, and of an iron nature; but that this is soft, as being golden. That it is besides uniform, but that the others are similar to all-various forms. It is necessary, therefore, that we should always follow the most beautiful guidance of law. For, since the energy of reasoning is beautiful and gentle, but not violent, servants have need of its guidance, that the golden race¹⁰ in us may vanquish the genera of a different kind. And thus the fable, since we are beings of a wonderful nature, will be preservative of virtue;

645b

and we shall be able to understand more clearly how any one may be said to be superior and inferior to himself: and both cities and individuals, apprehending the true reason respecting these drawings,

ought to live conformable to it. We shall likewise be convinced that a city, whether it receives reason from some one of the Gods, or from him who knows these particulars, will establish it as law, and employ it in its own transactions, and in its transactions with other cities. For thus vice and virtue will appear to us more clearly distinct; and this distinction becoming more conspicuous, both discipline and other studies will perhaps be rendered more apparent. This will likewise be the case with respect to the custom of drinking societies, about which it might appear despicable to discourse any further.

645c

Clinias: Perhaps it will appear not to be unworthy of a long discourse.

645d

Guest: You speak well. We will therefore endeavour to relate what appears to be praise-worthy in a custom of this kind.

645d

Clinias: Speak then.

645d

Guest: If to this wonderful thing we should add intoxication, what sort of a thing shall we fashion him?

645d

Clinias: What thing do you look to in asking this question?

645d

Guest: To nothing particular. But if this prodigy or wonderful thing should become connected with intoxication, what would happen to be the result? But I will endeavour to explain more clearly what I mean. For this is what I ask: Does the drinking of wine more vehemently excite pleasure, pain, anger, and love?

645e

Clinias: It does very much so.

645e

Guest: Does it in a similar manner render the senses, memory, opinion, and prudence, more vehement? or does it entirely extinguish these,

when any one has drunk of it to intoxication?

645e

Clinias: It entirely extinguishes these.

646a

Guest: Such a one, therefore, returns to that habit of soul which he possessed when he was a boy.

646a

Clinias: Entirely so.

646a

Guest: Hence such a one has at that time the least possible command of himself.

646a

Clinias: The least.

646a

Guest: Shall we, therefore, call such a one most depraved?

646a

Clinias: Very much so.

646a

Guest: Not only then, as it appears, does an old man become twice a boy, but this is likewise the case with a man when intoxicated.

646a

Clinias: You speak, O guest, in a most excellent manner.

646a

Guest: Is there any reason which can persuade us that we ought to taste this liquor, and not to the utmost of our power avoid it?

646b

Clinias: It appears that there is; and you just now said you was prepared to show it.

646b

Guest: You have very properly reminded me; and I am now prepared, since you have both said that you are willing to hear me with alacrity.

646b

Clinias: How is it possible we should not hear you, if on no other account, yet for the sake of the wonderful and the absurd which it contains, if it is necessary that a man should at any time voluntarily hurl himself into every kind of depravity?

646b

Guest: Do you speak of the soul?

646b

Clinias: I do.

646b

Guest: But what? Shall we wonder, my friend, if at any time some one should voluntarily arrive at depravity of body,—I mean leanness, deformity, and imbecility?

646c

Clinias: How is it possible we should not?

646c

Guest: Shall we, therefore, think that those who go to a dispensary for the sake of obtaining medicines, are ignorant that, in a short time after they have taken the medicines, their body will for many days be so affected, that, if they were to remain in that condition to the end of life, they would not wish to live? or, Do we not know that those who undergo gymnastic exercises and labours are immediately rendered weak?

646c

Clinias: All this we know.

646d

Guest: And that they willingly tend to these things, for the sake of consequent utility?

646d

Clinias: Most beautifully said.

646d

Guest: Is it not, therefore, necessary to think after the same manner about other pursuits?

646d

Clinias: Entirely so.

646d

Guest: In the same manner, therefore, we ought to think about the employment of drinking wine, if it is admitted that this among other employments may be considered in a proper light.

646d

Clinias: Certainly.

646d

Guest: If it should, therefore, appear to us to possess any utility, which is not inferior to corporeal exercise,—in the first place, it will vanquish this, because corporeal exercise is attended with pain, but the employment of drinking wine is without pain.

646e

Clinias: You speak very properly. But I should wonder if we were able to perceive any such thing in it.

646e

Guest: This, therefore, as it appears, I must now endeavour to explain to you. Tell me then, are we able to understand two species of fear, which are nearly contrary to each other?

646e

Clinias: Of what kind are they?

646e

Guest: They are such as these. We are afraid of things evil, when we expect they will arrive.

646e

Clinias: We are.

647a

Guest: And we are often afraid of opinion, thinking we shall be considered by others as depraved characters, when we do or say any thing which is not becoming; which fear, I think, both we and all others denominate shame.

647a

Clinias: Doubtless.

647a

Guest: These are the two fears I spoke of,—one of which is contrary to pain, and other fears, and is also contrary to the greater part and the greatest of pleasures.

647b

Clinias: You speak most rightly.

647b

Guest: Will not therefore a legislator, and every one who is in the least degree useful, reverence this fear with the greatest honour, and call it shame,—but denominate confidence the contrary to this, impudence, and consider it as the greatest evil that can befall men, both in public and private?

647b

Clinias: You speak rightly.

647b

Guest: This fear, therefore, will preserve us in many other and great concerns, and nothing will so much procure for us victory and safety in war, one being opposed to one, as this. For there are two things which procure victory, confidence of the enemy, and the dread of friends with respect to base infamy.

647b

Clinias: It is so.

647c

Guest: It is necessary, therefore, that each of us should become intrepid, and, at the same time, timid. But we shall show, by division, on what account we ought to become each of these.

647c

Clinias: By all means.

647c

Guest: When we wish to render any one intrepid, we shall accomplish this by leading him, according to law, to the dread of many terrible things.

647d

Clinias: It appears so.

647d

Guest: But, what,—when we endeavour to render any one justly terrified, ought we not, by exercising him in impudence, to cause him to be victorious in contending with pleasures? Or, by contending with and vanquishing his usual mode of living, ought he not thus to obtain perfection in fortitude? And will not he who is unexperienced and unexercised in contests of this kind remain, as to one half of himself, destitute of virtue? But how can any one be perfectly temperate, who has not contended with and vanquished, by reason, labour and art, in sport and in earnest, many pleasures and desires, which urge him to act impudently and unjustly; but who is impassive with respect to all such things?

647d

Clinias: It is by no means probable that he can.

647e

Guest: But what,—has divinity given men any medicine of fear, so that by how much more desirous any one is of drinking it, by so much the more unhappy will he think himself from every draught; so that he will dread every thing, both present and future, and will at length, though he should be the bravest of men, be filled with every kind of dread; and, after having slept, and being freed from the potion, will again every day be equally terrified?

648a

Clinias: And what potion of this kind, shall we say, O guest, is found among men?

648b

Guest: None. Yet if such a potion should be found, would it be useful to the legislator with respect to fortitude, so that we might thus speak to

him respecting it: O legislator, whether you have given laws to the Cretans, or to any other nation, are you willing to make trial of your citizens with respect to fortitude and timidity?

648b

Clinias: He would doubtless say, that he was willing.

648b

Guest: But what,—are you willing to do this with safety, and without great danger; or the contrary?

648c

Clinias: Every one must acknowledge, he would wish to do this with security.

648c

Guest: Would you use this potion, leading them to terrors, and accusing them during their perturbation, so as to compel them to become intrepid, by exhortations and honours; disgracing him who will not be persuaded to become in all things such a one as you wish; and dismissing him with impunity who exercises himself in a proper and valiant manner, but punishing him who acts otherwise? or, Would you by no means use this potion, though you could find nothing else in it to accuse?

648c

Clinias: Why should he not use it, O guest?

648d

Guest: An exercise, therefore, O friend, different from those at present, will possess a wonderful facility, both with respect to one person and a few, and as many as you shall always wish to be exercised. And whether any one, being alone in solitude, should place ignominy before his eyes, thinking that he ought not to be seen till he has made sufficient advances in virtue, and should thus exercise himself against fear, preparing this potion alone, in preference to ten thousand other things, he would do something proper: or whether some one, confiding in his own nature, and being properly prepared by meditation, should not refuse to exercise himself with many drinking

associates, and should evince, in the necessary consumption of the liquor, a power so transcendent and strong, as neither greatly to err through impudence, nor to be changed through virtue, but towards the end of the liquor should depart without being intoxicated, fearing any human potion the least of all things;—in this case, he would do something well.

648e

Clinias: Certainly. For such a one, by thus acting, would conduct himself with temperance and modesty.

649a

Guest: Again, let us thus address the legislator: Neither, O legislator, has any God given to mankind such a medicine, nor have we devised such a one: (for I do not consider witches at a banquet) but whether or not, is there a potion capable of producing intrepidity, together with vehement and unseasonable confidence? Or how shall we say?

649a

Clinias: There is, and he would say that it is wine.

649a

Guest: But this produces contrary effects to the potion of which we have just now spoken. For, when a man drinks of it, it makes him at first immediately more cheerful than he was before; and by how much more he drinks of it, by so much more is he filled with good hope, and an opinion of his own power; till at length, as if he were a wise man, he becomes replete with all possible freedom of speech and behaviour, and intrepidly both says and does whatever he pleases.

649b

Clinias: I think every one will admit this.

649b

Megillus: Certainly.

649b

Guest: But do we

649c

recollect that we said there were two things in our souls which ought to be cultivated;—the one, that we may possess confidence in the highest degree; but the other, which is the very contrary, that we may be afraid in the highest degree?

649d

Clinias: I think you said this of shame.

649d

Guest: You very properly remember. But since it is necessary that fortitude and intrepidity in fear should be the subjects of meditation, let us consider whether it will be proper that the contrary should be cultivated in the contrary to fear.

649d

Clinias: It is probable.

649d

Guest: In those things, therefore, in which, naturally suffering, we are remarkably confident and audacious, in these it will be proper, as it appears, to meditate how we may become in the least degree impudent and audacious, but timid with respect to daring to speak, or suffer, or do any thing base.

649d

Clinias: It appears so.

649e

Guest: Are not all these, therefore, the things in which we are thus affected, viz. anger, love, petulance, ignorance, the love of gain, and timidity; and besides these, riches, beauty, strength, and all such things as, intoxicating men through pleasure, render them delirious? In order to make an easy and innocent trial of all these, and afterwards meditate upon them, what pleasure have we more convenient than that which explores the disposition of men by means of wine, when it is attended with prudent caution?

650a

For, let us consider: whether ought we to make trial of a morose and rustic soul, from which a thousand injuries germinate, in his contracts

with others, or from his being present at the shows of Bacchus, or from his soul being vanquished in venereal affairs, so as to behold the manners of his soul when his sons, daughter, and wife, are exposed to danger? In short, among ten thousand things, you will not find any thing in which in jest, and without any danger, you can so well contemplate the disposition of any one, as by wine. We ought, therefore, to think that neither the Cretans, nor any other nation, would ever doubt but that this trial of the disposition of each

650b

other is convenient, and above all others safe and easy.

650c

Clinias: You speak truly.

650c

Guest: This, then, will be one of the most useful things, to know the natures and habits of souls by that art whose province it is to procure a remedy for these.

650d

But this, as I think, is the province of the politic art. Or is it not?

652a

Clinias: It is entirely so.

Book II

652a

After this, as it appears, we should consider respecting these particulars, whether this alone is beneficial, to contemplate after what manner we possess certain natures, or whether also some great advantage which deserves much attention

652c

is inherent in the proper use of drinking wine in conjunction with others.

652d

What then shall we say? Our discourse would seem to insinuate that it is inherent.

652e

But when, and after what manner, let us attentively hear, lest we should be impeded in our inquiry by this affair.

653a

Clinias: Speak then.

653a

Guest: I am desirous, therefore, of again recalling to our memory our definition of proper discipline. For the safety of this, as I conjecture at present, consists in the employment we are now speaking of, when well conducted.

653b

Clinias: You speak largely.

653b

Guest: I say then, that the first puerile sense of boys is pleasure and pain; and that these are first inherent in the soul, in which vice and virtue subsist. But he is happy who in old age acquires the firm possession of prudence¹¹ and true opinions. And that man is perfect who possesses these, and all the goods they contain. But I call discipline that virtue which first accedes to boys. When pleasure, love, pain, and hatred, are properly produced in the soul, before it is able to receive these attended with reason; if, when they are attended with reason, they accord with it in consequence of being properly accustomed by well adapted manners, then this consent is the whole of virtue. But the proper nurture of the soul, with respect to pleasure and pain, so as that it may hate what it ought to hate, immediately from the beginning to the end, and love what it ought to love,—this, if it is considered separately, and is denominated discipline, will, according to my opinion, be properly denominated.

653b

Clinias: What you have said, O guest, formerly and at present, about discipline, appears to be well said.

653c

Guest: It is well, therefore.

653d

For these pleasures and pains, which when properly nurtured are disciplines, are often loosened and corrupted by men in the business of life. But the Gods, commiserating the naturally laborious race of men, ordained for them remissions of labours, and gave them the vicissitudes of festivals¹² in honour of the Gods, together with the Muses, Apollo the leader of the Muses, and Bacchus, as their associates in these celebrations; that in these festivals they might rectify the education of youth, in conjunction with the Gods. Consider, therefore, whether it is proper to say, that our discourse at present is celebrated as true according to nature, or how shall we say? But it asserts, in short, that every youth is incapable of being at rest, either in body or voice, but that he always seeks to be moved and to speak; sometimes exulting and leaping, dancing and sporting as it were with pleasure, but at other times uttering sounds with every kind of voice. Other animals, indeed, have no sensation either of order or disorder in motions, which order is denominated rhythm and harmony; but those Gods whom we call associates in the choir have bestowed upon us a rhythmical and harmonic sense, which might agitate us with pleasure, by connecting us with each other through singing and dancing. But the word choir was denominated from joy, as its natural name. In the first place, however, it is necessary to ask, whether we admit that discipline first subsists through the Muses and Apollo? or how shall we say?

653e

Clinias: That it does.

653e

Guest: He, therefore, who is void of discipline, is with us one who has never joined a choir; but he who is disciplined is to be considered as one who has sufficiently engaged in a choir.

653e

Clinias: Certainly.

654a

Guest: But the whole of a choir consists in dancing and singing.

654b

Clinias: It is necessary it should.

654b

Guest: He, therefore, who is properly disciplined will be able to sing and dance in a becoming manner.

654b

Clinias: It appears so.

654b

Guest: But let us consider what it is that we have now asserted.

654b

Clinias: What is that?

654c

Guest: We have spoken of singing and dancing in a becoming manner. But whether or not is it proper to add, that things beautiful ought to be the subjects of singing and dancing?

654c

Clinias: This ought to be added.

654c

Guest: But what,—will

654d

he who considers things beautiful, as beautiful, and things base, as base, and who uses them as such,—will such a one be better disciplined for us, with respect to the choir and music, than he who is sufficiently able to become subservient to that which he considers as beautiful in body and voice, but yet does not rejoice in things beautiful, nor hate such as are void of beauty? Or he, who, though he is not altogether able to act or think rightly, with respect to his voice and body, yet acts rightly with respect to pleasure and pain; embracing such things as are beautiful, and hating such as are base?

654d

Clinias: You speak, O guest, of a mighty difference of discipline.

654e

Guest: If, therefore, we three possess a knowledge of the beautiful in singing and dancing, we also know when any one is properly or improperly disciplined: but, if we are ignorant of this, we shall not be able to know what is the defence of discipline, and where it is to be found. Is not this the case?

654e

Clinias: It is.

654e

Guest: Let us, therefore, in the next place, like dogs on the scent, investigate beautiful figure, melody, singing and dancing. For, if these elude our pursuit, our discourse about proper discipline, whether Grecian or Barbarian, will be in vain.

654e

Clinias: It will.

654e

Guest: What figure, therefore, or melody, is it proper to call beautiful? Shall we say, that in the same and equal labours the figures and voices of a brave and timid soul are similar?

655a

Clinias: How can they, since neither are their colours similar?

655a

Guest: Well observed, my

655b

companion. But in music there are both figures and melody, since music is conversant with rhythm and harmony. So that melody or figure may possess proper rhythm or harmony, but not a proper colour, that we may speak in the assimilative way, as the masters of the choir are accustomed to assimilate. But there is a certain figure or melody of a timid, and of a brave man; and it will be proper to call these things in brave men, beautiful, but in the timid, base. And that

we may not be prolix about these particulars, all the figures and melodies which simply adhere to the virtue of the soul or body, or to a certain image of it, are beautiful; but the contrary must be asserted with respect to the vice of the soul or body.

655b

Clinias: You are right; and we judge that these particulars subsist in this manner.

655c

Guest: But we must still further consider, whether all of us are similarly delighted with all choirs, or whether this is far from being the case?

655d

Clinias: It is far from being the case.

655d

Guest: What then shall we say is the cause of our error? Is it because not the same things are beautiful to all? Or shall we say that they are the same things, but do not appear to be the same? For no one will say that a vicious is better than a virtuous choir; or that he is delighted with depraved figures, but others with a muse contrary to this. Though, indeed, most men assert, that the rectitude of music consists in a power which imparts pleasure to the soul. This, however, is neither to be endured, nor is it holy by any means to make such an assertion. But this is more probably the cause of our error.

655e

Clinias: What?

655e

Guest: Since the particulars respecting choirs are imitations of manners and of actions which take place in all-various fortunes and habits, those by whom the imitations of manners, whether expressed by discourse, or melody, or dancing, are approved, either from nature or custom, or from both, must necessarily rejoice in and praise these, and denominate them beautiful. But those to whom they appear contrary to nature, or manners, or custom, can neither rejoice in nor

praise them, but must necessarily denominate them base. And those, again, to whom these particulars happen right by nature, but the contrary from custom; or right from custom, but the contrary from nature;—these will denominate things contrary to pleasures, laudable. For they will assert that each of these is pleasant, but at the same time base. Hence, before others, whom they consider as intelligent persons, they will be ashamed that their body should be moved after that manner, and will blush to sing, and to call such things beautiful, or deserving serious attention; but, by themselves, they will be delighted with them.

656a

Clinias: You speak with the utmost rectitude.

656a

Guest: Does he then suffer any injury who is delighted with base figures or melodies; or do they receive any advantage who are pleased with the contraries to these?

656a

Clinias: It is probable.

656b

Guest: Is it only probable, or also necessary, that the same thing should happen as takes place when any one, being conversant with the depraved habits of depraved men, does not hate, but rejoices in and admits them; and yet blames them in jest, having a dreaming perception of his own depravity? For, in this case, it is necessary that he should be assimilated to the things in which he rejoices, although he should be ashamed to praise them. But what greater good, or evil, shall we say, can possibly happen to us than a thing of this kind?

656c

Clinias: I think, none.

656c

Guest: But where laws are beautifully established, or will be in some future period of time, can we think it will be lawful for poets, in discipline and sport respecting the Muses, to teach in their poetical

compositions whatever delights them, by rhythm, or melody, or verse, and to form in choirs the boys and young men of well instituted polities, either to virtue or vice?

656c

Clinias: It is contrary to reason to suppose this would be allowed.

656c

Megillus: For how is it possible it should be?

656d

Guest: But, in short, it is lawful to act in this manner at present in all cities, except Egypt.

656d

Clinias: But how do you say a thing of this kind is established by law in Egypt?

656e

Guest: It is wonderful to hear. For, as it appears, they formerly knew what we have now said, that young men in cities should be accustomed to beautiful figures and beautiful melodies; and it is one of their institutions to exhibit in their temples what these are, and what the qualities which they possess; and besides these, it is not lawful, either for painters or other artificers of figures, to introduce any that are new, or even to think of any other than those belonging to their country: nor is it lawful at present to do this, either in these particulars or in the whole of music. If you observe, therefore, you will find that paintings and sculptures there, which were executed TEN THOUSAND YEARS ago, as if they were not of such great antiquity, are neither more beautiful, nor more deformed, than paintings or carvings of the present day, but are fashioned by just the same art.

657a

Clinias: You speak of a wonderful circumstance.

657b

Guest: It is, however, a circumstance pertaining to law and politics in a transcendent degree. You will likewise find other things there of a

trifling nature. But this respecting music is true, and deserves attention, because the legislator could firmly give laws about things of this kind, and with confidence introduce such melodies as possessed a natural rectitude. But this must be the work of a God, or of some divine person. Just as they say there, that their melodies, which have been preserved for such a length of time, are the poems of Isis. So that, as I said, if any one is able to apprehend the rectitude of them, he ought to have the courage to reduce them to law and order. For the search of pleasure and pain, which is always directed to the use of new music, perhaps possesses no great power of corrupting the consecrated choir by an accusation of its antiquity. It appears, therefore, that the choir of the Egyptians was by no means capable of being corrupted, but that the contrary was entirely the case.

657c

Clinias: From what you have now said, it appears that it must be so.

657c

Guest: May we not, therefore, confidently say, that a choir is after a certain manner properly connected with sports and music; and, that we rejoice as often as we think that we do well, and, when we rejoice, think we do well? Is it not so?

657c

Clinias: It is.

657c

Guest: But, rejoicing in a thing of this kind, we are incapable of being at rest.

657c

Clinias: We are so.

657c

Guest: Are not, therefore, those among us that are young men prompt to dance? And do not we who are old men think that we conduct ourselves in a becoming manner in beholding these, while we rejoice in their sports, and in their celebration of sacred festivals, since lightness of body fails us at our time of life,—through the desire of

which, we thus establish games for those who are able in the highest degree to excite in us the memory of our juvenile period?

657d

Clinias: Most true.

657d

Guest: Shall we therefore consider that which is said by many of those who celebrate sacred festivals, as said in vain, that it is proper to reckon him most wise, and to judge that he will conquer who causes us to be delighted and to rejoice in the greatest degree?

657e

For it is proper, since we permit sport in things of this kind, that we should particularly honour him who causes the greatest number and in the greatest degree to rejoice; and, as I just now said, that we should pronounce him victor. Is this, therefore, rightly said, and will a conduct of this kind be right?

658a

Clinias: Perhaps so.

658a

Guest: But, O blessed man, we should not hastily judge a thing of this kind, but, dividing it into parts, consider after this manner:

658b

If any one should at any time simply establish a certain game, but without defining whether it is gymnastic, or equestrian, or musical; and, collecting together all the inhabitants of the city, should proclaim, that he was going to establish a contest for the sake of pleasure alone, in which (without expressing the mode of contest) rewards would be assigned for him who gave the spectators the greatest delight, and that for this he would be considered as victor, and as the best of all those engaged in the contest,—what do we think would be the consequence of this proclamation?

658b

Clinias: Of what are you speaking?

658c

Guest: It is proper that one should exhibit, like Homer, a rhapsody, another the modulation of the harp, another tragedy, and another comedy. Nor will it be wonderful, if some one, by exhibiting prodigies, should think that he is especially victorious. But, these and an innumerable multitude of other champions assembling together, can we say which of them is justly the victor?

658c

Clinias: You ask an absurd thing. For, who can give you an answer to this question, unless he has himself been an auditor of each of the champions?

658c

Guest: Are you therefore willing that I myself should reply to this absurd question?

658c

Clinias: How is it possible I should not?

658d

Guest: If, therefore, very little children were to judge in this affair, they would give the palm of victory to him who exhibited prodigies: or would they not?

658d

Clinias: How should they do otherwise?

658d

Guest: The greater boys, however, would give the preference to those that exhibited comedies; but such women as are better educated than others, young men, and perhaps almost the whole multitude, would prefer the tragedians.

658d

Clinias: Perhaps so.

658d

Guest: But perhaps we old men should hear with the most pleasure the rhapsodist when properly handling the Iliad and Odyssey, or some of the works of Hesiod, and should by far proclaim him the victor of all

the others. Ought we not, therefore, after this to show who is properly the victor in these contests?

658e

Clinias: Certainly.

658e

Guest: It is evident that both I and you ought necessarily to confess, that he will be properly the victor whom those of our age judge to be so: for the skill which we derive from age appears to be every where by far the best of all political concerns.

659a

Clinias: Doubtless.

659a

Guest: I therefore grant thus much to the multitude, that music ought to be judged by pleasure, yet not by the pleasure it imparts to every man,— but that, nearly, that is the most beautiful muse which delights the best of men, and such as are sufficiently disciplined; but especially when it delights a man who excels in virtue and discipline. On this account we say that judges of these things require virtue, because they ought to participate of prudence and fortitude. For a true judge ought not to learn how to judge from another, and thus become as it were stupefied by the clamours of the multitude, and his own ignorance. But he ought to possess fortitude, because, though he should be endued with knowledge, he ought not, through sloth and timidity, to give an unjust decision from the same mouth with which when about to judge he invoked the Gods.

659b

For a judge does not sit as a disciple, but rather, as it is just he should, as a master of the spectators, and as one who is averse to things which do not afford the spectators a fit and proper pleasure. For it was allowed by the antient and Grecian law, as by that of Sicily and Italy at present, that the multitude of spectators should decide who was victor, by holding up their hands: but this corrupted the poets themselves, who wrote according to the depraved pleasure of vulgar

judges; so that the spectators both disciplined themselves and the poets. It likewise corrupted the pleasures of the theatre. For, as it is here proper that the spectators should always hear of manners better than their own, and thus obtain a more excellent pleasure, the very contrary to this takes place at present. What then does the present discourse wish to signify? Consider whether it is this.

659d

Clinias: What?

659d

Guest: My discourse appears to me to have thrice or four times revolved to the same thing, that discipline is the drawing and leading of youth to that which is called by the law, right reason, and which the most worthy and antient men have found by experience to be truly right. That the soul of a youth, therefore, may be accustomed by law, and by those who are persuaded by law, not to rejoice in things contrary, but to be delighted or afflicted with the same things as an old man; for the sake of this, those poetical compositions called odes, and which are truly epodes, or incantations to the soul, are composed at present, and which hastily tend to that kind of symphony of which we are speaking.

659e

But since the souls of boys are incapable of engaging in serious pursuits, sports and odes were instituted by the legislator. Just as, in curing diseased and imbecil bodies, physicians endeavour to introduce useful food in pleasant meats and drinks, but noxious food in such as are bitter, that they may be rightly accustomed to embrace the one, and hate the other. A proper legislator will persuade the poet to do the same in beautiful and laudable words; and will compel him, if he cannot be persuaded, that when he produces figures of temperate, brave, and, in short, of all good men, in rhythms, and melodies in harmonies, he

660a

shall produce them properly.

660b

Clinias: By Jupiter, O guest, does it appear to you that this is done at present in other cities? For I do not know of any city in which what you speak of takes place, except ours, and that of the Lacedæmonians. But in other cities there are always some new regulations about dancing, and the rest of the music; and this not from any mutation in the laws, but from certain inordinate pleasures, which are very far from remaining perpetually the same, like those Egyptian regulations which you related, but continually vary.

660b

Guest: Most excellent, O

660c

Clinias! But if I have appeared to you, as you say, to assert these things as existing at present, I shall not wonder that I have done this in consequence of not clearly unfolding my meaning. But having spoken about certain particulars, which I wished to take place, respecting music, I perhaps appeared to you to speak as if they actually existed at present. For, to blame a thing which is incurable, and which is very far advanced in error, is by no means pleasant, though sometimes necessary. But, as we are thus far agreed, will you not say that these things subsist among us, and those, more than among the other Greeks?

660d

Clinias: Certainly.

660d

Guest: But if they should also take place among others, would they not be better conducted than at present?

660d

Clinias: By far better, if they subsisted as you just now said they ought to subsist, and as they subsist among those and with us.

660d

Guest: Shall we then

660e

agree at present, that the things asserted by you, in every kind of discipline and music, are these: that poets should be compelled to assert that a good man, being temperate and just, is happy and blessed, whether he is large and robust, small and weak, rich or poor; but that an unjust man is miserable, and passes his days in sorrow, though he should be richer than Cinyras or Midas?

661a

A poet, therefore, if he speaks rightly, will say to us: I shall never mention nor consider him as a man, who does not perform with justice, and possess every thing which is denominated beautiful in conduct. Such a one too, being just, will desire to contend with his enemies in close engagement. But he who is unjust will neither dare to behold bloody slaughter, nor to vanquish, running, the Thracian Boreas, nor will he acquire any of those things which are denominated good. For the things which are called by the many good, are not rightly denominated. For it is said that health is the best thing; beauty the next; strength the third; and riches the fourth. And an innumerable multitude of other things are called good.

661b

Thus, to see and hear acutely, and to possess in a proper manner all such things as belong to the senses; likewise to do in a tyrannical manner whatever you please, appears to be good. And besides this, it is considered as the end of all blessedness to become in the most rapid manner immortal, while possessing all these. But you and I say that all these are the best of possessions to just and holy men, but that to unjust men they are the worst of all things, beginning the enumeration from health. For to be well, to see, hear, and possess the other senses, and, in short, to live, is the greatest evil, though a man should be immortal through the whole of time,

661c

and possess every thing that is called good, if all these are not attended with justice and every virtue. But it is a less evil to live in this manner for the shortest time. I think that your poets should speak

in this manner, and that you should persuade and compel them to do so, and to instruct the youth, through rhythms and harmonies, consequent to these assertions. Do you perceive this? For I clearly assert, that the things which are called evil are good to the unjust, but evil to the just; but that things good are truly good to the good, but evil to the wicked. Do, therefore, you and I agree in what is said, or not?

661c

Clinias: We appear partly to agree, and partly not.

661c

Guest: Perhaps I have

661d

not persuaded you that he is not happy, but clearly wretched, who alone possesses in himself injustice and insolence, though he should be healthy and rich, and a tyrant to the end of life; and, besides all these, should be endued with uncommon strength of body, in conjunction with immortality, and should never experience any of those things which are called evils.

661e

Clinias: You speak most truly.

661e

Guest: Be it so then. But what ought we to say after this? If he is valiant, and strong, and beautiful, and rich, and accomplishes through the whole of life whatever he desires,—will he not necessarily appear to you, if he is unjust and insolent, to live in a shameful manner?

662a

Clinias: Entirely so.

662a

Guest: Will he not also appear to you to live badly?

662a

Clinias: This will not in a similar manner appear to me.

662a

Guest: But will you not admit that he must live unpleasantly, and in a manner contrary to his interest?

662b

Clinias: How can I admit this?

662b

Guest: How? If a God, my friends, should cause us to agree in sentiment, as we now nearly dissent from each other. For these things appear to me so necessary, that Crete, O friend Clinias, does not more clearly appear to be an island. And if I were a legislator, I would endeavour to compel the poets, and all the other inhabitants of the city, to speak in this manner: and I would ordain, that nearly the greatest of all punishments should be inflicted on him who should assert, in the country to which he belonged, that there are certain men of a base character who lead a pleasant life; or that some things are advantageous and lucrative, but others more just.

662c

And I would persuade my citizens to assert many other things, contrary to what are now advanced by the Cretans and Lacedæmonians, as it appears, and, indeed, by the rest of mankind. For, by Jupiter and Apollo, O best of men! if we should ask those Gods who gave us laws, whether the most just is the most pleasant life, or whether there are two certain lives, one of which is most pleasant, and the other most just:—if, in answer to our inquiry, they should say there are two lives, we might, perhaps, again ask them (if we inquire properly) which we ought to call most happy;

662d

those who lead the most just, or those who lead the most pleasant life. If they should say, those who lead the most pleasant life, their answer would be absurd. But I am desirous that a thing of this kind should not be said by the Gods, but rather by our fathers and legislators. I shall therefore put the same question to my father and legislator, and I shall suppose him to reply, that he who lives the most pleasant life is the most blessed. After this, I shall thus interrogate him: O father, do

you not wish me to live most happily? But you never cease exhorting me to live most justly.

662e

He, therefore, who acts in this manner, whether he is a legislator or a father, acts I think absurdly, and speaks inconsistently. But if he should evince that the most just life is the most blessed, every one who hears him may, I think, inquire what it is which the law praises in that life as good and beautiful, and better than pleasure. For, what good separate from pleasure can be present to the just man? Can it be said that renown and praise, both from men and Gods, are good and beautiful, but at the same time unpleasant? and that the contrary is true with respect to infamy? We shall say, By no means, O legislator. But is neither to do an injury, nor to suffer one, unpleasant indeed, but at the same time good, or beautiful? And are other things pleasant, but shameful and base?

662e

Clinias: How can they?

663a

Guest: The reason, therefore, which

663b

neither separates the pleasant and the just, nor the good and the beautiful, is persuasive, if to nothing else, yet at least to the wish to live a holy and just life. So that the discourse of the legislator will be most shameful and discordant, if he denies that these things are so. For no one will voluntarily wish to be persuaded to do that which is not attended with more joy than sorrow. But that which is beheld afar off affects every one, as I may say, and even boys, with a dark vertigo. The legislator, therefore, dispersing the darkness, shall establish for us an opinion the contrary to this; and shall persuade the citizens, by custom, and praise, and arguments, that both things just and unjust are involved in shade; and that things unjust, which appear contrary to the just, being surveyed by the unjust and depraved man, seem to

be pleasant, but things just, most unpleasant: but when they are surveyed by the just man, they appear to be entirely the contrary.

663b

Clinias: It appears so.

663c

Guest: But which of these decisions, shall we say, is most true? Whether is it that of the worse, or of the better soul?

663c

Clinias: Necessarily, that of the better soul.

663d

Guest: It is necessary, therefore, that an unjust life should not only be more base and depraved, but, in reality, more unpleasant, than a just and holy life.

663d

Clinias: It appears so, my friend, according to the present reasoning.

663e

Guest: A legislator, therefore, who is in the least degree useful, though what we have now asserted should not subsist in this manner,—yet, as there is not any thing else which can be more advantageous to youth, he will venture to assert it, though false, for their good; because he will thus be enabled to lead them to act justly, not by force, but willingly.

663e

Clinias: Truth, indeed, O guest, is beautiful and stable: but it does not appear easy to persuade.

663e

Guest: Be it so. But that fable of the Sidonian, though improbable, yet easily persuades, as well as an innumerable multitude of others.

664a

Clinias: What fable?

664a

Guest: That, teeth being once sown, armed men were produced from them. For this may serve as a great example to a legislator, that any one may persuade the souls of young men to whatever he pleases. So that he ought, by considering, to find out nothing else than by what means he may confer, through persuasion, the greatest good on the city; and should, by every possible contrivance, discover after what manner the whole of such an association may always speak one and the same thing about these particulars, through the whole of life, in odes, fables, and discourses. But if it appears to you to be otherwise, no discord will arise from this difference in opinion.

664a

Clinias: It does not appear to me that either of us can doubt about these particulars.

664b

Guest: I will, therefore, continue my discourse. I say then, that it is necessary to insinuate, as by enchantment, all the choirs, which are three, into the young and tender souls of boys, together with all such other beautiful things as we have spoken of, and which yet remain for us to discuss. But the principal thing among them is this: that if the life which is pronounced by the Gods to be the most pleasant, and the best, appears to be the same with that which we have described, we shall have spoken most truly, and shall more persuade those whom we ought to persuade, than if we had asserted any thing else.

664c

Clinias: What you say must be granted.

664c

Guest: In the first

664d

place, therefore, the puerile choir of Muses should enter, being about to sing things of this kind, with all possible earnestness to the whole city. In the second place, that choir which consists of men thirty years old shall invoke the God Pæan as a witness of the truth of what is said, and shall beseech him, together with the divinity Persuasion, to be

propitious to the youth. But it is necessary that there should be a third choir, consisting of those who are between thirty and sixty years old. But the mythologists about the same odes, who are more advanced in years than these, as they will no longer be able to sing to the harp, ought agreeably to a divine oracle to be dismissed.

664d

Clinias: Who do you mean, O guest, by these third choirs? for I do not clearly understand what you wish to say about them.

664d

Guest: These are nearly those for whose sake most of the above assertions were made.

664e

Clinias: We do not yet understand: endeavour therefore to speak yet clearer.

664e

Guest: We said, if I remember, in the beginning of this discourse, that the nature of every youth was so ardent, that it could not be at rest either in body or voice, but that it was always speaking and leaping without order; and that no other animal possessed a sense of the order of both these, but that this was alone the province of the nature of man. We likewise said, that rhythm was the name given to the order of motion, but harmony to that of the voice, when the sharp and the flat are mingled together; and that both together are denominated a choir. We still further asserted, that the Gods, commiserating our nature, gave us Apollo and the Muses as our associates in and leaders of the choir; and Bacchus (if we recollect) as the third.

665a

Clinias: How is it possible we should not remember?

665a

Guest: We have therefore spoken concerning the choir of Apollo and the Muses: and hence it is necessary that we should speak respecting the third and remaining choir, or that of Bacchus.

665b

Clinias: Inform me how you mean: for a Bacchic choir of old men appears, on the first hearing, to be very absurd; if those who form this choir exceed thirty, so as to be from fifty to sixty years old.

665b

Guest: You speak most truly. But I think reason is requisite, that it may appear how this may be opportunely accomplished.

665c

Clinias: Certainly.

665c

Guest: Do we therefore agree in what has been previously said?

665c

Clinias: Respecting what?

665c

Guest: That every man and boy, those who are free, and those who are slaves, the male and the female, and in short the whole city, should sing these things to the whole city without ceasing, according to all the varieties of harmony, so as that those who sing the hymns may experience an insatiable pleasure.

665c

Clinias: How is it possible not to acknowledge that these things ought to be so?

665d

Guest: But by what means will the best part of the city, and which is most capable of persuading by age, in conjunction with prudence, be able, by singing the most beautiful things, to be the cause of the greatest good? or shall we foolishly omit that which will be the most principal thing in the most beautiful and most useful odes?

665d

Clinias: In consequence of what has been just now said, it is impossible to omit it.

665d

Guest: How then will it be accomplished in a becoming manner? Consider, if in this way.

665e

Clinias: How?

665e

Guest: Every one who is more advanced in age, being full of sluggishness with respect to odes, will be less delighted with these; and by how much the older and more modest he is, by so much the more will he necessarily be ashamed to sing. Will it not be so?

665e

Clinias: It will.

665e

Guest: He will therefore be still more ashamed to sing, standing upright in the theatres, before an all-various multitude of men; especially if the choir, like those that contend for victory when exercising their voice, should be compelled to sing though lean and fasting; for, thus circumstanced, they will not sing without molestation and shame, and, when they do, it will be without alacrity.

665e

Clinias: You speak of things most necessary.

666a

Guest: How then shall we render them disposed to engage in odes with alacrity?

666b

Shall we not ordain by law, in the first place, that boys shall not by any means taste wine till they are eighteen years old? For we ought to teach them, that it is not proper to deduce like a river, fire to fire, into the body and soul, before they begin to engage in manly labours; but that we should dread the furious habit of youth. In the next place, we should inform them that wine is to be moderately used till they are thirty years old, and that young men should by all means avoid intoxication and abundance of wine. But when they have attained the fortieth year, then they may be allowed to attend feasts, to invoke the

other Gods, and beseech Bacchus to be present at the mystic ceremonies and sports of the old men; for this divinity bestowed wine upon men as a remedy against the austerity of old age, that through this we might acquire a second youth, forget sorrow, and render the manners of our soul softer,—just as iron is softened by the action of fire. In the first place, therefore, will not every one who is thus affected, be willing, with more alacrity and less shame, not indeed in a great but in a moderate multitude, nor among strangers, but his familiars, to sing, and, as we have often said, to enchant?

666d

Clinias: Very much so.

666d

Guest: This mode then will not be altogether improper to induce them to join with us in singing.

666d

Clinias: By no means.

666d

Guest: But with what voice, and with what muse, will these men sing? or is it not evident that it will be with such a one as is adapted to them?

666d

Clinias: Undoubtedly.

666d

Guest: But which will be adapted to divine men? Will it not be that of choirs?

666d

Clinias: We indeed, O guest, and these, are not able to sing any thing else than that which we have learnt in the choirs, having been accustomed thus to sing.

666e

Guest: It is reasonable it should be so. For you have not in reality been partakers of the most beautiful singing; and this because your

government is rather military than civil. Hence your young men are like a compact multitude of colts feeding together in herds.

667a

And no one of your people, taking to himself his own offspring, commits him as it were to a groom, that his fierceness may be tamed, and that he may be gently and mildly educated, and from whom he may receive every thing proper to the discipline of youth; whence he may not only become a good soldier, but an able governor of a city, and one who, in the beginning we said, would be more warlike than the soldiers of Tyrtæus, and would always and every where, both in private and public, honour the possession of fortitude, as ranking in the fourth, and not in the first place among the virtues.

667a

Clinias: I do not know, O guest of ours, for what reason you again degrade our legislators.

667b

Guest: It is not my intention, excellent man, to do so, if I do it; but where reason leads, there, if you are willing, we will direct our course. For if we possess a muse more beautiful than that of the choirs, and the common theatres, we will endeavour to impart this to such as we said were ashamed of that muse, and endeavoured to participate of one more beautiful.

667b

Clinias: Entirely so.

667b

Guest: In the first place, then, it is proper that this should be present to all whom a certain grace follows, that either the grace itself alone should be the most approved, or a certain rectitude, or, in the third place, advantage. Thus, for example, a grace follows food and drink, and every kind of aliment, and this grace we call pleasure: but if it contributes to health, we denominate it rectitude and utility.

667c

Clinias: Entirely so.

667c

Guest: Thus, too, a grace follows discipline, which is also called pleasure; and the truth resulting from discipline is denominated rectitude and advantage, the beneficial and the becoming.

667d

Clinias: It is so.

667d

Guest: But what? In the artificial production of similitudes, when pleasure is the result of such productions, may not such pleasure be most justly denominated a grace?

667d

Clinias: Certainly.

667d

Guest: But, in short, the equality of such things, rather than pleasure, renders them such and so great.

667d

Clinias: It is well said.

667e

Guest: Hence that alone can be rightly judged by pleasure, which neither affords a certain advantage, nor truth, nor similitude; nor yet again is the cause of any injury, but which alone subsists for the sake of that grace which follows other things, and which may be most beautifully denominated pleasure, when none of these attend it.

667e

Clinias: Do you alone speak of innoxious pleasure?

667e

Guest: I do; I say that this is sport, when it is neither the cause of any thing detrimental or advantageous, which deserves serious consideration.

667e

Clinias: You speak most truly.

668a

Guest: Shall we not then assert, from what has been now said, that it is fit all imitations should be judged in the least degree by pleasure and false opinion, and in like manner, all equality? For it does not follow, that because *this* thing appears to some one to be equal, or some one is delighted with *that*, that therefore *this* thing is equal, or *that* possesses symmetry; but it is so from truth, the most of all things.

668a

Clinias: Entirely so.

668a

Guest: Do we not therefore say, that all music is assimilative and imitative?

668a

Clinias: Certainly.

668a

Guest: In the smallest degree, therefore, when any one says that music is to be judged by pleasure, is such an assertion to be admitted, and in the smallest degree is such a music to be inquired after as a serious thing, if it is any where to be found; but that music alone is to be explored which possesses similitude by its imitation of the beautiful.

668b

Clinias: Most true.

668b

Guest: Those, therefore, that inquire after the most beautiful singing, and the most beautiful muse, ought, as it appears, to explore not that which is pleasant in each of these, but that which is right. For the rectitude of imitation, as we have said, consists in expressing the magnitude and quality of that which it represents, such as they are.

668c

Clinias: How should it not be so?

668c

Guest: But every one will acknowledge this with respect to music, that all poems are an assimilation and imitation of it. Or, do you think that

all poets, auditors, and players, will not assent to this?

668d

Clinias: Very much so.

668d

Guest: But it is proper, as it appears, to know respecting every poem, what kind of a thing it is, if any one wishes not to err in deciding upon it. For he who does not know what the essence of it means, nor of what it is the image, will never understand the rectitude or erroneousness of its intention.

668d

Clinias: It is impossible he should.

668d

Guest: But can he who does not know the rectitude of a performance ever be able to know whether it is well or ill accomplished? I do not indeed speak in a manner perfectly clear; but, perhaps, I shall thus speak with more perspicuity.

668e

Clinias: How?

668e

Guest: There are ten thousand similitudes which have reference to the sight.

668e

Clinias: Certainly.

668e

Guest: What then? If any one is ignorant what each of the imitated bodies is, can he ever know whether it is properly presented? as, for instance, whether the representation possesses the joints and respective members of the body, their positions, number, and quality, such as they ought to be, and besides all these, the proper colours and figures; or, on the contrary, whether all these are exhibited in a disordered manner. Do you think that any one can at all know these particulars who is unacquainted with the animal which is imitated?

668e

Clinias: How should he?

668e

Guest: But if any one knows that it is a man who is painted, or otherwise represented, and that he has received all his parts, colours and figures, from art, would it be necessary that he who knows this should likewise readily know whether the representation is beautiful, or whether it is in any respect defective in beauty?

669a

Clinias: We should all of us, O guest, as I may say, know the beautiful parts of animals.

669a

Guest: You speak with perfect propriety. Is it not therefore necessary, that a prudent judge should possess these three things about every image, both in painting and music? In the first place, that he should know what the thing is; in the second place, that it possesses rectitude; and, in the third place, that the image is properly executed in words, melodies, and rhythms?

669b

Clinias: It appears so.

669c

Guest: We should not, therefore, omit to speak concerning the difficulty which is in music. For, since it is more celebrated than other images, it requires more caution than the rest. For he who errs in this will be injured in the greatest degree, since he will thus conciliate to himself depraved manners. But it is most difficult to be known, because poets are more depraved than the Muses. For these are incapable of erring to so great a degree as, in fashioning the words of men, to give the figure and melody of women; or, in composing the melody and figures of those who are free, to harmonize together the rhythms of slaves and the free-born; or, in exhibiting rhythms and liberal figures, to assign a melody or discourse contrary to the rhythms.

669d

Besides this, they will never place together the voices of beasts, and men, and instruments, and every kind of noise, as imitating one certain thing. But human poets combine things of this kind together in the greatest degree, and irrationally mingle them with each other, exciting such men by these means to laugh, who, as Orpheus says, “are allotted the elegance of delight.” For they perceive all these particulars mingled together: and, besides this, the poets dilacerate rhythm and figures separate from melody, arranging naked words in measure; producing melody and rhythm without words; and employing the naked sound of the harp and the pipe. Among which particulars, it is very difficult to know the intention of the rhythm and harmony which subsist without words, and to which of the imitations deserving to be mentioned they are similar.

669e

But it is necessary to consider every thing of this kind as replete with rusticity; as immoderately loving swiftness without falling, and the voice of wild beasts, and on this account using the melody of the harp and the pipe for other purposes than dancing and singing. But to use either of these instruments unaccompanied with words, is full of all unskilfulness and legerdemain. But the reason of this is as follows:

670a

We do not consider that we ought not to employ our Muses when we are fifty, or thirty, years old, but we ought to find out when it is proper. Our discourse, however, appears to me, from what has been said, to signify thus much concerning the muse belonging to choirs, that it is necessary those who are fifty years old should be better instructed than others in the particulars belonging to singing. For they must necessarily possess a proper sensation and knowledge of rhythms and harmonies. Or how can they know the rectitude of melodies; to what the Doric harmony is proper or improper;

670b

and whether the rhythm which the poet has united to it is right, or not?

670c

Clinias: It is evident that they cannot by any means.

670c

Guest: But the numerous vulgar are ridiculous in thinking that they sufficiently know what is well harmonized, and possesses proper rhythm, and what is not so: for these have been *compelled* to sing and walk in rhythm. But in consequence of doing each of these ignorantly, they would not syllogize as follows: Every melody, when it possesses things which accord, subsists in a proper manner; but when it does not possess things which accord, it is defective.

670c

Clinias: Most necessarily so.

670c

Guest: What then? Can he who does not understand what it possesses, and what its definition is, know, as we have said, how it properly subsists at any time in any one?

670d

Clinias: How is it possible he should?

670d

Guest: This then, as it appears, we have now discovered, that those singers which we have now called upon, and have after a manner compelled to sing voluntarily, ought from necessity to be disciplined thus far, as to be able each of them to follow the progressions of the rhythms, and the chords of the melodies, that, perceiving the harmonies and the rhythms, they may choose such as are fit to be sung by so many, and by such particular persons; and, thus singing, may themselves immediately be innocently delighted, and thus induce young men to embrace worthy manners. But, being thus far instructed, they will participate of a more accurate discipline than that which is directed to the multitude, and to poets themselves.

670e

For, in the third place, it is by no means necessary that a poet should know whether the imitation is beautiful or not; but it is nearly necessary that he should know this of harmony and rhythm. But all the three ought to be known for the sake of choosing the most beautiful, and the second; for otherwise they will never become a sufficient enchantment to youth to the acquisition of virtue. And thus, that which our discourse intended in the beginning, viz. that it might afford proper assistance to the choir of Bacchus, has been accomplished by us to the utmost of our ability. But let us consider whether this should be accomplished in this manner. For such an assembly must necessarily be tumultuous, in consequence of the compotation proceeding to a greater degree, which we supposed in the beginning of our discourse must necessarily happen to drinking associations of the present day.

670e

Clinias: It is necessary it should.

671a

Guest: But every one becoming lighter than himself will be elevated and delighted; will be filled with freedom of speech; and in this condition will not hear him who is near him, but will consider himself sufficient both to govern himself and others.

671b

Clinias: Certainly.

671b

Guest: Have we not said, that, when these things take place, the souls of the drinkers, being rendered fervid, will become more soft and juvenile, like iron heated in the fire?

671c

so that they may be easily led, as when they were young, by those who are able and know how to instruct and fashion them: but that he who is able to fashion them is the same as he who was then said to be a good legislator, by whose laws respecting compotation he may be restrained who is confident and audacious, and more impudent than

is proper, and who is unwilling to endure order with respect to silence, discourse, drinking, and the muse; and may be willing to act in a contrary manner in every respect; sending out against advancing and base confidence, the most beautiful opposing fear, in conjunction with justice; which divine fear we have denominated shame and modesty.

671d

Clinias: It is so.

671e

Guest: But the guardians and fabricators of these laws ought, as leaders of those that are not sober, to be themselves free from perturbation and ebriety; without which it is more difficult to fight against intoxication than to contend with enemies without unterrified leaders. But he who is unwilling to be persuaded by these, and by the leaders of Bacchus who are more than sixty years old, sustains an equal, and indeed a greater disgrace than he who is unpersuaded by the leaders of Mars.

671e

Clinias: Right.

672a

Guest: If such ebriety and such sport were adopted, would not such drinking associates derive great utility from thence, and be more conjoined in friendship than before, and not be enemies as at present? Would not likewise the whole of their association be according to law, in consequence of the sober being the leaders of the intoxicated?

672a

Clinias: Certainly, if the ebriety was conducted in the manner you now speak of.

672b

Guest: We ought not, therefore, to blame the gift of Bacchus simply, as if it were evil, and not worthy to be received into the city. For much more might yet be said to this purpose; though I should be fearful to disclose to the multitude the greatest good which this divinity

imparts, because men when they hear it will not receive and understand it as they ought.

672c

Clinias: What is that good?

672c

Guest: A certain narration and rumour has devolved to us, that this God was once disordered in his mind by his mother Juno, and that on this account he introduced the Bacchic rites, and the whole of the insane choir, that he might take vengeance on the Goddess. It is further reported, that for this purpose he bestowed wine upon mankind. But I leave things of this kind to be said by those who think that they can assert them with safety respecting the Gods. Thus much, however, I know, that no animal is born with such, and so much, intelligence as is proper to it, when it acquires a perfection of intellect. But every animal, during the time in which it has not yet obtained its proper prudence, rages and vociferates in a disordered manner; and when any one slays it rapidly, it again leaps without order¹³. But we may recollect that we said these were the principles of music and gymnastic.

672d

Clinias: We do recollect.

672d

Guest: Did we not also say, that this principle imparted to us the sense of rhythm and harmony? and that Apollo, the Muses, and Bacchus, were the causes of these?

672d

Clinias: Certainly.

672d

Guest: But wine, according to the assertions of some, was given to men as a punishment, that they might be rendered, through it, insane. Agreeably, however, to what has now been asserted by us, it is on the contrary a medicine; and was imparted that the soul might acquire shame, but the body health and strength.

672d

Clinias: You have very beautifully, O guest, reminded us of what has been said.

672e

Guest: But now the half of the particulars pertaining to the choir is complete. Shall we finish or omit the remaining part?

672e

Clinias: What parts do you speak of; and how do you divide each of them?

672e

Guest: According to us, the whole of the choir is the whole of discipline. But, of this, one part consists in vocal rhythms and harmonies.

672e

Clinias: Certainly.

672e

Guest: But the other in the motion of the body, which has rhythm in common with the motion of the voice, but figure peculiar to itself: but, in the former part, melody is the motion of the voice.

673a

Clinias: Most true.

673a

Guest: I know not, therefore, after what manner we have denominated things pertaining to the voice, which extend as far as to the soul, and contribute to the discipline of virtue, music.

673a

Clinias: They were rightly called so.

673b

Guest: But things pertaining to the body, which we have called dancing in sport, if such a motion should extend as far as to the virtue of the body, we should denominate the artificial leading of it to this purpose, gymnastic.

673b

Clinias: Most right.

673b

Guest: But we appear to have spoken sufficiently of that part of music, which we have said is the half of the choir. Shall we, therefore, speak of the remaining half, or how shall we do?

673b

Clinias: O most excellent man, who art discoursing with Cretans and Lacedæmonians, as you have spoken sufficiently about music, but gymnastic remains yet to be discussed, what do you think each of us ought to reply to your interrogation?

673c

Guest: I shall say that you have perspicuously answered by your question. For I understand that your present interrogation is, as I have said, an answer, and, besides this, a mandate to discuss the particulars about gymnastic.

673c

Clinias: You apprehend my meaning excellently well; and therefore discuss these particulars.

673c

Guest: We shall do so: for it is not very difficult to speak about things known to both of you. And besides, you are far more skilled in this art than in that of music.

673c

Clinias: You nearly speak the truth.

673d

Guest: Is not, therefore, the principle of this sport, every animal being naturally accustomed to leap? But man, as we have said, receiving a sense of rhythm, generated and brought forth dancing. And melody, recalling to mind, and exciting rhythm, these two, communicating with each other, brought forth the choir and sport.

673d

Clinias: Most true.

673d

Guest: One part of this we have said we have already discussed, and that we should in the next place endeavour to discuss the remaining part.

673e

Clinias: Entirely so.

673e

Guest: We will, therefore, first of all bring to a conclusion the choir of intoxication, if it is agreeable to you.

673e

Clinias: Of what are you speaking?

673e

Guest: If any city should use drinking associations as a serious concern, with law and order, and as an exercise to the acquisition of temperance, and should not at the same time avoid other pleasures, but in a similar manner should engage in them for the sake of subduing them, after this manner it may be allowed to use all these.

674a

But if it uses drinking associations as sport, and gives permission to any one to drink when he pleases, and with whom he pleases, and to engage in any other pursuit without restraint, I should not be of this opinion, that this city, or any individual in it, ought, at any time, to make use of intoxication. But I should much prefer the law of the Carthaginians to the custom of the Cretans and Lacedæmonians. For their law forbids any one belonging to the camp to taste of wine, but orders water to be drunk during all this period. I likewise would not permit it to be drunk in the city by either male or female slaves; nor by magistrates during the year of their office;

674b

nor by pilots, nor judges, when engaged in their respective employments; nor, in short, by any one when deliberating about things of importance. Again, I would not permit it to be drunk by any one in the day-time, unless for the sake of bodily exercise or disease;

nor by a man and woman at night, when they intend to beget children. And many other circumstances might be adduced, in which those who possess a sound mind, and conform to good laws, will abstain from wine. So that, according to this reasoning, no city has occasion for a multitude of vineyards. But other concerns of agriculture, and every thing respecting diet, should be orderly disposed: and wine should be nearly used in the most moderate and least degree of all things. And this, if it is agreeable to you, O guests, shall be the conclusion of my discourse respecting wine.

676a

Clinias: Beautifully said: and it is agreeable to us it should be so.

Book III

676a

And thus much concerning these particulars. But shall we say that civil government had a certain beginning? And may not any one behold it hence with ease, and in the most beautiful manner?

676a

Clinias: Whence?

676a

Guest: Whence any one may behold the progress of cities to virtue, and at the same time to vice.

676b

Clinias: Whence do you say?

676b

Guest: I think, indeed, from a length and infinity of time, and from the mutations in it.

676b

Clinias: How do you say?

676b

Guest: Do you appear to have ever understood what a multitude of time has elapsed since cities and the politic institutions of men

commenced?

676b

Clinias: This is by no means easy to understand.

676b

Guest: It is indeed infinite¹⁴, and impossible to be expressed.

676b

Clinias: Entirely so.

676b

Guest: Will not myriads upon myriads of cities have subsisted in this time?

676c

and, in consequence of the same temporal infinity, have not as many been destroyed? and will they not every where have been governed according to every kind of polity; and at one time pass from the lesser to the greater, and at another from the greater to the lesser; and have become worse from the better, and better from the worse?

676d

Clinias: It is necessary.

676d

Guest: Let us therefore assign, if we are able, the cause of this mutation: for perhaps it may exhibit to us the first generation and mutation of polities.

676e

Clinias: You speak well. It is therefore necessary that you should readily unfold what you conceive to be the truth concerning them, and that we should at the same time follow you.

677a

Guest: Do antient discourses then appear to you to possess any truth?

677a

Clinias: Of what kind?

677a

Guest: That there have been many destructions of the human race, through deluges, diseases, and many other things, in which a very small part of mankind was left.

677a

Clinias: Every thing of this kind must be very probable to every one.

677a

Guest: Let us then consider one of these destructions out of many,—I mean that which was caused by a deluge.

677b

Clinias: What ought we to think about this?

677b

Guest: That those who then escaped the destruction were nearly mountain shepherds, a few dormant sparks of the human race, preserved on the summits of mountains.

677b

Clinias: Evidently so.

677c

Guest: But such as these must necessarily have been ignorant of other arts, and of those artifices in cities of men towards each other, with a view to prerogative and contention, and other base ends.

677c

Clinias: It is likely.

677c

Guest: But we shall also suppose that the cities which were situated in plains, and those bordering on the sea, entirely perished at that time.

677c

Clinias: We will suppose so.

677c

Guest: We must assert, therefore, that all instruments were destroyed at that time, together with every invention pertaining to art, politic discipline, or any other certain wisdom.

677d

Clinias: For how, O most excellent man, if these particulars remained through the whole of time in the same perfection as at present, could any thing new have ever been invented? It is because an innumerable multitude of years was unknown to the inventors. But one or two thousand years have elapsed since some things were invented by Dædalus, others by Orpheus, and others by Palamedes. The particulars indeed respecting music were discovered by Marsyas and Olympus; but those relating to the lyre by Amphion. And a multitude of other things were, as I may say, invented by others but yesterday.

677d

Guest: Do you not perceive, O Clinias, that you have omitted to mention the friend who was yesterday present?

677d

Clinias: Do you mean Epimenides?

677e

Guest: I do. For he far excelled all among you in inventions; and, as you say, brought to perfection in reality what Hesiod had formerly divined in his writings.

677e

Clinias: We do say so.

677e

Guest: We must assert, therefore, that when that devastation by a deluge took place, human affairs were in a state of infinite and dreadful solitude; that a prodigious part of the earth was unprolific; and other animals having perished, some herds of oxen, and a few goats, which were rarely found, supplied those men with food that escaped the devastation.

678a

Clinias: Doubtless.

678a

Guest: But are we of opinion that there was then any memory of a city, politic discipline, and legislation, which is the subject of our present

discourse?

678a

Clinias: By no means.

678a

Guest: From these people, therefore, thus circumstanced, all the particulars which exist at present derived their subsistence; viz. cities and polities, arts and laws, many vices and many virtues.

678a

Clinias: How do you say?

678a

Guest: Can we be of opinion, O wonderful man, that as those who then existed were ignorant of many beautiful things pertaining to citizens, and many of a contrary nature, they could ever become perfect either in virtue or vice?

678b

Clinias: You speak well; and I understand what you say.

678b

Guest: In consequence, therefore, of the progression of time, and the increase of the human race, all things advanced to the condition of all things at present.

678b

Clinias: Most right.

678c

Guest: But this was probably not effected suddenly, and in a short, but in a very extended period of time.

678c

Clinias: It is very proper it should be so.

678c

Guest: For I think that fear would prevent all the inhabitants from descending from their elevated abodes to the plains.

678c

Clinias: Certainly.

678c

Guest: Would not likewise

678d

those who lived at that time be delighted in beholding each other, on account of their paucity? And would they not have nearly lost, as I may say, all the artificial means of passing over to each other, either by land or sea? I do not therefore think it would be very possible for them to mingle with each other. For iron and brass and all metals would have perished, confused together; so that it would be impossible to separate and bring them into light. Hence trees would be but rarely cut down. For, if any instrument should happen to be left on the mountains, these rapidly wearing away would vanish; and no other could be made, till the metallic art should again be discovered by men.

678d

Clinias: How indeed could it?

678d

Guest: But in how many generations afterwards do we think this would take place?

678e

Clinias: It is evident, in a great many.

678e

Guest: The arts therefore which are employed about iron and brass, and all such things, must at the same time be involved in darkness, and indeed in a still greater degree.

678e

Clinias: Undoubtedly.

678e

Guest: Sedition, therefore, together with war, must at that time be every where extirpated.

678e

Clinias: How so?

678e

Guest: In the first place, they will be benevolent towards and love each other, on account of their solitude.

679a

In the next place, food will not be the cause of war to them: for pastures will be rare; a few only perhaps remaining from the first, in which the inhabitants of that time will for the most part live. For they will not by any means be in want of milk and animal food. Further still, hunting will supply them with food, neither of a bad kind nor in a small quantity. They will likewise possess abundance of clothing, beds and habitations, together with apparatus pertaining to fire, and such as has no occasion for fire. The plastic too and weaving arts will not be indigent of iron. But divinity imparted all these together with these arts to men, that, if at any time they should fall into so great a calamity, they might be able to propagate the human race.

679b

On this account, at that time they were not very poor, nor were they compelled by poverty to quarrel with each other. But neither could they ever become rich, because they were without silver and gold. But in any association where neither riches nor poverty take up their abode, in this the most just manners will nearly be found.

679c

For neither insolence nor injustice, neither emulation nor envy, can subsist in such a society. From these causes, and through their innocence which we have spoken of, they were good. For, whenever they heard that any thing was beautiful or base, they thought, in consequence of their innocence, that it was most truly said to be so, and were persuaded. For no one was suspected of lying, through his wisdom, as is the case at present; but, believing all that was asserted about Gods and men to be true, they lived conformably to what they heard; on which account they were altogether such as we a little before represented them to be.

679d

Clinias: These things appear both to me and this other to be so.

679e

Guest: We say moreover, that many generations living in this manner, both of those prior to the deluge and of those at present, they must be less skilful and less learned both in warlike and other arts, which at present are exercised by land and sea; likewise in judicial affairs and seditions, which men have devised both in words and works, with every possible subtilty of contrivance, in order to injure and act unjustly towards each other. That besides this they must be more innocent, brave, and at the same time modest, and in every respect more just. But of these things we have already assigned the cause.

680a

Clinias: You speak with rectitude.

680a

Guest: These things, therefore, have been asserted by us; and we shall speak of every thing consequent to these particulars, for the sake of understanding what occasion they had at that time for laws, and who was their legislator.

680a

Clinias: You have spoken well.

680a

Guest: Were they, therefore, neither indigent of laws, nor was any such thing adopted at that time? For men of that period were unacquainted with letters, but lived following the manners and laws, as they were called, of their ancestors.

680a

Clinias: It is probable.

680a

Guest: But the manner of their polity was this.

680a

Clinias: What?

680b

Guest: All of that period appear to me to have called a polity, a dynasty, which even at present subsists in many places, both among

the Greeks and Barbarians. And Homer says that it was adopted in the habitation of the Cyclops; for he thus speaks:

680c

“By these no statutes and no rights are known,
No council held, no monarch fills the throne;
But high on hills or airy cliffs they dwell,
Or deep in caves whose entrance leads to hell.
Each rules his race, his neighbour not his care,
Heedless of others, to his own severe¹⁵.”

680c

Clinias: Homer appears to you to have been an elegant poet. We have also met with other pieces, though not many, of his composing, extremely elegant. For we Cretans do not very much make use of foreign poems.

680d

Megillus: We however do make use of them. And Homer appears to me to excell poets of this kind, though he does not describe a Laconic, but rather throughout his poems an Ionic life. At present, indeed, he appears to give a good testimony to your discourse, mythologically referring the antient condition of mankind to rusticity.

680d

Clinias: Certainly.

680d

Guest: For he testifies the truth of our assertion: and we shall therefore admit him as one who indicates that polities of this kind once subsisted.

680d

Clinias: It is well said.

680e

Guest: Were not polities of this kind formed from families and kindred dispersed through the want arising from these devastations,—polities, in which the oldest person rules over the rest, on account of their

origin being derived from father and mother; and who following these like birds produce one herd, are obedient to paternal mandates, and are governed in a kingdom, the most just of all?

680e

Clinias: Entirely so.

680e

Guest: But after this, more of them collecting together into one body, they will form larger cities: and first of all betaking themselves to agriculture, at the roots of mountains they will make certain enclosures from hedges, as defensive walls against the attacks of wild beasts, and thus produce one common and mighty habitation.

681a

Clinias: It is probable that this would be the case.

681a

Guest: But is not this also probable?

681a

Clinias: What?

681b

Guest: That since these more increased habitations are composed from such as are lesser and first, each of the small ones should be present, having at the same time its most antient governor, according to alliance, together with its own proper manners; and this on account of their living separate from each other, and having had different parents and preceptors, by whom they have been accustomed to reverence the Gods, and attend to themselves, the more modest by the more modest, the braver by the more brave, and so in all the rest, according as each has fashioned their sons and grandsons, who, as we have said, will bring with them to this greater habitation the peculiar laws under which they have lived.

681c

Clinias: How is it possible this should not be probable?

681c

Guest: It is likewise necessary that every one should be pleased with his own laws in the first place, and with those of others in the second place.

681c

Clinias: Certainly.

681c

Guest: But we appear to be ignorant that we are entering as it were on the beginning of legislation.

681d

Clinias: Entirely so.

681d

Guest: After these things, therefore, it is necessary that those who thus assemble together should choose among themselves in common some who know the legal institutions of all of them, and that they should openly show such of these as they most approve of, to the common rulers and guides of the people, as to kings, who themselves approving these institutions will be called legislators. But, having appointed their rulers, they will form in this mutation of their polity a certain aristocracy, composed from dynasties, or a certain kingdom.

681d

Clinias: This will doubtless afterwards be the case.

681d

Guest: In the next place, therefore, let us speak of a third form of polity, in which all the forms and passions of polities, and at the same time of cities, happen to be found.

681e

Clinias: Of what kind is this? That which Homer signifies, asserting that the third was thus produced after the second:

681e

“Dardania’s walls he rais’d; for Ilion then
(The city since of many-languag’d men)

Was not. The natives were content to till
The shady foot of Ida's fount-full hill¹⁶."

682a

These verses, and those above, about the Cyclops, are in a certain respect divinely written, and are conformable to nature. For the poetic genus is divine, being agitated with sacred fury, celebrating many things which have happened according to truth, and handling each of them with certain graces and muses.

682a

Clinias: And this very much so.

682a

Guest: We will therefore now proceed to consider the preceding fable: for, perhaps, something of our intention may be signified by it. Will it not be proper to do so?

682b

Clinias: Undoubtedly.

682b

Guest: We say then that Troy was built from elevated places, in a large and beautiful plain, upon a hill not very lofty, and having many rivers which rush from mount Ida.

682b

Clinias: So it is said.

682b

Guest: Must not we think that this happened a long time after the deluge?

682b

Clinias: How could it be otherwise?

682b

Guest: A dreadful oblivion, therefore, of the devastation we are now speaking of, must, as it appears, have been then present with them, as they thus built their city under many rivers, and which descended

from lofty places, and were not afraid to trust themselves to hills of no great altitude.

682c

Clinias: It is perfectly evident, therefore, that they existed a long time after this devastation.

682c

Guest: And I am of opinion that many other cities were at that time inhabited, in consequence of the increase of mankind.

682d

Clinias: Certainly.

682d

Guest: And these indeed fought against Troy; and perhaps by sea, all of them now intrepidly using that element.

682d

Clinias: It appears so.

682d

Guest: But the Achaians, who warred on Troy, subverted it in the tenth year.

682d

Megillus: Entirely so.

682d

Guest: In this time, therefore, or the space of ten years, in which Troy was besieged, many evils happened to the besiegers through the seditions of the young men, who received the commanders, when returning to their cities and houses, neither in a becoming nor just manner, but so that many were slain, and many were exiled. Those that were exiled, however, returned, changing their names, and being called Dorians instead of Achaians, through one Dorieus, who at that time collected together the exiles. And hence you Lacedæmonians mythologize about, and thoroughly discuss, all these particulars.

682e

Megillus: Certainly.

682e

Guest: Hence, as, while discoursing about laws in the beginning of this conversation, we made a digression to music and intoxication, so now we are led to the same thing as it were by divinity;

683a

and our discourse presents us as it were with a handle for this purpose. For it has brought us to that politic discipline which you said was properly instituted both in Lacedæmon and Crete, as by fraternal laws. But now we obtain this prerogative from the wandering of our discourse, that, while we pass through certain polities and habitations, we behold a first, second, and third city, following each other, according to our opinion, in immense extensions of a certain time. But now this fourth city, or if you please nation, presents itself to us, which was once inhabited, and is so at present; from all which, if we are able to understand what is beautiful or the contrary, respecting its being inhabited, and what laws of the inhabitants preserve what is preserved, or corrupt what is corrupted among them, and what change of political institutions renders the city happy, we shall think, O Megillus and Clinias, that we have done enough. But all these particulars must be discussed by us from the beginning, unless we call to account what has been said.

683b

Megillus: If, O guest, any God will promise us that, if we enter a second time on the business of legislation, we shall hear neither worse nor fewer things than what have now been said, I would make a long journey, and the present day would appear to me to be short, though the God is now turning from the summer to the winter solstice.

683b

Guest: It is proper, as it appears, to consider these things.

683c

Megillus: Entirely so.

683c

Guest: Let us then be present in thought at that time when Lacedæmon, and Argos, and Messene, and the cities which were in alliance with them, were, O Megillus, in subjection to your ancestors. For then, as it is said in the fable, they thought proper, having triply divided their army, to inhabit three cities, Argos, Messene, and Lacedæmon.

683d

Megillus: Entirely so.

683d

Guest: And Temenus, indeed, was made king of Argos, but Cresphontes of Messene, and Eurysthenes in conjunction with Patrocles of Lacedæmon.

683e

Clinias: They were so.

683e

Guest: But all these took an oath that they would give assistance, if any one should destroy any of these dominions.

683e

Megillus: Undoubtedly.

683e

Guest: But inform me, by Jupiter, whether their kingdom or government was ever destroyed by any one; or whether it was not subverted by others, but by themselves? or shall we say, that a little before, when we entered on this discourse, we thought it was so, but have now forgotten it?

683e

Megillus: By no means.

683e

Guest: Now, therefore, we shall be more able to establish a thing of this kind;

684a

for we are led to the same conclusion, as it appears, by the history of past transactions; so that we do not pursue in our discourse any vain thing, but that which has happened and is true. But the following particulars have taken place: Three kingdoms, and three cities, having a kingly government, mutually swore, respecting the laws which they had established about governing and being governed, that kings should not reign by violence as time and race continued to advance, and that the people, while the kings observed their oath, should not at any time destroy the kingdoms, nor endeavour that they might be subverted by others; but that kings should defend both kings and the people when injured, and the people, both kings and the people. Was it not so?

684a

Megillus: It was.

684a

Guest: That therefore which is of the greatest importance in the establishments of polities was present with the legislators in these three cities, whether the kings themselves gave laws, or any other persons.

684b

Megillus: What was this?

684b

Guest: That two cities should always rise up against one which would not be persuaded to obey the established laws.

684b

Megillus: It is evident.

684b

Guest: This also many advise legislators, that they should establish such laws as the people and the multitude will willingly admit; which is just as if some one should advise the masters of gymnastic exercises, or physicians, to take care of and cure the bodies under their direction in an agreeable manner.

684c

Megillus: Entirely so.

684c

Guest: It is, however, often a desirable circumstance, when with no great degree of pain any one is able to procure for bodies a good habit and health.

684d

Megillus: Certainly.

684d

Guest: This also was at that time present with them, and contributed in no small degree to the facility of establishing laws.

684d

Megillus: What was that?

684e

Guest: The legislators had not to procure an equality of possessions, which causes the greatest of all accusations, and which takes place in other cities established by laws, when any one endeavours to disturb the possession of land, or to dissolve what is due; perceiving that equality can never sufficiently subsist unless these things take place. For against him who endeavours to disturb every thing of this kind, all men exclaim, that he must not move things which are immoveable. Imprecations likewise are uttered against him who introduces divisions of land, and the cancelling of debts; so that every man is involved in difficulty on this account. This, however, was not the case with the Dorians. For land was distributed to them, without envy or controversy; and they had no large and antient debts.

684e

Megillus: True.

684e

Guest: How therefore came it to pass, O most excellent men, that their settlement in houses and legislation came to be so bad?

685a

Megillus: How do you mean? and of what is it you accuse them?

685a

Guest: That three house-establishments taking place, two of them swiftly corrupted the polity and the laws, and one alone, which was your city, remained.

685a

Megillus: You ask a question which it is not very easy to answer.

685b

Guest: But it is proper that, considering and exploring this at present, concerning laws, with aged and prudent sport, we should accomplish the journey we have undertaken without molestation.

685b

Megillus: We ought certainly to do as you say.

685b

Guest: Can we therefore speculate concerning laws in a more beautiful manner, than by considering the laws which adorned cities of this kind? or can we think of any cities and habitations more illustrious and larger than these?

685c

Megillus: It is not easy to speak of others that are preferable to these.

685c

Guest: It is nearly evident, therefore, that, thus prepared, they would not only be able sufficiently to defend Peloponnesus, but all Greece, if it should be injured by any of the Barbarians; in the same manner as those that dwelt about Ilion, who, trusting to the power of the Assyrians descended from Ninus, dared to excite war against Troy. For the form of that government, which was still preserved, was by no means despicable. And as we at present fear a mighty king¹⁷, in like manner all at that time feared that collected coordination of people. For the destruction of Troy a second time raised a great accusation against them; because the Trojan power was a portion of the Assyrian government.

685d

Against all these, therefore, the army at that time was divided into three cities, under the brother kings, the offspring of Hercules, and appeared to be beautifully regulated, and far more so than that which came against Troy. For, in the first place, they were of opinion that the commanders who descended from Hercules were better than those that derived their origin from Pelops; and in the next place, that this army far surpassed in virtue that which came against Troy. For these conquered, but those were vanquished by these, the Achaians by the Dorians. Ought we not thus to think, and that at that time they prepared themselves for battle with this intention?

685d

Megillus: Entirely so.

685e

Guest: It is probable, therefore, that they would consider this their constitution to be firmly established, and that it would endure for a long time, in consequence of their mutually undergoing many dangers and labours, and being under the orderly government of one race, their kings being brothers. And besides this, it is further probable that they used many prophets, and among these the Delphic Apollo.

686a

Megillus: It is highly probable.

686a

Guest: But these particulars, which appear to be thus great, glided away, as it seems, at that time rapidly, except, as we just now said, a small part situated about the place of your abode; and this part has not ever ceased warring on the two other parts even to the present day. For, if the several parts of the constitution at that time had unanimously conspired to one end, they would have possessed an irresistible power in war.

686b

Megillus: Undoubtedly.

686b

Guest: How, therefore, and on what account, was it dissolved? Does it not deserve to be considered what fortune subverted a constitution so great, and of such a kind?

686c

Megillus: Indeed, he who considers any thing else will not be able to understand either other laws or polities, which preserve beautiful and great concerns, or on the contrary destroy them, if he neglects these things.

686d

Guest: It seems, therefore, that we have been fortunately led to this consideration, which is so well adapted to our purpose.

686e

Megillus: Entirely so.

686e

Guest: Are not, therefore, all men ignorant, and at present we ourselves, while each of us thinks that he beholds a certain beautiful thing, and which will produce admirable effects, when any one is not ignorant how it should be properly used? But we ourselves, perhaps, neither think rightly about this, nor according to nature. And shall we not say, that all men err respecting all other things about which they think in a similar manner?

686e

Megillus: How do you say? And about what especially are you now speaking?

686e

Guest: O, good man, I now laugh at myself. For, looking to that army about which we have been speaking, it appeared to me to be very beautiful, and that a wonderful possession would fall to the lot of the Greeks, as I have said, if any one should at that time have used it in a proper manner.

687a

Megillus: Did you not say all these things well and prudently; and, did not we properly praise them?

687b

Guest: Perhaps so. But I think that every one who perceives any thing great, and which is endued with much power and strength, will be immediately convinced, that if he knows it to be used by its possessor, being such and so great, its possessor will be happy through accomplishing many and admirable things.

687b

Megillus: Is not this therefore right? or, how do you say?

687b

Guest: Consider now to what he looks, who, in praising every thing of this kind, speaks rightly. And in the first place concerning that of which we are now speaking, how will those commanders of that time, who knew properly how to marshal an army, fortunately make use of occasion? Will it not be from their establishing it in safety, and preserving it perpetually, so that they themselves may be free, and that they may rule over others whom they please? And, in short, that both they and their progeny may obtain from all men, both Greeks and Barbarians, whatever they desire? Will they not desire it for the sake of these things?

687b

Megillus: Entirely so.

687b

Guest: He, therefore, who beholding either great wealth, or the illustrious honours of a family, or any thing else of this kind, says the very same things, will he not say so looking to this, as if through this kind he should obtain all that he desires, or the greater part, and such as are of the most consequence?

687c

Megillus: It appears so.

687c

Guest: But there is one common desire of all men, which is signified by our present discourse.

687c

Megillus: What is that?

687c

Guest: That all things should especially happen according to every one's mandate; but, if not all, at least human affairs.

687c

Megillus: Undoubtedly.

687c

Guest: Since, therefore, all of us perpetually wish a thing of this kind, both when we are adults and advanced in years, we necessarily pray for this to the end of life.

687d

Megillus: Certainly.

687d

Guest: But we also pray that our friends may obtain the same things as ourselves.

687d

Megillus: Certainly.

687d

Guest: But the son is a friend to the father, viz. the boy to the man.

687d

Megillus: How can it be otherwise?

687d

Guest: But many of those things which the boy prays may happen to himself, the father will beseech the Gods to grant that they may not happen according to the prayers of his son.

687d

Megillus: Do you say that this will be the case when he who prays is foolish, and while he is yet a youth?

687e

Guest: Yes; and when he is a father, either very old or very young, while he knows nothing of things beautiful and just, but, being affected like Theseus to the unfortunate Hippolytus, when dying, will pray with great alacrity. But if the son knows what is beautiful and just at the same time, does it appear to you that he will join in prayer with the father?

687e

Megillus: I understand what you say. For you appear to me to assert, that we ought not to pray, nor endeavour that all things may be conformable to our wish, but that our will rather may be obedient to our prudence; and that both cities and each of us ought to pray for, and endeavour to obtain, the possession of intellect.

688a

Guest: Certainly. And that the politician who is a legislator ought always to establish legal orders, looking to this, as I remember to have said before, and as I now remind you. For, in the beginning of this conversation, you gave it as your opinion, that a good legislator ought to establish all laws for the sake of war; but I said that this was to exhort him to compose laws according to one virtue only, when, at the same time, there are four virtues; and that he ought to look to every virtue, but especially towards the first, which is the leader of them all, and which is prudence, intellect and opinion, with love and desire attendant on these. But our discourse returns again to the same thing; and what I then said, I now again say, either if you please jesting or seriously—I assert then, that it is dangerous to pray without the possession of

688b

intellect, but that in this case it is better the contrary to what we ask should come to pass. If you are of opinion that these things are asserted by me seriously, consider them to be so.

688c

For I now entirely expect to find you consenting to what we a little before advanced, that timidity was not the cause of the destruction of

kings, and of the whole of that constitution, nor yet the ignorance in warlike concerns of the governors and governed, but the whole of depravity, and especially ignorance about the greatest of human affairs. That these things thus happened at that time, and must so happen now, if they any where subsist, and that in following times they will no otherwise happen, I will endeavour, if you please, to discover, taking reason for our guide, and unfold it to you as friends to the utmost of my ability.

688c

Clinias: To praise you,

688d

O guest, in words, would be troublesome, but we shall vehemently praise you in the thing itself. For we shall cheerfully follow you in what you have to say, and in so doing a liberal and true encomiast is particularly apparent.

688e

Guest: You speak most excellently, O Clinias! and we shall do as you say.

688e

Clinias: These things will be so, if God pleases. Only speak.

688e

Guest: We say then, proceeding according to the remaining road of our discourse, that the greatest ignorance destroyed that power at that time, and that at present the same thing is naturally capable of effecting this. So that, if this be the case, the legislator ought to endeavour as far as he is able to impart prudence to cities, and exterminate in the highest degree ignorance.

689a

Clinias: It is evident.

689a

Guest: What then may be justly called the greatest ignorance? Consider whether you agree with me in what I am going to say. For I establish it to be such as this.

689b

Clinias: What?

689b

Guest: When any one does not love, but hates that which appears to him to be beautiful, or good; but loves and embraces that which appears to him to be base and unjust. I assert that this dissonance of pain and pleasure, with rational opinion, is *extreme* ignorance. But it is the *greatest*, because it belongs to *the multitude* of the soul. For that part of the soul which is conversant with pain and pleasure corresponds to the common people and the multitude in a city. When, therefore, the soul opposes sciences or opinions, or reason, all which naturally govern, this I call ignorance; and it then takes place in a city when the multitude will not be persuaded by the rulers and the laws. The same thing happens to one man, when though beautiful reasons reside in his soul, yet he does not at all act conformably, but does every thing contrary to them. I should establish all these most inordinate ignorances as belonging to a city, and to every citizen, but not as belonging to the artificers, if, O guest, you understand what I say.

689c

Clinias: We understand you, my friend, and assent to what you say.

689c

Guest: Let this then

689d

be thus fixed, that to citizens who are after this manner ignorant, nothing pertaining to government is to be committed, but that they are to be reproached as ignorant, though they should be very skilful in argument, and possess every thing pertaining to the elegance and celerity of the soul. On the other hand, that those who are affected in a contrary manner are to be called wise, though, as it is said, they should neither know their letters, nor how to swim, and dominion should be given to these as to prudent persons. For how, O friends, can the least form of prudence subsist without consent?

689d

Clinias: It cannot.

689d

Guest: But the most beautiful and greatest of mutual agreements may be most justly called the greatest wisdom; of which he participates who lives according to reason. But he who is void of this, who destroys his own house, and is in no respect a saviour to the city, but every thing of a contrary nature,—such a one appears to be ignorant with respect to these particulars. These things, therefore, as I just now said, must subsist in this manner.

689e

Clinias: Entirely so.

689e

Guest: But ought there not, necessarily, to be in cities governors and the governed?

690a

Clinias: Undoubtedly.

690a

Guest: Be it so. But of what kind, and how many, are the axioms respecting governing and being governed in great and small cities, and in a similar manner in families? Is not this one of them, that father and mother, and universally a begetter should rule over the thing begotten? Will not this be every where a right axiom?

690a

Clinias: Very much so.

690a

Guest: But the next in order is this, that the ingenious should rule over the ignoble. The third, that the more aged ought to govern, and the younger to be governed.

690b

Clinias: Undoubtedly.

690b

Guest: But the fourth will be, that slaves should be governed, and masters govern.

690b

Clinias: How can it be otherwise?

690b

Guest: The fifth will be, I think, that the better character should rule over the worse.

690b

Clinias: You speak of a dominion which is extremely necessary.

690c

Guest: And of a dominion, which for the most part subsists in all animals, and is according to nature, as the Theban Pindar says. But the greatest axiom, as it appears, will be the sixth, which orders the unscientific to follow, but the prudent to lead and govern. And this government, O most wise Pindar, I should nearly say was not contrary but according to the nature of law, subsisting spontaneously and not by violence.

690c

Clinias: You speak most rightly.

690c

Guest: The seventh government we shall produce to a certain allotment, speaking of a thing grateful to divinity, and subsisting with good fortune. And we shall say it is most just, that he who is chosen by lot should govern, but that he who is rejected should be governed.

690c

Clinias: You speak most truly.

690e

Guest: We shall say then jocosely to some one of those who proceed with great facility to the establishment of laws, Do you see, O legislator, how many axioms there are respecting governors, and how they are naturally contrary to each other? For now we have discovered a certain fountain of seditions, which it is necessary you should cure.

But, in the first place, consider with us how, and in what respect, the kings of Argos and Messene, acting contrary to these axioms, destroyed the power of the Greeks, which at that time was wonderful. Was it not because they were ignorant of that which is most rightly said by Hesiod, That the half is often more than the whole? That is to say, when the possession of the whole is noxious, but that of the half is moderate: for, in this case, he considered the moderate as more than the immoderate, as being better than the worse.

690e

Clinias: Most right.

690e

Guest: But will this, when happening to kings, destroy each of them, prior to its happening to the people?

691a

Clinias: It is probable that this is mostly the disease of kings, who live proudly through luxuries.

691a

Guest: It is evident, therefore, in the first place, that the kings at that time arrogated to themselves authority over the established laws, and that their actions did not accord with what they had celebrated both in discourse and by an oath. But dissonance, as we have said, being the greatest ignorance, though appearing to be wisdom, subverted all those particulars through confusion and bitter unskilfulness.

691a

Clinias: It appears so.

691a

Guest: Be it so then. But why is it necessary that the legislator of that time should be fearful respecting the generation of this passion? Shall we say, by the Gods, that to know this is a thing of no great wisdom, and that it is not difficult to assert; but that, if any one at that time had foreseen it, he would have been more wise than we are?

691b

Megillus: How do you say?

691b

Guest: We may now, O Megillus, understand that which was formerly transacted by you, and, in consequence of knowing this, easily relate what ought then to have been accomplished.

691b

Megillus: Speak yet more clearly.

691b

Guest: This then will be most clear.

691c

Megillus: What?

691d

Guest: If any one gives a greater power to lesser things, so as to neglect mediocrity,—as, for instance, sails to ships, food to bodies, and dominion to souls,—he would subvert all things. For, becoming insolent, some of these would rush to diseases, and others to injustice, the offspring of insolence. What then do we mean to say? It is this, my friends, that the nature of a mortal soul is such, that no one of these can, when young and unrestrained, bear the greatest dominion without having its dianoëtic power filled with folly, which is the greatest disease; and that, besides this, it will hate its nearest friends; which circumstance, when happening, will swiftly destroy it, and obscure the whole of its power. To be afraid of this, in consequence of knowing the moderate, is the province of great legislators. Hence, that which it is easy to see was at that time transacted appears to be this.

691d

Megillus: What?

691d

Guest: Some God, as it seems, took care of you;

691e

who, foreseeing future events, planted for you a twofold generation of kings, from one, and by this mean more contracted you to the

moderate. And further still, after this a certain human nature, mingling with a certain divine power, and perceiving the effervescence of your government, conjoined the prudent power of old age with the proud strength of noble birth, equalling the decision of men eighty years old, in affairs of the greatest concern, with the power of kings. But your third saviour, perceiving your distended and raging government, hurled upon it, as a bridle, the power of the Ephori, and led it near the power which is determined by lot.

692a

Hence, your kingdom being mingled from such things as are proper, and possessing measure, was both preserved itself, and became the cause of safety to others. For the faction of Aristodemus had never taken place under the government of Temenus and Cresphontes, and other legislators of that time; for they were not then sufficiently skilled in legislation.

692b

For, had they been so, they never would have thought that a juvenile soul, when receiving a dominion from which it might be possible to become a tyrant, should be kept within the bounds of moderation by oaths. But now a God has shown you what kind of government is necessary; and such a one ought especially to subsist. But that these things should be known by us, (as I said before) now they have been accomplished, is not a thing replete with wisdom.

692c

For it is not difficult to see from a paradigm a thing which has been transacted. But if any one could then have foreseen these particulars, and had been able to moderate the governments, and to form one from the three, he would have preserved all the beautiful conceptions of that time, and neither the Persian fleet, nor any other which has been despised by us as of no account, would have sailed with hostile intentions into Greece.

692d

Clinias: You speak the truth.

692d

Guest: Hence, O Clinias, they made a shameful resistance. I say shameful, not because those who at that time vanquished by sea and land did not conquer in a becoming manner, but what I call shameful at that time is this: in the first place, because one of those three cities only fought in defence of Greece, but the other two were so basely corrupted, that one of them hindered Lacedæmon from assisting Greece, by warring against it with all its strength; and the other obtaining the chief authority in those times, respecting distribution, or about Argos, would neither hear, nor give any assistance when called upon to repel the Barbarian. But many things might be adduced relative to the transactions of those times, about that war, by which the conduct of the two cities towards Greece might be accused as shameful.

692e

For those who assert that they defended Greece do not speak rightly; since, unless the common opinion of the Athenians and Lacedæmonians had resisted the approaching slavery, all things would nearly have been mingled together, the race of Greeks with Greeks, the Barbarians with Greeks, and the Greeks with Barbarians; just as at present, in consequence of the Persians tyrannizing, Greece being separated in a disorderly manner is badly inhabited.

693a

These are the things, O Clinias and Megillus, which we have to urge against antient politicians and legislators, and likewise those of the present day, that, exploring the causes of these, we may discover what else ought to be done. Such as is that which we now assert, that it is not proper to establish great nor unmingled governments; considering this, that a city ought to be free and prudent, and a friend to itself; and that a legislator ought to give laws looking to these particulars.

693b

But we must not wonder, if we often propose other things, and assert that the legislator ought to regard these in giving laws, though they are not the same with what we have previously delivered. But it is proper to infer, that when we say the legislator ought to look to temperance, or prudence, or friendship, our design is not different, but the same: and you must not be disturbed on finding us using many other words of this kind.

693c

Clinias: We shall endeavour to do so by repeating your discourse. But now inform us what you meant by saying that a legislator ought to look to friendship, liberty, and prudence.

693d

Guest: You shall now hear. There are as it were two mothers of polities, from which he who says that others are produced will speak rightly. It is necessary to call one of these a monarchy, but the other a democracy. The race of the Persians possesses the summit of the one, but that of the other is possessed by us. But all other forms of polities are nearly, as I have said, variously composed from these. It is proper, therefore, and necessary, that a city should participate of both these, if it is to be free, and friendly in conjunction with prudence. But this our discourse wishes to ordain, when it says, that a city can never be beautifully governed while it is destitute of these.

693e

Clinias: For how can it?

694a

Guest: When, therefore, the one embraces monarchy, but the other liberty, more than is proper, neither will preserve the mediocrity of these. Your cities however, Laconia and Crete, possess it more than others. And this was the case with the Athenians and Persians formerly, but now they possess less of this mediocrity. But shall we discuss the causes of this, or not?

694a

Clinias: Entirely so, if we wish to accomplish our proposed design.

694b

Guest: Let us hear therefore. The Persians under the reign of Cyrus, possessing more of the mediocrity of slavery and freedom, were in the first place themselves free; and in the next place they were the lords of many others. For the governors imparted liberty to the governed, and by leading them to equality the soldiers had a greater friendship for the commanders, and conducted themselves with alacrity in dangers. And if any one among them was prudent, and able to give advice, as the king was not envious, but permitted liberty of speech, and honoured those who were able to advise, he openly exhibited the common power of prudence. And at that time he gave them all things, through liberty, friendship, and a communion of intellect.

694b

Clinias: It appears that the particulars which you have now mentioned thus subsisted at that time.

694c

Guest: How then came that government to be almost destroyed under the reign of Cambyses, and again nearly restored under that of Darius? Are you willing that we should speak as if we used divination?

694c

Clinias: Certainly; for this will contribute to our design.

694c

Guest: Respecting Cyrus, therefore, I thus divine; that in other particulars he was a good commander, and a lover of his country, but that he did not at all apply himself to right discipline, nor attend to œconomy.

694d

Clinias: But why must we say so?

694d

Guest: He appears from his youth to have passed his life in the army, and to have committed the education of his sons to women. But these educated them as persons happy and blessed from their childhood, and as indigent of nothing. Hence, as being sufficiently happy, they

forbade any one to oppose them in any respect, and compelled every one to praise all their words and actions. After this manner were they educated by certain women.

694d

Clinias: You speak, as it seems, of a fine education.

694e

Guest: Of a feminine one indeed, introduced by royal women, who became suddenly rich; and which took place during a scarcity of men, who through wars, and a multitude of dangers, had not leisure to attend to the education of youth.

695a

Clinias: It is probable that this was the case.

695a

Guest: But the father of these children possessed cattle and sheep, and herds of men, and of many other animals; but he was ignorant that those to whom he was to leave all these, were not instructed in their paternal or Persian art (the Persians being shepherds, the offspring of a rough country, and the methods being hard by which they rendered the shepherds very strong, able to pass the night out of doors, to be vigilant, and to fight if there was occasion). But he suffered women and Median eunuchs to educate his sons, who corrupted discipline through what is called felicity. Hence they came to be such as it is likely those must be who are educated without reproof. The sons, therefore, on the death of Cyrus taking possession of the government, and being full of luxury and unacquainted with reproof, in the first place, one slew the other in consequence of indignantly bearing equality: and in the next place, Cambyses, raging through intoxication and ignorance, destroyed the kingdom through the Medes, and a certain person who was then called the eunuch, and who despised his folly.

695a

Clinias: These things also are reported; and it appears that they nearly happened in this manner.

695b

Guest: And it is likewise said, that the government came again to the Persians through Darius and seven others.

695c

Clinias: Undoubtedly.

695c

Guest: But let us behold, following the order of discourse.

695d

For Darius was neither the son of a king, nor educated in a luxurious manner. But coming to the government, and receiving it as the seventh, he divided it into seven parts, of which at present some small dreams remain. He likewise was of opinion that men should live under laws which contribute to a certain common equality; and made that distribution legitimate, which Cyrus had promised the Persians; thus imparting friendship and communion to all the Persians, and alluring the vulgar among them by money and gifts. Being thus beloved by his soldiers, he subdued regions not less in number than Cyrus had left.

695e

After Darius, Xerxes reigned, who was again educated in a royal and luxurious manner. But, O Darius! we may, perhaps, most justly say you was not warned by the evil conduct of Cyrus, but educated Xerxes in the same manners in which Cyrus educated Cambyzes. He, therefore, as being the offspring of the same discipline, acted in a manner similar to Cambyzes. And, indeed, from this time scarcely any of the Persian kings were truly great, except in name. But the cause of this, according to my reasoning, was not fortune, but a vicious life, which the sons of those who were remarkably rich and tyrannical for the most part lived. For neither boy, nor man, nor old man, can ever become illustrious in virtue from such an education. And these are the things which we say should be considered by a legislator, and by us at present.

696a

But it is just, O Lacedæmonians, to confer this praise upon your city, that you never distribute any remarkable honour or nutriment to either a poor or rich man, to a king or a private person, which the oracle of some God has not from the first ordered you to distribute. For it is not proper that he who excels in riches, or swiftness, or beauty, or strength, without the possession of some virtue, should obtain the highest honours in a city; nor even if he possesses some virtue, if it is not attended with temperance.

696b

Clinias: What do you mean by asserting this, O guest?

696b

Guest: Is not fortitude one part of virtue?

696b

Clinias: Undoubtedly.

696b

Guest: Do you, therefore, judge, on hearing what I shall advance. Would you be pleased with any domestic or neighbour who was excessively brave, yet not temperate, but the contrary?

696c

Clinias: Predict better things of me.

696c

Guest: But what? Would you be pleased with one who was an artist, and wise in things of this kind, but at the same time unjust?

696c

Clinias: By no means.

696c

Guest: But justice is never produced without temperance.

696c

Clinias: How can it be otherwise?

696c

Guest: But neither did he who was just now considered by us as wise, because he possessed pleasures and pains, according with and

following right reason, become so without temperance.

696c

Clinias: Certainly not.

696c

Guest: But, further still, we should also consider this, that we may behold how honours are properly or improperly distributed in cities.

696d

Clinias: What?

696d

Guest: Whether temperance, if it subsists alone in the soul without every other virtue, can with justice become either honourable or dishonourable?

696d

Clinias: I know not what to answer.

696d

Guest: You speak modestly. And I think you would reply, that in this case it would subsist inharmoniously.

696d

Clinias: You have very properly answered for me.

696d

Guest: Be it so then. But the addition which we made use of, of honourable and dishonourable, did not deserve a reply, but ought rather to have been passed over in irrational silence.

696d

Clinias: You appear to me to speak concerning temperance.

696d

Guest: I do. But that which is of more advantage to us than other things, if it is especially honoured with an addition, it will be most rightly honoured;

696e

that which is second in utility, when honoured in a secondary manner; and thus every thing will be properly honoured when it receives

consequent honours in the order of succession.

697a

Clinias: This will be the case.

697a

Guest: What then? Shall we not say that it is the province of the legislator to distribute these?

697a

Clinias: And very much so.

697a

Guest: Are you willing that we should invest him with the power of distributing all things, both pertaining to every work, and to trifling particulars? And shall we not endeavour to give a triple division, since we also are in a certain respect desirous of laws; dividing things greatest, second, and third, apart from each other?

697b

Clinias: Entirely so.

697b

Guest: We say then that a city, in order that it may be preserved, and may be happy to the utmost of human power, ought necessarily to distribute honours and dishonours in a proper manner.

697b

Clinias: Right,

697b

Guest: Proper distribution, therefore, is this, to establish the goods pertaining to the soul, as the most excellent and first in rank, temperance at the same time being present with the soul: but as second in rank, things beautiful and good pertaining to the body; and in the third place, things pertaining to possessions and riches. If any legislator or city proceeds without these, and either causes riches to be honoured, or through honours renders something which is posterior, prior, they will act neither in a holy nor in a political manner. Shall these things be said by us, or how?

697c

Clinias: Entirely so.

697d

Guest: A consideration of the Persian polity caused us to speak more copiously about these particulars. But we found that they became still worse; and we say that this was owing to their depriving the people of liberty in an immoderate degree. Likewise, by introducing the despotic more than was proper, they destroyed friendship and society in the city. But, these being corrupted, the deliberation of the rulers is not directed to the governed and the people, but to the advantage of their own government. Indeed, for the sake of a trifling benefit which might accrue to themselves, cities have been entirely subverted, and friendly nations destroyed by fire. Hence, hating in an hostile manner, and without pity, they are also hated. And when there is occasion for the people to fight for them, and they assemble for this purpose, they do not find in them a general consent to undergo danger, and fight with alacrity. But though they possess myriads, and indeed innumerable subjects, yet they are all useless for the purposes of war. Hence, as if they were in want of men, they procure some for hire; and thus think they shall be safe under the protection of mercenary and foreign soldiers.

697e

Besides all this, they are compelled to be unlearned, asserting seriously, that whatever is called honourable or beautiful in the city is a mere trifle when compared to silver and gold.

698a

Megillus: Entirely so.

698a

Guest: But we have spoken sufficiently concerning the affairs of the Persians, which do not subsist in a proper manner, through excessive slavery and despotism.

698a

Megillus: Entirely so.

698a

Guest: But, after this, it

698b

is proper in a similar manner to discuss the Attic polity, that it may appear how perfect liberty, exempt from all government, is in no small degree worse than that which is moderately in subjection to others. For at that time in which the Persians invaded Greece, and perhaps nearly all Europe, our polity was antient, and we had certain governments composed of four divisions. A certain shame, too, at that time was a despot, through which we were then desirous to live in subjection to the laws. Besides this, the magnitude of that military force, which spread itself over the land and sea, produced an immense fear, and caused us to be in still greater subjection to the governors and laws then existing.

698c

And from these causes the highest degree of friendship subsisted between us. For nearly ten years before the naval battle in Salamis, Datis, being sent by Darius, led a Persian army against the Athenians and Eretrienses in order to reduce them to slavery; Darius at the same time threatening him with death unless he enslaved these nations. Datis, therefore, in a very short time entirely subdued them with an innumerable multitude of forces; and a certain dreadful rumour reached our city, that not one of the Eretrienses had escaped,

698d

but that the soldiers of Datis had bound the hands of the Eretrienses together, and plundered all their city. This rumour, whether true or not, terrified both the other Greeks, and also the Athenians, who in consequence of this sending ambassadors to every part of Greece for the purpose of procuring assistance, no one aided them except the Lacedæmonians. And even they, indeed, whether they were hindered by being engaged in a war at that time against Messene, or by some other circumstance (for we are unacquainted with the true reason), did not come till one day after the battle at Marathon. After this,

mighty preparations and innumerable threats of the king are said to have taken place.

698e

In the mean time Darius is said to have died, who was succeeded in the government by his son, at that time extremely young, and who in no respect abandoned his father's undertaking. But the Athenians were of opinion, that the whole of his preparation would be directed against them, on account of the battle at Marathon. And hearing that mount Athos was dug through, the Hellespont joined, and a great multitude of ships collected, they thought that there was no safety for them by land or by sea.

699a

For they were unwilling to confide in the assistance of any one, recollecting that, when on the first invasion of the Persians the Eretrienses were vanquished, no one gave them assistance, or exposed themselves to danger by fighting in their defence. But it appeared to them that the same thing would then take place by land. And again, when they looked to the sea, they saw that all safety was excluded there, since more than a thousand ships were coming against them. They perceived, therefore, only one mean of safety, and that was slender and dubious. For, looking back upon former transactions, and considering how they had fought without any prospect of success,—being borne along by this hope, they found their only refuge was in themselves and the Gods. This, therefore, united all of them in friendship with each other.

699b

I mean the fear which was then present, together with that which before this the laws had produced in those that were obedient to them. This in our former discourse we have frequently called shame, and to which we have said all those must be subservient who desire to become worthy characters. For he who is a slave to this is free and intrepid. Unless this fear, therefore, had been then present, they would never, collecting themselves together, have defended their

temples, their tombs, and their country, together with their other familiars and friends, as at that time they defended them, but we should have been widely separated from each other.

699b

Megillus: And very much so,

699c

O guest. You likewise speak very properly, and in a manner becoming both yourself and your country.

699d

Guest: Be it so, O Megillus! For

699e

it is just to discourse with you about the particulars which happened at that time, because you retain the nature of your parents. But do you and Clinias consider whether we say any thing accommodated to legislation. For I do not discuss these things for the sake of fables: but behold on what account I speak. For, in a certain respect, the same thing happens to us which happened to the Persians: for they led the people to every kind of slavery; but we, on the contrary, invite the multitude to every kind of freedom. But how and what we shall speak respecting this affair, our former discourses after a manner beautifully demonstrate.

699e

Megillus: You speak well. But endeavour to signify to us in a still clearer manner what you have now said.

700a

Guest: Be it so. The people, O friends, with us, according to antient laws, were not the lords of any thing, but after a manner they were voluntarily subservient to the laws.

700a

Megillus: What laws do you speak of?

700b

Guest: Those which were then established about music, that we may show from the beginning how liberty came to be bestowed in an extreme degree. For then music was divided by us into certain species and figures; and one species of the ode consisted in prayers to the Gods, which are called by the name of hymns. But another species of the ode, contrary to this, may be said especially to consist in lamentations. Again, another species consists in pæons: another celebrates the generation of Bacchus, and is, I think, called dithyrambos: and another species is denominated laws pertaining to the harp.

700c

These, and some others, being established, it was not lawful to use one species of melody instead of another. But the authority of knowing these, and, at the same time, judging respecting them, and condemning them when improper, was not invested in the pipe, nor in the ignorant clamours of the multitude, as at present, nor yet in those who express their applause by clapping their hands,—but in men illustrious for their erudition, and who were permitted to hear to the end in silence. But boys, pædagogues, and the numerous vulgar, were admonished to behave orderly by a rod. These things being established in so orderly a manner, the multitude of citizens willingly submitted to be governed, and did not dare to judge in a tumultuous manner.

700d

But after this, in the course of time, the poets themselves became the leaders of this unlawful privation of the muse. These, indeed, naturally possessed the poetic genius, but were unskilled to a degree of folly in what is just and lawful respecting music. They likewise celebrated the orgies of Bacchus, and pursued pleasure more than was becoming. Besides this, they mingled lamentations with hymns, and pæons with dithyrambic compositions. They imitated with harps the sound of the pipe, and mingled all things with all, involuntarily deceiving through their ignorance of music. For they asserted that it

did not possess any rectitude whatever; but that any one, whether he was a worthy or a worthless man, might judge with the greatest rectitude from the pleasure which it produced in the hearer.

700e

Composing, therefore, poems of this kind, and thus speaking publicly, they caused the multitude to act in an unlawful and daring manner with respect to music, by persuading them that they were sufficient judges of harmony. Hence theatres, from being silent, came to be noisy, as if capable of hearing what in the muses was beautiful, or the contrary: and thus, instead of an aristocracy, a certain depraved theatrical dominion was produced.

701a

For, if only a democracy of free men had subsisted, nothing very dire would have taken place: but now, through music, an opinion came to us of the wisdom of all men in all things, and a transgression of law in conjunction with liberty followed. For they became intrepid, as if endued with knowledge; and this privation of fear produced impudence. For when the opinion of a more excellent person, through confidence, is not dreaded, this is nearly base impudence, and is produced from a certain liberty vehemently daring.

701b

Megillus: You speak most true.

701c

Guest: An unwillingness to become subservient to governors is the consequence of this liberty: and this is attended with a desertion of the service and admonitions of father, mother, and elders. After this follows, as now being near the consummation of the whole, disobedience to the laws. When arrived at this extremity, oaths and faith, and the cultivation of the divinities, are neglected. Hence they exhibit and imitate that antient Titanic nature, which is celebrated by poets; and again returning to the manners of that period, they lead a life involved in difficulties, and find no end to their evils. But on what account have these things been said by us? It appears to me that

discourse, like a horse, should be restrained on every side, lest, having its mouth unbridled, and rushing onward, we should at length, according to the proverb, fall from an ass. It is proper therefore to ask, on what account these things have been said.

701d

Megillus: It is so.

701d

Guest: On what account, therefore, have we asserted these things?

701d

Megillus: On what account?

701d

Guest: We have said that a legislator ought to give laws regarding three things; that the city which receives his laws be free, friendly to itself, and endued with intellect. Was not this what we said?

701d

Megillus: Entirely so.

701e

Guest: For the sake of these things we adduced two species of government, one most despotic, and the other most free; and we have considered which of these was rightly administered. But, receiving a certain mediocrity in each, in the one of despotism, and in the other of liberty, we have seen that a prosperous condition of affairs will by these means be produced; but that the contrary will be the case when each is carried to an extreme, the one of slavery, and the other of liberty.

701e

Megillus: You speak most true.

702a

Guest: But, for the sake of these things, we considered the nature of the Doric army, the roots of the Dardan mountains, and the maritime habitation. We likewise considered, on the same account, those first

men who escaped the devastation of the deluge; and discoursed about music and intoxication, and things yet prior to these.

702b

For all these particulars have been discussed, for the purpose of perceiving how a city may be inhabited in the best manner, and how every private individual in it may lead the most excellent life. But if by all this we have accomplished any thing of consequence, what can be said against us, O Megillus and Clinias?

702c

Clinias: I seem to myself, O guest, to perceive something. For it appears that we have fortunately discussed all these particulars. For I nearly am at present in want of them; and both you and Megillus here have very opportunely met with me. For I will not conceal from you that which has now happened to me, but I will make it serve as an omen. The greatest part of Crete, then, endeavours at present to establish a certain colony, and commits the management of it to the Cnossians. But the city of the Cnossians appoints me and nine others to manage this affair; and at the same time orders us to establish those laws which please us Cretans, and which may be collected from other nations. And if those of other nations shall appear to be better than our own, it enjoins us not to reject them because they are foreign. We shall now, therefore, bestow this favour both upon ourselves and you. For, making a selection out of what has been said, we shall establish a city in our discourse, and consider it from the first time of its being inhabited. For thus a consideration of the object of our inquiry will take place, and which at the same time may be useful to me in the establishment of my future city.

702d

Guest: You do not announce war, O guest. Unless, therefore, it should not be agreeable to Megillus, be persuaded that I shall give you every assistance in my power. clin. You speak well. megil.

702e

You may likewise depend on my assistance. guest. You both speak in the most becoming manner. Let us therefore endeavour, in the first place, to built a city in discourse.

Book IV

704a

Come then, what kind of a city is it proper to think this should be? I do not now ask about its present or future name (for this, perhaps, may be owing to its colonization, or some particular place; or, perhaps, the surname of some river or fountain, or of the Gods there resident, may have given a denomination to the new city by its celebrity); but this is rather what I wish to ask concerning it, whether it is situated near the sea, or on the main land?

704a

Clinias: The city, of which we are now speaking, O guest, is distant from the sea about eighty stadia.

704b

Guest: Are there any ports near it, or is it entirely without a port?

704b

Clinias: It is furnished with ports, O guest, in the greatest possible degree.

704c

Guest: Strange! What do you say? But is this region likewise all-prolific, or is it indigent of some things?

704c

Clinias: It is nearly indigent of nothing.

704c

Guest: Is any city situated near it?

704c

Clinias: Not very much so; on which account it became colonized. For, an antient expulsion of the inhabitants having taken place in this city, the country was rendered desolate for an immense space of time.

704c

Guest: But how is it circumstanced with respect to plains, mountains, and woods?

704d

Clinias: It is similar to the whole of the rest of Crete.

704e

Guest: Do you mean to say that it is more rough than plain?

705a

Clinias: Entirely so.

705a

Guest: It is not therefore incurably unfit for the acquisition of virtue. For, if it was situated near the sea, and abounded with ports, but was not all-prolific, but indigent of many things, it would require for itself some mighty saviour, and certain divine legislators, that it might be preserved from many various and depraved manners to which it would be naturally disposed. But now its distance of eighty stadia becomes its consolation. It is indeed situated nearer the sea than is becoming, on which account it abounds as you say with ports; but, at the same time, this is a desirable circumstance. For the vicinity of the sea to this region renders it every day pleasant, though this proximity is in reality extremely salt and bitter. For, filling it with the desire of gain, through merchandize, it produces in the souls of the inhabitants craft and unfaithfulness; and thus renders the city both unfaithful and unfriendly to itself, and in a similar manner to other nations. As a consolation, however, under these disadvantages, it possesses an all-prolific soil; but, being rough, it is evident that it will not be abundantly, though it is all-prolific. For, if this were the case, in consequence of great exportation, it would again possess gold and silver coin in abundance; a greater evil than which cannot, as I may say, exist, if one thing is compared with another, nor can any thing in a city be more adverse to the possession of generous and just manners, as, if we recollect, we said before.

705b

Clinias: We do recollect; and we allow that what was then and is now said is right.

705c

Guest: But what? Does this region possess materials proper for building ships?

705c

Clinias: It has not any fir-trees which deserve to be mentioned, nor yet any pines. It likewise has not many cypress trees; and very few plane- or pitch-producing trees are to be found in it, which shipwrights necessarily use in constructing the interior parts of ships.

705c

Guest: In this respect likewise the nature of the country is not badly disposed.

705c

Clinias: How so?

705d

Guest: Because it is good for a city to be incapable of easily imitating its enemies in base imitations.

705d

Clinias: On account of which of the things that have been advanced do you speak in this manner?

705e

Guest: Observe me, O divine man! I am looking to that which was asserted in the beginning about the Cretan laws, which you said regarded one particular, viz. war; but I said that such laws, because they were established with a view to virtue, were well established; but because they regarded only a part, and not the whole of virtue, I did not altogether approve of them. Do you therefore observe me in the present business of legislation, and consider whether I legally establish any thing tending to virtue, or to any part of virtue.

706a

For it is with me a fundamental position, that he only establishes laws in a proper manner, who, like an archer, always directs his attention thither where alone something of the beautiful in conduct will always follow, but who leaves all other things, whether riches or any thing else of this kind, when they subsist without beautiful manners. But I call the imitation of enemies then vicious, when any one residing near the sea is injured by enemies, as in the following instance. For I will relate a circumstance to you, though not with any intention of calling to mind a past injury. Minos, in consequence of possessing great power by sea, imposed a heavy tribute on the Attic region. But the Athenians at that time had not ships of war as at present; nor did their country abound in wood well adapted for building ships. Hence they could not, through nautical imitation, becoming themselves sailors, immediately at that time defend themselves against their enemies. And they would have done better if they had often lost seven young men, instead of suffering that which happened to them.

706b

For, instead of fighting on land, and in a legal manner, in consequence of becoming sailors they were accustomed to leap running in close array into the ships, and again rapidly to abandon them; and appeared to themselves to act in no respect base, in not daring to die, and wait for the attacks of the enemy.

706c

But they had a plausible pretext at hand, asserting that, by throwing away their arms, they could not be accused of shameful flight.

706d

They say, that language of this kind came to be adopted in consequence of naval engagements; language by no means worthy of infinite praise, but the contrary. For it is never proper to be accustomed to base manners, and especially for the best part of the citizens. But it appears from Homer, that a conduct of this kind is not beautiful. For Ulysses reproves Agamemnon for exhorting the Greeks,

who at that time were engaged in fight against the Trojans, to draw their ships to the sea. But Ulysses thus reproves him:

706e

“Is this a general’s voice, that calls to flight
While war hangs doubtful, while his soldiers fight?
What more could Troy? What yet their fate denies
Thou giv’st the foe: all Greece becomes their prize.
No more the troops (our hoisted sails in view,
Themselves abandon’d) shall the fight pursue;
But thy ships flying, with despair shall see,
And owe destruction to a prince like thee¹⁸.”

707a

Homer therefore knew that three-banked galleys prepared for flight were bad in naval engagements. For lions, by using manners of this kind, might be accustomed to fly from stags. Besides this, the naval powers of cities do not together with safety bestow honours on the most beautiful of warlike concerns. For, in consequence of naval affairs subsisting through piloting, the government of fifty men, and rowing, men of all-various descriptions and of no great worth being employed for these purposes, no one can bestow honours upon individuals in a proper manner. Though deprived of this, how can a polity be in a good condition?

707b

Clinias: It is nearly impossible. But, O guest, we Cretans say that the naval battle at Salamis of the Greeks against the Barbarians preserved Greece.

707b

Guest: And, indeed, many both of the Greeks and Barbarians assert the same thing.

707c

But we, my friend, viz. I and Megillus here, say, that the pedestrious battle at Marathon and Plataeæ was the one the beginning, and the other the end, of safety to the Greeks. And, in short, that we may

speak of the battles which at that time preserved us, some of them were advantageous, but others not so, to the Greeks. For to the battle at Salamis I add that at Artemisium. But now, looking to the virtue of a polity, let us consider the nature of the region, and the order of the laws; not thinking, with the vulgar, that to be preserved, and to exist, is alone to mankind the most honourable of all things, but to become and continue to be the most excellent characters during the whole period of their existence. And this I think has been said by us in the former part of our discourse.

707d

Clinias: Undoubtedly.

707d

Guest: We will therefore alone consider this, if we are in that path which is best for a city, respecting habitations, and the establishment of laws.

707e

Clinias: And we are very much so.

707e

Guest: Inform me, therefore, as that which is consequent to these things, who the people are that are to inhabit your colony; whether such as are willing from every part of Crete, so as that a great multitude will be collected from its several cities; or whether they are such as are chosen for the purpose of cultivating the land? For you do not collect such of the Greeks as are willing; though I see that some of you from Argos, and Ægina, and other parts of Greece, inhabit this region. But inform me at present whence you will derive this army of citizens.

708a

Clinias: I think it will be procured from the whole of Crete. And it appears to me that those from Peloponnesus will be received for inhabitants, in preference to the other Greeks. For, what you said just now you said truly: I mean, that these are from Argos: for the race

which is most celebrated here at present is Gortynic, because it migrated hither from the Peloponnesian Gortyna.

708b

Guest: This establishment of a

708c

colony, therefore, is not similarly easy to cities, since it does not take place after the manner of a swarm of bees, one race of friends proceeding from one region, and from friends, in order to form a settlement, being as it were besieged by a certain narrowness of land, or forced by other inconveniences of a similar nature. But it sometimes happens that a part of a city, being violently urged by seditions, is compelled to settle in some other place. And sometimes a whole city is forced to fly, in consequence of being vanquished in war. It is, therefore, partly easy for these to be colonized, and governed by laws, and partly difficult. For, when a colony is of one race, speaking the same language, and obeying the same laws, it is united by a certain friendship, and has a communion of priests, and every thing else of a similar kind; but it will not easily endure different laws, and a polity foreign to its own. But such a colony, having been forced to sedition through the badness of its laws, and still desiring through custom those pristine manners by which it was corrupted, becomes, in consequence of this, refractory and disobedient to its colonizer and legislator. But when a colony is composed of all-various tribes, it will perhaps be more willingly obedient to certain new laws; but to conspire together, and, like horses under one yoke, to blow as it is said the same blast, requires a long time, and is extremely difficult. But legislation and the establishment of cities are the most perfect of all things with respect to the virtue of men.

708d

Clinias: It is probable; but inform me in a yet clearer manner why you asserted this.

708e

Guest: O good man, I appear to myself, while praising and speculating about legislators, to have said something vile. But, if we have spoken opportunely, there will be no difficulty in the affair. Though, indeed, why should I be disturbed? for nearly all human affairs appear to subsist in this manner.

708e

Clinias: Of what are you speaking?

709a

Guest: I was about to say, that no man ever at any time established laws, but that fortunes and all-various events, taking place in an all-various manner, gave us all our laws. For either war by its violence has subverted polities and changed laws, or the anxiety of severe poverty. Diseases also have caused many innovations; and these have often been produced through pestilences, and unseasonable times enduring for many years. He who considers all these things will think it fit to exclaim, as I just now did, that no mortal ever established any laws, but that all human affairs are nearly governed by fortune. But he who asserts all this respecting navigation, piloting, medicine, and military command, will appear to speak well. This also may be properly asserted respecting these things.

709a

Clinias: What?

709a

Guest: That divinity, and, together with divinity, fortune and opportunity, govern all human affairs.

709b

But a third of a milder nature must be admitted,—I mean, that art ought to follow these. For I am of opinion, that it would make a great difference, during a storm, whether you possessed the pilot's art, or not. Or how do you say?

709c

Clinias: That it would.

709c

Guest: Will not the same consequence ensue in other things? But, indeed, we must attribute the same thing to legislation; that, other things concurring which are requisite to the living happily in a country, a legislator endued with truth ought not to be wanting to such a city.

709d

Clinias: You speak most true.

709d

Guest: Ought not, therefore, he who possesses art in each of the above-mentioned particulars, to pray that something may be properly present with him through fortune, that he may not wholly trust to art?

709d

Clinias: Entirely so.

709d

Guest: And would not all the rest that we have just now mentioned speak in this manner, if any one should call upon them to disclose their prayer?

709d

Clinias: Undoubtedly.

709d

Guest: And I think that a legislator also will do the same.

709d

Clinias: So I think.

709d

Guest: Come then, legislator (for we will now address him), What, and after what manner, shall we give you a city, so that from the things which are left in it you may be able sufficiently to govern the city? What will he rightly assert after this? Shall we not say, that the legislator will thus speak?

709e

Clinias: How?

709e

Guest: Thus. Give me a city governed by a tyrant, he will say. But let the tyrant be a young man, of a good memory, docile, brave, and naturally magnificent. And let that which, we said before, ought to follow all the parts of virtue, take place in the soul of the tyrant, in order that some advantage may be derived from other things being present.

710a

Clinias: Our guest, O Megillus, appears to me to say that temperance should follow the other virtues. Is it not so?

710b

Guest: I speak, O Clinias, of popular temperance¹⁹, and not of that which any one extolling would call prudence; but I mean that temperance which immediately and naturally blossoms forth in boys and savage animals, so that some are incontinent with respect to pleasures, but others continent. And this temperance, when subsisting separate from the multitude of things which are called good, I do not consider as worthy to be mentioned. Do you understand me?

710b

Clinias: Perfectly.

710b

Guest: This nature, therefore, our tyrant must possess in addition to the other natures we have mentioned, if the city is to receive a polity, through which it may live most happily in the swiftest and best manner possible. For no disposition of a polity can ever be more rapid or more excellent than this.

710c

Clinias: But how, O guest, and by what arguments, may any one who asserts this persuade himself that he speaks properly?

710c

Guest: It is easy to understand, O Clinias, that this is naturally so.

710c

Clinias: How do you say? Do you not mean to assert, if the tyrant is a young man, temperate, docile, of a good memory, brave, magnificent, and fortunate?

710c

Guest: Add nothing else,

710d

except that he proves to be a legislator worthy of praise, and that a certain fortune leads him to this. For, this taking place, every thing will nearly be accomplished by a divine nature, which it brings to pass when it is willing that any city should be eminently prosperous. But this will happen in the second degree, when two such characters are the governors: in the third degree, when three: and the difficulty of a prosperous government will be increased in proportion to the number of such governors. But, on the contrary, the facility will be increased in proportion to the paucity of such governors.

710e

Clinias: You appear to assert that the best city is produced from a tyranny, in conjunction with a most excellent legislator and a modest tyrant; and that it is easily and rapidly changed into the former from the latter: that the best city in the second degree is produced from an oligarchy; and in the third degree, from a democracy. Or how do you say?

710e

Guest: Not this, by any means. But that the first is produced from a tyranny; the second, from a royal polity²⁰; the third, from a certain democracy; and in the fourth place, an oligarchy²¹ will be able to receive a generation of this kind with the utmost difficulty. For, in this mode of government, the powerful are very numerous. But we say that these things will then take place, when a true legislator, and who is naturally such, shall be found; and when a certain strength shall happen to him in common with those in the city, who are able to accomplish that which is of the greatest consequence. But where the governors are the fewest in number, and at the same time the most

strong, as in a tyranny, there this mutation is accustomed to take place in a rapid and easy manner.

711a

Clinias: How do you mean? For I do not understand you.

711a

Guest: And yet I think you have heard this, not once, but often. But perhaps you never saw a city under the dominion of a tyrant.

711b

Clinias: Nor am I desirous of such a spectacle.

711b

Guest: But you may see that in it which we have just now spoken of.

711c

Clinias: What?

711c

Guest: That a tyrant who wishes to change the manners of a city has no occasion either of great labour, or a long time, for the accomplishment of his purpose. For, if he wishes to exhort the citizens to the study of virtue, it is necessary that he should be the first who proceeds in the road leading to it; but if to the contrary, he should first set them the example. For he ought to express all things in himself by acting; praising and honouring some things, but blaming others, and disgracing those who in their several actions are disobedient to his commands.

711c

Clinias: How is it possible not to be of opinion that the other citizens will rapidly follow him who is endued with such persuasion and force?

711d

Guest: No one will be able to persuade us, O friends, that a city will change its laws swiftly and easily by any thing else than the command of its governors. For this does not happen at present by any other means, nor ever will. Indeed, this is neither difficult for us, nor impossible to be accomplished. But another thing is difficult to be

accomplished, and rarely takes place in a long time; though, when it happens, it produces in the city in which it is found ten thousand advantages, and, indeed, every good.

711d

Clinias: Of what are you speaking?

711d

Guest: When a divine

711e

love of temperate and just pursuits is inherent in certain mighty authorities, whether they govern according to a monarchy, according to transcendency in wealth, or nobility of race. Or when any one restores the nature of Nestor, who is said to have excelled all men in strength of speaking, and still more in the temperance of his life. This man, therefore, they say, was born in the Trojan times, but by no means in ours. If, then, such a man either formerly was, or will be, or at present subsists among us, he must himself live in a blessed manner, and those must be blessed who hear the words proceeding from his temperate mouth.

712a

In a similar manner we must reason respecting all power; as that, when the greatest power in a man falls into the same with acting prudently and temperately, then the generation of the best polity and the best laws is produced, but never otherwise. These things, therefore, which are spoken as if they were a certain fable, have been uttered in an oracular manner: and it has been shown, that it is partly difficult for a city to have good laws; and that partly, if what we have spoken of should take place, it would happen the most rapidly of all things, and in the shortest time.

712b

Clinias: Undoubtedly.

712b

Guest: Let us therefore now endeavour, adapting these things to your city, like old men to boys, to fashion laws in discourse.

712b

Clinias: Let us endeavour to do this, and no longer delay.

712b

Guest: But let us invoke Divinity in constituting the city. And may he hear, and hearing be present with us, in a propitious and benevolent manner, adorning, in conjunction with us, the city and the laws!

712b

Clinias: May he, therefore, come!

712c

Guest: But what kind of polity have we in our mind to impart to the city?

712c

Clinias: Inform me yet more clearly what you wish to say; whether it is a certain democracy, or oligarchy, or aristocracy, or a royal government. For we do not think that you will speak of a tyranny.

712c

Guest: Come, then, which of you is willing first to answer me, and declare which of these is the government of his country?

712c

Megillus: Is it more just that I, who am the elder, should speak first?

712d

Clinias: Perhaps so.

712d

Megillus: When I consider then, O guest, the polity in Lacedæmon, I cannot tell you what it ought to be called; for it appears to me to be similar to a tyranny. For the power of the ephori in it is wonderfully tyrannical. Though sometimes it appears to me to be the most similar of all cities to a democracy. But yet, again, not to say that it is an aristocracy is perfectly absurd. There is also a kingdom for life in it, and which is said to be the most antient of all kingdoms, both by all men and by us. I therefore, being thus suddenly asked, cannot, as I have said, definitely inform you which of these polities it is.

712e

Clinias: I too, O Megillus, appear to be affected in the same manner as yourself. For I am perfectly doubtful which of these I should call the polity in Cnossus.

713a

Guest: For you, O most excellent men, truly participate of polities; but those which are now so called are not polities, but habitations of cities, in which one part is subject to the dominion of another, and each is denominated from the power of the despot. But if a city ought to be denominated after this manner, it is fit that it should be called by the name of a divinity, who is the true ruler of those that are endued with intellect.

713a

Clinias: But who is this God?

713a

Guest: Shall we then for a little while make use of a fable, in order that we may unfold in a becoming manner the object of our inquiry? Will it not be proper to do so?

713b

Clinias: By all means.

713b

Guest: A long time then prior to those habitations of cities which we have before discussed, a certain government and habitation is said to have subsisted under Saturn²²; a government extremely happy, and of which the present aristocracies are an imitation.

713b

Megillus: It is proper, as it appears, to attend to this vehemently.

713b

Guest: It appears so to me; and on this account I have introduced it into our discourse.

713c

Megillus: It is well done: and you will act very properly by proceeding with the fable as far as is necessary to your design.

713c

Guest: I shall do

713d

as you say. We learn, then, from the report of the blessed life of the inhabitants of that time, that they possessed all things in abundance, and spontaneously produced; of which the following is said to be the cause: Saturn, well knowing (as we have already observed) that no human nature, when endued with absolute dominion, is so sufficient to itself as not to be filled with insolence and injustice, in consequence of understanding this, placed over our cities, as kings and governors, not men, but dæmons of a more divine and excellent kind; just as we do at present with flocks of sheep and herds of tame cattle. For we do not make oxen governors of oxen, nor goats of goats; but we ourselves rule over them, as being of a better race. In a similar manner this God, who is a lover of mankind, placed over us the race of dæmons, as being more excellent than our species. But these taking care of our concerns, with great facility both to themselves and us, imparted to us peace and shame, liberty and abundance of justice, and rendered the human race exempt from sedition, and happy.

714a

This our present discourse, therefore, employing truth, asserts, that such cities as are not governed by a divinity, but by some mortal, will never be exempt from evils and labours: but it is of opinion that we ought, by all possible means, to imitate the life which is said to have been under Saturn; and that, being obedient to as much of immortality as is inherent in our nature, we should govern both publicly and privately our houses and cities, calling law the distribution of intellect. For, if one man, or a certain oligarchy, or democracy, possessing a soul aspiring after pleasures and desires, and requiring to be filled with these, but not being able to retain them, should be tormented with an insatiable vicious disease;—such a one, when governing either a city or an individual, would trample on the laws; and, as we just now said, under such a dominion there could be

no possibility of obtaining safety. But it is necessary to consider, O Clinias, whether we ought to be persuaded by this discourse, or not.

714b

Clinias: It is necessary that we should be persuaded.

714c

Guest: You understand, therefore, that they say there are as many species of laws as of polities. But we have already related how many species of polities there are said to be by the multitude. Nor should you think that our present inquiry is about something vile, but that it is about a thing of the greatest moment. For, to what the just and the unjust ought to look, again becomes to us a thing of an ambiguous nature. For they say that the laws ought not to look either to war, or to the whole of virtue, but rather to that which is advantageous to the subsistence of a polity, so that it may always govern, and never be dissolved: and they say that the definition of the just will thus be naturally beautiful.

714c

Clinias: How?

714c

Guest: Because it is advantageous to that which is more excellent.

714c

Clinias: Speak yet more clearly.

714d

Guest: That which has dominion, say they, always establishes the laws in a city. Is not this what they say?

714d

Clinias: You speak truly.

714d

Guest: Do you think, therefore, say they, that ever at any time, whether the people are victorious, or any other polity, or a tyranny, he who establishes the laws will voluntarily establish them, looking to

any thing else in the first place than his own advantage, viz. the stability of his dominion?

714d

Clinias: For how should he?

714e

Guest: He, therefore, who transgresses these laws when established, will be punished by the legislator (who will denominate his laws just) as acting unjustly.

714e

Clinias: It appears so.

714e

Guest: This, therefore, will always be the case, and in this manner the just will subsist.

714e

Clinias: According to this doctrine it will be so.

714e

Guest: For this is one of those iniquities which take place about government.

714e

Clinias: What iniquities?

714e

Guest: It is one of those which we then considered when we discoursed about governors and the governed. And we then said, that parents ought to rule over their progeny, the older over the younger, the noble over the ignoble; and other things, in short, some of which, if you remember, were a hindrance to others, among which this was one. We likewise mentioned that Pindar said, it was both according to nature and just that the most powerful should lead.

715a

Clinias: These things, indeed, were then said.

715a

Guest: But consider to what persons our city ought to be committed. For a circumstance of this kind takes place ten thousand times in certain cities.

715a

Clinias: Of what kind?

715b

Guest: When a contest about dominion happens, those who are victorious so vehemently usurp the affairs of the city, as not to communicate any part of the government to the vanquished, nor to their progeny; always being careful lest any one of these, if invested with authority, should cause an insurrection, through a remembrance of the evils which he had formerly suffered. At present, we doubtless say, those are neither polities, nor upright laws, which are not established in common for the sake of the whole city. But those who establish these for the sake of any parts of the city, we denominate seditious, but not citizens; and we say that the things which they call just are called so by them in vain. But these things are asserted by us on this account, because we shall not give your city any magistrate who is

715c

rich, or who possesses any thing else of this kind, such as strength or magnitude, or illustrious birth; but we shall give it one who will be most obedient to the legislator, and who will surpass all in the city in this respect. We likewise say that the greatest attention to the worship of the Gods must be attributed to the first in power; the second degree of attention to him who is second in authority; and that every thing consequent to this must be distributed in an orderly manner. But those that are called governors I have now denominated servants to the laws, not for the sake of innovation with respect to names, but because I think that the city will obtain safety from this more than from any thing; and that by neglecting it the contrary will take place. For I see that destruction hangs over that city in which law does not govern the magistrates, but magistrates the law. But in that city in

which the law possesses absolute dominion over the governors, and the governors are slaves to the law, I behold safety, and such other goods as the Gods impart to cities.

715d

Clinias: By Jupiter, it is so, O guest! For, through your age, you perceive acutely.

715e

Megillus: For every man, while he is young, perceives these things obtusely; but, when old, most acutely.

715e

Clinias: Most true.

715e

Guest: But what is next to be done? Ought we not after this to consider the inhabitants of our city as having arrived, and being present, and to finish the remaining part of our discourse to them?

715e

Clinias: Undoubtedly.

715e

Guest: Let us, therefore, thus address them:

716a

Divinity²³, O men, according to an ancient saying, containing in himself the beginning, end, and middle of all things, bounds by a circular progression that which is direct according to nature. But justice always follows him, the punisher of those who desert the divine law, and which will be followed in a humble and composed manner by him who intends to be happy in future. But he who is elevated by arrogance, either because he excels in riches or honours, or in the form of his body, having his soul inflamed with insolence in addition to his youthfulness and privation of intellect, as one who is not in want either of a governor or a leader, but is himself sufficiently able to lead others,—such a one is left destitute of divinity. But being thus left destitute, and meeting with others similar to himself, he exults, at the same time causing a general confusion. And to many,

indeed, he appears to be a person of consequence; but in no long time afterwards, suffering an unblameable punishment from justice, he entirely subverts himself, his house, and his country. Since these things, therefore, are thus disposed, what ought a prudent man to do, or to think, and from what ought he to abstain, both in action and thought?

716b

Clinias: It is evident, that every man ought to think how he may be of the number of those who follow divinity.

716c

Guest: What action, therefore, is friendly to and attendant on divinity? One indeed, and which possesses an antient reason, is this, that the similar will be friendly to the similar which is moderate; but that the immoderate are neither friendly to each other nor to the moderate. But divinity, indeed, is in the most eminent degree the measure to us of all things, and much more, as it is said, than any man. He, therefore, who becomes friendly to a nature of this kind must necessarily become such to the utmost of his power. But, according to this reasoning, every temperate man is a friend to divinity, for he is similar to him. But the intemperate man is dissimilar, different, and unjust; and other things from the same reasoning will take place in a similar manner.

716d

But we should understand that which is consequent to these things, and which in my opinion is *the most beautiful*, and THE MOST TRUE²⁴ of all assertions, that for a good man to sacrifice to and be conversant with the GODS, is of all things the most beautiful, the best, and the most useful to the possession of a happy life; and that, besides this, it is *in the highest degree becoming*;

716e

but the contraries of these things naturally happen to the vicious man. For the vicious man is unpurified in his soul, but the contrary character is pure. But to receive gifts from one who is defiled, can

never become either a good man or a God. In vain, therefore, do the unholy bestow much labour about the Gods; but such labour is most opportune to all holy men. Such then is the scope which we ought to regard. What therefore shall we say the arrows are, and what the impulse by which they will be most properly directed?

717a

In the first place we must say, that he who after the Olympian Gods, and those who preside over the city, honours the terrestrial Gods, by attributing to them things even, secondary, and on the left hand, will in the most proper manner reach the mark of piety.

717b

But to the Gods superior to these he will attribute things according to the odd number, and dissonant to the particulars we have just now mentioned. But after these Gods a wise man will celebrate the orgies of dæmons, and after these of heroes. In the next place, statues must follow of the household Gods, which must be severally sacrificed to according to law. After these things, such honours as are lawful must be paid to living parents. For to these the first, greatest, and most antient of all debts are to be paid. For every one ought to think, that the whole of his possessions belongs to those by whom he was begotten and educated, and that he ought to supply their wants from these to the utmost of his power;

717c

beginning in the first place from his external possessions; in the second place, supplying them from those of his body; and, in the third place, from those of his soul: imparting all these, in order to discharge the debt which he owes his parents for the care they have bestowed upon him, and the pangs of labour which his mother formerly endured on his account. He must support them too in old age, when they want assistance in the highest degree.

717d

It is likewise requisite through the whole of life to speak of our parents in the most honourable manner, because there is a most heavy

punishment for light and winged words. For Nemesis, the angel of justice, is the inspector of all men in things of this kind. It is necessary, therefore, to be submissive to them when they are angry and full of rage, whether their anger shows itself in words or in deeds, as not being ignorant that a father may very properly be angry with his son, when he thinks that he has been injured by him. But, on the death of parents, the most decent and beautiful monuments are to be raised to them; not exceeding the usual magnitude, nor yet less than those which our ancestors erected for their parents. Every year, too, attention ought to be paid to the decoration of their tombs.

717e

They ought likewise to be continually remembered and revered—and this with a moderate expense, adapted to the condition of our fortune. By always acting, therefore, and living in this manner, we shall each of us be rewarded according to our deserts, both by the Gods and those natures superior to our own, and shall pass the greatest part of our life in good hope.

718a

But the course of the laws themselves will show in what manner we ought to behave towards our offspring, relations, friends, fellow-citizens, and strangers, so as to conduct ourselves piously towards all these, and render our life pleasant, and adorned according to law; and this it will accomplish, partly by persuading, and partly by punishing through violence and justice, such manners as will not submit to persuasion; and thus, through the favouring will of the Gods, will render our city blessed and happy.

718b

But what a legislator whose conceptions are the same as mine ought necessarily to say of these things, but which cannot be adapted to the form of law, it appears to me an example should be presented, both to the legislator and those to whom he gives laws; and that, having discussed what remains to the utmost of our ability, we should after this commence the thesis of laws. Such things, indeed, cannot be

easily comprehended in one description, so as to explain the manner in which they subsist; but we may thus be able to assert something stable respecting them.

718c

Clinias: Inform me how.

718c

Guest: I should wish them to be obedient to virtue: and it is evident that the legislator should endeavour to accomplish this in the whole of legislation.

718d

Clinias: Undoubtedly.

718d

Guest: What has been said, therefore, appears to me to contribute something to that end;

718e

so that, if the soul of the hearer is not perfectly savage, it will attend with greater mildness and benevolence: hence, though we should not accomplish any great but a small matter, by rendering the hearer more benevolent, and by this means more docile, we ought to be perfectly satisfied. For facility is rare, nor is there an abundance of those who endeavour to become the most worthy characters in the greatest degree, and in the shortest time. But many proclaim Hesiod to be wise for asserting that the road to vice was smooth, and easy to be passed through, as being very short: “but (says he) the immortal Gods have placed sweat before virtue, and the road which leads to it is long and arduous, and, at first, rough; but, when we arrive at the summit, the path which before was difficult becomes easy²⁵.”

719a

Clinias: And it appears to be well said.

719a

Guest: Entirely so. But I am willing to explain to you the intention of my discourse.

719a

Clinias: Explain it then.

719a

Guest: We will thus therefore direct our discourse to the legislator. Inform us, O legislator, whether, if you knew what we ought to do and say, you would not say so?

719b

Clinias: He necessarily would.

719b

Guest: Did we not a little before hear you saying, that a legislator ought not to suffer poets to say just what they pleased? For they are ignorant that, when they assert any thing contrary to the laws, it will injure the city.

719b

Clinias: You speak truly.

719b

Guest: But if we should thus speak to him respecting the poets, shall we have spoken moderately?

719b

Clinias: On what account do you ask this question?

719c

Guest: There is an

719d

antient saying, O legislator, which is common among us, and is confirmed by all other nations, that a poet, when he sits on the tripod of the muse, is not in his right senses, but, like a fountain, readily pours forth the influx which he has received: and that, his art being imitative, he is often compelled, when representing men that are contrary to each other, to contradict himself; and does not know whether these things, or those, are true. But a legislator must not act in this manner in law, viz. he must not assert two different things about one thing, but always make one assertion about one thing. And you may perceive the truth of this from what you have just now said.

For, since of sepulchres some exceed, others are deficient, and others are moderate, you, having chosen the last of these, have ordered them to be adopted, and have simply praised them. But I, if my wife was remarkably rich, and should order me to bury her, I would celebrate in a poem her magnificent sepulchre:

719e

but a parsimonious and poor man would praise a tomb which was, in some respect or other, deficient; and he who is moderately rich would praise a moderate sepulchre. But it is not proper that you should only speak of the moderate as you did just now, but that you should inform us what the moderate is, and how far it extends; for otherwise you will not as yet understand that a discourse of this kind is a law.

720a

Clinias: You speak most true.

720a

Guest: Whether, therefore, will he who presides for us over the laws order nothing of this kind in the beginning of the laws, but immediately inform us what ought to be done, and what not, and, having appointed a fine, will turn himself to the establishing of another law, adding nothing of exhortation and persuasion to the promulgators of the laws? Just as different physicians cure in a different manner. But we will recall to our mind the methods which they employ; that, as boys entreat the physician to cure them in the gentlest manner, so we may implore the legislator to cure us by the mildest means. That I may explain, however, what I mean—we say that some are physicians, and others the servants of physicians; and these last we likewise call, in a certain respect, physicians. Do we not?

720b

Clinias: Entirely so.

720b

Guest: And do we call them so, whether they are free, or servants, who, through the orders of their masters, have acquired the art of medicine, both according to theory and experience, but are not

naturally physicians like those who are free, who have both learnt the art from themselves, and instructed their children in it? Or do you consider these as forming two kinds of physicians?

720b

Clinias: Why should I not?

720c

Guest: Do you, therefore, understand, that when in a city both servants and those who are free are sick, servants are for the most part cured by servants, who visit the multitude of the sick, and are diligently employed in the dispensaries; and this without either assigning or receiving any reason respecting the several diseases of the servants, but what they have found by experience to be efficacious they tyrannically prescribe for their patients, as if they possessed accurate knowledge; and thus, in an arrogant manner, hurry from one diseased servant to another; by this mean facilitating their master's attention to the sick? But the freeborn physician, for the most part, heals and considers the diseases of those who are freeborn;

720d

and this, by exploring the disease from the beginning, and proceeding according to nature; conversing both with the sick man and his friends, and, at the same time, learning something himself from the sick, and teaching him something, so as not to order him to do any thing till he has persuaded him of its propriety. But after this he always endeavours, in conjunction with persuasion, to lead him in a gentle manner to health. Which of these appears to be the better physician and exerciser, he who in this manner heals and exercises, or he who in that? He who accomplishes one power in a twofold manner, or he who accomplishes it in one way, and this

720e

the worse and more rustic of the two?

721a

Clinias: The twofold method, O guest, is by far the more excellent.

721a

Guest: Are you willing, therefore, that we should consider this twofold and simple method as taking place in the establishment of laws?

721a

Clinias: How is it possible I should not be willing?

721a

Guest: Inform me then, by the Gods, what the first law will be which the legislator will establish. Will he not first of all adorn by his mandates the principle of the generation of cities?

721a

Clinias: Undoubtedly.

721a

Guest: But are not the mutual mixture and communion of marriages the principle of generation to all cities?

721a

Clinias: Undoubtedly.

721a

Guest: Nuptial laws, therefore, being first of all established, they will appear to be well established with respect to the rectitude of every city.

721b

Clinias: Entirely so.

721b

Guest: We will, therefore, first of all speak of the simple law, which, perhaps, will subsist in the following manner. Every one should marry from thirty to thirty-five years of age; but he who did not should be fined both with money and disgrace; with money to a certain amount, and with disgrace of this or that particular kind. Let this then be the simple law respecting marriages; but let the following be the twofold law. Every one should marry from thirty to thirty-five, considering, at the same time, that the human race participates from a certain nature of immortality, of which every one is naturally desirous in the extreme.

721c

For the endeavour of mankind not to remain after death without a name is a desire of this kind. The human race, therefore, is something connate with the whole of time, following and being conjoined with it to the end, becoming immortal by leaving children of children, and participating of immortality through being one and the same by generation. For a man willingly to deprive himself of this, is by no means holy. But he intentionally deprives himself of this who neglects children and wife.

721d

He, therefore, who is persuaded by this law shall be liberated from the punishment of a fine. But he who is not obedient to it, and who is not married when he is thirty-five years of age, shall be fined every year a certain sum of money, that his solitary life may not appear to be profitable and pleasant to him; and that he may not partake of those honours which the younger in a city pay to the elder. These laws being compared with each other, it will be possible to judge of every particular law, whether it ought to be double, and of the smallest extension, on account of mingling threats with persuasions; or whether, alone employing threats, it should become simple in length.

721e

Megillus: Agreeably to the Laconic mode, O guest, the shorter ought always to be preferred. But if any one should order me to become a judge of these writings, I should, if it were left to my choice, adopt the longer law for a city. And according to this paradigm, if these two laws were proposed, I should choose the same respecting every law. It is, however, proper that the laws which we have now instituted should be approved by Clinias; for the city belongs to him for whose use these laws have been conceived by us.

722a

Clinias: You speak well, O Megillus.

722b

Guest: To pay great attention, therefore, either to prolixity or brevity of writing is foolish in the extreme. For I think that the best writings, and not the longest or the shortest, are to be preferred. But, in the laws which we have just now spoken of, the one is not by the double alone more conducive to virtue than the other; but that which we said respecting the twofold kind of physicians was most properly adduced. This, however, no legislator appears at any time to have considered. For, as it is possible to use two things in the establishment of laws, viz. persuasion and force, they alone employ one of these in managing the crowd who are void of erudition. For they do not mingle persuasion with force, but alone employ unmingled violence. But I, O blessed man, perceive that a third thing also should take place respecting laws, but which is not at present adopted.

722c

Clinias: Of what are you speaking?

722d

Guest: Of something arising, through a certain divinity, out of things which we have now discussed. For we began to speak about laws in the morning, and it is now noon; and, reposing in this all-beautiful retreat, we have discoursed of nothing else than laws. And we appear to me to have entered just now on the business of legislation; but all that has been said before by us was nothing more than a preface to laws. But to what purpose do we say this? It is because I wish to say, that of all discourses, and other things which participate of sound, that is the preface, and, as it were, prelude, which possesses any artificial argumentation, and is useful to the intended discussion. And, indeed, of the laws, as they are called, of the ode belonging to the harp, and of every muse, prefaces precede which are wonderfully elaborate. But of true laws, which we say are political, no one has ever at any time led forth into light a preface either spoken or written; as if there were not naturally any such thing. But our present conversation appears to me to signify that there is one. The laws, however, which we just now

called twofold, are not simply so; but the law, and the preface of the law, are a certain two.

722e

However, that which we assimilated to a tyrannic mandate, and to the mandates of servile physicians, is mere, or unmingled, law. But that which was said prior to this, and was called persuasive, was in reality persuasive, but, with respect to discourse, had the power of a preface. For, that the mandate of the legislator, which is law, might be received more benignantly, and, through this, in a more docile manner, the whole of that discourse, which was calculated to persuade, was introduced by me. Hence, according to my decision, that discourse is a preface, and cannot properly be called a discussion of law. But, after this, what is it I am desirous should be said by me? It is this: that a legislator ought to introduce prefaces prior to all laws, and prior to each particular law, so far as they differ from each other, in the same respect as the two which we have just now mentioned.

723a

Clinias: For my part, I should never exhort a man skilled in these things to establish laws in any other manner.

723a

Guest: You appear, therefore, to me, O Clinias, to speak well, so far as

723b

you say there should be a preface to all laws;

723c

and that, on commencing the business of legislation, it is requisite to prefer to every discourse an exordium naturally accommodated to the several laws. For that which is to be said after this is not a thing of small importance, nor is the difference trifling, whether such things are commemorated in a clear, or in an obscure, manner. If, therefore, we should order legislators to preface in a similar manner about great and small laws, we should not act properly. For this is not to be done either in every song or in every discourse; because, though it may naturally belong to all, yet it is not useful to all. A thing of this kind,

however, is to be allowed the rhetorician, the singer, and the legislator.

723d

Clinias: You appear to me to speak most true. But let us make no longer delay, but return to our proposed discourse, and begin, if it is agreeable to you, from those things which, not as prefacing, were asserted by you above. Again, therefore, as those that are engaged in sports say, let us revolve better things from a second beginning, as finishing a preface, and not a casual discourse, as was the case just now.

723e

Let us begin, then, acknowledging that we preface. And the particulars, indeed, respecting the honour of the Gods, and reverence of our ancestors, have been sufficiently discussed. Let us, therefore, endeavour to speak about what follows, till it shall appear to you that our preface is complete. And after this you may enter on the business of laws.

724a

Guest: About the Gods, therefore, and the attendants on the Gods, together with parents both when living and dead, we then sufficiently prefaced, as we now say. With respect to what remains, you appear to me to order that it should be led forth into light.

724a

Clinias: Entirely so.

724a

Guest: But, after these things, it is proper to discourse in

724b

common about our souls, bodies, and possessions, together with serious pursuits

724c

and remissions of labour, in such a

724d

manner that both the speaker and the hearers may, to the utmost of their power, be partakers of discipline. After what has been said, therefore, these things are to be truly spoken and heard by us.

724e

Clinias: You speak with the utmost rectitude.

End of the Fourth Book

Book V

724e

Let every one then hear who has already heard what we have said respecting the Gods, and our dear progenitors.

726a

For, after the Gods, a man's soul is the most divine of all his possessions, as being his most intimate property. But a man's possessions are in every respect twofold.

726b

And the more excellent, and the better, possess dominion, but the inferior, and worse, are subject to command.

726c

The former, therefore, are always to be honoured before the latter.

726d

Hence, I properly exhort every man, when I say that he ought to honour his own soul in the second place, after our lords, the Gods, and their attendants.

726e

But, in short, no one honours his soul properly, though he appears to do so.

727a

For honour is, in a certain respect, a divine good: but nothing evil is honourable. He, therefore, who thinks that he enlarges his soul by certain discourses or gifts, when, at the same time, he does not render

it better than it was before, appears indeed to honour it, but by no means does so.

727b

For every man, from his very childhood, thinks himself sufficient to know all things, and that he honours his soul by praising it, and by freely permitting it to do whatever it pleases. But we now say that he who acts in this manner injures, and does not honour, his soul. And yet it is necessary, as we have said, that it should be honoured in the second place after the Gods. Nor does he honour it who does not consider himself as the cause of his own errors, and of his numerous and mighty vices, but lays the blame upon others, and is always careful to exonerate himself.

727c

Such a one appears, indeed, to honour it, though this is far from being the case: for he injures it. Nor does he in any respect honour his soul who gratifies himself with pleasures contrary to reason, and the praise of the legislator: for he dishonours it, by filling it with vice and repentance. Nor yet does a man honour his soul, when he does not strenuously endure labours that are praised, fear and pain, but sinks under them: for by doing all these things he dishonours his soul.

727d

Nor, again, does he honour his soul, who thinks that to live is a thing in every respect good: for by such a conception he dishonours it. For he assents to him who thinks that every thing in Hades pertaining to the soul is bad; nor does he oppose and teach him, that he is ignorant whether, on the contrary, the things about the Gods that dwell there are not the greatest of all goods.

727e

Nor yet, when any one honours a certain corporeal beauty before virtue, is it at all different from truly and entirely dishonouring the soul. For such a one falsely asserts, that the body is more honourable than the soul. For nothing earth-born is more honourable than things Olympian. But he who entertains an opinion different from this,

respecting the soul, is ignorant that he neglects this admirable possession. Nor, again, does he adorn his soul with gifts, who desires to possess riches in an unbecoming manner, or who is not grieved when he possesses them unjustly; but such a one entirely fails of accomplishing this.

728a

For he gives up that which is honourable, and at the same time beautiful, in his soul, for the sake of a little gold; when at the same time all the gold, which is both upon and under the earth, is in no respect of equal worth with virtue. In short, he who is not willing, by all possible means, to abstain from such things as the legislator ranks among the base and vicious, and to pursue to the utmost of his power such things as he places among the good and beautiful, does not perceive that, in all these things, he renders his soul, which is a most divine possession, in the highest degree dishonourable and base.

728b

For, in short, no one considers what is the greatest punishment of evil conduct; which is the becoming similar to vicious men. But he who becomes similar to them avoids good men and good assertions, separates himself from the good, becomes agglutinated to the vicious, and earnestly desires their conversation. But, in consequence of intimately associating with these, he must necessarily do and suffer such things as they naturally do and say to each other. Such a passion, therefore, is not justice (for the just and justice are beautiful), but punishment; this being a passion attendant on injustice, of which both he who is a partaker, and he who does not partake, are miserable:—the one, because he is not cured; but the other, because, while many are saved, he perishes. But, that I may sum up the whole, our honour consists in following things of a more excellent nature, and in rendering such things as are worse, but yet are capable of being made better, as good as possible.

728c

No possession, therefore, belonging to a man is more naturally adapted to fly from evil, and to investigate and choose that which is the best of all things, than soul; nor, when it has chosen, to associate with it in common for the remainder of life. On this account, it must be honoured in the second degree. But every one will understand, that the third honour according to nature is that of the body. It is however requisite to contemplate these honours, and to consider which of them are true, and which adulterated. And this is the business of a legislator.

728d

But he appears to me to announce, what, and what kind of honours these are; as, that the body is honourable, not when it is beautiful, or strong, or swift, nor yet when it is large or healthy, (though under these circumstances it appears to be so to many,) nor when it has the contraries of these. But those things which, being in the middle, touch upon the whole of this habit, are by far more moderate and safe. For the former render the soul arrogant and confident, but the latter humble and servile. The like takes place with respect to the possession of riches and property of every kind. For the possession of each of these, in a transcendent degree, produces hatred and sedition, both among cities and individuals. But slavery is for the most part the consequence of a deficiency of these.

728e

No one, therefore, should apply himself to the acquisition of wealth for the sake of his children, that he may leave them rich in the extreme: for this will neither be better for them, nor for the city. For the property of young men, which is neither attended with adulation, nor indigent of things necessary, is the most harmonious, and the best of all. For, symphonizing and harmonizing with us in all things, it renders our life free from pain. It is proper, therefore, to leave children, not abundance of gold, but of modesty. But we think that we shall accomplish this by reproving impudent young men. This, however, is not to be accomplished by exhorting young men in the

manner adopted at present,—I mean, by telling them that they ought to be modest in every thing;

729a

but a prudent legislator will rather advise old men to behave modestly before youth, and above all things to take care that no young man, at any time, either sees or hears them doing or saying any thing base.

729b

For, where old men are void of shame, there young men must necessarily be most impudent; since the most excellent discipline, both of young and old, consists, not in admonishing, but in acting through the whole of life agreeably to the admonitions of others.

729c

But he who honours and venerates the whole of his kindred, who participate of the same blood, and the same household Gods, will deservedly find those Gods propitious to him in the procreation of children. And besides this, he will obtain the benevolence of his friends and associates through life, who considers the attention which they pay him greater and more venerable than they do, but his own kindness towards them less than they do.

729d

But he will by far behave in the best manner, both towards his country and fellow citizens, who prefers the glory of being subservient to the laws of his country, to conquest in the Olympian games, and to all warlike and peaceful contests; and who is subservient to them in the most becoming manner through the whole of life. The associations, too, with strangers should be considered as things most holy.

729e

For nearly all the crimes of strangers towards strangers are more noticed by avenging Deity than those of citizens towards each other. For, a stranger being destitute both of companions and kindred is an object of greater commiseration both to men and Gods. He, therefore, who is more capable of taking vengeance is more readily disposed to give assistance. But the hospitable dæmon and divinity of every one,

being the attendants of hospitable Jupiter, are capable of taking vengeance in the most eminent degree. Every one, therefore, who is endued with the least portion of consideration, should be very fearful through the whole of life of acting in an inhospitable manner. But, of all crimes which are committed both towards strangers and natives, those are the greatest which are committed towards suppliants. For the Divinity with whom the suppliant forms a covenant, becomes eminently the guardian of him in his affliction.

730a

So that no one who injures suppliants will go unpunished. And thus far we have nearly discussed the duties of children towards their parents, of a man towards himself, and the things belonging to himself;

730b

likewise of his duty towards his country, friends, kindred, strangers, and fellow citizens. It now follows that we show what qualities a man ought to possess so as that he may pass through life in the most becoming manner; and so that, not law, but praise and blame, instructing every one, they may by these means be rendered more benevolent and obedient to those who are about to establish laws. And these are the things which after this must be subjects of our discourse. But *truth is the leader of every good both to Gods and men:*

730c

of which he who in futurity will be blessed and happy, must participate from the beginning, that for the greatest part of time he may pass through life in truth. For such a one is faithful. But he is unfaithful who is a friend to voluntary falsehood. And he who is a friend to involuntary falsehood is deprived of intellect: neither of which is an object of emulation. For he who is unfaithful and void of discipline is unfriendly. And in progress of time, his character being known, near the end of life there is prepared for him the grievous solitude of old age. So that, whether his associates and children live or not, he nearly leads, in either case, an orphan life.

730d

Indeed, he is honourable who acts in no respect unjustly: but he who does not suffer the unjust to act unjustly, deserves more than double the honour of the former character. For the former is of equal worth with one man, but the latter, with many men; since he announces to the governors the injustice of others. But he who punishes injustice, in conjunction with the governors, to the utmost of his power, such a one will be proclaimed a great and perfect man in the city; for he will be victorious in virtue. It is proper also to give the same praise to temperance and prudence. And he who possesses other goods, and is not only able to possess them himself, but to impart them to others, is to be honoured as one who has attained the summit of excellence.

730e

But he who is not able to accomplish this, and yet is willing, is to be ranked in the second place: and the envious man, and he who will not impart any good for the sake of friendship, are to be blamed. We ought not, however, to dishonour the possession on account of the possessor, but should endeavour to obtain it with all our might.

731a

Every one too should contend with us for virtue, without envy. For every character of this kind enlarges cities, in consequence of striving himself, and not impeding others through calumny. But the envious man, while he thinks to surpass others by detraction, tends less himself to true virtue, and renders those who mutually tend to it despondent, by blaming them unjustly. Hence, depriving the city of strenuous exertions in the acquisition of virtue, he, at the same time, lessens its renown.

731b

It is proper, besides, that a man should be ardent in every thing, and particularly that he should be mild. For it is impossible to avoid the unjust actions of others, which are either difficult to be cured, or are entirely incurable by any other means than contest, defence, victory,

and by suffering no remission in punishment. But it is impossible for any soul to accomplish this without generous ardour.

731c

With respect to such unjust actions as are curable, it is requisite to know, in the first place, that no unjust man is voluntarily unjust. For no one would, at any time, willingly possess any of the greatest evils, and much less in those things respecting himself which are most honourable. But soul, as we have said, is in reality in all things the most honourable. No one, therefore, would at any time voluntarily receive the greatest evil in that which is most honourable, and live through the whole of life possessing it. But the unjust man, and he who is vicious, are in every respect miserable. It is proper, however, to pity him who is capable of being cured, and to restrain our anger against him, lest, by an effeminate effervescence of anger, we should exhibit all the bitterness of wrath. But it is requisite to employ anger against those who are incontinently and incurably bad. Hence, we have said that every good man ought to be ardent, and at the same time mild.

731d

But an evil, which is the greatest of all evils, is implanted in the souls of many men, which (every one pardoning himself) they do not devise any means of avoiding. And this is what is usually said, that every man is naturally a friend to himself, and that it is proper a thing of this kind ought to be. But, *in reality, a vehement love of self is to every man the cause of all his errors.*

731e

For he who loves is blind with respect to the object of his love. So that he who thinks he ought always to be honoured in preference to truth, judges of things just, good, and beautiful, in a depraved manner. For it is proper that he who is destined to be a great man should neither love himself, nor the things pertaining to himself, but that he should love just actions, whether they are accomplished by himself or by another.

In consequence of this error, every man's ignorance appears to himself to be wisdom.

732a

Hence, in short, though we do not know any thing, we are of opinion that we know all things. But, not permitting others to do that of which we ourselves are ignorant, we are compelled to err from their conduct. On this account every man ought to avoid the vehement love of himself, and to follow one better than himself, without paying any attention to shame.

732b

There are also certain lesser things, which are often said, and which, as they are not less useful than what has been already asserted, it is proper, recollecting ourselves, to mention. For, as if something was always flowing away from us, it is necessary that, on the contrary, there should be a perpetual influx of something. But recollection is an influx of prudence which had deserted us. It is proper, therefore, to restrain unbecoming laughter, and that every man should announce to every man the propriety of concealing all joy and sorrow, and of keeping the body in a becoming habit, whether the dæmon of any one establishes him in felicity, *or whether his fortune is such that he is obliged, with dæmons opposing him, to engage in actions of an elevated and arduous nature.* But it is proper always to hope for those things which divinity imparts to the good; and when we are oppressed with heavy labours, we should hope that Divinity will diminish their weight, and change the present condition of our circumstances into one more favourable; and with respect to good things, the contraries of these, that they will always be present with us, with good fortune.

732c

With these hopes every one ought to live, and with the recollection of all these things;

732d

not with a parsimonious recollection, but always, both seriously and in sport, perspicuously reminding each other and ourselves of these

particulars. And now we have nearly said all that is proper respecting those divine duties which every one ought to perform, but we have not yet spoken concerning human duties. It is, however, necessary so to do: for we speak to men, and not to Gods. But pleasures, pains, and desires, are naturally in the highest degree human, from which it is necessary that the whole mortal animal should, with the greatest earnestness, be suspended.

732e

And it is requisite to praise the most becoming life, not only because in its form it excels in glory, but because, if any one is willing to taste of it, and not when a youth to fly from it, he will also excel in that which we all are in search of, I mean the possession of more joy than sorrow through the whole of life. That this will clearly be the case, if any one tastes of it in a proper manner, will readily and vehemently be apparent; but how this may be accomplished, and whether it is inherent in us naturally, or contrary to nature, it is requisite now to consider.

733a

We ought, however, to consider one life compared with another, the more pleasant and the more calamitous, in this manner. We wish that pleasure may be present with us, but we neither choose nor wish for pain. And we never wish for a middle condition instead of pleasure, but we desire it in preference to pain. We also wish for less pain with more pleasure, but we do not desire less pleasure with greater pain.

733b

But we can clearly show that we are unwilling to possess each of these in an equal manner. All these both differ and at the same time do not differ in multitude and magnitude, in intensity, equality, and such things as are contrary to all these, with respect to the choice of each.

733c

And as these particulars are thus circumstanced, we wish for that life in which many of both these greatly and vehemently subsist, but in which pleasures transcend; but we do not desire that life in which the

contraries to these are inherent. Nor, again, do we wish for that life in which a few of these, of a trifling and solitary nature, subsist, and in which afflictive circumstances transcend;

733d

but we desire that life in which the contraries to these are found. However, as we have said before, we ought to consider that life as subsisting in an equilibrium, in which these possess equal power. For we desire the life which surpasses in the things with which we are pleased; and we are unwilling to possess that which exceeds in the contraries to these. But it is necessary to consider all our lives as naturally bound in these; and besides this, what the things are which we naturally desire. If, therefore, we should say that we wish for any thing besides these, we must say that it is through an ignorance and unskilfulness in lives.

733e

What then, and of what kind are those lives, in preferring which it is necessary that he who perceives what is the object of desire, and voluntary, and what are the contraries to these, should prescribe a law to himself, that thus having chosen that which is friendly, pleasant, the best, and the most beautiful, he may lead the most blessed life possible to man? We call then one life temperate, another prudent, another brave; and we rank in the fourth place a healthy life. We likewise establish four other lives contrary to these, viz. the imprudent, the timid, the intemperate, and the diseased. He, therefore, who knows what a temperate life is, will assert that it is mild in all things, and that it imparts quiet pains, quiet pleasures, placid desires, and loves not insane; but that an intemperate life is impetuous in all things, so that it imparts vehement pains, vehement pleasures, strenuous and furious desires, and the most insane loves.

734a

But in a temperate life the pleasures surpass the pains, and in an intemperate life the pleasures are surpassed by the pains, in magnitude, multitude, and density.

734b

Hence, the one of these lives is necessarily more pleasant to us, according to nature, but the other is more painful. And nature does not permit him, who wishes to live pleasantly, to live voluntarily in an intemperate manner. But it is evident, if what we have now asserted is right, that every intemperate man is necessarily unwillingly so. For the vulgar every where live indigent of temperance, either through the privation of discipline, or through incontinence, or through both.

734c

The same things are to be considered respecting a diseased and healthy life: as, that they possess pleasures and pains, but that the pleasures surpass the pains in a healthy life, but the pains the pleasures in diseases. Our will, however, in the choice of lives, does not consent that pain may transcend pleasure; but we judge the life in which it is surpassed to be more pleasant. And we say that the temperate man possesses in every respect things fewer, less, and more attenuated than the intemperate, the prudent than the imprudent, the brave than the timid;

734d

and that the one surpasses in pleasures, but the other in pains; so that the brave man surpasses the timid in pleasures, and the prudent the imprudent. And, in short, the life which participates of virtue, either pertaining to the body or the soul, is more pleasant than the life which participates of depravity; and besides this, it transcends other lives in beauty and rectitude, in virtue and glory; so that he who possesses it lives more happily than he who possesses the contrary life, in every respect, and totally. Here then let the preface to laws end.

734e

But, after the preface, it is necessary that law should follow; or rather, according to truth, the laws of a polity are to be written. As, therefore, things which are woven are not all woven from the same threads, but there is a difference in the quality of the threads, for some are more firm and strong, but others softer and of a more yielding nature;

735a

in like manner it is necessary to judge of those that have great dominion in cities, and those that act only in every thing from trifling discipline. There are, however, two forms of a polity: the one, the establishment of governors; the other, that which gives laws to the governors themselves. But prior to all these things it is necessary to consider as follows:

735b

When a shepherd and herdsman, one who takes care of horses, and others of this kind, engage in their respective offices, they never attempt to take any care of them till they have first administered a purification adapted to each of them. And, besides this, choosing out the healthy and the sick, the noble and the ignoble, they send the former to other herds, but take care of the latter; considering that otherwise their labour would be vain about those bodies and souls which a depraved nature and aliment have corrupted;

735c

since, without separating in each of these herds the healthy and diseased manners and bodies from each other, they would perish by contagion. The attention, however, which is paid to other animals is indeed less, and is alone worthy to be mentioned for the sake of an example. But the legislator ought to pay the greatest attention to men, and should investigate and assert that which is accommodated to every one, both respecting purification and all other actions. For that which concerns the purification of a city should subsist as follows: As there are many purifications, some of them are easy, but others difficult;

735d

and he who is both a tyrant and a legislator may be able to use such purifications as are difficult, and such as are the best. But the legislator who establishes a new polity and laws without the assistance of a tyrant, may rejoice, if he is able to purify with the mildest of purifications. The best purification is however painful; just

as those medicines which unite justice with punishment, produce at length in the offending party either exile or death. For it is customary to free the city from those men who have perpetrated the greatest crimes, when they are found to be incurable, and have in the greatest degree injured the city;

735e

but with us the following is a milder purification. For those that through want of food readily offer themselves to certain leaders, in order to assault those that are not in want, these, as being naturally the disease of a city, should be benignantly sent away²⁶, under the honourable appellation of a colony. Every legislator, therefore, should do this in the beginning of his legislation. But more difficult things than these happen to us at present.

736a

For it is not necessary to devise at present either a colony or any select purification: but as if there was a conflux of water, partly from fountains and partly from torrents, into one lake, it is necessary to observe how the confluent water will be most pure; partly by drawing, partly by deducing it into another channel, and partly by diverting its course.

736b

But labour and danger, as it appears, are to be found in every political establishment. However, since we are now engaged in discourse, and not in action, our selection is accomplished, and purification takes place according to our desire. For, having by every kind of persuasion, and for a sufficient length of time, examined those evil men who endeavour to enter our city in order to govern it, we shall forbid their entrance. But we shall admit the good, rendering them benevolent and propitious to the utmost of our power.

736c

The felicity, however, which has happened to us ought not to be concealed. For, as we say that the colony of the Heraclidæ was happy, because it escaped the dire and dangerous strife respecting the

division of land and the discharge of debts, about which a city of the antients being compelled to give laws, it did not permit any thing to be immoveable, nor yet after a manner was it possible for any thing to be moved;

736d

in like manner, the same thing appears nearly to have happened to us. But, in short, prayer alone remains, and a trifling mutation cautiously and slowly made in a great length of time; so that, in these mutations, the citizens, together with many debtors, will possess abundance of land, with which they will give assistance to many, humanely imparting their land to the indigent, and contenting themselves with moderate possessions. They will likewise consider poverty as consisting, not in a diminution of property, but in an insatiable desire of acquiring more. For this is the greatest beginning of safety to a city;

736e

and upon this, as a stable foundation, every politic ornament, which is accommodated to an establishment of this kind, may be raised. But when this mutation is debile, no political action will afterwards be easily accomplished by the city. This, indeed, as we have said, we should avoid;

737a

but, at the same time, it may more properly be said, that, if we do not avoid it, we should show by what means this flight may be accomplished. We say then, that it is to be accomplished by cultivating justice, and banishing the desire of gain: but, besides this, there is no other, either broad or narrow, passage for flight. Let this then be established by us as a prop of the city. For it is necessary that the possessions which the citizens prepare for themselves should be blameless; or, that those should desist from advancing any further in the acquisition of property, who have an antient enmity towards each other, and who participate but a small degree of intellect. But those to whom Divinity imparts, as it does to us at present, the establishment of a new city, in which the inhabitants have no enmity towards each

other,—if through the distribution of land and habitations hatred should arise among them,—in this case it will not be human ignorance, but ignorance accompanied with every vice.

737b

What then will be the mode of proper distribution?

737c

In the first place, the quantity of the number ought to be determined. In the next place, it should be agreed into how many and what kind of parts the distribution to the citizens should be made. In the third place, the land and habitations should be distributed equally, in the most eminent degree, But the quantity of the multitude cannot otherwise be properly assigned than by paying attention to the land and cities of the neighbouring inhabitants. And the land, indeed, should be as much as is sufficient to afford nutriment for so many moderate men;

737d

but of more than this there is no occasion. But the number of these moderate persons should be sufficient to defend themselves against the incursions of their unjust neighbours, and likewise to give assistance to their neighbours when injured. Having then considered these things, we may be able to define both actually and verbally the land and the neighbouring inhabitants. But now, for the sake of a scheme and description, that the thing itself may be accomplished, our discourse proceeds to legislation.

737e

The number of the husbandmen, and those that defend the distribution of the land, should be five thousand and forty, this being a number adapted for the purpose. In like manner the land and the habitation should be distributed into the same parts, so that the man and his portion of land may accord in distribution. And in the first place, indeed, the whole number should be divided into two parts, and afterwards into three. It is likewise naturally capable of a division into four, five, and so in succession as far as to ten. Thus much, indeed,

ought to be understood by every legislator respecting numbers; I mean, that he should understand what, and what kind of number will be most useful to all cities. But we say that that number is best adapted for this purpose, which possesses in itself many distributions, and these orderly disposed.

738a

For every number is not allotted sections into all things. But the number five thousand and forty, both for the purposes of war and peace, for all conventions and communions, for tributes and distributions, cannot be cut into more than one of sixty parts; but you may continue the division of it from one as far as to ten.

738b

These things, however, ought to be more firmly considered at leisure, by those to whom they are committed by the law; for they cannot subsist otherwise than in this manner. But it is necessary that they should be mentioned to the founder of a city, for the sake of what follows. For, whether any one establishes a new city from the beginning, or whether he restores an antient one that has perished,—if he is endued with intellect, he will not attempt to make any alterations in any thing which ought to be performed respecting the Gods, their temples, and their sacred concerns, or the names of certain Gods or dæmons, which ought to be given to temples; whether these ceremonies are derived from Delphi, or Dodona, or Ammon, or from certain antient discourses, by which some persons have been persuaded; or whether they have been the result of divine visions and inspiration.

738c

For, in consequence of being persuaded of their truth, the antients established sacrifices mixed with mystic ceremonies; whether these originated from the natives themselves, or whether they are of Tyrrhene, or Cyprian, or of any other origin. But, from these antient discourses and rumours, they consecrated statues, altars and temples, and placed each in a sacred grove. In all these the legislator should not

make the smallest innovation; but should attribute to each of the parts, a God, a dæmon, or a certain hero. And in the distribution of the land, he should in the first place select a portion for illustrious groves and other sacred purposes, so that the inhabitants of each of the parts, assembling at stated times, may with facility prepare themselves for their respective employments, so as during the sacrifices to associate benevolently with and recognize each other.

738d

For nothing is more advantageous to a city than for the citizens to be known to each other; since, where each has no light in the manners of each, but darkness²⁷, there neither honours nor governors are properly appointed, nor can any one obtain, in a becoming manner, the justice which is due to him. But every man, one towards one, ought earnestly to endeavour in all cities, that he may never appear insincere to any one, but may be always artless and true, and that, being such, no other person may deceive him.

739a

But the throw which follows this, in the establishment of laws, like that of chess-men, according to the proverb, from a temple, since it is unusual, may perhaps cause him who hears it at first to wonder. But to him who has reasoned upon, and tried it, it will appear that the city will thus, in the second place, be inhabited in the best manner. Some one, however, perhaps, will not approve of this city, because it does not employ a tyrannic legislator.

739b

It will, indeed, be most proper to speak of the best polity, and likewise of a second and third, and then leave it to every one's option to choose that which pleases him the most. We therefore shall act in this manner; and, after we have spoken of a polity which is first, of one which is second, and of another which is the third in virtue, we shall leave it to the option of Clinias, and any other who may be present at the selection of these, to attribute to his country whichever of them he pleases.

739c

The first city and polity, therefore, and the best laws, subsist there where through the whole city that ancient proverb takes place in the most eminent degree, that all things are common among friends. This then must be asserted, whether it now is or ever was adopted, that women, children, and all possessions should be common; and that private property should by all possible means be exterminated from life. Things too which are private by nature should every where, as much as possible, become common; such as the eyes, the ears, and the hands.

739d

For seeing, hearing, and acting, should be employed for common advantage. In like manner, all men should praise and blame the same things, rejoice in and be afflicted with the same circumstances, and as much as possible adopt such laws as will unite the city in the most eminent degree. No one can establish any bound of virtue more transcendently proper than this. The inhabitants of such a city, whether they are Gods²⁸ or sons of the Gods, by living together in this manner, will lead a joyful life.

739e

On this account it is not proper to consider any other paradigm of a polity, but, inspecting this, we ought to explore such a one to the utmost of our power. But this, which is the subject of our present discussion, if it should subsist, would most nearly approach to immortality. And if it does not rank in the first, it certainly will in the second place. However, if Divinity is willing, we will after this discuss the polity, which is the third in order. Let us now then consider the nature of this polity, and how it may be established.

740a

In the first place, land and houses should be distributed to them, and they should not be suffered to cultivate the ground in common; since a thing of this kind is greater than their generation, nutrition, and education will admit. Land, however, and houses, should be

distributed to them with this intention, that each may consider the portion allotted him, as common to the whole city. But, this region being their country, they ought to reverence it in a greater degree than children their mother; for, being a goddess, she is the sovereign mistress of mortals. The same should be our conceptions of the indigenous Gods and dæmons. But that these things may subsist in this manner, through the whole time, the following particulars are to be considered:

740b

As many Vestal hearths as are distributed to us at present, so many ought always to be distributed, and neither more nor fewer in number. But a thing of this kind will be firmly established in every city, if every one always leaves that child to whom he is most attached, the only heir of his allotted portion, his successor, and cultivator of the Gods, of his race, his country, of the living, and the dead. But those who have more children than one should for this purpose portion the females according to the established law, but commit the males to the care of those citizens that have no children of their own, and this in a very benevolent manner. However, if benevolence is wanting, or each of the citizens has a numerous progeny of male or female children, or on the contrary but a few children, owing to the barrenness of the women, then that greatest and most honourable governor whom we have established, must consider what is proper to be done in either of these cases, and, whether there is an abundance or a defect of children, must devise some method by which five thousand and forty habitations alone may always remain.

740b

But there are many methods by which this may be accomplished.

740c

For procreation may be restrained, which is the cause of this abundance; and, on the contrary, by diligent attention, an increase of offspring may be obtained, when it is requisite. For what we are

speaking of may be accomplished by honour and disgrace, and by the admonitory discourses of the old to the young.

740d

Lastly, every defect arises from the number of five thousand and forty houses not being preserved. But, if our city should have a superabundance of citizens, through the familiarity of those that dwell together, and by this means it should be oppressed with poverty, that antient device must be adopted which we have often mentioned, that a friendly colony should be sent from friends; for it appears that this will be advantageous to the city.

740e

But if, on the contrary, at any time an inundation of diseases, or the ravages of war, should reduce the citizens to a less than the established number, such citizens as have been educated in an adulterated manner are not to be voluntarily admitted to supply the place of those that are wanting. But it is said that even Divinity is not able to force necessity.

741a

We should say, therefore, that our present discourse speaks in an exhortatory manner as follows: O best of all men, who honour according to nature similitude and equality, sameness, and general consent, never relax in honouring these, both according to the number, and all the power of things beautiful and good. And, in the first place, preserve through the whole of life the above-mentioned number. In the next place, do not despise the moderate elevation and magnitude of the possessions which were first distributed to you, by buying and selling with each other.

741b

For, if you act in this manner, neither Divinity, the distributor of your allotted portion, nor the legislator will be your associate in war. For now the law announces in the first place, that he who is willing to receive the allotted portion shall receive it, but that he who is unwilling shall be deprived of it: and this, because in the first place

the land is sacred to all the Gods; and in the next place, because the priests and priestesses pray during the first, second, and third sacrifices, that both the buyers and sellers of allotted houses and lands may be properly disposed in such transactions.

741c

But they should write on cypress monuments in temples, for the benefit of posterity. And besides this, for the purpose of preserving these, they should commit them to the care of that magistrate who appears to have the most acute vision, that those may be detected who act fraudulently, and that he who is disobedient both to law and divinity may be punished. But, according to the proverb, no vicious man will ever understand how much all cities will be benefited by acting in the manner we have prescribed, but he only who is skilful and of equitable manners. In this city there is no ardent pursuit of gain; nor is it lawful for any one to apply himself to the acquisition of illiberal wealth, because the disgraceful mechanic art, as it is called, which is employed for this purpose, subverts liberal manners.

741d

Riches, therefore, are not to be accumulated by any such means.

741e

Besides this, another law follows all these, which forbids any private person the possession of either silver or gold. But because there is daily occasion for money for the sake of commutation, which is nearly necessary to artificers, and to all those that have similar wants, in order to pay the wages of mercenaries, servants, and husbandmen—for the sake of these things we permit the use of money in the city, but order it to be such as may be honoured by our citizens, but despised by other men. For the sake of war, indeed, and travelling to other countries, as when ambassadors are sent to foreign nations, or for some other necessary purpose, the city should possess a quantity of the common coin of Greece. But when any necessity obliges a private person to leave the city, having begged permission of the magistrates, he shall be suffered to depart;

742a

but the foreign coin, which he possesses on his return, he shall change for that of his own country.

742b

And if any one is detected converting the money of another city to his own private use, such money shall become public property. He who has been an eye witness of such conduct, but has not divulged it, shall be disgraced, and pay the same fine as he who endeavoured to enrich himself with foreign coin. Besides, no one shall be permitted to give or receive a marriage portion, nor to deposit money with a man who cannot be trusted, nor to put money out to use. And it shall be lawful for him with whom money is deposited at interest, to pay neither interest nor principal.

742c

That a conduct of this kind is best for a city, will be rightly judged by him who always refers these particulars to the intention of the legislator. But we say that the intention of a politician who is endued with intellect, is not that which the multitude say is the intention of a good legislator,—I mean, that the city may be greater and richer than others, and that it may for the most part have dominion over the land and sea.

742d

To which they add, that he who establishes laws properly, ought to wish that the city may be the best, and the most happy. But of these, some are capable of taking place, but others not. The legislator, therefore, will wish that the possible, but he will not wish that the impossible, may take place. For in the latter case his wish would be vain; neither, therefore, would he attempt it. For it is nearly necessary that they should be happy, and at the same time worthy. This then will be the object of his wish. But it is impossible that they should be rich in the extreme, and at the same time good;

742e

I mean rich in the vulgar acceptance of the word. For the vulgar call those rich, who being few in number possess a great quantity of money, which even a bad man may possess. If this be the case, I should never grant them, that a rich man, who is not at the same time worthy, can be truly happy. But I assert that it is impossible a man can be at the same time eminently good, and eminently rich.

743a

Some one, however, may perhaps say, Why not? Because we say, The possession which is obtained both from just and unjust conduct is more than double of that which is alone justly obtained; and that the expenses which are neither becoming nor base are doubly less than those which are becoming, and which are performed in a becoming manner. He, therefore, who acts in a contrary manner will never be richer than him who acquires more than double, and spends less than half.

743b

But of these, the one is worthy, but the other not worthy, because he is parsimonious. Sometimes, indeed, this latter character is perfectly vicious; but, as we have just now said, is never good. For he who receives both justly and unjustly, and spends neither justly nor unjustly, is indeed rich, because he is parsimonious: but he who is perfectly vicious, as being for the most part prodigal, is extremely poor. And he who spends in a becoming manner, and alone acquires justly, will never at any time become remarkably rich, nor yet excessively poor; so that our assertion is right, that very rich are not good men. But, if they are not good, they are not happy.

743c

With us, however, the establishment of laws looks to this, that the citizens may become most happy, and in the highest degree friends to each other. But the citizens will never be friends where there is much judicial controversy and unjust transactions with each other, but where the least of these is found. We have said too, that there ought to

be neither gold nor silver in the city, nor yet an anxious pursuit of gain through mechanical arts and usury, or base

743d

cattle, but that wealth should be acquired from such things as agriculture imparts and affords; yet in such a manner, as that it may not compel the citizens to neglect those things for the sake of which riches are desired: but these are the soul and body, which without gymnastic and the other disciplines will never be of any worth. On this account, we have said more than once, that an attention to money ought to be honoured in the last place. For, since all the concerns in which every man is seriously engaged are three, an attention to riches properly ranks in the last and third place: but the concerns of the body possess the middle;

743e

and those of the soul the first place. And, indeed, the polity which we are now considering will be governed by proper laws, if it distributes honours in this manner. But if any one of the laws which are established in it shall appear to prefer the health of the body to temperance, or riches to both health and temperance, it will appear to be improperly established.

744a

A legislator, therefore, ought often to signify his intention to the people in this manner: I am desirous that this particular thing should take place, which if it does, my intentions will succeed; but if it does not, they will be rendered frustrate. And thus, perhaps, he might both liberate himself and others from the burthen of legislation;

744b

but never by any other means. He, therefore, who receives an allotted portion should possess it on the conditions we have mentioned. But this will take place in a becoming manner, when each person who becomes an inhabitant of the colony possesses every thing else equally. Since, however, this is not possible, but one coming to settle in it will possess more money, and another less, it is requisite, for the

sake of many advantages, and of equality in the city, that property should be unequally possessed: that, in consequence of each receiving magistracies, tributes, and distributions, according to the honour annexed to each, and not according to his own virtue only, and that of

744c

his ancestors, nor yet according to the strength or beauty of his body, but receiving these equalized as much as possible, viz. unequally, but commensurably distributed, they may not disagree with each other. For the sake of these things, it is requisite that there should be four divisions in magnitude of possessions; and that these should be called first, second, third, and fourth divisions, or should receive some other appellations: so that, both when they remain in possession of the same property, and when they become most rich from being poor, or poor from being rich, each may pass to the possession of property accommodated to each. For this purpose, I shall lay down the following scheme of law:

744d

We say, that in a city which in future is to be void of that greatest disease, which may be more properly called discord, or sedition, none of the citizens should either be extremely poor, or extremely rich: for both these produce both. It is therefore now requisite that a legislator should say what is the bound of each. Let, then, the bound of poverty be the honour of the allotted distribution, which ought to be stable, and which no magistrate, nor any one who loves honour for the sake of virtue, will ever suffer to become less to any one.

744e

The legislator, establishing the measure of these distributions, will permit the double, triple, and quadruple of this to be possessed. But, if any one possesses more than these, whether they are found, or bestowed, or procured by mechanical arts, or possessed by any other such like fortune,—if he imparts what remains to the city, and to the Gods, the guardians of the city, he will act in a blameless and laudable manner.

745a

But he who accuses one that is not obedient to this law shall obtain the half of his possessions; and, at the same time, the half of the accuser's property shall be dedicated to the Gods. An account too shall be openly given, in writing, of all such property as surpasses the allotted portion, to the magistrates who are appointed guardians by law, that all the judgments respecting riches may be easy and extremely clear.

745b

In the next place, the city ought to be built as much as possible in the middle of the country, and in a place possessing other things accommodated to the city, which it is not difficult to understand and relate. After this, it should be divided into twelve²⁹ parts, the temple of Vesta, Jupiter, and Minerva, being first of all raised under the appellation of the Acropolis, or tower of the city. This temple should be circularly enclosed; and from this enclosure, the city and all the region should be divided into twelve parts. But the twelve parts ought to be equalized in such a manner, that the portion of the prolific land may be small, but that of the unprolific great:

745c

and the allotted portions should be five thousand and forty. Again, each of these should receive a twofold division. The two divisions, likewise, should be associated allotments, and each should participate of the near and remote distributions, viz. the division near the city should communicate with that which is situated in its extremity; that which is at the second distance from the city, with that which is the second from its extremity; and after this manner with all the rest. It should likewise be so contrived in the twofold divisions of which we are now speaking, respecting the fecundity and barrenness of the region, that there should be an equality of distribution in multitude and paucity.

745d

It is likewise necessary that the streets should be divided into twelve parts, and, indeed, every other possession, equality being preserved in the greatest degree, and a description made of every particular. After this, the twelve allotments should be attributed to the twelve Gods; each allotted portion being denominated after, and consecrated to, its presiding deity, and called a tribe. The twelve sections too of the city ought to be divided in the same manner as the rest of the region, viz. so that each section shall have two habitations, one near the middle, and the other near the extremity. And thus much respecting the habitations.

745e

This, however, we ought by all means to consider, that all the particulars which we have just now spoken of will never so opportunely concur as they have happened to do in our discourse; and that the inhabitants will not be indignant at living together in this manner, but will be satisfied with their allotted and moderate portion of wealth through the whole of life. The procreation too of children will take place with each in the manner we have mentioned:

746a

and they will be deprived of silver and gold, and other things, which it is evident, from what has been said, the legislator will forbid. Besides this, the habitations will be circularly enclosed in the middle of the city and the region, as we have mentioned above. All which particulars have nearly been asserted by us as dreams: and we have fashioned, as it were, from wax a certain city and citizens. But these particulars in a certain respect have not been badly asserted. It is now proper, therefore, to attend to the legislator, addressing us in the following manner:

746b

—You must not consider me, O friends, as ignorant that what has been now said has been after a manner truly asserted. But I think it will be most just in each of the following particulars, that he who exhibits a paradigm, according to whose similitude that which he wishes to

accomplish should be formed, ought not to omit any thing which is most beautiful and true. And he to whom it is impossible something of these should happen, should desist from attempting to accomplish this;

746c

but he should devise some means by which he may produce that which is most proximate and allied to these; and should permit the legislator to bring his wish to an end. This being done, he should consider, in common with him, which of the abovementioned particulars contributes, and which is adverse, to legislation. For even an artificer of the most trifling thing ought every where to produce a work in consent with itself, if he wishes to obtain praise for its execution.

746d

But now, after the distribution of the twelve parts, we should consider, that since these twelve parts contain in themselves many distributions, and things consequent to, and produced from, these, as far as to five thousand and forty; whence they possess tribes, and towns, and streets, warlike orders and discipline, money, dry and wet measures, and weights;—all these the law should establish commensurate and according with each other.

746e

Besides this, we ought not to fear lest we should be thought to bestow too much attention on things of a trifling nature, when we order that no one shall possess furniture of any kind which is destitute of the proper measure, and consider the divisions and varieties of the numbers as useful to all things; to such particulars as are various in themselves, and such as receive a variety in length and depth, or in sounds and motions, whether the motions are upwards and downwards, in a right line, or circular.

747a

For the legislator, looking to all these, should enjoin all the citizens to preserve this order to the utmost of their power. For no one discipline

belonging to youth possesses such a mighty power, in œconomies, polities, and all arts, as the study of numbers. And that which is greatest of all is, that this discipline excites even the sleepy, and those that are naturally rustic, and renders them docile, of a good memory, and sagacious; benefiting them, by a divine art, beyond what their own nature is able to accomplish.

747b

All which things, when they are possessed sufficiently and usefully, illiberality and avarice being extirpated from the mind of their possessor, become beautiful and properly adapted studies: but, when these are not extirpated, instead of wisdom they secretly produce that which is called craft;

747c

as we see at present is the case with the Egyptians, Phœnicians, and many other nations, through the illiberality of their pursuits and possessions; whether things of this kind were occasioned by a depraved legislator, or by adverse fortune, or by any other similar nature.

747d

For, O Megillus and Clinias, this ought not to be concealed from us, that there is a great difference in places³⁰, with respect to producing men of a more or less excellent character;

747e

and that laws should be established accommodated to such places. For some places, through all-various winds and storms, are inhabited with difficulty; others through water; others through nutriment from the earth, which not only imparts to bodies food of a more and less excellent nature, but is no less able to accomplish this, with respect to souls. But those places in a country possess the greatest difference, in which there are a certain divine inspiration, and allotments of dæmons who are either always propitious to the inhabitants, or the contrary. Which things the legislator, who is endued with intellect, considering as much as it is possible for man to speculate things of

this kind, will thus endeavour to establish laws. And this must be done by you, O Clinias! for, before you cause the city to be inhabited, you must direct your attention to these particulars.

747e

Clinias: But, O Athenian guest! you speak in an all-beautiful manner: and, therefore, this must be done by me.

End of the Fifth Book

Book VI

751a

After all that has now been said, the next thing that remains for you to do will be the establishment of magistrates in the city.

751a

Clinias: It will so.

751a

Guest: These two species are found to subsist respecting the ornament of a polity. In the first place, the establishment of magistrates, how many there ought to be, and in what manner they ought to be appointed. In the next place with respect to the laws, which are to be given to the several magistrates, what, how many, and what kind will be accommodated to each. But, previous to choosing the magistrates, let us mention some particulars pertaining to the election of them.

751b

Clinias: What particulars are these?

751b

Guest: These. It must be perfectly evident that, since legislation is a great work, he who does not appoint proper magistrates in a well regulated city, though the laws are well established, will find no advantage derived from them, but abundance of ridicule; and such a one will be the mean of oppressing the city with the most weighty injuries and calamities.

751c

Clinias: Undoubtedly.

751c

Guest: We will therefore consider this, as now happening to you, O friend, respecting this polity and city. For you see it is necessary, that those who undertake in a proper manner the office of magistrates should from their youth have been sufficiently tried, as likewise their race, till the time of election. In the next place, that those who are to choose the magistrates should be educated in legitimate manners, so that they may be able to judge in a proper manner, who should be admitted, and who rejected. But with respect to those that have recently met together, as they are unacquainted with each other, and, besides this, are void of erudition, how can they ever be able to choose magistrates in a blameless manner?

751d

Clinias: They nearly never will be able.

751e

Guest: But the contest, as they say, does not easily admit of excuses. This then must now be accomplished both by you and me; since you have willingly undertaken the office of establishing a city for the Cretans, and are, as you say, the tenth in this employment; and I have promised to assist you in the present fabulous narration. I shall not therefore willingly leave this discourse without a head. For, wandering every where in this condition, it would appear deformed.

752a

Clinias: You have spoken most excellently, O guest.

752a

Guest: Let us, therefore, accomplish this to the utmost of our power.

752a

Clinias: Let us, indeed, do by all means as we have said.

752a

Guest: Be it so, if Divinity is willing, that in this respect we may vanquish old age.

752b

Clinias: But it is reasonable to suppose that he is willing.

752b

Guest: It is reasonable. Following him, therefore, let us attend to this.

752b

Clinias: To what?

752b

Guest: In how bold, and at the same time dangerous, a manner our city will at present be established.

752b

Clinias: To what circumstance adverting do you thus speak?

752b

Guest: To the easy

752c

and intrepid manner in which we have given laws to unskilful men, and have ordered them to receive such laws. Thus much, indeed, O Clinias, is nearly perfectly evident, even to one who is not very wise, that no one will easily admit these laws at first. But if we wait so long till boys tasting of, and being sufficiently disciplined in, the laws, and accustomed to them, are able to give their votes in conjunction with the whole city, and this by a certain manner and device is properly accomplished, I then should think that a city so disciplined would remain after the present time abundantly secure.

752c

Clinias: It is reasonable to

752d

suppose this will be the case.

752e

Guest: Let us consider, therefore, whether we can afford assistance sufficient for this purpose. For I say, O Clinias, that the Cnossians, far more than the other Cretans, ought not only to make an expiation about the region which you have now caused to be inhabited, but should be strenuously careful that the first magistrates may be

appointed as much as possible in the most secure and best manner. In appointing others, indeed, there will be less labour; but it will be most necessary that the guardians of the laws should be chosen with the utmost attention.

752e

Clinias: What method then shall we adopt in order to accomplish this?

753a

Guest: The following. I say, O sons of Crete, that the Cnossians, since they are the most antient of many cities, ought to choose in common from themselves, and those that settle with them in the same habitation, thirty-seven men in all; nineteen indeed of these from the inhabitants, but the rest from Cnossus itself. The Cnossians should give these to your city, and should cause you to be a citizen of this colony, and one of the eighteen men; and this, either by employing persuasion or moderate force.

753a

Clinias: But what? Will not you, O guest, and Megillus, partake with us of this polity?

753a

Guest: The Athenians, O

753b

Clinias, are men of lofty thought, and so also are the Spartans, and each dwell at a great distance. But, both by you and the other inhabitants, every thing will be elegantly possessed, conformably to what you have just now said. However, in the course of time, and the polity remaining, the magistrates should be chosen in the following manner: All such as are capable of bearing arms, whether horsemen or footmen, and when age has given them sufficient strength to engage in war, all these should give their vote; and the election should be made in that temple which is considered by the city as the most honourable. But every one, from whatever part of the country he may come, should place the name which he derived from his father, and

that of his tribe and nation, written on a small table on the altar of the God.

753c

He should likewise, in a similar manner, write on it his own name. But it shall be lawful for every one to take away that table which does not appear to him to be properly written, and place it in the forum, where it shall remain for not less than thirty days. After this, the magistrates shall expose to the view of the whole city three hundred approved tables;

753d

and in a similar manner the city shall approve out of these whichever it pleases. In the second place, they shall again show to every one a hundred chosen out of these: and, in the third place, every one shall name out of the hundred men that person whom he most approves. But the thirty-seven men shall declare those to be the magistrates who are chosen by the greatest number of votes.

753e

Who, therefore, O Clinias and Megillus, will establish all these things for us in the city, respecting magistrates, and the examination of them? Do we, therefore, understand, that in cities so constituted from the first, there ought to be such persons, but that they will never be found among those that are chosen for magistrates? It is however necessary that these should not be men of a depraved character, but of the most exalted virtue. For the beginning, according to the proverb, is the half of the whole work; and all men praise him who begins a thing well. But, as it appears to me, the beginning is more than the half, and that no one has sufficiently praised it when properly accomplished.

754a

Clinias: You speak most properly.

754a

Guest: Since, therefore, we know this, we should not pass over it in silence, and leave it involved in obscurity. Indeed, at present, I have

nothing to say respecting it, except this one necessary and advantageous thing.

754a

Clinias: What is it?

754a

Guest: I say, that

754b

no one is the father or mother of this city which we are about to establish, except the city which gives it inhabitants. Nor am I ignorant that there often has been, and will be, strife between colonies and their parent countries. At present, therefore, as a child, who, though he sometimes opposes his parents, yet, through his indigence of education, loves and is beloved by them, and, always flying to his own, finds in them alone protection; in like manner, I say, the Cnossians will be readily disposed to give assistance to the new city, and the new city to the Cnossians.

754c

I repeat then what I have just now said (for there is no harm in twice saying that which is well said), that the Cnossians ought carefully to attend to all these particulars, and choose no fewer than a hundred of the oldest and best men out of the colony, and another hundred from the Cnossians themselves. I say too, that these coming to the new city should be careful that the magistrates are established according to the laws, and that they are approved of when established. When these things are accomplished, the Cnossians should return to Cnossus, but the new city should endeavour to preserve and render itself prosperous. But the thirty-seven men, whom we have chosen, should both at present and in futurity attend to the following particulars: In the first place, they should establish guardians of the laws;

754d

and, in the next place, of those writings in which every one must give an account to the magistrates of the multitude of his possessions. The greatest estate should be that of four minæ; the second, of three; and

the third of two minæ; but the fourth should consist of one mina. But if any one shall be found to possess more than he has given an account of in writing, all such overplus shall become public property; and, besides this, it shall be lawful for any one to accuse him as acting in neither a becoming nor legal manner, when he is found to despise the laws, through the love of gain. He likewise who is desirous of accusing such a one shall accuse him to the guardians of the laws, under the appellation of one addicted to base gain. And he who happens to be condemned shall not partake of the public property;

754e

but, when any distribution is made in the city, he shall possess nothing but his first allotment. It shall likewise be signified in writing, that such a one is condemned as long as he lives; and the writing shall be placed where any one who is willing may read it. The guardian of the laws shall not govern more than twenty years, and shall not hold this office if he is less than fifty years of age. But, if he is sixty years old when he enters on this employment, he shall only govern for ten years. It shall likewise be established, that he who has lived more than seventy years shall not hold an office of such great importance. These three mandates, therefore, are to be attended to, respecting the guardians of the laws. But, as the laws advance, any one may order these men what they ought to attend to, in addition to what we have already said.

755a

Let us now, therefore, speak about the election of other magistrates.

755b

For, after these, it is necessary that the commanders in chief of the army should be chosen, and such as are ministrant to these in war, as, for instance, the masters of the horse, the military tribunes, and those who orderly arrange the foot; and who may very properly be called, as they are in common, governors of tribes. The guardians of the laws, therefore, should draw out of the city the commanders of all these,

and should approve all such as, being of a proper age, either have been, or now are, engaged in war.

755c

But if it shall appear that any one of those who are not drawn out is better than some one of those that are, it shall be lawful to choose the former in preference to the latter, on condition that this preference is confirmed by an oath; and the choice, when he is named, shall be determined by the greater number of votes. Three amongst these, who are found to have the most votes, shall be chosen as the commanders of the army, and as those that are to take care of warlike concerns, just in the same manner as the guardians of the laws were chosen.

755d

These shall appoint twelve præfects of the military orders, and assign one to each tribe. It shall likewise be here lawful to prefer one who is not nominated, to one who is, in the same manner as was observed respecting the election of the commanders in chief. But this assembly, before the præfects are deliberately chosen, shall be held by the guardians of the laws in a place the most holy and best adapted for the purpose. Here the foot and the horse shall be seated separate from each other; and in the third place, after these, the rest of those who are employed in warlike concerns. And every one, indeed, shall give his vote in the choice of commanders in chief and masters of the horse.

755e

The præfects of the bands shall be chosen by those alone that carry shields, but the commanders of tribes by all the horse. The commanders in chief shall choose for themselves the light-armed soldiers, the archers, and the rest of this kind. In the next place there remains for us the establishment of the masters of the horse. These, therefore, must be appointed by those who appoint the commanders in chief; and the election must be conducted in a similar manner.

756a

But the horse shall give their vote, the foot being placed opposite to them; and those two that have the most votes shall be the commanders of all the horse. Disputes about votes shall be allowed to take place twice; but, if any one doubts about them a third time, the votes shall be determined by those whose province it is to fix the measure of voting. The council shall consist of thirty twelves; for the number three hundred and sixty will be found accommodated to the distributions. And it is capable of being distributed into four parts by ninety, so that ninety counsellors may be obtained from each of the divisions of land.

756b

And in the first place all the counsellors will necessarily be obtained from the largest possessions; and he who is unwilling to be chosen shall be fined;

756c

and after information has been given respecting him, he shall be noted. On the following day the same method shall be adopted with possessions of the second rank. And on the third day, whoever is willing shall be obtained from possessions of the third order. This mode with respect to three orders of possessions is necessary; but the fourth and smallest possession should be exempt from fine, if any one whose property is of this order is unwilling to act as a counsellor.

756d

On the fourth day all shall be obtained from the fourth and smallest order of possessions; but he who is unwilling to be chosen from third and fourth possessions shall be exempt from fine. But he who refuses from possessions of the second and first order shall be fined, so as that he who belongs to the second rank shall undergo a fine triple of the first fine, and he who belongs to the first quadruple.

756e

On the fifth day the magistrates shall exhibit to the view of all the citizens the names of the counsellors. Every man belonging to these shall act as a counsellor; or, if any one refuses to act in that capacity,

he shall be fined the first fine. But the half of those that are elected out of all the possessions, viz. one hundred and eighty, shall be chosen by lot as counsellors for a year.

757a

The election, therefore, subsisting in this manner, will be a medium between a monarchical and democratic polity, which medium a polity ought always to preserve. For slaves and despots can never become friends, nor the depraved and worthy, when they are equally honoured. For, by unequal things, such as are equal will become unequal, unless they partake of measure; because, through both these, polities are filled with seditions. That antient saying, indeed, being true, that equality produces friendship, is asserted with the greatest propriety and elegance. But, as it is not very evident what the equality is which is able to accomplish this, we are on this account vehemently disturbed.

757b

For, as there are two equalities which have the same appellation, but are in reality nearly contrary to each other in many respects, every city and every legislator may sufficiently employ one of these in the distribution of honours by lot, viz. the equality consisting in measure, weight, and number³¹; but it is not easy for every one to perceive the most true and the best equality. For it is the judgment of Jupiter, and but little of it is at all times employed by men; though as much of it as is employed either by cities or private persons produces every good. For it distributes more to the greater, and things smaller to the less³²; imparting to each that which is moderate according to the nature of each. It likewise always attributes greater honours to those who are greater in virtue, but less to such as are less in virtue and discipline; and imparts to each the becoming according to reason.

757c

For this is, doubtless, always with us the politically just itself; which we ought at present to aspire after, and, looking to this equality, O Clinias, establish our now rising city. Whoever, likewise, establishes

any other city ought to give laws with his eye directed to this, and not to a few tyrants, or to one, or to any strength of the people, but always to the just itself. And this is what has just now been said by us, viz. a distribution of the equal, according to nature, to unequal particulars.

757d

But it is, indeed, necessary, that every city should make use of these two equalities, which are similar in denomination, if it wishes to continue entirely free from sedition. For the equitable and the lenient judgment of the perfect and accurate, when it takes place contrary to upright judgment, is broken. On this account it is, perhaps, necessary to use election by lot, for the sake of avoiding the moroseness of the multitude, and to invoke on this occasion divinity and good fortune, and beseech them to direct the lot to that which is most just.

757e

In this manner, then, it is necessary to use both the equalities; but that equality which is indigent of fortune ought to be used on very few occasions. These things, O friends, must be accomplished by the city which is to be established on a sure foundation. But as a ship, while sailing on the sea, requires a perpetual guard both night and day;

758a

in like manner a city, while situated in the tempest of other cities, subject to all-various stratagems, and in danger of captivity, is continually indigent of protection. Hence, the magistrates and guardians of a city ought mutually to succeed each other from night to day, and from day to night, so as that this interchange of office may never cease. But the multitude is not able to accomplish any of these things with celerity. It is, however, necessary that the multitude of the counsellors should be permitted to employ the greatest part of their time in properly managing their own private affairs;

758b

but that a twelfth part of them, a distribution being made into twelve months, should succeed each other, one by one, in the office of guardians. These should readily attend to every one, whether coming

from the city or elsewhere, whether he wishes to give any information, or to ask respecting those particulars about which a city ought either to ask or answer other cities, or receive answers from them. And this, for the sake of those all-various innovations which are always accustomed to happen; so as to prevent them, as much as possible, from not happening;

758c

and that, when they do happen, the city may perceive them with the utmost celerity, and apply a remedy. This ought always to be accomplished by an assembly of the governors of the city, together with a dissolution of the difficulties which suddenly happen to the city and the laws. All these particulars must be under the direction of the twelfth part of the council, who are to cease from their office eleven parts of the year. But this part of the council ought always to defend the city in common with the other magistrates. And the particulars, indeed, respecting the city, when subsisting in this manner, will be orderly disposed. But what care, and what order, must there be of all the rest of the region? Will it not be necessary, since all the city, and the whole region, is distributed into twelve parts, that there should be inspectors of the roads, habitations, edifices, ports, forum, fountains, sacred groves, and temples, and other things of this kind belonging to the city?

758d

Clinias: Undoubtedly.

758d

Guest: We must say, then, that there ought to be purifiers of the temples, and priests and priestesses.

759a

But that three species of magistrates ought to be chosen for the purpose of taking care of the roads and buildings, and the ornaments belonging to things of this kind, and of preventing men from being injured by each other, or by wild beasts; and that, both within the walls and in the suburbs of the city, every thing may be conducted in a

proper manner. And those that take care of the abovementioned particulars should be called *ædiles*; but those that attend to the ornament of the forum, *præfects* of the market; and those that take care of the ornament of the temples, priests. But the priesthood which is paternal, whether sustained by men or women, is by no means to be moved. If nothing of this kind happens to none, or but to a few, which is likely to be the case with the inhabitants of a new city, then priests, priestesses, and the purifiers of temples are to be appointed.

759b

But all these things are to be instituted partly by election, and partly by lot. In every region too, and city, the common people, and those that are not common, should mingle in a friendly manner with each other, that they may be concordant in the highest degree.

759c

The particulars, therefore, pertaining to the priests are to be committed to the care of Divinity, that, as it pleases him, so the lot may be referred to a divine fortune. But he who is allotted the priesthood ought always to be examined, and proved to be in the first place a man of integrity, and legitimately begotten; in the next place, one from a pure habitation, and who is free from slaughter, and all crimes of this kind against divine natures, and whose father and mother have lived with similar purity. The laws too relative to divine concerns ought to be procured from Delphi; and, interpreters of them being appointed, these should be used. But the priesthood should not be of longer continuance than a year; nor should he be less than sixty years of age who is to attend to divine concerns for us, sufficiently, according to sacred laws. The same things are to be established respecting priestesses.

759d

The four tribes should appoint thrice four interpreters; three being taken from each tribe: and three being approved, that are chosen by the greatest number of votes, the other nine must be sent to Delphi, that one may be chosen out of each triad. But the examination and

approbation of these, and their age, must be such as that of the priests which was mentioned above. These should be established as interpreters for life; and, on the decease of any one of them, the four tribes to which he belonged must choose another in his place.

759e

There ought likewise to be, in each of the temples, dispensators of the sacred money, who should possess absolute authority over the sacred groves, and their fruits, and over things let out to hire: and three should be chosen for the greatest temples out of the three largest possessions; but two for the smaller temples, and one for such as are the most elegant. The choice, too, and examination of these should be made in the same manner as in the election of the leaders of the army. And such are the particulars which should take place respecting sacred concerns. But the utmost care should be taken that nothing is left without a guard. The guards of the city, too, should be these: the commanders in chief of the army, the præfects of the military orders, the masters of the horse, the governors of tribes, the dispensators, the inspectors of roads and buildings, and the magistrates who preside over the markets, when all these are properly chosen. The rest of the region should be defended as follows:

760a

—The whole region was divided by us, as much as possible, into twelve parts.

760b

But one tribe being allotted to each division, it should choose every year five, as it were, inspectors of the lands, and governors of tribes. Each of these should choose out of his own tribe twelve young men, not less than five-and-twenty years of age, and not more than thirty. Each of these should be allotted each part of the region for the space of a month, that all of them may be skilful and knowing in every part of the region.

760c

But the guardians and governors should defend and govern the city for the space of two years. And when first they are allotted their respective divisions, they should change their places every month, and the governors of the guard should lead them to the places next in order, and to the right hand parts in a circular progression. But I mean by the right hand parts, those which are towards the east.

760d

Afterwards, in the second year, they should change to the left hand parts, that they may not only be skilled in the nature of the country for one part of the year, but may know, for the most part, what happens in every season; to every part of the country.

760e

In the third year, five other inspectors of the land, and governors of the guard, should be chosen, as curators of the twelve young men. But the following care should be bestowed in the several occupations in each place. First, that the region may be, in the highest degree, well fortified against the incursions of the enemy; trenches being dug where they are requisite, and buildings raised for the purpose of restraining those who may endeavour to injure the country and its possessions. Animals subject to the yoke, and the servants belonging to each place, should be employed for this purpose, when they are not engaged in their usual respective employments;

761a

those that preside over these disposing every part of the country in such a manner, that it may be difficult of access to the enemy, but easy to friends, animals subject to the yoke, and cattle. They should likewise take care that the waters from Jupiter³³ do not injure the country, but that they may rather be useful to it, when descending from lofty mountains into hollow valleys;

761b

and this by restraining their course in edifices and ditches; so that, being received and imbibed by these places, they may produce streams and fountains for all the subject lands and places, and may

thus render the most dry parts of the country moist, and abounding with water. They should likewise adorn fountains and rivers with trees and edifices; and, conducting streams through metal pipes, should cause them to be distributed in great abundance.

761c

In like manner, they should send these streams into thickets and sacred groves, as an ornament to the temples of the Gods. But every where, in things of this kind, young men ought to procure gymnastic exercises, both for themselves and the aged, preparing senile hot baths, and placing dry wood in abundance; that an easy remedy may by these means be obtained for the diseased, and the bodies of husbandmen, when wearied with labour, may be refreshed; which remedy is, indeed, far better than any which can be adopted by a physician who is not very skilful in his art. These things, therefore, and every thing of this kind, should be introduced into these places, as both ornamental and useful, in conjunction with sport by no means unpleasant. But let the attention which is to be paid to things of this kind be as follows:

761d

—Sixty men should each of them defend their own place, not only on account of enemies, but for the sake of those who call themselves friends. And if any one, whether he is a servant or free, injures his neighbour, or any other citizen, if the offence is small, he shall be judged by those five governors, but if great, by seventeen men, together with the twelve, and shall be fined as far as to three minæ. But no judge or magistrate ought to be exempt from giving an account of his conduct when called upon, except such as like kings bring things to a conclusion.

761e

Besides this, the præfects of the land, if they behave insolently towards the subjects of their care, by enjoining them unequal tasks, or taking any thing by force from the husbandmen, or if they receive any thing which is given through flattery, or distribute justice unjustly, in

consequence of yielding to adulation;—in any of these cases, they shall be disgraced by the whole city.

762a

But for other injuries which they may commit in their office, they shall voluntarily be fined by the inhabitants of the same village, and by their neighbours, as far as to one mina. If, however, they are unwilling, either for greater or smaller injuries, to pay the proper fine, in consequence of believing that, during their transitions from place to place every month, they shall escape punishment,—in this case, they shall be sentenced by a common judgment to pay the injured person the double of his loss.

762b

But both the governors and the præfects of the land shall live for the space of two years in the following manner: In the first place, the convivial associations in the different places shall be in common. But he who is absent from these for one day or night, without orders from the governors, and without being compelled by any necessity,

762c

—if the five men condemn him, and write in the forum that he has abandoned his guard, he shall be disgraced, as betraying his part of the polity. He shall likewise be chastised with stripes by any one who may meet him; and whoever is willing to punish him shall do it with impunity. All the sixty men, likewise, should carefully observe whether any one of the governors acts in this manner:

762d

and he who perceives or hears that any one of these does so, but yet does not accuse him, shall be subject to the same punishment as the offending governor; and, being more severely punished by the young men, shall be despised by all their magistrates. The guardians of the laws too should diligently attend to all these particulars, either that they may not take place, or that, when they do, the offenders may be properly punished.

762e

But every man ought to think respecting all men, that he who has never been a servant will never be a master worthy of praise. So that he who has acted in a becoming manner as a servant, ought to glory in his conduct more than he who has properly exercised the authority of a master:—in the first place, as having been properly subservient to the laws, which is the same as being a servant to the Gods; and in the next place, to old men who have conducted themselves in an honourable manner towards youth. After this, the præfects of the lands should, during the space of these two years, live on humble and poor food. For, when the twelve magistrates think proper to assemble together with the five, they should not join with themselves the other servants and slaves, nor employ husbandmen, and the inhabitants of the same village, for their own private concerns, but alone for public utility. In other particulars, they may attend to their own advantage. Besides this, they should explore every part of the region in summer and winter, armed, for the sake of perpetually defending and becoming acquainted with every place.

763a

For it appears, that for all men to have an accurate knowledge of every place is a discipline inferior to no study. And for the sake of this, young men ought to apply themselves to hunting with dogs, and the capture of wild beasts, no less than for the sake of any other pleasure or advantage which is derived from pursuits of this kind. Every man too should, to the utmost of his power, apply himself to that study, which may either be called concealments, or inspection of the lands, or by any other name at pleasure, if he is desirous that the city should be sufficiently secure.

763b

After this, it follows that we should

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speak concerning the election of the governors of the markets, and the præfects of cities. Three præfects of cities, therefore, should follow the governors of markets, who are to be sixty in number; and

should preside over the twelve parts of the city according to a triple distribution, in imitation of those twelve parts. These should inspect the roads about the city, and the public ways which lead from the country to the city: likewise the buildings, taking care that all of them are raised according to law;

763d

and the streams of water which are sent by the guardians into the city, that they may be deduced into pure fountains, and such as are sufficient for use, and may become both an ornament and advantage to the city. These too ought to be such as are capable, when at leisure, of employing their attention on public affairs. On this account, every man should nominate from the largest estate him whom he wishes to be a præfect of the city. And out of six that have the most votes, three shall obtain this office by lot. Lastly, when they have been examined and approved, they shall discharge the duties of their office according to the laws which are prescribed to them.

763e

After this, the governors of markets shall be chosen, five in number, from possessions of the second and first order; and they shall be elected in the same manner as the præfects of the city. For out of ten that have the most votes, five shall be chosen by lot, and, when they are approved, shall be declared to be governors. But every individual shall give his vote. And he who is unwilling to vote, if he is brought before the magistrates, shall be fined fifty drachms, and shall, besides this, be considered as a bad man. Likewise, every one shall be permitted to enter into the assembly and common convention; and all those shall be compelled to do this whose possessions are of the first and second order. And he who is absent from these shall be fined ten drachms. But those whose possessions are of the third and fourth order shall not be compelled to be present at the common convention.

764a

Hence, if any one is absent from these, he shall not be fined, unless the governors shall find it necessary to order all the citizens to assemble.

But the office of the governors of markets consists in preserving the forum in that order which is established by law; and in taking care of the temples and fountains about the forum, and that no one acts unjustly with respect to them:

764b

likewise in punishing him who acts unjustly, with stripes and bonds if he is a slave and a stranger; but if it is a native who acts in a disorderly manner, with respect to things of this kind, he shall be condemned by these governors to a fine of one hundred drachms: but they shall not be allowed to condemn him to a greater fine, as far as to the double of this, unless the governors of the city are present on the occasion. The governors of the city too should adopt the same mode of fining and punishing in their department; fining offenders as far as to a mina by their own authority, but the double of this in conjunction with the governors of markets.

764c

After this it will be proper that the governors of music and gymnastic should be established, so as that there may be a twofold order of each of these; some of them being appointed for the sake of discipline, and others for the sake of exercise. And the law is desirous of asserting with respect to those who preside over discipline, that they should be careful of the ornament pertaining to exercises and doctrines, erudition, and the attention requisite to things of this kind; and likewise of the conduct of males and females, both at home and abroad.

764d

Those who reward the *athletæ* should have the care of gymnastic exercises and music. And these should be twofold; one kind being employed about music, and the other about gymnastic exercise. The same persons should preside over the agonistic exercises of both men and horses. But, with respect to music, some should preside over the monody, and the imitative art, viz. over the rhapsodists, harpers, pipers, and all of this kind, but others over the singing of the choir.

And in the first place, with respect to the sport of the choir, where men, boys, and girls are exercised in the dance, and in the whole order of music, the governors of this ought to be properly chosen.

764e

But one governor will be sufficient for these, who is not less than forty years of age. One also will be sufficient for the monody, who is not less than thirty years old, and who must perform the office of an introducer, and be able to judge sufficiently the merits of the contending parties. But the governor and moderator of the choir ought to be chosen in the following manner: Those who are attached to things of this kind should go to the assembly, and, if they did not go, should be fined:

765a

and the guardians of the law should be the judges in this case. No one, however, should compel others to join this assembly if they are not willing. The candidates should be chosen from among skilful persons; and the skilfulness or unskilfulness of the candidate should be the only thing attended to in his examination.

765b

But he who, out of ten that have the most votes, is approved of on being examined, shall, according to law, preside for one year over the choir. The election and approbation respecting the monody, and the melody of the pipe, should be accomplished in a similar manner; and he who is finally chosen should preside over these for a year; his election at the same time being confirmed by the judges. After these things, it is proper that the dispensators of rewards to the gymnastic exercises, both of horses and men, should be chosen in the following manner from possessions of the third and second order. Three estates should be compelled to the election of these, but the smallest estate should be exempt from fine; and three being selected out of twenty that have the most votes, are after examination to be chosen as dispensators. But if any one happens to be rejected, according to any election by lot, and judgment of the magistrate, another shall be

chosen in his place, and the examination of him performed in a similar manner.

765c

There now remains the

765d

governor, who is to take care of the whole of the above-mentioned discipline, both of males and females. Let there then be but one governor of this kind established by law. Let him be not less than fifty years of age; one who is the father of lawful children of both sexes, but, if not of both, at least of one sex. But both he who chooses and he who is chosen ought to think that this magistrate is by far the greatest of the chief magistrates in the city. For the first blossom of every plant, when it tends in a becoming manner to the virtue of its nature, possesses the highest power of arriving at its proper end;

765e

and this is true, both with respect to other plants, and to tame and savage animals. But we say that man is a tame animal; who, when he partakes of proper discipline, in conjunction with a prosperous nature, is wont to become a most divine and mild animal: but when he is not sufficiently or not properly educated, he is the most savage of all the animals which the earth produces.

766a

On this account the legislator ought not to suffer the education of youth to be a secondary thing, or to be attended to in a careless manner. But, in the first place, he who is desirous of bestowing a proper attention upon youth, ought to choose out of the citizens him who is the most excellent in all things, and establish him as one who is to educate children with the utmost attention and care.

766b

All the magistrates, therefore, except the counsellors and præfects, coming into the temple of Apollo (the guardians of the laws privately receiving the votes), shall each of them choose him whom they consider as calculated to educate youth in the best manner. And he

who has most votes, after he has been approved of by the magistrates that choose him (the guardians of the laws being excepted), shall act in this capacity for five years. And in the sixth year another shall be chosen to succeed him in a similar manner.

766c

But if any public magistrate dies before he has governed more than thirty days, another shall be similarly chosen by those to whom this province belongs. And, when any one who is the guardian of orphans dies, the kindred of both father and mother, as far as to cousins, who may at that time be present, shall appoint another within the space of ten days, or each shall be fined every day a drachma till they have appointed another guardian. But every city will become a privation of a city, in which courts of justice are not properly established; and a mute judge, and who in his interrogations does not speak more than the litigants, will never be sufficient to us for the purpose of deciding justly. On this account, neither can judges when they are many judge well, nor when they are few and of a depraved character. But it is proper that the object of inquiry should be clearly enunciated by both parties. Time however, delay, and frequent interrogation contribute to the resolution of doubts.

766d

On this account litigants ought

766e

first of all to betake themselves to their neighbours and friends, and discuss with them the subject of their complaints. But, if they are not able to determine their cause sufficiently by the assistance of these, they should go to another court of justice. And, if they cannot be reconciled by the two former, a third shall bring the affair to a conclusion.

767a

In a certain respect, indeed, the establishments of courts of justice are the elections of magistrates; for every magistrate is necessarily a judge of certain things. But every judge is not a magistrate; though, in

a certain respect, a judge on the day in which he acts as a judge, is no contemptible magistrate. Considering, therefore, the judges as magistrates, let us show which of them will be adapted to our purpose, of what things they are to be judges, and how many for every particular.

767b

Let then the most principal court of justice be that which they exhibit among themselves, when they choose certain judges by common consent. But let there be two criteria of the rest: the one, when, any private person accusing another of acting unjustly, and leading him to justice, he is willing that he should be judged; the other, when any one thinks that the public minister has been injured by some one of the citizens, and is willing to assist the community at large. Let us say then who are the judges, and what kind of men they ought to be.

767c

In the first place, there should be a common court of justice for all those that contend the third time with each other; and this should subsist in the following manner: All the magistrates, as well those that govern for a year as those that govern for a longer time, ought to assemble into one temple, on the day before the first day of that month in which after the summer solstice the new year begins. Here taking an oath, and making a first-fruit offering as it were, out of every order of magistrates, they should choose one judge, who appears likely to be the best in every magistracy, and to judge the citizens on the following year in the best and most holy manner. When the judges are chosen, the examination and approbation should be made by those that chose them. And if any one is rejected, another shall be chosen in a similar manner. But the persons approved shall judge those that fled from other courts of justice, and give their decision openly. The counsellors, however, and the other magistrates that chose these, must necessarily be hearers and spectators of these decisions.

767d

With respect to men of another description, any one of these who is willing may be present. But, if any person accuses any one of these judges, as voluntarily judging unjustly, he shall accuse him before the guardians of the law; and he who is condemned in consequence of such accusation shall pay the half of the fine to the injured party. But if he shall appear to deserve a greater fine, the judges by whom he is condemned shall determine what he ought to suffer,

767e

or to restore, either to the community, or to the person who has suffered the injury.

768a

With respect to public accusations, it is necessary in the first place that the multitude should participate of the decision. For, when any one acts unjustly towards a city, all the citizens are injured; and hence the multitude will justly be indignant, when they are excluded from such judgments. The beginning likewise and end of such a decision ought to be referred to the people, but the examination of the particulars in which the litigants accord, to the three greatest magistrates. But if they cannot agree, the council itself shall judge the election of each of them.

768b

It is requisite likewise that all men should participate to the utmost of their power of private judgments. For he who is deprived of the power of judging with others must be considered as in no respect participating of the city. On this account courts of justice must necessarily subsist in the tribes, and the judges should immediately give sentence by lot, uncorrupted by entreaties. And, finally, that court of justice should judge of all these particulars which we have said should be established incorrupt to the utmost of human power, for the purpose of determining those disputes which can neither be decided by neighbours nor by the courts of justice belonging to the tribes.

768c

And thus, concerning courts of justice, which we say can neither easily be indubitably called magistrates, nor yet denied to be such, this description, which is as it were externally induced, has asserted some things, and nearly left others undiscussed. For, towards the end of legislation, the accurate position, and at the same time division of judicial laws, will be by far most properly discussed. We shall, therefore, till then defer the consideration of these.

768d

But the establishment of other magistrates has nearly taken up the greatest part of legislation. The accurate, however, respecting all civil and politic administrations will not become perspicuous, till the discussion, receiving from the beginning things secondary, middle, and all its parts, has arrived at the end. For at present, indeed, proceeding as far as to the election of magistrates, it becomes a sufficient end of what has been previously delivered, so that the beginning of the position of laws is no longer indigent of sluggishness and delay.

768e

Clinias: All that you have asserted above is entirely, O guest, agreeable to my sentiments; but your discourse will be still more pleasing to me, when you have conjoined the beginning of what is now to be said, with the end of what has been already asserted.

769a

Guest: Thus far then we have played in a becoming manner the game of prudent old men.

769a

Clinias: You appear to have evinced a beautiful pursuit of men.

769a

Guest: It is probable. But do we understand whether this appears to you as it does to me?

769b

Clinias: What do you allude to?

769b

Guest: Do you know that the art of painting has no boundary with respect to the several animals, but never ceases adorning, either by inumbrating or deumbrating, or by whatever name a thing of this kind may be called by painters, that the picture may continually become more beautiful and conspicuous?

769b

Clinias: I scarcely understand what you say, since I am by no means conversant with this art.

769c

Guest: This will be no detriment to you. But we will employ this similitude which fortune has presented to us. If then some one should design to paint a most beautiful animal, and which might not become worse but better by length of time, do you not perceive that in consequence of such a one being a mortal, unless he leaves behind him a successor who may prevent the damages which the picture might sustain from time, by frequently retouching the piece, or who may supply what was omitted by the artist, through the imbecility of his art, and thus daily render the picture more splendid, the laboured piece will last but a short time?

769e

Clinias: True.

769e

Guest: What then? Does not this appear to you to be the wish of the legislator? In the first place, that laws may be written for him as accurate as possible? In the next place, can you think that in the course of time, and after having made an actual trial of the thing, any legislator can be so insane as not to know that many things must necessarily be left, which will require amendment from some successor; that a polity may by no means become worse, but always better and more adorned?

769e

Clinias: It is probable. For how is it possible he should not wish a thing of this kind?

769e

Guest: If then any legislator possesses any method by which both in words and in reality he can teach another, whether he is a man of greater or of less consequence, how laws ought to be preserved and corrected, he will not cease speaking about a thing of this kind till he has accomplished his purpose.

770a

Clinias: For how is it possible he should?

770a

Guest: Ought not this, therefore, to be done, both by you and me, at present?

770a

Clinias: Of what are you speaking?

770b

Guest: As we are about to establish laws of which we have chosen the guardians, but we ourselves are in the decline of life, and the guardians are with respect to us young men, it will, as we have said, be necessary that at same time we should both establish laws, and endeavour to make these very men, as much as possible, both legislators and guardians of the laws.

770b

Clinias: Undoubtedly, since we are sufficient for the purpose.

770b

Guest: Let us then cheerfully endeavour to effect this.

770b

Clinias: By all means.

770b

Guest: We will, therefore, thus address them:

770c

O friends, saviours of the laws, we have necessarily left many things unfinished, respecting the several particulars of which we have established laws, and which are not indeed inconsiderable; and we have endeavoured to the utmost of our power not to leave the whole

unexplained by a certain circumscription. This deficiency it is your business to supply. But it is proper you should hear where you ought to look in order to accomplish a thing of this kind. For Megillus, I, and Clinias, have often said the same things to each other, and we are agreed among ourselves that we have spoken in a becoming manner.

770d

We are likewise desirous that you should both be favourable to our undertaking, and become our disciples; at the same time looking to those things which, we have agreed among ourselves, a guardian of the laws and a legislator ought to make the objects of his consideration. But this agreement, which has one head or summit, is this: That we should endeavour to find the means by which a man may become a worthy character, possessing that virtue of the soul which is accommodated to his nature, either from a certain study, or certain manners, or from some kind of possession or desire, or opinion; or, lastly, from certain disciplines; and this, whether the nature of the inhabitant of our city is male or female, youthful or aged. Likewise, that every one, through the whole of life, should tend with all possible earnestness to this of which we are now speaking; neglecting at the same time every thing which may become an impediment to this acquisition. Besides this, too, he should be disposed to die for his country if it is necessary, rather than either to see it entirely subverted, and becoming subject to the yoke of bondage, governed by bad men, or desert it by flight. For every thing of this kind is to be endured rather than the polity should be changed, which men of a worse character are naturally disposed to effect.

770e

These things have been already mutually assented to by us, and do you now, looking to both these, praise and blame the laws; blaming such as are not able to accomplish these particulars, but, embracing and receiving in a benevolent manner such as are, live in them. But it is proper that you should bid farewell to other studies which tend to other things that are called good.

771a

Let this, then, be the beginning to us of the subsequent laws, commencing from sacred concerns. For we ought in the first place to resume the number five thousand and forty, because it had, and now has, convenient distributions, both the whole number, and that which was assigned to the tribes; which we established as the twelfth part of the whole, this producing with the greatest rectitude the number four hundred and twenty. And as the whole number has twelve distributions, so also that of the tribes. But it is proper to consider each division as a sacred gift of divinity, as following both the order of months and the period of the universe.

771b

On this account, that which is connate should lead every city, rendering them sacred. Some, indeed, are perhaps more properly distributed than others, and more prosperously dedicate their distributions to the Gods. But we now say, that the number five thousand and forty is most properly chosen, as that which has all distributions as far as to twelve, beginning from one, except that into eleven parts.

771c

This, however, has the easiest remedy. For it will be restored to health, if two houses are distributed to the other part. But that these things are true, may be evinced with facility when at leisure. Believing, therefore, in the present conception and discourse, let us distribute this number;

771d

and ascribing a God, or a son of the Gods, to each part, likewise dedicating altars, and things pertaining to these, let us make two conventions for the purpose of sacrificing every month; accommodating twelve to the distribution of the tribes, and twelve to the division of the city. But all this should be done, in the first place, for the sake of the Gods, and things pertaining to the Gods; in the

second place, for the sake of our familiarity with, and knowledge of, each other; and likewise for the sake of every kind of association.

771e

For it is necessary, in the communion and mixture of marriages, that ignorance should be taken away, so as that every one may know with whom he is connected, and that all deception in things of this kind may, as much as possible, be taken away. For the sake of this, therefore, it is necessary that sports should be instituted, boys and girls together forming a choir, mutually beholding and being beheld by each other, being properly paired, as to their age, and having as much of their bodies naked as modesty will permit. All these should be taken care of, and properly ornamented by the governors of choirs, and likewise by the legislators, in conjunction with the guardians of the laws, that they may supply what we have left deficient.

772a

But it is necessary, as we have said, respecting all such things as are small and numerous, that some particulars should be omitted by the legislator, in which the magistrates becoming every year skilful, and being admonished by experience, they may be able every year to supply what is deficient; till it shall appear that these discussions and legal institutes have obtained a sufficient bound.

772b

The space of ten years, therefore, will be a length of time both moderate and sufficient for obtaining an experience in sacrifices and choirs, and every other particular. But in order to accomplish this, he who supplies these deficiencies should live in common with the legislator: and on his death, the several magistrates having informed the guardians of the laws of his decease, must supply his place in correcting what is amiss, till every thing shall appear to have attained the consummation of excellence.

772c

When this period arrives, having given stability to these institutes, they are to be used in conjunction with other laws which the

legislator has ordained from the beginning; respecting which, nothing should ever be voluntarily changed. But if any necessity shall, at any time, appear to urge a mutation, all the magistrates ought to consult together on this occasion, all the people should be assembled, and all the oracles of the Gods explored. If all these accord, then a change in the laws may be made, but by no means unless this is the case; but that which impedes, shall always obtain dominion according to law.

772d

Whenever, therefore, any one who has arrived at five-and-twenty years of age, beholding and being beheld by others, believes that he has found one of his own disposition, and adapted for the communion and procreation of children, he shall marry within thirty-five years of age. But, in the first place, let him hear how the becoming and adapted are to be investigated. For it is requisite, as Clinias says, prior to the laws, to give a preface accommodated to each.

772e

Clinias: You very properly remind us, O guest; and your discourse appears to me to be both seasonable and highly fitting.

773a

Guest: You speak well. Let us, therefore, speak as follows: O young man, born of good parents, it is proper to contract those marriages which appear honourable to prudent men. But these exhort neither to avoid marriage with the poor, nor to pursue with avidity marriage with the rich, but, *cæteris paribus*, always honouring the inferior, to enter into communion with it. For, both to the city and the families which are united, this will be advantageous. For the equable and commensurate infinitely surpasses the immoderate with respect to virtue. He, therefore, who in all his actions is more rash and hasty than is becoming, should desire that the daughter of parents of more composed manners may be united to him in marriage: but he who is naturally of a contrary disposition should enter into alliance with a contrary character. And in every marriage this one thing should be observed, that every one should enter into such

773b

a matrimonial connexion as is advantageous to the city, and not such a one as is most pleasant to himself. For every one always naturally tends to that which is most similar to himself; whence the whole city becomes anomalous both in wealth and manners, when it partakes in the highest degree of those things which we are unwilling should happen to ourselves. If, then, in our discourse we should order by law that the rich should not marry with the rich, nor the powerful with the powerful, but should

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compel those whose manners are more hasty to marry those whose manners are more slow, and the more slow to marry with the more hasty, we should not only appear ridiculous to, but excite the anger of, the multitude. For it is not easy to understand that a city ought to be like a cup, in which the mad wine, when first poured forth, effervesces; but, being corrected by another deity³⁴, who is a sober God, and thus obtaining a beautiful conjunction, it becomes a good and moderate drink.

773d

But no one, as I may say, is able to see this taking place in the formation of children by the mingling of the sexes. On this account, therefore, we should not compel the citizens to things of this kind by law, but endeavour to charm them into the persuasion, that they ought to prefer equability in the natural disposition of their children to the equality of the most opulent alliance; and that we ought to deter, by disgrace, him who makes riches the object of his pursuit in marriage, and not compel him to a contrary mode of conduct by a written law. Let these, then, be the exhortations respecting marriages, together with what we have previously asserted,—I mean, that we ought to aspire after perpetuity of nature, by always leaving behind us children of children, as servants of divinity, instead of ourselves. All these particulars, therefore, and still more than these, some one may

with propriety preface, respecting the manner in which marriages ought to be conducted.

773e

But he who cannot willingly be persuaded to act in this manner, but lives in the city alienated, without connexion, and unmarried, for five-and-thirty years, such a one shall be fined every year.

774a

And if he possesses the largest estate, he shall be fined one hundred drachms; if that which is second in order, seventy; if that which is third, sixty; and if that which is fourth in order, thirty drachms. Let all these fines be sacred to Juno. And let him who does not pay his fine every year be made a debtor of ten times that sum. Let this money too be exacted by the dispensator of the Goddess; which unless he exacts, he himself shall be the debtor. He, therefore, who is unwilling to marry, shall be thus punished with respect to a fine; but with respect to honour as follows: In the first place, let him be deprived of all honour from his juniors, nor let any young man voluntarily obey him in any thing. In the next place, if he should attempt to chastise any one, every one shall be permitted to assist and defend the injured person. And he who does not in this case give assistance, shall be considered by the law as a timid and vicious citizen. Concerning the marriage portion we have spoken before, and we again say, that equal things are to be given for equal things, since neither he who receives, nor he who bestows, will grow old in the want of money. For in this city every one is supplied with necessities. Besides, women will be less insolent, and men will have less of humble and illiberal slavery, through riches. And he who is obedient to this law will accomplish one among the number of things beautiful; but he who is disobedient to it, and either gives or receives more than the worth of fifty drachms for the sake of a garment, shall either pay one mina, or three half minæ, or two minæ, according to the magnitude of his possessions.

774c

He who possesses the largest estate shall pay another such sum to the public treasury: and whatever is given or received shall be sacred to Juno and Jupiter.

774d

But the exactors of this money should be the dispensators of these divinities, just as we said, when we spoke of those that refused to marry, that their fine should be exacted by the dispensators of Juno, who, if they neglected to exact it, should pay it themselves. With respect to suretiship, the first shall be that of a father, the second, that of a grandfather, and the third, that of brothers by the same father.

774e

If no one of these survives, the suretiship shall, in a similar manner, be equally valid on the mother's side. But if, through an unusual fortune, none of these should survive, the authority in this affair must always be vested in the nearest kindred, in conjunction with the guardians. If any thing preparatory to initiation, or other sacred operation, shall be found necessary for things future, present, or past, pertaining to marriage, it will be proper to interrogate the interpreters of sacred concerns; and each person, being persuaded by these, should think that he has accomplished every thing sufficiently.

775a

With respect to nuptial feasts, not more than five male and five female friends should be invited; and as many of both sexes of kindred and familiars. But the expenses on this occasion should not exceed the possessions. He, therefore, who has the largest estate shall spend one mina, another half a mina, and so on in succession, according to every one's respective property.

775b

And he who is obedient to the law in this respect ought to be praised by all men; but he who is disobedient shall be chastised by the guardians of the laws, as one who is ignorant of the becoming, and unskilled in the laws respecting the sponsal muses. To drink, however, to intoxication, is never at any time becoming, nor safe, except in the

festivals of that God who is the giver of wine. Neither, therefore, is it proper that this should take place at the nuptial feast, when the bride and bridegroom ought particularly to be in a sound state of mind, as having changed the former condition of their life in no small degree;

775c

and in order, at the same time, that offspring may always be produced as much as possible from prudent parents. For it is nearly immanifest what night or day may generate offspring in conjunction with divinity. Children, therefore, ought not to be begotten when the body is in a relaxed and diffuent state through ebriety, but when it is compact, stable, and quiet.

775d

But he who is filled with wine hurries and is hurried away every where, being agitated with insane fury both in body and soul. Hence, he who is intoxicated, as being delirious, must disseminate in a vicious manner. So that it is probable such a one will beget offspring anomalous, unfaithful, and void of rectitude, both in their manners and corporeal frame. Hence, it is requisite to guard against intoxication, both through the whole year, and through the whole of life, but especially at the time of procreation, and neither to do such

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things as spontaneously introduce disease, nor such as participate of insolence or injustice. For, these being necessarily impressed in the souls and bodies of the offspring in a foetal state, the impressions become worse than their originals. But especially on the wedding day and night it is requisite to abstain from all such things. For the principle and divinity³⁵ established in men preserves all things, when he is allotted that honour which is accommodated to his nature by the respective individuals by whom he is employed.

776a

But it is proper that the bridegroom should consider one of the two houses assigned by lot as set apart for the procreation and education of children; and that he should celebrate his nuptials in that house,

and reside there with his children separate from his father and mother. For, where there is a certain desire in friendship, it agglutinates and binds together all the manners; but where association is attended with satiety, and has not any desire through time, it causes a mutual separation through transcendency of repletion. Hence, leaving his parents and kindred, the bridegroom should depart as it were to a colony, observing, and being at the same time observed by, them; procreating and educating children; transmitting to others, like a lamp, the life which he received from others, and always honouring the Gods according to law.

776b

In the next place, it is requisite to consider which among the number of possessions is the most elegant. With respect to many of these, therefore, it is neither difficult to understand nor to possess them; but with respect to servants the difficulty is extreme. But we may assign the cause of this in a certain respect properly, and in a certain respect not properly. For our assertions concerning slaves are contrary to, and yet conformable to, use.

776c

Megillus: How do you mean? For we do not, O guest, understand what you assert at present.

776d

Guest: And it is very reasonable, O Megillus, to suppose you do not. For that servitude of the Lacedæmonians which is called Hilotia is nearly the source of the greatest doubt and contention to all Greece; because it appears to some to be well instituted, and to others not. But the slavery of the Heraclidæ is a subject of less contention than that of the Mariandyni³⁶. And besides this, the nation of the Thessalians is servile. However, looking to these, and all such particulars as these, what ought we to do respecting the possession of servants? As the subject, therefore, is so ambiguous, you very properly asked me what I meant. But my meaning is this:—We know that we all say that it is requisite to possess slaves of the most benevolent and best dispositions. For many

slaves, conducting themselves in every respect with more virtue towards certain persons than brothers and sons, have preserved their masters, together with their possessions and the whole of their habitations. We know that these things are said of certain slaves.

777a

Megillus: Undoubtedly.

777a

Guest: The contrary to this, likewise, is asserted, viz. that nothing in the soul of a slave is in a healthy condition, and that the race of slaves is not to be believed in any particular. The wisest of the poets too seems to be of this opinion, when he says respecting Jupiter:

777a

“Jove fixed it certain, that whatever day
Makes man a slave takes half his mind away³⁷.”

777a

In consequence of these different conceptions, some place no confidence in slaves, but with spurs and whips, as if they had to manage wild beasts, not thrice but often, enslave the souls of their servants; but others act entirely contrary to these.

777b

Clinias: Undoubtedly. Since, then, the opinions respecting slaves are so different, how shall we act in our region as to the possession and correction of them?

777b

Guest: It appears to me, O Clinias, since man is an animal difficult to be managed, and one that by no means patiently endures that the necessary distinction between a slave and one who is free and a master should be made in reality,—that on this account he is a difficult possession.

777c

The truth of this is actually evinced in the frequent rebellions of the Messenians, and by the mighty evils which happen to those cities that possess many servants of the same language; and further still, by the

all-various thefts which are committed by pirates about Italy. All which particulars, when they are considered, may render it doubtful what ought to be done in things of this kind. Two methods, therefore, alone remain to be adopted, namely, that those who are to act with ease in the capacity of slaves should not be of the same country, and that as much as possible they should be discordant with each other.

777d

And in the second place, that they should be properly educated, not only for their own sakes, but much more for the sake of their masters. But the proper education of these consists in not behaving insolently, but in acting less unjustly towards them, if possible, than towards our equals. For he is perfectly manifest who reverences justice naturally and not fictitiously, and who truly hates to act unjustly towards those men whom he might easily injure. He, therefore, who is never defiled by acting in an unjust and unholy manner, with respect to the manners and actions of slaves, will be most sufficient to sow the seeds of virtue. The same thing may with rectitude be asserted of a despot, and a tyrant, and of all authority, when exercised by the more powerful over the more imbecil.

777e

But slaves ought justly to be always punished, and not to be made effeminate by admonishing them like those that are free. Every thing too that is said to a slave should nearly be a command, nor should they ever in any respect be jested with, whether they are of the male or of the female sex. Many, however, very foolishly jest with their slaves; and, thus making them effeminate, render it more difficult to their slaves to be governed, and to themselves to govern.

778a

Clinias: Right.

778a

Guest: After this manner, therefore, servants may be acquired as much as possible sufficient both in multitude and aptitude to assist in the

necessary employments of life. But, after this, it is requisite to describe the habitations.

778c

Clinias: Entirely so.

778c

Guest: In a new city, therefore, and which had never before been inhabited, edifices are in the first place to be attended to, and particularly the temples and walls of the city. The buildings too of the city, O Clinias, ought to precede the marriages. But, now since the city is raised in discourse, we may very properly admit these particulars to subsist in the manner we have delivered them. When, indeed, the city is raised in reality, we shall attend to the buildings prior to the marriages, if divinity is willing, and afterwards accomplish every thing pertaining to matrimonial connections. We shall now, therefore, in a cursory manner, discuss these particulars.

778d

Clinias: Entirely so.

778d

Guest: The temples, therefore, ought to be built round all the forum, and the city should be built in a circle, in elevated places, for the sake of defence and purity. The houses of the governors and judges should be situated near the temples; and in these, as most holy places, sentence should be given and received; partly, as about holy concerns, and partly because the temples of the judicial Gods are there situated. Courts of judgment too should be built in this place, in which proper sentence shall be passed on murder and other crimes which deserve death. With respect to the walls, O Megillus, I agree with the Spartans, that they should be permitted to lie sleeping on the earth, and not be raised. For that poetical assertion respecting them is deservedly praised, that walls ought to be of brass and iron, rather than of earth.

778e

With us, indeed, the custom of sending young men every year into the fields to dig trenches and raise buildings, for the purpose of

restraining the incursions of the enemy, may justly be considered as extremely ridiculous. We likewise inclose our city with walls, which in the first place by no means contributes to the health of the citizens; and, in the next place, it usually produces an effeminate disposition in the souls of the inhabitants. For it incites them to fly within these for shelter, and not repel the enemy;

779a

and leads them to think that the safety of the city does not consist in guarding it perpetually both night and day, but that, sleeping under the protection of walls and gates, they shall be truly safe; as if they were born for sloth, and not to labour. They are, indeed, ignorant that ease is truly produced from labour; and, as it appears to me, labour is again the natural result of base ease. But, if there is any occasion of walls for men, the houses of individuals should be so raised from the first, that the whole city, by its equality and similitude, may be one wall, and that all the houses may have a sufficiently secure passage to the different roads of the city.

779b

And in this case, indeed, the city, having the form of one house, will be no unpleasant spectacle, and will be in every respect adapted to the ease of its guards and the safety of the whole. The citizens who are to inhabit this region should be particularly careful that these things are constructed in this manner from the first. They should also take care that ædiles are provided, compelling them to be chosen, and punish with fines those that neglect this office. Attention too should be paid to the purity of every thing in the city; and that no private person occupies any public property, either by building or digging.

779c

They should likewise take care that the waters from Jupiter may be imparted with facility to the inhabitants; and that every part, both within and without the city, may be fit to be inhabited. But all these particulars the guardians of the law, becoming skilled in by experience, must legally establish, together with such others as the

law omits, through its incapacity of providing for all things. But since these things, the buildings about the forum, the particulars respecting gymnasia, theatres, and all that pertains to discipline, are instituted, let us now proceed to marriages, as following next in the business of legislation.

779c

Clinias: By all means.

779c

Guest: Marriages, therefore, O Clinias, must be instituted for us in the manner we have described above.

779d

But, after this, the mode of living which should be adopted prior to the procreation of children must not continue a less time than a year. However, it is by no means easy to say, after what manner a bride and bridegroom ought to live in a city which transcends the multitude of cities. But, as many things that have been already advanced are difficult, this will appear to the vulgar still more difficult to determine. Nevertheless, O Clinias, that which appears to be right and true must be asserted.

779e

Clinias: By all means.

779e

Guest: He, therefore, who

780a

is of opinion that things public and common only, in a city, should be established by law, but does not think it requisite that the necessary concerns of private persons should be attended to, but that they should be permitted to live as they please; and that it is not necessary every thing should subsist in an orderly manner; but that, private affairs being neglected by the law, men should only live legally in public and common concerns;—he who thinks in this manner does not think rightly. But on what account are these things asserted by us? On this: Because we say that the bridegrooms in our city ought to live at

public tables, at other times no less than prior to their nuptials. And, indeed, when first eating in public was instituted by you, Lacedæmonians, it appeared a wonderful thing; being legally established, in consequence of a certain war, or something else endued with the same power, and which the paucity of men rendered necessary. But this mode of eating in public having been adopted by necessity, when it was found to contribute greatly to the safety of the city it was established by law.

780b

Clinias: It appears that this was the case.

780c

Guest: As I said, therefore, this was at first a thing of a wonderful nature, and dreadful to enjoin; but, at present, the legal establishment of it would not be attended with the like difficulty. But that which follows this is both arduous to relate and accomplish. It is a thing which is naturally capable of taking place in a proper manner, but which by no means subsists at present, and in establishing which the legislator would appear like jugglers to pluck fire, and to accomplish ten thousand other impossible things.

780d

Clinias: What is this, O guest, which you appear to be so vehemently afraid of mentioning?

780d

Guest: You shall hear, that I may not any longer needlessly detain you.

780e

For every thing in the city that participates of order and law produces every good. But such things as are deprived of order, or are badly disposed, dissolve the multitude of those things which are orderly disposed. And this happens with respect to the subject of our present discussion. For, O Clinias and Megillus, the public banquets of the men are instituted for you in a beautiful, and, as I said, wonderful manner, from a certain divine necessity; but those of the women are by no means properly left unestablished by law, and not led forth into light.

781a

For the female sex is another kind of men, more occult and fraudulent than we are, through the imbecility of its nature. But the legislator did not act rightly in omitting it, on account of the difficulty of managing it in an orderly manner. For, this being neglected, many things in your city will be dissolved, which would subsist far better than at present if it was regulated by law. For the particulars relative to women are not only the half (as they may appear to be) of human concerns, if they are left in a disordered manner; but, by how much the feminine is worse than the masculine nature with respect to virtue, by so much it surpasses in multitude the double.

781b

This, therefore, must be resumed and corrected; and all employments and studies should be established as common, both to men and women, as that which will more contribute to the felicity of the city. But at present mankind are so unhappily circumstanced in this respect, that no prudent man would even mention a thing of this kind, in other places where eating in common is by no means approved. How then can any one attempt, without rendering himself ridiculous, to force women to eat and drink openly? For there is not any thing which the sex would more difficultly endure than this.

781c

For, being accustomed to live timorously, and obscurely, when forced into light they will make every possible resistance, and greatly overpower the legislator. Women, therefore, as I have said, will not elsewhere endure even the most rational discourse, without extreme vociferation; but here perhaps they will. If then it is agreeable to you, for the sake of conversation, lest our discourse about every kind of polity should be incomplete, I am desirous of informing you, how good and becoming a thing this is,—if, as I said, it is agreeable to you to hear it:—if not, I shall dismiss it.

781d

Clinias: But, O guest, we are wonderfully desirous of hearing it.

781e

Guest: Let us then hear it. But you must not wonder if I appear to you to derive what I shall say from an elevated source. For we are now at leisure, and there is nothing to prevent us from considering every thing pertaining to laws.

781e

Clinias: Rightly said.

781e

Guest: Again, therefore, we will recur to what was first asserted by us. For it is highly proper that every man should know, that the generation of men either never had any beginning, nor ever will have an end, but always was and always will be; or that, if it had a beginning, the length of time from its commencement is immense.

782a

Clinias: Undoubtedly.

782a

Guest: What then? Should not we think that there have been all-various establishments and subversions of cities, studies and employments of every kind, some attended with and others without order, and all-various desires of food and drink, in every part of the earth; likewise all-various revolutions of seasons, in which animals have undergone a prodigious number of mutations?

782b

Clinias: It is reasonable to think so.

782b

Guest: What then? Shall we believe that vines at a certain period rose into existence, and in a similar manner olives, and the gifts of Ceres and Proserpine; and that a certain Triptolemus supplied things of this kind? And shall we not think that during the time in which these had no existence animals devoured each other, as at present?

782b

Clinias: We ought doubtless to

782c

think so.

782d

Guest: But we see at present that men sacrifice each other in many places; and we hear, on the contrary, that there was a time when we did not dare to taste the flesh of oxen, and when we did not sacrifice animals to the Gods, but cakes, and fruits moistened with honey, and other pure offerings of a similar kind: but we entirely abstained from flesh; considering it as neither holy to feed on it, nor to defile the altars of the Gods with blood. But we then lived an Orphic³⁸ life, feeding on all inanimate substances, but on the contrary abstaining from all animals.

782d

Clinias: These things, as you say, are every where reported, and persuade belief.

782d

Guest: But some one may say, What is the meaning of all this?

782d

Clinias: You very properly conjecture what is likely to be the case, O guest.

782d

Guest: I shall endeavour, therefore, if I am able, O Clinias, to unfold what is consequent to this.

782e

Clinias: Speak then.

782e

Guest: I behold all things suspended to men, from a triple indigence and desire, through which virtue is produced if they are properly conducted, but the contrary if they are improperly burdened. These are, from the very period of their birth, meat and drink, of which every animal having an innate love, it is full of fury, and refuses to listen to him who says that something else is to be done besides

replenishing the pleasures and desires, with which all such things as these are conversant, and perpetually avoiding every kind of pain.

783a

But a third, and this the greatest indigence, and the most acute desire, afterwards excites us, producing in mankind the most fiery furies. This is the desire of propagating the species, which burns with unbounded insolence. These three diseases should be turned from that which is called most pleasant, to that which is best, by three the greatest of all things; viz. *fear, law, and true reason*; at the same time employing the muses, and the agonistic Gods, in order to extinguish this influx and increase.

783b

But after marriages we should place the procreation of children, and, after this, education and discipline. For, our discourse proceeding in this manner, the law will perhaps at length lead us to public banquets, when we have arrived at associations of this kind; and then perhaps we shall see more clearly than before, whether this mode of eating in public ought to be adopted by women alone, or by men, together with the particulars preceding this mode, and which are not yet legally established. These things, as I just now said, we shall then behold more accurately, and establish respecting them more becoming and convenient laws.

783b

Clinias: You speak with the greatest rectitude.

783b

Guest: Let us, therefore, preserve in our memory what we have just now said: for perhaps we shall have occasion for it hereafter.

783c

Clinias: What are the things which you exhort us to remember?

783d

Guest: Those which we defined by three words; viz. meat, drink, and the astonishment about venereal concerns.

783d

Clinias: We shall by all means, O guest, be careful to remember these things.

783d

Guest: It is well. But let us proceed to matrimonial concerns, and instruct the bride and bridegroom in what manner children ought to be procreated; and if we cannot persuade them to comply with our instructions, we will threaten them with certain laws.

783d

Clinias: How?

783e

Guest: It is proper that the bride and bridegroom should consider, that children are to be exhibited to the city, as much as possible, the most beautiful and the best. But all men who produce any thing in common, when they attend both to themselves and the work, produce the whole beautiful and good: but when they do not attend, or are not endued with intellect, the contrary takes place.

784a

The bridegroom, however, should attend both to the bride and to the procreation of children: and in a similar manner the bride should attend to the bridegroom, especially at that time when children are not yet begotten by them. Certain women chosen by us shall be inspectors of this particular, whether many or few, just as it may seem fit to the governors. These shall assemble every day in the temple of Lucina, and continue there for the third part of an hour. Here they shall inform each other, if they have seen any married man or woman looking to any thing else than what the sacrifices and sacred ceremonies pertaining to marriage order to be done.

784b

Let the procreation of children and the inspection of the women above mentioned continue for ten years, but not for a longer time, when there is an easy flux of generation. But if some continue unprolific for this space of time, after having consulted with their kindred, and the women that superintend them, they shall be divorced in such a

manner as is advantageous to both. However, if any altercation ensues respecting what is proper and advantageous to each, ten guardians of the law, chosen by the contending parties, shall take cognizance of and determine the affair. After this, the inspecting women shall enter into the houses of the young men, and, partly by admonitions and partly by threats, liberate them from their error and ignorance. But if they are unable to accomplish this, they shall speak to the guardians of the law, who shall then take the affair into consideration. If they too are incapable of applying a remedy, they shall make the people acquainted with the case; at the same time giving in the offenders' names in writing, and affirming by an oath that they are unable to render them better.

784c

But let him whose name is committed to writing be disgraced, unless he can confute his accusers in the court of judgment. If he is unable to do this, he shall neither engage in a matrimonial connection, nor in the procreation of children. And in case he attempts it, any one that pleases shall punish him with impunity. The same laws too must be established respecting women. For such shall not participate of female egressions and honours, and shall not be permitted to go to weddings, and labours, if they are in a similar manner condemned in a court of justice.

784d

But when children are begotten according to law, if any one has connection with another man's wife, or a woman with any man but her husband, while children are begotten by them, let them be punished in the manner mentioned above when they did not beget children.

784e

In the next place, let the married men and women that live temperately with respect to all such things as these, be honoured, but those that live in a contrary manner be disgraced. And if the greater part of the citizens conduct themselves with moderation in things of

this kind, let these particulars be passed over in silence, without being established by law. But if the conduct of the greater part is disordered in things of this kind, let them be legally established, and a judgment made of such conduct according to the established laws. The first year is the beginning of the whole of life to every one. This ought to be written in paternal temples, as the beginning of life, both to boys and girls. In every tribe, too, the number of the governors that are reckoned by years should be written on a white wall. Next to these, the names of those that are living in the tribe should always be written; and on their decease their names should be blotted out. The boundary of marriage for girls should be from sixteen to twenty years of age; and this should be the longest definite time: but for boys, from thirty to thirty-five. The time for acting in the capacity of magistrates should be limited: for women; to forty years of age; but for men, to thirty. With respect to war, men should engage in it from twenty to sixty years of age; but women, when it shall appear necessary to employ them for warlike purposes, and after they have brought forth children, to the fiftieth year of their age: at the same time being mindful to prescribe the possible and the becoming to each.

Book VII

788a

Children, therefore, both male and female, being begotten, we shall act with the greatest propriety in speaking in the next place about their education and discipline; for to pass this over in silence is perfectly impossible. However, when it is discussed, it will appear to us to be rather similar to a certain doctrine and admonition than to laws. For the numerous small and unapparent circumstances which happen privately, and in every house, since they easily take place through the pain, pleasure and desire of the respective individuals, contrary to the intention of the legislator, render the manners of the citizens all-various, and not similar to each other.

788b

But this is an evil to cities. For, on account of their smallness and frequency, to punish them by a legal fine would be unbecoming, and at the same time unseemly. It would likewise be the means of destroying written laws, in consequence of men being accustomed to act contrary to law in things small and numerous. So that it is difficult indeed to establish laws concerning them, and impossible to pass them over in silence. But I will endeavour to render what I say manifest, leading forth an example, as it were, into light; for what is said at present seems to be involved in obscurity.

788c

Clinias: You speak most truly.

788c

Guest: That a proper education, therefore, appears to be capable of rendering both souls and bodies most beautiful and excellent, has been rightly asserted by us.

788d

Clinias: Undoubtedly.

788d

Guest: But I think that the most beautiful bodies are simply those which immediately from infancy grow in the most proper manner.

788d

Clinias: Entirely so.

788d

Guest: But what? Do we not understand this, that the first blossom of every animal is by far the greatest and most abundant; so that it is the source of contention to many, that human bodies at twenty do not receive twice the increase in length which they had at five years of age?

788e

Clinias: True.

788e

Guest: What then? When there is an influx of abundant increase without many and moderate labours, do we not know that it produces ten thousand maladies in bodies?

789a

Clinias: Entirely so.

789a

Guest: Many labours, therefore, are then necessary, when abundant nutriment is introduced into bodies.

789a

Clinias: What do you say, O guest? Shall we order those who are but just born, and the youngest, to undergo the greatest labours?

789a

Guest: By no means: but still prior to these, those that are nourished in their mother's womb.

789a

Clinias: How do you say, O best of men? Do you really speak of those that are yet carried in the womb of their mother?

789b

Guest: I do. But it is not at all wonderful that you should be ignorant of the exercise of such as these; which, though it appears to be absurd, I am willing to unfold to you.

789b

Clinias: By all means, do so.

789c

Guest: By us, indeed, a thing of this kind can be more readily comprehended, because children there engage in certain sports more than is proper. For, with us, not only children, but certain old men, nourish the young of birds, and exercise them in fighting with each other; but they are far from thinking that the labours, in which by exercising they excite them, are moderate. For, besides this, taking each of them by the wing, they walk many stadia with the lesser young in their hands, and the larger under their arms; and this, not

for the sake of the good habit of their own bodies, but for that of the birds. And by this, indeed, they signify thus much to him who is capable of understanding what is said, that all bodies are benefited by motion and agitation when not continued to weariness, whether these are produced from themselves, or by carriages, or by the sea, or horses, or by whatever other means bodies are moved. Hence, through these vanquishing the nutriment of food and drink, they are able to impart to us health, beauty, and strength.

789d

This being the case, what shall we say we ought to do in the next place? Are you willing that we should say, laughing, while we are establishing laws, that the pregnant woman should take the exercise of walking, and, after she is delivered, fashion the infant like wax, while he is moist, and during the space of two years bind him with rollers? Likewise, that we should compel the nurses, by legal fines, to carry the children either into the fields, or to the temples, or their acquaintance, till they are sufficiently able to stand alone? And that then they should be careful lest their legs become distorted through the violence of resting on them; and, for this purpose, should carry them in their arms till they are three years old?

789e

That the nurses, likewise, ought to be as strong as possible; and that there should be more than one for each child? And, lastly, that a punishment shall be ordained by a written law for neglect in each of these particulars? Or shall this by no means be the case? For that which we just now mentioned will happen to us in great abundance.

790a

Clinias: What is that?

790a

Guest: We shall expose ourselves to abundant laughter, because the effeminate and servile manners of the nurses will be unwilling to obey us.

790a

Clinias: For whose sake, therefore, shall we say these things ought to be asserted?

790b

Guest: For the sake of the manners of the masters and free persons in the city, who, perhaps, when they hear these things, will rightly conceive, that unless private affairs are properly conducted in cities, it is in vain to expect that such as are common can have any stability by the promulgation of laws; and who, in consequence of such a conception, will use as laws what we have just now advanced. And further still, by a proper use of these assertions they will govern both their families and the city in such a manner as to render them happy.

790b

Clinias: What you say is very likely to be the case.

790c

Guest: We should not, therefore, desist from a legislation of this kind till we have delivered the particulars of those studies which pertain to the souls of very young children, and thus bring our discourse to a conclusion in the same manner as when we spoke concerning their bodies.

790d

Clinias: Perfectly right.

790d

Guest: Let us receive this, therefore, as an element with respect to both the body and soul of very young children, that nutrition and motion, when applied every night and day, are profitable to all juvenile bodies and souls, but especially to the most youthful; so that, if it were possible, they should be in such a condition as if they were always sailing on the sea. But as this is impossible, it is requisite to approach as near to this as we are able in our treatment of infants. Indeed, that we ought to do so, may be conjectured from this, that both the nurses of infants, and those who are initiated in the remedies of the Corybantes, know experimentally that it is useful. For, when mothers are desirous that their children who sleep with difficulty may

sleep soundly, they do not attempt to accomplish this by quiet, but, on the contrary, by gently moving them in their arms; nor yet by silence, but by singing to them. And, in short, they charm their children by the melody of their voice, as if by that of a pipe; just in the same manner as the remedies of mad Bacchanalians employ this choir, and, at the same time, Muse of motion.

790e

Clinias: What then, O guest, is especially the cause of this to us?

791a

Guest: It is not very difficult to know.

791a

Clinias: How so?

791a

Guest: Both these passions consist in fear: and they are certain terrors arising from a depraved habit of the soul. When, therefore, any one externally causes an agitation in passions of this kind, the exterior vanquishes the interior dreadful and insane motion: but, being vanquished, a tranquil quiet takes place in the soul, and the leaping of the heart, which was troublesome to endure, subsides. And thus it entirely causes some to receive the benefit of sleep; but it recalls others, who are awake, from insane to prudent habits, by dancing and the melody of the pipe, in conjunction with those divinities to whom suppliants sacrifice. And these things, in short, possess a certain probable reason.

791b

Clinias: Entirely so.

791b

Guest: But if these things possess such a power, this ought to be understood concerning them, that every soul that has been familiar with fear from infancy will have been more accustomed to endurance. Every one, however, will acknowledge that this is an exercise of timidity, and not of fortitude.

791c

Clinias: Undoubtedly.

791c

Guest: But, on the contrary, we should say that he is exercised in fortitude who, from his infancy, has made it his study to vanquish all the fears and terrors which befall us.

791c

Clinias: Right.

791c

Guest: We may say, therefore, that this one thing greatly contributes to a part of the virtue of the soul, viz. the all-perfect gymnastic exercise of children in motions.

791c

Clinias: Entirely so.

791c

Guest: And besides this, a placid or morose disposition becomes no small part of goodness or depravity of soul.

791d

Clinias: Undoubtedly.

791d

Guest: But we should endeavour to relate to the utmost of our ability, after what manner we should wish that each of these may be implanted in infants.

791e

Clinias: Certainly.

791e

Guest: This, then, is a dogma with us, that luxury renders the manners of youth morose, irascible, and vehemently agitated by things of a trifling nature; but that, on the contrary, excessive and rustic servitude causes them to be abject, illiberal, haters of mankind, and unfit for society.

791e

Clinias: But how will the whole city be able to educate infants, who are incapable of understanding what is said to them, and who cannot taste of any discipline whatever?

791e

Guest: Thus. Every animal, as soon as it is born, is accustomed to utter certain sounds with a loud voice: and this is particularly the case with the human species, which to vociferation adds weeping.

792a

Clinias: Entirely so.

792a

Guest: Nurses, therefore, being desirous to know what infants are in want of, conjecture this by the things which they offer to them. For that which causes them to be silent they consider as offered to them in a becoming manner, but that as improperly offered at which they cry and make a noise. For, in children, vociferation and tears are indications by no means fortunate of the things which they love and hate. But the time in which this takes place is not less than the space of three years, which is no small portion of life to pass through well or ill.

792b

Clinias: Right.

792b

Guest: Does not a child at that period appear to you to be morose, and by no means kind, and for the most part full of lamentation and tears, more than becomes one that is good?

792b

Clinias: It appears so to me.

792b

Guest: What then? If some one should endeavour, by all possible means, that during this period of three years the child may in as small a degree as possible be affected with sorrow, fear, and pain, should we

not think that by this means his soul would be rendered more cheerful and kind?

792b

Clinias: It is evident it would, O guest, and especially if the child should be supplied with many pleasures.

792c

Guest: This I cannot grant you, O wonderful Clinias. For with us an action of this kind would be the most pernicious of all things. But let us see whether we may assert a certain thing.

792c

Clinias: Inform us what it is.

792d

Guest: Our discourse, at present, is about a thing of no small importance. Do you, O Megillus, attend and decide for us. For my discourse asserts that an upright life ought neither to pursue pleasures, nor entirely avoid pain, but should embrace the medium between these, which we just now denominated benignity; and which, from a certain oracular rumour, we all of us aptly call the habit of divinity. We say too, that he who is desirous of becoming a divine man ought to pursue this habit, so that he may neither be wholly hurried away to pleasures in a rash manner (for in this case he would not be free from pain), nor yet suffer any other to act in this manner, whether he is an old or a young man, of the male or female sex. But he will least of all suffer this to be the case with infants. For all the manners then, through custom, inhere in every one in the most firm and powerful manner. And further still, if it were not that I should appear to jest, I should say that pregnant women ought more than other women so to be managed, that during the year of their pregnancy they may neither be engaged in certain numerous and insane pleasures, nor be agitated by pain, but lead a benignant, benevolent, and mild life.

792d

Clinias: There was no occasion for you, O guest, to ask Megillus, which of us spoke in the more proper manner;

792e

for I agree with you, that all men ought to fly from a life of unmingled pleasure and pain, and that they should always pursue a certain middle condition. You have, therefore, both spoken and heard in a becoming manner.

793a

Guest: With very great rectitude, therefore, O Clinias. But, besides these things, let us all three consider this.

793a

Clinias: What?

793b

Guest: That all these particulars which are now discussed by us are called by many unwritten laws, and that those which are denominated the laws of a country are no other than all these. And further still, that what we just now said, that these particulars ought neither to be called laws, nor yet suffered to be passed over in silence, was beautifully asserted. For these are the bonds of every polity, subsisting between all laws that are as yet and will be hereafter written, and being as it were altogether the laws of a country, and such as are in every respect antient. These, when established in a becoming manner, and rendered familiar, will invest the written laws with every kind of safety. But when they are established in an unbecoming manner, confusion will be the consequence:

793c

just as in edifices, when the pillars by which they are supported are taken away, the whole falls to the ground, some things lie under others, and those parts of the structure which were beautifully raised on the pillars become a heap of ruins, through the falling of their supporters. In consequence of considering this, O Clinias, it is proper that you should bind your city on all sides, as being a new city, and that to the utmost of your power you should not omit any thing either

great or small, which may be called laws, or manners, or studies: for by all these a city is bound together; but no one of these can be stable without the rest. So that it is not proper to wonder, if, in consequence of many and at the same time small things appearing to us to be legal, or this being the case with a conflux of customs, the laws should become more extended.

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Clinias: You speak properly; and we shall think in this manner.

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Guest: If any one, therefore, accurately accomplishes these things, in both male and female children of three years old, and does not negligently make use of what has been said, he will procure no small advantage to such as are recently educated.

794a

But these things will be accommodated to the disposition of children of three, four, five, and six years of age. Luxury too should be removed from them; and they should be chastized, but not in an ignominious manner. But, as we said respecting slaves, that they should neither be chastized with insolence, as this would excite them to anger, nor yet be suffered to go unpunished, as this would render them delicate; the same mode of conduct should be observed towards those that are free. Sports, however, are to children certain spontaneous things, which when they engage in, they nearly of themselves invent. All children then of this age should assemble in the temples of the respective districts, from three to six years of age; the nurses of these still keeping a watchful eye over their orderly behaviour and incontinence. But one out of each of the twelve women should be placed over the nurses, and the whole herd, for the space of a year; and her province must consist in taking care that every thing prescribed by the guardians of the law is executed in an orderly manner.

794b

These should be chosen by the women that preside over marriages; one out of each tribe, and of the same age with themselves. She who is

established in this office should go every day to a temple, and always punish the person that acts unjustly, viz. a male and female slave and a stranger of either sex, herself, by means of certain servants of the city; but a citizen, when she is doubtful respecting his punishment, must be taken by her to the ædiles to receive his sentence. But when the punishment which a citizen deserves is not dubious, she herself shall inflict it. After children are six years of age, the males should be separated from the females; boys should associate with boys, and girls in a similar manner with each other. It is likewise proper that the attention of each should be directed to disciplines; the males being sent to the masters of equestrian exercises, of bows, darts, and slings; likewise the females, if discipline of this kind is allowed them; and especially that they may become acquainted with the use of arms. But now almost all men are ignorant how things of this kind are circumstanced.

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Clinias: What do you mean?

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Guest: That things on the right hand seem to differ naturally from those on the left, with respect to the several actions of the hands. For the feet, and the inferior parts of the body, do not appear to possess any difference with respect to labour. But in the hands we each of us become as it were lame, through the ignorance of our nurses and mothers. For each of the members naturally possesses nearly equal power; but they not properly using them, through custom we make a difference between them.

795a

For, indeed, in certain employments there is no great difference in the use of the hands. Thus, using the lyre with the left hand, and the plectrum with the right, is a thing of no consequence; and so in other things of a similar nature. But not to use these examples in other particulars is nearly folly. The law of the Scythians, indeed, evinces the truth of these observations. For they not only hold the bow in

their left hand, and the arrow in the right, but similarly employ both hands for both these. And there are many other examples of this kind in charioteers and others.

795b

From all which we may learn, that those who render the left hand more imbecil than the right act contrary to nature. This, as I have said, is a thing of no great consequence in horned plectra, and such-like instruments; but in battle, where it is necessary to use iron, bows, and spears, it is of great consequence. But it is by far of the greatest importance when it is requisite to use arms against arms. There is, indeed, a great difference between one that learns and one that does not learn, and between him who is exercised and him who is not exercised. For, as he who is perfectly exercised in the pancratiun, or in boxing, or wrestling, is not incapable of fighting from his left-hand parts, but becomes lame and confused in his motions when any one, causing him to change his position, compels him to exercise himself from his right-hand parts;—the same thing, in my opinion, ought to appear proper in arms, and in every thing else. For he who possesses a twofold power, viz. of defending himself, and vanquishing others, ought not to suffer, to the utmost of his power, either of these to remain indolent and without skill.

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And if any one had the nature of Geryon or Briareus, since in this case he would be capable of using a hundred hands, he ought with all these hands to hurl a hundred darts. All these particulars ought to be under the direction of the male and female governors; the female governors inspecting the sports and nutriment of the children, but the male their disciplines, that, all the boys and girls having the perfect use of both their feet and both their hands, they may as much as possible in no respect injure nature by custom.

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But it will happen that twofold disciplines must be used; gymnastic, for particulars pertaining to the body; and music, for such as pertain

to the good condition of the soul. Again, however, gymnastic is twofold; dancing and wrestling. And of dancing, one kind imitates the diction of the muse, preserving the magnificent in conjunction with the liberal;

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but another kind, for the sake of the good habit, lightness, and beauty of the parts and members of the body, aptly bends and stretches each, imparting to them rhythmical motion, disseminating, and at the same time following the whole order of dancing.

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With respect to wrestling, that which Antæus or Cercyon adopted among their arts, for the sake of useless contention, or the boxing employed by Epeus³⁹ or Amycus⁴⁰, since they are of no use in battle, they do not deserve to be mentioned. But the particulars respecting proper wrestling, by clinging round the neck, or with the hands, or round the sides, when desire of victory and a good habit of body are applied for the sake of strength and health,—these, as they are useful to every purpose, are not to be omitted;

796b

but both masters and disciples are to be enjoined, that, when we establish the laws respecting these, all such particulars may be benevolently imparted to the one, and gratefully received by the other. Nor must such imitations in choirs as are fit to be imitated be omitted; in this place, indeed, the armed sports of the Curetes; but, in Lacedæmon, of the Dioscuri. Our virgin too and mistress Minerva, being delighted with the sport of the choir, does not think it fit to play with empty hands; but, being perfectly adorned with complete armour, she in this manner completes the dance.

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It will be proper that all the boys and girls should imitate the goddess in this respect, honouring her benevolence, in the necessity of war, and for the sake of festivals. It will likewise be proper that boys, immediately before they go to battle, should supplicate and make

sacred processions in honour of all the Gods, being at the same time adorned with arms and horses, and performing their supplications to the Gods and the sons of the Gods, sometimes swifter, and sometimes slower in dancing, and as they proceed to battle.

796d

Contests too, and preludes of contests, should be used, for no other purpose than for the sake of these things. For these, both in peace and war, are useful to a city and to private families. But other labours, sports, and exercises respecting the body are not, O Megillus and Clinias, liberal. And thus that gymnastic, which I said in our former discourse ought to be discussed, is nearly now absolved. But, if you have any thing better than this, speak, and do not withhold it.

796e

Clinias: It is not easy, O guest, omitting these, to have any thing better to say about gymnastic and contest.

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Guest: It follows, therefore, that we should speak about the gifts of the Muses and Apollo, which we formerly thought we had so sufficiently discussed, that the particulars about gymnastic alone remained; but now it is evident that there is something respecting these which should be mentioned before every thing else. Of this, therefore, we will in the next place speak.

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Clinias: By all means.

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Guest: Hear me, therefore; for you have heard me in what has been already discussed. But at the same time it is requisite that both the speaker and hearer should be cautious in mentioning that which is vehemently wonderful and unusual. This also should be the case at present. For I am now going to assert something which cannot be mentioned without fear; but at the same time, assuming courage, I shall not desist.

797b

Clinias: What is this, O guest?

797b

Guest: I say, that all cities are ignorant that the stability or mutation of sports is the principal thing respecting the promulgation of laws. For when it is so ordered, that the same persons always use, and are delighted with, the same sports, according to the same, and in a similar manner, legal institutions are then permitted to remain established in quiet. But when sports are changed, and innovations made in them, so that young men are perpetually engaged in new sports, both in the figures of their bodies and other apparatus;

797c

continually form a different opinion of the becoming and unbecoming in these particulars; and in the highest degree honour the inventors of new figures, colours, and every thing else of this kind;—when this is the case, we say, and say with the greatest rectitude, that a greater mischief cannot befall the city. For it secretly changes the manners of the youthful part of the inhabitants, and causes them to despise that which is antient, and honour that which is new. But I again say, that there is not any thing more detrimental to all cities than this assertion and dogma. Hear, however, what a mighty evil I say it is.

797d

Clinias: Do you speak of blaming antient institutions in cities?

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Guest: Entirely so.

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Clinias: You shall not, therefore, find us depraved auditors of this discourse, but as much as possible most benevolent.

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Guest: It is reasonable to suppose that you will be so.

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Clinias: Only speak, therefore.

797e

Guest: Come then, let us hear this with greater attention, and thus speak among ourselves. We find then, that mutation in all things, except such as are evil, is in the highest degree pernicious at all times in the diet of bodies, in the manners of souls, and, in short, in every thing except, as I just now said, in things evil. So that, if any one directs his attention to bodies, and considers them as accustomed to certain kinds of food, drink, and labours, he will find that at first they are disturbed by them, but afterwards by the long continued use of these acquire flesh, become friendly, accustomed, and familiar to all this diet, and are disposed in the best manner with respect to health and pleasure.

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He will likewise find, that if at any time they are forced to change any part of their approved diet, at first they are disturbed by disease, and do not recover their health till they are accustomed to the new food. The same thing must be considered as taking place in the thoughts of men, and the natures of souls. For every soul reverences and fears to make any change in the laws in which it has been educated, when by a certain divine good fortune those laws have remained for a long time unmoved, so that no one either recollects or has ever heard that they subsisted otherwise than at present.

798b

The legislator, therefore, ought to devise some method by which this may be accomplished in the city. But I have discovered the following method: All men, as I have said before, consider the sports of youth when changed, as nothing more than mere sports, and are far from thinking that they are of the greatest consequence. Hence, they do not resist this mutation, but comply with it.

798c

Nor do they consider, that the children who engage in these new sports necessarily become different men from what they would have been if their old sports had remained; but, becoming different, that they will pursue a different life, and thus be accustomed to different

studies and laws. Hence, no one fears that what I just now called the greatest evil will by these means happen to cities. Mutations, therefore, respecting figures are less noxious. But frequent innovations in praising and blaming manners are, in my opinion, the greatest of all evils, and the most to

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be dreaded.

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Clinias: Undoubtedly.

798e

Guest: What then? Shall we believe in our former discourse, in which we said that the particulars respecting rhythm, and every kind of music, were imitations of the manners of better and worse men? Or how shall we say?

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Clinias: Our opinion is in no respect different from this.

798e

Guest: We say, therefore, that we should endeavour, by every possible contrivance, that neither children in our city may desire other imitations in dancing and singing, nor any one may persuade them to this innovation by introducing all-various pleasures.

798e

Clinias: You speak with the utmost rectitude.

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Guest: Has any one then of us any art better calculated for this purpose than that of the Egyptians?

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Clinias: What art are you speaking of?

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Guest: That every kind of dancing and melody should be consecrated; instituting, in the first place, festivals at certain times of the year, in honour of the several Gods, the sons of Gods, and dæmons; and after

this, the sacrifices to the different divinities, together with the ode and choirs with which the sacrifices are to be honoured. After these things are established, all the citizens in common should sacrifice to the Fates, and to all the other Gods, and dedicate their several odes to each of the Gods and their attendants. But if any one introduces other hymns and choirs in honour of the Gods than those which are instituted by law, the priests and priestesses, together with the guardians of the laws, shall, in a holy and legitimate manner, repulse him in his undertaking. And he who is repulsed, if he is not willingly restrained, shall suffer the punishment of his impiety through the whole of life, from any one who is willing to inflict it.

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Clinias: Right.

799c

Guest: But since we are arrived thus far in our discourse, we should be affected in a becoming manner.

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Clinias: About what are you speaking?

799d

Guest: All men, not only the old but the young, when they see or hear any thing unusual, do not immediately assent to that which is dubious respecting it, directly, as it were, running to embrace it; but, standing still, as if situated in a place where three roads meet, and not very much seeing the right way, inquire, and do not proceed any further till they have a firm assurance respecting the road they should take. We too should act in a similar manner at present. For, as we have now fallen upon an unusual and wonderful discourse respecting laws, we ought necessarily to make every possible inquiry, and not readily decide, being such men as we are, on things of such great importance, or attempt to assert any thing immediately, as if the subject was perfectly clear.

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Clinias: You speak most truly.

799e

Guest: We will, therefore, give the subject time, and then firmly decide upon it, when it has been sufficiently considered by us. But lest we should in vain leave the order consequent to laws unfinished, let us proceed to the end of them. For, perhaps, if divinity is willing, and this discussion obtains its completion, what is at present dubious may become sufficiently clear.

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Clinias: You speak most excellently, O guest, and we shall do as you say.

799e

Guest: We say, then,

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that this wonderful thing must be granted,—I mean, that odes must be established for us by law; just as the antients, as it appears, proclaimed respecting singing to the harp. So that they, perhaps, did not entirely dissent from what is said by us at present; but in a dream, as it were, or roused to a vigilant state, they either dreamt or prophesied this. Let this then be the decree respecting it:—No one shall dare to sing any thing besides the public and sacred songs, or make any alteration in the whole choir of the young men, or utter any thing contrary to the other laws. And he who complies with this decree shall be liberated from fine; but he who does not comply, as we said just now, shall be punished by the guardians of the laws, and by the priests and priestesses. Let these things, therefore be now established for us in discourse.

800b

Clinias: Let them be established.

800c

Guest: But after what manner can any one so establish them by law as that he may not appear perfectly ridiculous? It appears to me that it will be the safest way to fashion them first of all in our discourse like certain images. I say, then, that one of the images is as follows: The

sacrifice being performed, and the victims burnt according to law, if some private person, a son for instance, or a brother, should approach the altars and sacred rites blaspheming with every kind of blasphemy, would we not say that he uttered a sorrowful and bad omen and prophecy, both to his father and the rest of his kindred?

800d

Clinias: Undoubtedly.

800d

Guest: This, therefore, in short, must nearly take place in all our cities. For, when any magistrate performs any sacrifice in common, not one choir, but a multitude of choirs assemble on the occasion; and standing not far from the altars, but sometimes close to them, they utter every kind of blasphemy respecting the sacred concerns, exciting the souls of the hearers with words, rhythms, and the most lamentable harmonies: and he who causes the city to weep most abundantly immediately after the sacrifice is finished, bears away the palm of victory. Shall we not abrogate this law?

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And if, at any time, it is necessary that the citizens should hear lamentations of this kind, it should not be on certain sacred, but rather on inauspicious days: and then it will be proper that rather certain foreign choirs, conducted by hire, should sing on this occasion, as is the case at funerals, where those who are hired for the purpose walk before the dead with a certain *Caric Muse*⁴¹. A thing of this kind may very properly be adopted about such odes as these. A long robe too will be proper for funeral odes, and not crowns or golden ornaments. But, in short, every thing of a nature contrary to these should be employed on this occasion, that I may dismiss all further discourse about these particulars with the utmost celerity. I again, therefore, ask if it is agreeable to you, that this first image should be established for odes?

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Clinias: What kind of image?

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Guest: A good omen. And, indeed, the genus of the ode should every where, and in every respect, be employed in prognosticating well. Or shall I not at all ask your opinion, but thus establish it?

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Clinias: By all means, establish it: for this law will vanquish by the unanimous votes of all men.

801b

Guest: What then, after good omination, will be the second law of music? Will it not be, that prayers should be offered to the respective Gods to whom we sacrifice?

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Clinias: Undoubtedly.

801b

Guest: But the third law, I think, will be, that since poets know that prayers are petitions addressed to the Gods, they ought to be careful in the highest degree, lest they should ignorantly request what is evil, as if it were good. For I think the condition of him who prays in this manner would be ridiculous.

801b

Clinias: Undoubtedly.

801b

Guest: Did we not a little before agree, that neither silver nor gold ought to be considered as riches in our city?

801b

Clinias: Entirely so.

801b

Guest: Of what then shall we say this discourse is the paradigm? Is it not of this, that not every genus of poets is sufficient to know, in the highest degree, things good and evil? If, therefore, any poet, either in prose or verse, shall compose for us improper prayers, he shall be made by the citizens to pray for the contrary to what he asked in his prayers, in things of the greatest importance: though, as we have

already said, we shall not find many offences greater than this. But we shall establish this as one of the laws and forms respecting the Muse.

801c

Clinias: Which? Speak to us more clearly.

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Guest: That a poet shall not compose any thing, either beautiful or good, different from the legal and just institutions of the city. Nor shall he be permitted to show what he has composed to any private person, before the judges and guardians of the law, appointed for this purpose, have seen and approved it. But it has nearly been shown by us, who those are whom we have chosen to preside over music and discipline. Shall I then, as usual, ask whether this law, formula, and third image, is to be established for us? Or how does it appear to you?

801d

Clinias: That it should be established, undoubtedly.

801e

Guest: After these things, it will be most proper that hymns, and encomiums of the Gods, should be sung mingled with prayers; and after the Gods, in a similar manner, that proper prayers, with encomiums, should be offered to dæmons and heroes.

801e

Clinias: Undoubtedly.

801e

Guest: But, after this law, the following will take place without envy. It will be proper that those citizens who have accomplished beautiful and laborious works, pertaining either to bodies or souls, and who have been obedient to the laws, should after their decease be celebrated.

801e

Clinias: Undoubtedly.

801e

Guest: But to honour those who are yet alive, with

802a

encomiums and hymns, and before, having completely run the race of life, they have arrived at a beautiful end, is not safe. Let all these particulars be established for us, common both to men and women that have been illustriously good. But it will be proper that odes and dancings should be established in the following manner:—There are many antient and beautiful poems about music, and in a similar manner about dancing. Out of these to choose that which is becoming and adapted to an established polity, cannot be the means of exciting envy. The electors of these shall not be less than fifty years old.

802b

These shall choose that poem out of the antient poems which appears to be sufficient for the purpose. But that which is insufficient, or altogether unfit, they shall either entirely reject, or commit to poets and musicians to be properly corrected, employing for this purpose their poetical abilities. They shall not apply to these for the gratification of desire, or for pleasures, except in a very few cases; but, the will of the legislator being made known, all dancing, every ode, and every choir, shall be instituted according to their determination.

802c

For every employment about a Muse, which is conducted in an orderly manner, though a sweet Muse is not added, is ten thousand times better than every disorderly pursuit of a Muse. The pleasant, however, is common to all the Muses. For every one considers that to be pleasant with which he has been conversant from infancy to mature age. And if he has been familiar with a prudent and orderly Muse, when he hears one of a contrary character, he hates, and calls it illiberal. But he who has been educated in familiarity with a common and sweet Muse, calls the contrary to this frigid and unpleasant. So that, as I just now said, neither the pleasant nor the unpleasant has any peculiar privilege. But the case is different with respect to emolument and detriment: for the one renders those who are educated in it better, and the other worse.

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Clinias: It is well said.

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Guest: Further still, it will be proper to separate the songs which are adapted to the women from those which are adapted to the men, defining them by a certain formula, and accommodating them to harmonies and rhythms. For to be dissonant from the whole of harmony, or foreign from rhythm, attributing to melodies nothing adapted to each of these, is a dire circumstance. It is necessary, therefore, that the figures of these should be established by law, and both be properly attributed to both. But that which is accommodated either to men or women ought to be rendered manifest from the difference of the nature of each. That which is magnificent, therefore, and verges to fortitude, must be called virile; but that which more inclines to the ornamental and the moderate must be delivered, both in law and in discourse, as of a more feminine nature.

803a

This, then, is the order. In the next place, let us declare after what manner, by whom, and when, each of these are to be accomplished. But as a shipwright, when he lays down that which is the principle in the construction of a ship, describes the form of the keel; in like manner, I appear to myself to do the same thing. For, while I endeavour to distinguish the figures of lives according to the manners of souls, I in reality lay down the keels of them, and very properly consider by what device, and after what manner, we may transport in the best manner life over this sea of life. Human affairs, indeed, are not worthy of great attention; yet it is necessary that they should be attended to. But this is not an unfortunate circumstance. Since, however, we are here, if we can in a certain respect accomplish this in a convenient manner, it will, perhaps, be sufficient for us. But some one may, perhaps, very properly inquire what it is that I now say.

803b

Clinias: Some one may.

803b

Guest: I say, then, that a thing of a serious nature ought to be seriously studied, but that this ought by no means to be the case with that which is not of a serious nature. And that divinity, indeed, is naturally worthy of every blessed study, but that man, as I said before, was fashioned to be a certain sport⁴² of divinity. This, indeed, is truly the most excellent thing which he possesses. It is necessary, therefore, that every man and woman, pursuing this mode, and engaging in the most beautiful sports, should thus pass through life, thinking, in a manner, entirely contrary to what they do at present.

803d

Clinias: How?

803d

Guest: Now, indeed, they think that serious pursuits ought to subsist for the sake of sports.

803e

For they consider that warlike concerns, which are things of a serious nature, ought to be well disposed for the sake of peace. But neither does sport naturally belong to war, nor was there ever any discipline in it which deserves to be mentioned, nor is there at present, nor will be. But we say that this is a thing of a most serious nature,—I mean, that every one ought to pass through life, for the most part, and in the most excellent manner, in peace. What the proper manner, therefore, is of sporting through life, and what the sports are which should be employed in sacrifices, in singing and dancing, so that the Gods may be rendered propitious, and enemies opposed and vanquished in battle;

804a

likewise, by what songs and dances both these may be accomplished;—of all these particulars we have delivered the formulæ, and, as it were, cut the paths in which we should proceed. The poet too appears to speak well when he says: “You will conceive, O Telemachus, some things from yourself, but others the dæmon will suggest to you. For I

do not think that you were born and nourished with unfavourable Gods⁴³.” Such too ought to be the conceptions of our pupils. For they should think that what we have already said has been sufficiently said; and that the dæmon and divinity will suggest other things to them respecting sacrifices and choirs, viz. what divinities they ought to render propitious in their sports, and when; at the same time living in a natural manner, and being themselves, for the most part, prodigies, but participating certain small portions of truth.

804b

Megillus: You vilify, O guest, in every respect the human race.

804b

Guest: You should not wonder at this, O Megillus, but pardon me.

804c

For, looking to divinity, and being affected with the view, I have said that which I just now said. But let our race not be any thing despicable (if it is agreeable to you), but worthy serious attention. After these things the public buildings for gymnastic exercises and disciplines have been spoken of, and placed in a tripartite manner in the middle of the city. The gymnasia too of the horses have, in a similar manner, been assigned a tripartite distribution in the suburbs of the city, together with ample places adorned for the sake of the young men, that in these they may exercise themselves with the bow and arrow, and in other jaculations; and may be properly disciplined and attended to. If, therefore, we did not then sufficiently speak about these particulars, let us now discourse about them in conjunction with the laws.

804d

Of all these, then, foreign masters should be hired, who residing in these ample places may teach every one that shall come to be instructed, the warlike and musical disciplines; not only instructing those whom their parents wish to be taught, and rejecting others, but, as it is said, teaching every man and boy to the utmost of their power, as being those who from necessity discipline the city rather than

children. My law too asserts the same things about females as about males; and says, that the former ought to be equally exercised with the latter. Nor shall I be afraid to say, that both the gymnastic and equestrian disciplines are adapted to women as well as to men.

804e

For I am persuaded of this through hearing antient fables. But, in short, even at present, I know that there are innumerable myriads of women about Pontus, called Sauromantides, who are ordered equally to use, and equally to be exercised in, horses, bows, and other arms, in common with the men. But besides this I reason in the following manner about these particulars: I say, if it is possible that these things may subsist in this manner, the custom of our country, which excludes women from engaging with all their strength in the same pursuits as men, is the most foolish of all customs. For thus every city is nearly rendered half instead of double, from the same effects and labours. Though, indeed, this is a wonderful error of the legislator.

805b

Clinias: So it appears. Yet, O guest, many of the things asserted by us at present are contrary to the custom of a polity.

805c

Guest: But we ought to permit the subject of our discourse to be well discussed; and, when discussed, it is requisite to select that which appears to be best.

805c

Clinias: You have spoken very elegantly, and you have made me reprove myself for what I just now said. Speak, therefore, after this, whatever is agreeable to yourself.

805d

Guest: That is agreeable to me, O Clinias, which I said above; that, if it should appear these things could not be sufficiently accomplished, they may perhaps be contradicted in discourse. But now, if some one is by no means disposed to admit this law, he ought to inquire after something else. Nevertheless our exhortation will not cease to assert

that women ought in the highest degree, in our city, to participate in common with the men of discipline and other particulars. For in a certain respect it is requisite to think as follows on this subject. Admit that women are not to participate in common with men, in every thing pertaining to life, will it not be necessary that another order should be assigned to them?

805e

Clinias: It will be necessary.

805e

Guest: What other order then among those which exist at present, shall we assign them in preference to that of our communion? Shall we adopt that of the Thracians and many other nations, who use women for the purposes of agriculture, and in the place of herdsmen and shepherds, in the very same manner as they use their slaves? Or shall we adopt the custom of our country, and that of all our neighbouring cities? For, with us, all possessions, as they are called, are collected together into one habitation, and the care of provisions, shuttles, and every thing pertaining to the manufacture of wool, is committed to women.

806a

Or shall we, O Megillus, choose a medium between these, the Laconic mode? so that virgins shall engage in gymnastic exercises and music; but women, during the time of peace, shall take care of the manufacture of wool, at the same time leading an active, but by no means a depraved and abject life? And further still, shall they bestow a certain kind of middle attention to the care of provisions and the education of children, but shall not engage in war; so that, if it should be necessary at any time to defend the city and their children, they may neither be able to use bows like certain Amazons, nor be skilled in any other kind of jaculation, nor yet to imitate the Goddess with spear and shield, and make a generous resistance for their besieged country, so as to be able,

806b

when beheld in a certain order, at least to terrify the enemy, if they can accomplish nothing greater than this? But, if they live in this manner, they will by no means dare to imitate the Sauromantides, who will appear to these women to be men. Let him, therefore, who is willing to praise your legislators for these things, praise them: but my opinion respecting them will never alter. For a legislator ought to be a perfect and not a half character, who suffers the female sex to be lost in luxury, and to use improper diet, but takes consummate care of the male sex, and thus nearly leaves for the city the half instead of the double of a happy life.

806c

Megillus: What shall we do, O Clinias? Shall we suffer our guest thus to censure the Spartans?

806c

Clinias: Certainly. For, since liberty of speech is given to him, he must be suffered to go on, till laws have in every respect been sufficiently discussed.

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Megillus: You speak very properly.

806d

Guest: It is, therefore, nearly my province to endeavour to discuss what is subsequent to this.

806e

Clinias: Undoubtedly.

806e

Guest: What then will be the mode of life by which necessities may be moderately procured for men? so that arts may be left to others, but agriculture committed to slaves, who may procure the first fruits of the earth, so as to be sufficient for men that live in a moderate manner; likewise, that eating in common may be adopted, the men being placed apart, and their domestics situated near them; also the female offspring, together with their mothers.

807a

Further still, that male and female governors may be placed over these public banquets, so as to dissolve them every day, and inspect the behaviour of all those that eat in common; and who may return home after the governor and the rest have made libations to those Gods to whom that day or night is dedicated. To men governed in this orderly manner, will no necessary work, and which is in every respect adapted to them, be left? But is it necessary that each of them should live after the manner of cattle, paying attention to nothing but growing fat? This therefore, we say, is neither just nor beautiful: nor is it possible that a man who lives in this manner can obtain that which is adapted to his nature. But to a sluggish animal, and which grows fat through indolence, it belongs to be torn in pieces by another animal who is vehemently exercised by fortitude and labours. If, therefore, we investigate these things with the accuracy which we employ at present, we shall perhaps find that they will never take place as long as women and children, private houses, and every thing else of this kind, are made to be private property. But those particulars which are secondary to these, and have just now been mentioned by us, if they take place, should be established in a very moderate manner. We say then that a work remains for those that live in this manner, which is neither the smallest nor the most vile, but the greatest of all things which are ordained by a just law.

807b

For, as he who aspires after victory, in the Pythian or Olympian games, neglects every other pursuit, so his soul is filled with a double, or more than a double employment, who devotes himself in the most proper manner to the virtue of the soul and body. For no other employment ought to become an impediment to a proper attention to the body, and to the disciplines and manners of the soul.

807c

But, indeed, every night and every day are scarcely sufficient for him who does this, to accomplish his end in a perfect and sufficient manner. Since these things, therefore, naturally subsist in this

manner, the whole time of employment ought to be always orderly assigned to liberal men, in a continued succession, from one rising of the sun to another. The legislator, indeed, will appear ungraceful, who says many and trifling things about domestic government, and among these about the necessity of nocturnal vigilance, in order that the whole city may be continually defended with accuracy.

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For it ought to be considered as base, and not liberal, by

807e

all men, for any citizen to pass the whole night in sleep, and not to be always the first that is roused and seen by all his domestics; whether it is proper to call a thing of this kind a law or an institute. Besides this, it ought to be reckoned base by female slaves, for the mistress to be roused by them, instead of being herself the first to rouse the rest, viz. both male and female slaves, her children, and in short, if possible, the whole house.

808a

All free persons, therefore, rising by night, should perform the many necessary political and œconomic duties of their stations; the governors, those pertaining to the city, and masters and mistresses, those pertaining to their families.

808b

For much sleep is neither naturally adapted to bodies nor to souls, nor to the actions of these. For he who is asleep is of no more worth than that which is destitute of life; but, whoever among us is careful in the highest degree that he may live and be wise, will be vigilant for the greatest part of his time, sleeping no longer than is necessary to the preservation of health.

808c

But much of this will not be requisite for him who is familiar with good habits. Magistrates, indeed, who are vigilant by night in cities, are a terror to evil men, whether they are enemies or citizens, but are

admired and honoured by the just and the wise; and are both useful to themselves and the whole city.

808d

The night being passed through in this manner, besides all the above-mentioned advantages, produces likewise a certain fortitude in the souls of the citizens. On the dawn of day it will be proper that boys should go to their masters. For neither cattle nor any thing else should live without a shepherd; nor boys without certain teachers, nor slaves without masters: but *a boy is the most difficult to manage of all wild beasts*. For, in consequence of the fountain of prudence in him not being yet perfect, he becomes insidious and vehement, and the most insolent of wild beasts. On this account it is necessary to bind him with a multitude of chains: and as soon as he is freed from his nurse and mother, he should be committed to the care of pedagogues, on account of his childishness and infancy, and afterwards to preceptors, that, as a free-born animal, he may be instructed in proper disciplines. But if the boy is born a slave, let it be lawful for any free-born man to punish the child, pedagogue, and preceptor, whenever he detects them acting improperly.

808e

But whoever is present on this occasion, and does not justly punish the offenders, shall in the first place be subject to the greatest reproach; and, in the next place, he who was chosen by the guardians of the law to preside over boys, shall take notice whether he whom we have mentioned does not chastize these offenders, when it is fit they should be chastized, or does not chastize them in a proper manner.

809a

For he must be an acute inspector, and one who diligently attends to the education of boys, and regulates their natures, always converting them to that which is legally good.

809b

But in what manner will the law furnish us with sufficient instruction in this particular? For this has not yet been delivered either clearly or

sufficiently, but only in a partial manner. It is however necessary, that to the utmost of our power nothing should be left incomplete, but that every thing should be unfolded, that our discourse may be to others both an interpreter and a nourisher. We have, therefore, already spoken concerning the form of a choir of singing and dancing, which among these are to be chosen, corrected, and dedicated to divinity.

809c

But we have not yet spoken concerning prose compositions, which of these, and in what manner, O most excellent superintendant of boys, they are to be delivered to those under your tuition. Though you have in our discourse the particulars which they ought to learn and study, respecting war. For the things, my friend, pertaining to letters have in the first place been sufficiently discussed by the legislator. In the next place, those pertaining to the lyre, and such as are of a memorable nature, which we said it was necessary to mention, together with warlike and oeconomic concerns. After this, the legislator discussed those particulars respecting the periods of divine bodies, viz.

809d

of the stars, the sun, and the moon, which ought to be established by every city. But of what particulars are we speaking? I answer, Of the order of days with respect to the periods of months, and of months with respect to years, that seasons, sacrifices, and festivals, receiving that which is accommodated to them, and being disposed in a natural order, may render the city alive and vigilant, attributing proper honours to the Gods, and causing men to be more wise about the worship of divinity. These things, O friend, have thus been sufficiently discussed for you by the legislator. Attend, therefore, to what follows:

809e

We say that all has not been said about letters that might be said, because it has not yet been determined whether he who is to become a moderate citizen ought to possess an accurate knowledge of discipline, or by no means apply to it. In a similar manner, too, respecting the lyre. Boys, therefore, of ten years of age should apply to

letters for nearly the space of three years. And those who are thirteen years old should bestow in like manner three years on the study of the lyre. Nor shall it be lawful for a father to keep his children to these studies for a shorter or longer space of time, nor for a child to apply to them, whether he is a lover or a hater of discipline.

810a

But he who is not obedient to the law in this respect, let him be deprived of those youthful honours which we shall shortly mention.

810b

However, in the first place, hear what masters ought to teach, and youth to learn, during this period. They should labour at letters till they are able to read and write. But we should not be at all concerned that those who are not naturally quick make neither rapid nor beautiful advances in allotted portions of time. With respect to those monuments of the poets destitute of the lyre, which are partly written in measure, and are partly without the sections of rhythm, O ye best of all guardians of the laws, what use will ye permit to be made of those writings, which, being destitute of rhythm and harmony, are deceitful compositions, and are left us by certain men of this description? It appears to me, that the legislator himself will very much doubt what is to be done in this case.

810b

Clinias: What is this, O guest, which you appear to say, doubting with yourself?

810c

Guest: Your question is very pertinent, O Clinias. But to you, who speculate in common with me respecting laws, it is necessary that I should speak both that which appears certain, and that which appears dubious.

810d

Clinias: What, therefore, do you now say respecting these? And what is it that moves you to speak in this manner?

810d

Guest: I will tell you. For it is by no means easy to speak contrary to what has been often said by ten thousand mouths.

810d

Clinias: But what? Does it appear to you that the few and inconsiderable particulars which have been above mentioned by you respecting laws, are contrary to the sentiments of the multitude?

810e

Guest: You have spoken this with the greatest truth. For, as it appears to me, you exhort me to proceed confidently in this road, though it is arduous and odious to many, and advance through the path of laws which our present discourse has unfolded, without omitting any particular. And, perhaps, a journey of this kind will be pleasing to no less a multitude of a different description; but, if to a less, it will not be a worse multitude.

811a

Clinias: Undoubtedly.

811a

Guest: I shall not therefore desist. I say, indeed, that we have many poets who have written in hexameter, and many who have written in trimeter⁴⁴ verse; among which the intention of some has been serious in these compositions, but of others jocose. An innumerable multitude too of such as are skilled in these writings have often said, that children who are properly educated must be abundantly nourished with those poetical compositions by often hearing them read; and, in short, must be made learned by committing all the poets to memory. But others say, that a selection should be made of the principal things in all the poets, and that certain entire sentences collected for this purpose should be committed to memory, if any one among us is desirous of becoming a wise and good man through much experience and skill in a multitude of particulars. Do you, therefore, now order me to explain what is beautifully said, and what not, among these assertions?

811b

Clinias: Undoubtedly.

811b

Guest: Shall I, in one word, therefore say what I think sufficient about all these? I am of opinion, indeed, that every one will allow me to say, that many things are beautifully asserted by the poets, and many things quite the contrary. But, if this be the case, I say that polymathy is dangerous to youth.

811b

Clinias: How then, and what would you advise the guardian of the law to do?

811b

Guest: Of what are you speaking?

811b

Clinias: Of the paradigm, by looking to which the guardian of the laws may permit some things to be learnt by all boys, and may forbid others. Speak, and do not be remiss in answering this question.

811c

Guest: O good Clinias, I appear in a certain respect to be fortunate.

811c

Clinias: About what?

811d

Guest: Because I am not entirely destitute of a paradigm. For, now looking to the particulars which we have discussed from the rising of the sun to the present hour, *but not in my opinion without divine inspiration*, it appears to me that they are similar to a certain poesy. Nor perhaps is it wonderful that I should be very much delighted, on beholding our assertions collected as it were together in one. For, of all those above-mentioned numerous sentences which I have learnt and heard, those which we have collected in the present discourse appear to me to be the most moderate, and most fit to be heard by youth. So that I think I cannot propose a better paradigm to the guardian of the laws, and to the preceptor of youth, than this, that

they should exhort the masters to teach boys these things, together with such particulars as are consequent and similar to these, whether they are written in prose or verse, or are simply asserted without being written, but are conformable to these laws, and are, therefore, by no means to be neglected, but committed to writing.

811e

And, in the first place, the teachers themselves should be compelled to learn and praise these assertions: but those teachers must not act in the capacity of teachers by whom they are not approved. And, finally, boys must be committed to the care of those preceptors by whom these assertions are approved and praised. And thus much concerning letters, and the masters of letters.

812a

Clinias: We do not appear to me, O guest, to have wandered from the design of our discourse: but whether or not we are right upon the whole, is perhaps difficult to determine.

812b

Guest: But this, O Clinias, will become more apparent (as it is proper it should) when, as we have often said, we arrive at the end of this discussion of laws.

812b

Clinias: Right.

812b

Guest: Should we not, after having discussed the particulars about letters, speak concerning the master of the harp?

812b

Clinias: Undoubtedly.

812b

Guest: If we call to mind what has been already said by us, we assigned to the masters of the harp the province of imparting discipline and every kind of instruction about things of this sort.

812b

Clinias: Of what kind of things are you speaking?

812c

Guest: We said, I think, that the Dionysiacal singers of sixty years of age ought to become remarkably acute in their perception of rhythms, and the compositions of harmonies; so that, in those melodies which imitate the passions of the soul, they may be able to distinguish good from bad imitations,—rejecting the latter, but singing to and enchanting the souls of youth with the former, and thus inciting them through imitations to the possession of virtue.

812c

Clinias: You speak most truly.

812c

Guest: It is requisite, therefore, for the sake

812e

of these things, that both the harper and his pupil should use the sounds of the lyre, and likewise for the sake of the distinction of the chords; rendering sounds consonant to sounds. But it shall not be lawful to exhibit to those who, through the quickness of their apprehension, would in three years experience the utility of music, the different sounds, and variety of the lyre; the chords themselves producing certain melodies, and others being produced by the poet who composes the melody, so as to connect the dense with the rare, the swift with the slow, the acute with the grave, and the consonant with the dissonant, and in a similar manner harmonizing to the sounds of the lyre all the varieties of rhythms. For contraries when confused with each other are difficult to be learnt. But it is proper that youth should be taught with the greatest possible facility. For the necessary disciplines which they must acquire are neither small nor few. However, our discourse as it advances in conjunction with time will show what these are.

813a

And such are the particulars respecting music, which must be attended to by the master of youth. But the particulars respecting

those melodies and words which ought to be taught by the masters of choirs, we have already discussed. These we said ought to be consecrated in festivals, in an accommodated manner, so as that they may be advantageous to the city, in conjunction with prosperous pleasure.

813b

Clinias: These things too have been delivered by you, conformable to truth.

813b

Guest: He, therefore, who is chosen as governor respecting the Muse, must attend to these particulars in conjunction with benevolent fortune. But, as we have delivered what remained to be discussed respecting music, we shall do the same respecting dancing, and the whole of gymnastic pertaining to the body. For it is necessary that both boys and girls should learn to dance, and to be exercised. Is it not?

813b

Clinias: Certainly.

813b

Guest: Dancing-masters therefore must be chosen for boys, and dancing-mistresses for girls, that they may not be unaptly exercised in this art.

813c

Clinias: Be it so.

813c

Guest: Again, we call that man who engages in a variety of employments, the curator of youth, and who, since he attends to both music and gymnastic, cannot have much leisure.

813c

Clinias: How is it possible that, being advanced in years, he can attend to so many things?

813d

Guest: Easily, my friend. For the law has permitted, and will permit him to choose, as his associates in these employments, such men and women among the citizens as he pleases. But he knows who ought to be chosen, and will desire to choose worthy associates, as prudently knowing and reverencing the magnitude of government, and being well convinced that all our affairs will sail prosperously over the sea of life when youth are properly educated. But, when this is not the case, the consequence neither deserves to be mentioned, nor shall we mention it, as in the highest degree venerating the lovers of prophets in a new city. Much, therefore, has been said by us respecting dancing and all gymnastic motions. For we consider as gymnastic, all corporeal exercises in war, such as that of the bow, and every kind of hurling, likewise with the shield, and all the battles with arms;

813e

together with tactic evolutions, the conducting of armies, the positions of camps, and such particulars as pertain to equestrian disciplines. For it is proper that there should be common teachers of all these, procured by hire for this purpose by the city, and that both boys and girls, men and women, should be their disciples, that they may be skilled in all these particulars. And girls indeed should apply themselves to every kind of dancing and fighting in armour; but women to military evolutions, and the taking up and laying down of arms, if on no other account, yet that, if at any time there should be occasion for all the men leaving the city to march to battle, the women may be able sufficiently to defend the children and the rest of the city.

814a

Or, on the contrary, that they may take up arms for the city, if it should be attacked by foreign enemies, with a certain mighty strength and violence, whether they are Greeks or Barbarians; this being an event that may easily happen. For it is certainly a great fault in a polity, to educate women in so shameful a manner as to be inferior even to birds, who fight for their offspring with the strongest of

savage animals, are willing to die, and expose themselves to every danger in their defence. But women, according to the present mode of education, in time of danger immediately run to sacred places, and

814b

fill all the altars and temples, and thus give rise to an opinion that man is naturally the most timid of all animals.

814c

Clinias: By Jupiter, O guest, this is both disgraceful and detrimental to a city.

814c

Guest: We will, therefore, establish this as a law, that women shall not neglect warlike concerns, but that all the citizens, both male and female, shall pay attention to them.

814d

Clinias: I agree with you that it should be so.

814d

Guest: With respect to wrestling, therefore, we have said some things, but we have not discussed that which I should call the greatest thing, nor is it easy to discuss it without uniting gesticulation to the discussion. This, therefore, we shall then determine when our discourse, following things, indicates something clear about other particulars of which we have spoken, and shows that such a wrestling is, in reality, of all motions most allied to contention in battle: and, besides this, that such wrestling ought to be studied for the sake of war, but not war for such wrestling.

814d

Clinias: This assertion of yours is beautiful.

814e

Guest: Thus much, therefore, may suffice at present concerning wrestling. But with respect to every other motion of the body, the greatest part of which may be properly denominated a certain dancing, it must be divided into two species; one of which imitates

that which is venerable in more beautiful bodies, but the other, that which is depraved in baser bodies.

815a

And again, of each of these there are two species. For, of the worthy motion, one kind takes place when beautiful bodies and brave souls are entangled in war and violent labours: but the other, in the prosperous condition of the temperate soul in moderate pleasures. And he who calls a dancing of this kind pacific, denominates it according to nature. But of these, the dancing in battle, which is different from the pacific, may be properly called Pyrrhic; which imitates the avoiding of all blows and hurlings by declinations, every kind of yielding, leaping on high, and dropping on the ground; and likewise attempts to imitate the motions contrary to these, tending to efficacious figures, in the hurling of bows and spears, and in all kinds of blows.

815b

But the rectitude and proper tone both of good bodies and souls takes place for the most part when an imitation is employed which is advantageous to the members of the body. This, therefore, should be admitted as proper, but the contrary to this, as improper. This also should be considered in the pacific dancing of every one, viz. whether, engaging in beautiful dancing, according to nature, he conducts himself in the choirs in a manner conformable to those who are subservient to good laws.

815c

In the first place, therefore, it is necessary to distinguish the ambiguous from the unambiguous dancing. What then is this, and how is each to be distinguished? The ambiguous dancing is Bacchic, and belongs to those that follow the Bacchuses, viz. the Nymphs, Pans, Silenuses, and Satyrs, who, as they say, imitate those that are intoxicated with wine, and perform purifying and certain mystic ceremonies. The whole of this kind of dancing cannot easily be defined, either as pacific, or adapted to war; nor, in short, is it easy to

say what is the intention of it. But it appears to me that it may with the greatest rectitude be distinguished as follows:

815d

We must place the military dancing separate from that which is pacific, and assert that this kind of dancing is not adapted to war. Leaving it, therefore, thus situated, let us return to the military and pacific dancing, which may be praised as indubitably ours. But that kind of the pacific Muse which subsists in an opinion of a prosperous condition, and which honours the Gods and the sons of the Gods, in dancing, may receive a twofold division. For one kind is adopted when we have escaped certain labours and dangers, and have obtained good; and this contains greater pleasures. But the other kind subsists when the goods which we before possessed continue to be safe, and become increased; in which case the pleasures are of a milder nature.

815d

But in things of this kind every man, with respect

815e

to the motions of the body, is moved in a greater degree when the pleasures are greater, but in a less degree when they are less. And he who is more modest, and more exercised in fortitude, is moved in a less degree. But he who is timid, and unexercised in temperance, sustains greater and more vehement mutations of motion. And, in short, every one that emits a sound, whether in singing or in speaking, is not entirely able to accomplish this with a quiet body. On this account the imitations of words by figures of the body produced the whole of the art of dancing.

816a

Some of us, therefore, in all these move elegantly, but others inelegantly. And as many of the antient names ought to be praised by us as posited well, and according to nature; in like manner, it is proper to believe that he, whoever he was, rightly and musically denominated the dancings of prosperous men, who conduct themselves moderately with respect to pleasures; and that, assigning

all of them a name according to reason, he denominated them *modulations*. Likewise, that he established two kinds of beautiful dancing;

816b

calling the military dancing *Pyrrhic*, and the pacific *modulation*, giving to each a becoming and adapted name. These things, indeed, the legislator ought to explain by representations: but the guardian of the laws ought to investigate dancing; when he has discovered it, unite it with the rest of music; and in all festivals distribute that which is adapted to each of the sacrifices; so consecrating every thing in order, that no innovation may be made either in dancing or singing, but that, both the city and citizens persevering as much as possible after the same manner in the same pleasures, they may live well and happily.

816c

And thus we have determined what the particulars respecting the choirs of beautiful bodies and generous souls ought to be. But it is necessary to contemplate and know the motions of base bodies and thoughts, and those motions which are conversant with the defamations of laughter, in words, singing, dancing, and the reviling imitations of all these.

816d

For it is not possible that serious things can be learnt without such as are ridiculous, or contraries without all contraries, if any one is desirous of becoming prudent. But it is impossible to do both, if we wish to participate even a small portion of virtue. These things, however, ought to be learnt, lest through ignorance we should either do or say something ridiculous, which is at all times unbecoming. Servants, therefore, and hired strangers, should be appointed to imitate things of this kind: but no free person should ever study, or be seen learning them, neither woman nor man; but some novelty of imitation about them should always present itself to the view.

816e

And thus let the sports pertaining to laughter, which we all denominate comedy, be established both in discourse and law. But if any of the tragic poets, who, as they say, write about things of a serious nature, should thus interrogate us:

817a

—O guests, will you allow us, or not, to come to your city and region, and present you with our poesy? or how are you determined to act about things of this kind? what answer, then, shall we give to these divine men about these particulars? For it appears to me that we should reply as follows: O most excellent of strangers, we ourselves are, to the utmost of our power, poets of the most beautiful and best tragedy.

817b

For the whole of our polity is an imitation of the most beautiful and most excellent life, which we say is, in reality, the most true tragedy⁴⁵. You, therefore, are poets, and we also are poets of the same description, being your competitors and antagonists in the most beautiful drama, which, as we hope, true law alone is naturally capable of effecting. But do not think that we shall easily suffer you to fix your scenes in the market-place, and, introducing players of elegant utterance, who speak louder than we do, to discourse to our children, wives, and the vulgar, about things for the most part different from those which they have heard from us.

817c

For we ourselves, and the whole city, would be nearly perfectly insane, if we should permit you to do what we have just now mentioned, before the magistrates have seen what you have composed, and have judged whether it is fit or not to be spoken before the people.

817d

Now, therefore, O boys, offspring of soft Muses, we shall, in the first place, show your odes, together with ours, to the governors; and if the things said by you shall appear to be the same, or better than those which are said by us, we will give the choir to you: but if this should

not be the case, we shall never, O friends, be able to give you the choir. Let these particulars, therefore, be instituted by law respecting every choir, together with the discipline and manners of choirs, those pertaining to slaves being separated from those pertaining to masters, if it is agreeable to you.

817e

Clinias: How is it possible it should not be so?

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Guest: Three disciplines, however, still remain for the freeborn.

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One of these is computation, and the particulars respecting numbers. But the second is that which measures length, breadth, and depth. And the third is that which contemplates the circuit of the stars, and the order in which they are naturally formed to move with relation to each other. With respect to all these particulars, it is not proper that the multitude should labour in obtaining an accurate knowledge of them, but a certain few, of whom we shall speak when we arrive at the end of our discussion. But it is shameful for the multitude not to know such particulars among these as are necessary, and which, in a certain respect, are asserted with the greatest rectitude. However, it is neither easy, nor altogether possible, to investigate all things accurately: but whatever is necessary among them must not be rejected. Indeed, it appears that he who first spoke proverbially respecting divinity, looking to these things, said, that God was never at any time seen contending with necessity; which I think must be understood of such necessities as are divine. For, if this was asserted of human necessities, to which the multitude looking speak in this manner, it would be by far the most stupid of all assertions.

818b

Clinias: What are those necessities of disciplines, O guest, which are not human, but divine?

818b

Guest: It appears to

818c

me that they are those, which he who does not practise, nor in any respect learn, will never become either a God, a dæmon, or a hero among men, so as to be able to be a consummately diligent curator of mankind. But he will be very far from becoming a divine man who is neither able to know one, nor two, nor three, nor, in short, the even and the odd, nor in any respect knows how to number, nor is capable of numbering night and day, but is unskilled in the revolutions of the moon, the sun, and the other stars.

818d

He, therefore, who is of opinion that all these are disciplines not necessary for one who is about to know the most beautiful disciplines, will think in a very stupid manner. But what the nature is of each of these, how many they are, and when they are to be learnt; likewise, what that is which is to be learnt with some other, and what without others, together with all the mixture of these,—these are the things which ought in the first place to be learnt; and, with these disciplines as leaders, a transition is to be made to other things. For, thus necessity subsists naturally, which we say no divinity opposes at present, nor ever will oppose.

818e

Clinias: What you assert at present, O guest, appears to be truly asserted, and according to nature.

818e

Guest: So it is, O Clinias: but it is difficult to establish laws respecting these things, when previously disposed in this manner. If, therefore, it is agreeable to you, we will establish laws concerning them in a more accurate manner at some other time.

818e

Clinias: You appear to me, O guest, to be afraid of our ignorance in things of this kind; and, indeed, not improperly. However, endeavour to speak, and do not conceal any thing on this account.

819a

Guest: I fear, indeed, what you now say: but I am much more afraid of those who have, indeed, touched upon these disciplines, but in a depraved manner. For, the being ignorant of all things is by no means a circumstance vehemently dire, nor yet the greatest evil; but much skill and great erudition, when improperly employed, are much more pernicious.

819b

Clinias: True.

819b

Guest: Freeborn men, therefore, ought to learn those things which a great multitude of boys in Egypt learn, together with their letters. For, in the first place, with the Egyptians the art of reckoning is so inartificially devised for children, that they learn it in sport, and with pleasure. For a distribution is made of apples and crowns to many, and at the same time to a few, the same numbers being adapted for the purpose. The sitting together too of the pugilists and wrestlers, and the alternate and consequent order of their conjunction, are determined by numbers.

819c

Likewise, when they play, mingling together vessels of gold, brass, and silver, and other things of this kind, or distributing them separate, they adapt, as I said before, to their sports the use of necessary numbers; and thus render their pupils fit to conduct armies, to fix camps, and become good œconomists; and, in short, to be more useful and vigilant than other men. In the next place, since a certain ridiculous and base ignorance respecting the measures of length, breadth, and depth, is naturally inherent in all men, they take care to liberate them from this.

819d

Clinias: Of what kind of ignorance are you now speaking?

819d

Guest: O friend Clinias! I formerly heard, but after a long time began to wonder at, the manner in which we are affected about these things;

and it appears to me, that it is not human, but rather the passion of certain swine and cattle. I therefore not only blush for myself, but for all the Greeks.

819e

Clinias: About what? Inform us, O guest, what it is you mean.

819e

Guest: I will tell you. Or, rather, I will point it out to you interrogating. And do you answer me a trifling question. Do you know what length is?

819e

Clinias: Undoubtedly.

819e

Guest: And what breadth is?

819e

Clinias: Entirely so.

819e

Guest: And do you know that these are two things, and that the third of these is depth?

819e

Clinias: How is it possible that I should not?

819e

Guest: Does it not, therefore, appear to you that all these may be measured by each other?

820a

Clinias: It does.

820a

Guest: I mean length by length, and breadth by breadth; and that, in a similar manner, depth is naturally capable of being measured by depth.

820a

Clinias: Very much so.

820a

Guest: But, if some among these can neither do this vehemently, nor remissly, but some are able, and others not⁴⁶, and yet you think it can be effected by all, in what manner are you circumstanced with respect to these?

820b

Clinias: Badly, it is evident.

820b

Guest: But again, do not all the Greeks, after a manner, think that length, breadth, and depth, can be mutually measured by each other?

820b

Clinias: Entirely so.

820b

Guest: But if this is by no means possible, and yet all the Greeks, as I have said, think that it is possible, is it not fit, that, being ashamed of all them, we should thus address them: O best of the Greeks, this is one of the things which we said it was base not to know; but is it not in every respect beautiful to know things necessary to be known?

820b

Clinias: How is it possible it should be otherwise?

820c

Guest: And further still, there are other things allied to these, in which many errors are produced in us, the sisters of the above-mentioned errors.

820c

Clinias: What are these?

820d

Guest: The reason why some things are commensurate and others incommensurate with each other. For it is necessary that these things should be known, or that he should be in every respect depraved who is ignorant of them. In these things, therefore, we should always be mutually engaged. For this aged game will be much more pleasant, and more worthy of a free-born man, than that of chess.

820d

Clinias: Perhaps so. It appears, therefore, that the game of chess, and these disciplines, are very different from each other.

820d

Guest: These things, then, I say, O Clinias, ought to be learnt by youth. For they are neither noxious nor difficult: and when they are learnt in conjunction with sport, they will be advantageous, but never detrimental to the city. But, if any one says otherwise, let us hear him.

820d

Clinias: Undoubtedly.

820d

Guest: If, then, it should appear that these things are so, it is evident that we should embrace them; but if it should appear that they are not so, that we should reject them.

820e

Clinias: Evidently so. Ought not, therefore, O guest, these to be now established by us as necessary disciplines, that the particulars pertaining to laws may not be discussed by us in vain?

820e

Guest: Let them, indeed, be established, but as pledges from another polity, which may be dissolved if they should in no respect please us who establish them, or you for whom they are established.

820e

Clinias: The condition you propose is just. But, consider after this the discipline of the stars, whether this being chosen for youth pleases us, or the contrary.

820e

Clinias: Only speak.

820e

Guest: A great prodigy takes place in these, and which can by no means be endured.

821a

Clinias: What is this?

821a

Guest: We say that the greatest God, and the whole world, ought not to be investigated, and that the causes of things ought not to be diligently and anxiously explored; because a conduct of this kind is not holy. It appears, however, that the very contrary to this is proper.

821b

Clinias: How do you say?

821b

Guest: What I have said is a paradox, and some one may think it is not adapted to old men; but when any one is of opinion that a discipline is beautiful, true, and advantageous to a city, and likewise in every respect friendly to divinity, it is perfectly impossible he should not mention it.

821b

Clinias: You speak probably. But shall we find a thing of this kind about the discipline of the stars?

821b

Guest: O good man, all we Greeks, as I may say, conceive falsely of

821b

THOSE MIGHTY DIVINITIES THE SUN AND MOON.

821b

Clinias: Of what kind of falsehood are you speaking?

821b

Guest: We say that the sun and moon never move in the same path, and that this is likewise the case with certain other stars which move together with these, and therefore we denominate them planets.

821c

Clinias: By Jupiter, O guest, what you say is true. For, in the course of my life, I have often seen the morning and the evening star, and certain other stars, by no means moving in the same track, but

entirely wandering. But we all know that the sun and moon perpetually wander.

821d

Guest: These are the things, therefore, O Megillus and Clinias, which we say our citizens and boys ought to learn respecting the celestial Gods, so far as this, that they may not blaspheme in speaking of them, but may celebrate them in a proper manner, by piously sacrificing and praying to their divinities.

821d

Clinias: This indeed is right, if in the first place it is possible to learn that which you speak of; and in the next place, if we should not at present speak properly about these particulars, yet we shall when we are instructed in them. This being admitted, I grant that a thing of this kind should be thus far learnt. Do you, therefore, endeavour to evince that these things are so, and we will follow you as your disciples.

821e

Guest: It is not easy to learn what I say, nor is it again in every respect difficult, nor does it require a great length of time. As a proof of this, I myself have heard these things, neither recently nor formerly, and yet I am able to render them manifest in a short time; though, if they were difficult, I who am aged should not be able to explain them to you, who are likewise aged.

821e

Clinias: True. But what is this discipline which you call admirable, which you say it is fit youth should learn, but we are ignorant of? Endeavour to speak about it with the utmost perspicuity.

822a

Guest: I will endeavour.

822b

The dogma then, O best of men, respecting the sun and moon and the other stars, that they have at any time wandered, is not right; but the very contrary of this is true. For each of them perpetually passes through, in a circle, one and the same path, and not many paths;

though they appear to pass through many. But that which is swiftest in them is not rightly conceived to be slowest, nor contrarily the contrary. And these things, indeed, naturally subsist in this manner; but we are of opinion that they subsist otherwise. If then, beholding in the Olympic games the course of horses or of men that run the longest race, we should call the swiftest the slowest, and the slowest the swiftest, and, making our encomiums, should celebrate the vanquished as the victor, I do not think that we should adapt our encomiums properly, nor in a manner agreeable to the racers. But now, when we err in the same manner respecting the Gods, shall we not think that, as such a conduct in the instance just alleged is ridiculous and not right, this is likewise true in the present case?

822b

Clinias: It is ridiculous indeed.

822b

Guest: We are not, therefore, acceptable to divinity, when in hymning the Gods we celebrate them falsely.

822b

Clinias: Most true, if these things are so.

822b

Guest: If, therefore, we can show that they are so, all these particulars as far as to this are to be learnt; but, if we cannot show it, they must be dismissed. Let these things then be thus determined.

822c

Clinias: By all means.

822d

Guest: It is proper, therefore, now to say, that the legal institutions respecting the disciplines of erudition have obtained their consummation.

822e

But it is requisite to conceive in a similar manner respecting hunting, and every thing else of this kind. For it appears that the office of a legislator is something more than that of merely establishing laws,

and that he ought to make use of that medium which naturally subsists between admonition and the laws, and which has often occurred to us in the course of our discussion, and especially when we spoke concerning the education of children. For we said there were many things pertaining to this which could not be established by law, and that it was folly to attempt it: but laws being thus written, and the whole of a polity established, that is not the perfect praise of a citizen excelling in virtue, which says that he submits to the laws in the best manner, and is persuaded by them in the highest degree;

823a

but the praise is more perfect which asserts that he is one who leads a pure life, in consequence of being obedient to the writings of the legislator, in which he establishes, praises, and blames laws. For this is the most proper praise of a citizen. And the legislator, in reality, ought not only to write laws, but should subjoin to them what appears to him to be beautiful and not beautiful. The citizen too, that has arrived at the summit of virtue, should no less observe these, than those particulars which are punishable by the laws.

823b

But we will adduce for this purpose, as a witness, the subject of our present discussion; for it will render our intention more manifest. For hunting is a thing of a great extent, and which is now nearly comprehended in one name. For there is much hunting of aquatic, much of ærial, and still more of terrestrial animals, not only of wild beasts but of men; and, of this last, one kind respects war, and another friendship; and the one is laudable, but the other blameable. The thefts too of robbers and camps are huntings. The legislator, therefore, who establishes laws about hunting, can neither leave these unnoticed, nor impose fines and menacing laws on each, in a certain order.

823c

What then is to be done respecting things of this kind? The legislator ought to praise and blame what is laudable and blameable in hunting,

with a view to the labours and studies of youth. And young men, when they hear, should be obedient to him, and should not suffer either pleasure or labour to prevent them from acting contrary to the directions of the legislator. But they should rather honour what is said and enjoined with praise, than what is established with threatenings and fines. These things being premised, the praise and blame of hunting will follow in a becoming manner. For that hunting is to be praised which improves the souls of young men, but that which has a contrary tendency is to be blamed. Let us therefore discuss what follows, calling as follows upon young men through prayer:

823d

O friends, may never any desire or love of marine fishing, or of fishing with a hook, seize you; nor, in short, of labouring to catch any aquatic animals with a bow net, either by day or by night!

823e

May you likewise be void of all inclination to piracy, by which you would become unjust and atrocious hunters of men on the sea! And may you never in the least desire to commit theft in the region and city to which you belong, or to hunt birds, which, though a fascinating, is not a very liberal pursuit! The hunting, therefore, of pedestrian animals alone remains for our *athletæ*. But, of this, that kind which is performed by sleeping in turns, and is called nocturnal, as it belongs to sluggish men, is not worthy of praise. Nor yet that which during a remission of labours vanquishes the fierce strength of wild beasts by nets and snares, and not by patient endurance. That hunting, therefore, of wild beasts alone remains as the best of all, which is accomplished by horses, dogs, and corporeal strength and skill. For those that are anxious to obtain divine fortitude will vanquish savage animals by hunting them in the course, and with wounds, darts, and their own hands.

824a

And thus much may suffice respecting the praise and blame of all these particulars. However, let the law be this: No one shall impede

these truly sacred hunters from hunting wherever they please. But no one shall suffer any person to engage in nocturnal hunting with nets and dogs.

824b

Fowling shall be permitted in uncultivated places and in mountains; but any one who may happen to be present shall forbid it in cultivated and sacred places. A fisherman shall not be suffered to hunt, either in ports or sacred rivers, marshes, or pools; but in other places he may be permitted to hunt so long as he does not use a mixture of juices. Now, therefore, it is proper to say, that the legal institutions respecting discipline have obtained their completion.

824e

Clinias: You speak well.

Book VIII

824e

It now follows that we should legally establish festivals, in conjunction with the Delphic oracles, and show what are the sacrifices, and who the divinities to whom it will be better for the city to sacrifice. But when and what number of sacrifices should be performed, it is perhaps nearly our business to establish by law.

828a

Clinias: Perhaps so, as to the number.

828a

Guest: Let us therefore first speak as to the number.

828b

I should establish then three hundred and sixty-five; so that some one of the magistrates may always sacrifice to some God or dæmon for the city, and for their possessions. But, the interpreters being assembled together with the priests, priestesses, prophets, and guardians of the laws, all these shall ordain such particulars as were necessarily

omitted by the legislator. For it is requisite that these should take notice of things omitted.

828c

For the law indeed says that there should be twelve festivals to the twelve Gods, from whom each tribe is denominated, and that the citizens should perform sacred rites to each of these monthly, together with choirs, musical contests, and gymnastic exercises, in such a manner as is properly adapted both to the Gods themselves and the several seasons. Female festivals too must be orderly disposed in such a manner, that it may appear which should be celebrated with, and which without men. Further still, the festivals of the terrestrial, and such as are denominated celestial Gods, together with the attendants on these, must not be mingled with each other, but must be separated in the twelfth month, which is sacred to Pluto, that they may be legitimately celebrated.

828d

For a God of this kind must not be indignantly treated, but honoured by warlike men, as always being the best of divinities to the race of men. *For the communion between, is not better than the solution of soul and body, as I affirm, speaking seriously.* Besides, it is requisite that those who intend to distinguish these things sufficiently, should think that this our city is such with respect to vacation

828e

of time, and the possession of things necessary, as no other city is found to be at present.

829a

But it is requisite that it should live well in the same manner as an individual of the human species. To those however that live happily, this must necessarily be present the first of all things,—I mean, that they neither injure others, nor are injured by others. But, of these, the former is not very difficult; but the latter is difficult in the extreme, and cannot be perfectly acquired otherwise than by becoming perfectly good⁴⁷. The same thing also takes place in a city. For, when it

is good, its life is pacific; but, when depraved, it is infested with external and internal war. But, this being nearly the case, cities should not exercise themselves in war during the time of war, but in a life of peace.

829b

It is necessary, therefore, that a city endued with intellect should every month exercise itself in war, for not less than the space of one day, but more frequently as it may seem fit to the magistrates, and this without fearing either heat or cold; and that the magistrates, together with women and boys, should be exercised in it, that every inhabitant of the city may be prepared when it shall appear to the governors proper to lead forth all the people.

829c

For this purpose, too, certain beautiful games are to be devised, together with sacrifices, that certain festive battles may take place, perspicuously imitating in the highest degree the contentions of war. It is likewise necessary that the rewards of valour should be distributed to each of these; and that the victors should be praised, and the vanquished blamed, in a degree corresponding to the manner in which they have conducted themselves in the contests, and through the whole of life.

829d

However, let not every one be a poet of things of this kind. But in the first place let him be a poet who is not less than fifty years of age; and in the next place who not only sufficiently possesses the poetic muse, but who has accomplished something beautiful and illustrious. The poems, therefore, of good and honourable men in the city, and who have performed illustrious actions, should be sung, though they may not be naturally musical. But let the judgment of these be given to the instructors of youth, and to the other guardians of the laws. These shall attribute this honour to worthy men, that they alone shall be allowed freedom of speech in the Muses; but they shall not grant this liberty to others.

829e

No one, therefore, shall dare to sing a Muse which is not approved by the guardians of the laws, though it should be sweeter than the hymns of Thamyras and Orpheus: but such sacred poems shall be sung as have been examined and approved, and are dedicated to the Gods; together with the poems of worthy men, in which certain persons are praised or blamed, and which are judged to do this with moderation. The same things ought in a similar manner to take place, both among men and women, respecting war, and poetic liberty of speech. But it is requisite that the legislator should thus reason with himself: In properly arranging the whole city, what citizens shall I educate? Ought they not to be the *athletæ* of the greatest contests, who have ten thousand antagonists? Entirely, some one speaking with propriety may say. But what?

830a

If we should educate pugilists, or pancratiasts, or others of this kind, shall we lead them forth to the contest before they have contended with any one? Or, if we were pugilists, should we not have learned to fight, and laboured in it, many days prior to the contest, imitating all such particulars as we should adopt in a real contest when we contend for victory? And should we not, as approaching in the nearest manner possible to a similitude of real contention, instead of thongs, gird ourselves with the cestus, that we may be able sufficiently both to give wounds and with premeditation avoid them? And if it should happen that there are none with whom we can contend, should we not, without dreading the laughter of the foolish, dare to suspend an inanimate image, and exercise ourselves against it?

830b

And if we were in want both of animate and inanimate adversaries, should we not venture to contend even with our own shadows? Or, would any one say that this particular motion of the hand was devised for any other purpose?

830c

Clinias: For nearly no other purpose, O guest, than that which you have just now mentioned.

830d

Guest: What then? Will the warlike part of the city dare to engage in the greatest of contests, worse prepared than combatants of this kind? I mean, when they are to fight for life for their children, possessions, and the whole of the city. Will not, therefore, the legislator be afraid lest these mutual gymnastic exercises should appear to certain persons ridiculous? And will he not establish by law, that military concerns should be engaged in every day in an inferior degree, without arms, exciting to this purpose the choirs, and the whole of gymnastic exercise?

830e

Will he not likewise order, that both greater and lesser gymnastic exercises should be performed every month at least, that each may contend in taking possession of places, or acting on the defensive in every part of the city; truly imitating every thing pertaining to war, and fighting with balls and with darts, which approach as near as possible to true and dangerous darts?

831a

And this, that the sportive contests of the citizens with each other may not be entirely destitute of fear, but may excite terror, and thus, after a manner, evince who is magnanimous, and who is not? For, thus he may be able in a proper manner to honour some, and disgrace others, and render the whole city through the whole of life useful for true contention. But, if any one should happen to die in these contests through involuntary slaughter, let it be established that the homicide, when he has made an expiation according to law, shall be considered in future as pure. For the legislator ought to think that, in the place of a few who may happen to die, others again will succeed not worse than the slain: but that fear becoming, as it were, extinct in all these, he will no longer be able to distinguish the better from the worse;

which is, in no small degree, a greater evil to the city than the involuntary destruction of a few individuals.

831b

Clinias: We agree with you, O guest, that these things ought to be legally established, and attended to by all the city.

831b

Guest: Do we, therefore, all of us know the reason, why in cities at present there is scarcely any such choir and contest, or, at least, in a very small degree? Shall we say that this happens through the ignorance of the multitude and of the legislators?

831c

Clinias: Perhaps so.

831c

Guest: By no means, O blessed Clinias! But it is proper to say that there are two causes of this, and those very sufficient.

831d

Clinias: What are they?

831d

Guest: One is, that, through the love of riches every thing else being at all times neglected, the soul of every citizen is incapable of applying to any thing but the daily accumulation of wealth. Hence every one with the greatest alacrity learns and exercises himself in that discipline or study which leads to this, but ridicules other things. It is proper therefore to say, that this is one reason why citizens are unwilling to engage seriously in this, or any other beautiful and excellent pursuit; but, through an insatiable desire of silver and gold, every man willingly embraces every art and artifice, both the more beautiful and the more base, that he may become rich, acts both in a holy and unholy manner, and is not indignant at any kind of conduct, however base, by which he may be able like a wild beast to eat and drink abundantly,

831e

and enjoy venereal pleasures to satiety.

832a

Clinias: Right.

832a

Guest: This, therefore, I assign as one reason why cities are prevented from being sufficiently exercised in any thing else beautiful, and in warlike particulars: but those that are naturally modest have their attention directed to merchandize, navigation, and servile offices; and those that are naturally brave, to theft, house-breaking, sacrilege, warlike stratagems, and tyranny. These indeed are naturally well disposed, but become unfortunate through this pernicious custom.

832a

Clinias: How do you say?

832a

Guest: Why should I not call those in every respect unfortunate, who are compelled by hunger through the whole of life to torment their own soul?

832a

Clinias: This, therefore, is one reason. But what do you assign, O guest, as the second reason?

832a

Guest: You have very properly admonished me.

832b

Clinias: One reason, as you say, is the insatiable desire of riches, in the accumulation of which all men are so busily engaged, that they have not leisure to attend in a proper manner to warlike concerns. Let it be so. But inform us what is the second reason.

832c

Guest: Do I appear to you to have dwelt too long upon the first reason, through an incapacity of assigning the second?

832c

Clinias: You do not. But you appear to us to reprobate through hatred a custom of this kind more than is becoming.

832c

Guest: You accuse me, O guests, in a most proper manner. You shall therefore hear what is consequent to this.

832c

Clinias: Only speak.

832c

Guest: I say, therefore, that those polities which we have often mentioned in the preceding part of our discourse are the causes of this, viz. a democracy, oligarchy, and tyranny. For no one of these is a polity, but all of them may with the greatest rectitude be called seditions; because in these the willing never rule over the willing, but over the unwilling, and this always with a certain violence. And as in these the governor fears the governed, he never at any time suffers men to become voluntarily good, rich, strong, brave, or altogether warlike.

832d

These two reasons are nearly the causes of all things in cities, but particularly of those which we have enumerated. But the polity to which we are now giving laws avoids both these. For it possesses the greatest leisure; its inhabitants are free, and I think will from these laws be lovers of money in the smallest degree. So that it seems probable, and may reasonably be concluded, that such an establishment of a polity alone of all that exist at present can bring to perfection that warlike discipline, and warlike sport, which we have already rightly discussed.

832d

Clinias: It is well said.

832d

Guest: Does it not follow, therefore, that we should now speak concerning all gymnastic contests; so that such of them as are conducive to war may be studied, and the rewards of victory assigned them; but such as are not, may be dismissed? But it is better to relate from the beginning what these are, and establish them by law. And, in

the first place, should we not establish the particulars pertaining to the course, and to swiftness?

832e

Clinias: We should establish them.

832e

Guest: The celerity of the body, therefore, is universally the most warlike of all things; one kind being of the feet, and the other of the hands; that of the feet consisting in flying and pursuing; but that of the hands being indigent of strength and vigour in fighting and wrestling.

833a

Clinias: Undoubtedly.

833a

Guest: But neither of them without arms possesses the greatest utility.

833a

Clinias: For how should they?

833a

Guest: The crier, therefore, must first announce to us the race of the stadium in the contests, as at present: but he who runs the stadium must enter armed.

833b

For we do not place rewards for one that contends unarmed. In the first place, therefore, he that runs the stadium must enter armed. In the second place, he that runs the twofold course, viz. from the barriers to the goal, and from the goal to the barriers. In the third place, the equestrian racer. In the fourth place, he who runs twenty-four stadia. And, in the fifth place, he who is lighter armed, whom we shall order to run for the space of sixty stadia to a certain temple of Mars. Afterwards we shall enjoin another, who is heavier armed, to run a shorter and smoother space of ground. And again, another who is an archer, and has all the apparatus belonging to archery, shall, contending, proceed through mountains and all-various places, for a hundred stadia, to the temple of Apollo and Diana. Having established

the contest, therefore, we must wait for these till they arrive, and bestow on the several victors the rewards of victory.

833b

Clinias: Right.

833b

Guest: These contests we must conceive to have a tripartite division:

833d

one of boys; another of beardless youths; and a third of men. And for the beardless youths we shall establish two out of three parts of the course: but for boys the halves of these, who shall contend with archers and armed men. With respect to females, for naked girls not yet fit for marriage, we shall establish the stadium, the twofold course, the equestrian course, and the long course, or that of four-and-twenty stadia. But those that are thirteen years of age shall not, prior to their marriage, contend in the course longer than their twentieth, nor shorter than the eighteenth year of their age. At the same time care must be taken that their clothing is adapted for the purpose. And thus much concerning the contests of men and women in the course. As to the particulars respecting strength, instead of wrestling, and such things as are adopted at present, such as are more difficult must be instituted. And one should contend with one, two with two, and so on, as far as to ten with ten.

833e

But the things which the victor ought neither to suffer nor do, and the number of these, must be legally established by those that are skilled in the contests of arms; in the same manner as, in wrestling, those that preside over this exercise determine what is beautifully performed in wrestling, or the contrary. Let the same things too be legally established respecting women till they are married. But it is requisite that the whole of the peltastic⁴⁸ should be opposed to the pancratic contest; and that those who engage in this contest should use bows, halfmooned shields, darts, and the hurling of stones both from the hand and slings. Laws too shall be established respecting

these particulars, by which the rewards of victory shall be given to those that behave well in these contests.

834a

After these things, it is requisite we should establish laws respecting equestrian contests. But we have not much occasion for horses in Crete; so that the Cretans must necessarily pay less attention to the rearing of horses, and contests with them. For no one of you is in any respect a curator of chariots, or ambitious of acquiring renown through them. So that it would be foolish to establish contests of this kind.

834b

We must, however, establish an equestrian sport with single horses, with colts that have not yet shed their teeth, with those that are situated between these, and with those that have attained the perfection of their nature, according to the condition of the country. Let, therefore, contention and desire of victory with these be according to law; and let a common judgment of all these contests, and of those that contend with arms, be attributed to the governors of tribes, and the masters of horses.

834c

But it will not be proper to give laws to the unarmed, neither in gymnastic exercises nor in these contests. However, he who hurls an arrow or a dart on horseback is not useless for Crete. So that let there be strife and contention with these for the sake of sport. But it is not fit to force women by law to engage in this contest. However, if nature is not averse to girls or virgins contending in this manner, in consequence of their former disciplines and habits, it may be admitted.

834d

And thus much may suffice for gymnastic contest and discipline, whether it is such as takes place in contests, or such as we daily engage in under proper masters. We have likewise, in a similar manner, discussed the greater part of music. But the particulars

respecting rhapsodists, and those that follow these, together with those contests of choirs which must necessarily take place in festivals, days, months and years being assigned to the Gods and their attendants,—how all these are to be disposed, and whether they are to be instituted for

834e

three or for five years, must be referred to the conceptions imparted by the Gods respecting their order.

835a

Then also it is proper that the contests of music should alternately take place, according as the *athletæ*, the instructor of youth, and the guardians of the laws, assembling together for this purpose, shall determine. For these shall order when, and with whom, the several contests in all dancing and singing assemblies shall take place. But of what kind each of these ought to be, both with respect to the odes and harmonies mingled with rhythms and dancing, has been often said by the first legislator; conformably to which, succeeding legislators should establish contests in such a manner that they may be properly adapted to the several sacrifices and stated times; and should ordain sacred festivals for the city. With respect to these, therefore, and other such particulars, it is not difficult to know what legitimate order they should be allotted; nor would the transferring of them be greatly advantageous or detrimental to the city. There are, however, some particulars of no small consequence, which it is so difficult to establish, that divinity alone is equal to the task;

835b

but now they require some bold man who, honouring in the highest degree liberty of speech, will declare what appears to be best for a city and citizens, and will establish it in

835c

such a manner, as to introduce into the corrupted souls of the citizens that which is becoming and consequent to the whole polity. He will,

likewise, assert things contrary to their most ardent desires; and this without any human assistance, and singly following reason alone.

835d

Clinias: What is it you now say, O guest? for I do not understand you.

835d

Guest: It is likely. But I will endeavour to speak to you in a yet clearer manner.

835e

For, when my discourse led me to discipline, I saw the youth of both sexes associating in a benevolent manner with each other. But I was alarmed, as it was reasonable to suppose I should, when I considered who would use a city in which young men and women are delicately educated, and never engage in those vehement and sordid labours which in the highest degree extinguish petulance, but through the whole of life are at leisure for sacrifices, festivals, and choirs. How, therefore, in this city will they abstain from those desires which hurl many of both sexes into the extremity of danger, so that those things may be forbidden by law which reason orders us to abstain from?

836a

Indeed, it is not wonderful if the laws which were above established vanquish a multitude of desires. For the law which forbids the possession of riches in an immoderate degree, contributes not a little to the acquisition of temperance: and the whole of discipline possesses laws accommodated to this purpose. And, besides this, the eye of the governors is compelled not to look elsewhere, but always to observe youth. These things, therefore, possess measure with respect to such other desires as are human. But the unnatural connexion with boys and girls, with women as if they were men, and with men as if they were women, whence innumerable evils arise both to individuals of the human species and to whole cities, how can any one prevent? And what medicine can be found by which the danger in each of these may be avoided? This is by no means easy, O Clinias. For, in other things, and these not a few, all Crete and Lacedæmon will afford us no

small assistance in establishing laws foreign from the manners of the multitude; but, with respect to amatory affairs, they will entirely oppose us.

836b

For, if any one, following nature, should establish the law which existed prior to the times of Laius⁴⁹, and should assert it was proper not to have connexion with men and boys as if they were females, adducing as a witness the nature of wild beasts, and showing that, among these, males are not connected with males, because this is unnatural, perhaps he would use a probable reason, but he would by no means accord with our cities.

836c

In addition to this, likewise, he would not agree with them in that particular which we have said ought always to be observed by a legislator. For he ought always to observe among legal institutions, what contributes to virtue, and what does not contribute.

836d

Thus, for instance, he should consider whether what we have just now asserted would, when legally established, be beautiful, or at least not base, and how far it would contribute to the acquisition of virtue. Whether, when it takes place, it will produce the habit of fortitude in the soul of him who is persuaded, or a species of temperance in the soul of him who persuades? Or shall we say that no one will be persuaded of these things, but rather of every thing contrary to them?

836e

For every one will blame the effeminacy of him who yields to pleasures, and is incapable of endurance. But will not every one reprobate the similitude of the image in him who imitates the female sex? What man, therefore, will legally establish such a thing as this? Scarcely no one who has true law in his mind.

837a

How, therefore, do we say it is true, that the nature of friendship, desire, and the love which we have spoken of, must be necessarily

beheld by him who would properly consider these things? For, since they are two, and there is another third species arising from both, and which is comprehended in one name, the greatest doubt and darkness are produced.

837b

Clinias: How?

837b

Guest: We call a friend one who is similar to the similar according to virtue, and equal to the equal. We likewise denominate him a friend who is indigent of a rich man, though he is contrary to him in genus. But, when each of these friendships becomes vehement, we call it love.

837b

Clinias: Right.

837c

Guest: The friendship, therefore, which arises from contraries is dire and rustic, and is not often mutual: but that which arises from similars is mild and mutual through life. But as to that which is mixed from these, in the first place, it is not easy to learn what his wish may be who possesses this third love: and, in the next place, being drawn by both to that which is contrary, he himself is doubtful what he should do; the one exhorting him to use the flower of his age, and the other dissuading him from it. For, he who is a lover of body, and hungers after its flower, as if it were ripe fruit, endeavours to be satiated with it, and confers no honour on the manners of the soul of his beloved. But he who possesses a careless desire of body, and rather beholds than loves it with his soul, such an one, since he is a lover of soul in a becoming manner, considers the satiety of body, with respect to body, as disgraceful; but, reverencing and cultivating temperance, fortitude, magnificence, and prudence, he always wishes to live chastely with a chaste lover.

837d

But the love which is mixed from both these is the love which we just now discussed, as ranking in the third place. Since, therefore, there are three kinds of love, ought the law to forbid all of them, and prevent them from subsisting in us? Or, is it not manifest we should be willing that the love which is of virtue, and which desires that youth may arrive at the summit of excellence, should subsist in the city; but that, if possible, we should expel the other two? Or how shall we say, O friend Megillus?

837e

Megillus: You have spoken, O guest, about these particulars in a manner perfectly beautiful.

837e

Guest: I was right in my conjecture, O friend, that you would accord with me in sentiment. But it is not proper that I should inquire what your law conceives about things of this kind, but that I should receive what you admit; and, after this, that I should endeavour to persuade Clinias to be of our opinion. Let, however, that which you have granted me be admitted, and let us now diligently discuss the laws.

838a

Megillus: You speak with the utmost rectitude.

838a

Guest: I possess an art at present relative to the establishment of this law, which is partly easy, and partly in every respect difficult.

838a

Megillus: How do you say?

838a

Guest: We know even at present many men, who, though they act illegally, yet in a becoming manner and diligently abstain from a connection with beautiful persons, and this not involuntarily, but for the most part willingly.

838b

Megillus: When does this take place?

838b

Guest: When any one has a beautiful brother or sister. The same law too, though unwritten, sufficiently defends a son or a daughter, and prevents their parents from having any connection with them, either openly or secretly. Indeed, it prevents the vulgar from even desiring a connection of this kind.

838b

Megillus: True.

838b

Guest: A small word, therefore, extinguishes all such pleasures.

838c

Megillus: What word is that?

838c

Guest: That which says these things are by no means holy, but that they are odious to divinity, and the most base of all base things. But does not this take place, because the contrary to this is never asserted, but each of us from our childhood hears the same things said both jocosely and seriously; and often in tragedies, when a Thyestes⁵⁰ or Ædipus is introduced, or a certain Macareus⁵¹, who being secretly connected with their sisters, but detected, immediately suffered death, as the punishment of their offence?

838d

Megillus: This is said with the greatest rectitude. For rumour possesses a certain wonderful power; since no one attempts even to breathe in a manner contrary to law.

838e

Guest: That which we just now said, therefore, was right; that it was easy for a legislator, who wished to enslave some one of those desires which in a remarkable degree enslave men, to know in what manner this must be accomplished. For, if this rumour becomes consecrated among slaves and the free-born, men and women, and the whole city, it will cause this law to be most firm and stable.

838e

Megillus: Entirely so. But how can it be brought to pass that all men shall willingly speak in this manner?

838e

Guest: Your question is a very proper one.

839a

For this is what I said, that I had an art relative to this law, by which men might be induced to use copulation according to nature, and in order to produce offspring. Let them, therefore, abstain from connection with males, and not designedly cut off the race of men, nor disseminate in rocks and stones, where the prolific nature of that which is sown can never take root. Let them, likewise, abstain from every feminine field in which the seed is unwilling to germinate. This law, if it was established, and possessed the same authority in other things as in the connection of parents, would produce innumerable benefits. For, in the first place, it would be established according to nature. And, in the next place, it would restrain men from amatory fury and madness, from all adulteries, and the immoderate use of meats and drinks. It would likewise cause men to be familiar and friendly with their wives; and many other benefits would arise if this law was diligently observed by every one. But, perhaps, some very young man, and who is full of seed, on hearing that this law is to be established, will immediately revile us, as framing laws which are foolish, and impossible to be observed, and will fill every place with his vociferations. It was in consequence of looking to this, that I said I possessed a certain art, which was partly easy and partly difficult, by which this law might be firmly established.

839b

For it is easy to understand that this is possible, and in what manner it is possible. For we have said that, when this legal institution is sufficiently consecrated, it will subdue every soul, and entirely cause them, through fear, to be obedient to the established laws.

839c

But at present it appears to be impossible that it should ever take place: just as the institution of eating in common is considered as a thing impossible to be perpetually observed by a whole city; yet it is adopted by you, though it appears impossible to persuade women to this, nor does it seem to be naturally adapted to your cities. Hence, through the strength of this belief, I said that both these could not without great difficulty be legally established.

839d

Megillus: And you was right in saying so.

839d

Guest: Are you, therefore, willing that I should endeavour to mention to you a thing endued with a certain persuasive power, and which is not beyond human ability to accomplish?

839e

Clinias: Undoubtedly, we are willing.

839e

Guest: Will, therefore, any one more easily abstain from venereal concerns, and be willing to observe in a moderate manner, and not like the vulgar, the order imposed on him, when his body is in a good condition, or when it is badly affected?

839e

Clinias: Doubtless, when his body is in a good condition.

840a

Guest: Have we not, therefore, heard of the Tarentine Iccus, who, for the sake of Olympic and other contests which he applied himself to, through a desire of victory and art, and in conjunction with temperance and fortitude, never had any connection either with a woman or boy during the whole time of his exercise? The same thing too is reported of Crysson, Astyllus⁵², Diopompus, and many others; though their souls were much worse disciplined than those of your and my fellow citizens, O Clinias, and their bodies much more luxurious.

840b

Clinias: You give a true account of what the antients say respecting the conduct of these *athletæ*.

840c

Guest: What then? Could they for the sake of victory in wrestling, in the course, and such like things, have the courage to abstain from that affair which is called blessed by the multitude; and shall our youth be incapable of a similar continence, for the sake of a far more excellent victory, which we sing to them from their very childhood, as a thing most beautiful, in fables, in prose and in verse, and charm them into a persuasion of this, as it is fit we should?

840c

Clinias: What victory are you speaking of?

840c

Guest: Of the victory over pleasure,—that, being continent in this, they may live happily: for, if they are vanquished by pleasure, the very contrary will take place. Besides this, will not the dread lest it should be a thing by no means holy, enable them to subdue those things which others worse than themselves subdue?

840d

Clinias: It is probable it will.

840d

Guest: Since, therefore, we have arrived thus far about this law, and have fallen into doubt through the depravity of many, we now say with confidence, that our citizens ought not to be worse than birds, and many wild beasts: for many herds of these live a single, pure, and incorrupt life till the time of procreating offspring; and when they arrive at this age, the male benevolently uniting with the female, and the female with the male, they live

840e

for the remainder of their time in a holy and just manner, firmly abiding in the first compacts of friendship. But it is requisite that our citizens should be better than wild beasts. If, therefore, they are corrupted by other Greeks, and the greater part of Barbarians, and are

incapable of restraining themselves when they see and hear that the Venus which is called inordinate is capable of accomplishing in them that which is greatest,—in this case, it is requisite that the guardians of the laws, becoming legislators, should devise for them a second law.

841a

Clinias: What law would you advise should be established for them, if they reject the present?

841a

Guest: Evidently that which follows this, O Clinias.

841a

Clinias: What law do you mean?

841a

Guest: That they should especially cause the strength of pleasures to be unexercised, altering the course of its infusion and aliment through labours of the body.

841b

But this will take place if the use of venereal pleasures is not attended with impudence. For, these being more rarely used through shame, the mistress of them will possess a more imbecil dominion. Custom, therefore, and an unwritten law, should privately persuade them to act in this manner, and dissuade them from a contrary mode of conduct as base. For thus, in the second place, we shall preserve the becoming; and one race of men comprehending three genera, will compel those of a depraved nature, and who, we have confessed, are their inferiors, not to act in an illegal manner.

841b

Clinias: What three genera are these?

841b

Guest: Those that venerate

841c

divinity, the lovers of honour, and those that do not desire corporeal beauty, but are lovers of the beautiful manners of the soul.

841d

And these things, perhaps, which are now asserted by us, are like prayers in a fable. But they will by far subsist in the most excellent manner, if they should be adopted by all cities. Perhaps, too, if divinity pleases, we may by force accomplish one of the two in amatory affairs: either that no one shall dare to touch any free and well-born woman besides his wife, or have any connection with concubines, or disseminate contrary to nature in the barren soil of males: or else we must entirely take away connection with males; and if any one has connection with other women than those which came to his house in conjunction with the Gods, and sacred marriages, whether such women are bought, or acquired by any other means,—such an one, unless he is concealed from all men and women, may perhaps with propriety be deprived by law of all the honours in the city, as being one who is truly a foreigner.

841e

This law, whether it is proper to call it simple or twofold, should be established respecting all venereal and amatory concerns, which are transacted by us with each other through such-like desires, and this both in a proper and improper manner.

842a

Megillus: I very much approve, O guest, of this law: but let Clinias here inform us what is his opinion respecting these things.

842a

Clinias: I shall do so, O Megillus, when it appears to me that a proper opportunity presents itself for this purpose: but let us now permit our guest to proceed forward in his discussion of laws.

842c

Megillus: Right.

842c

Guest: But we have now proceeded so far, that we are nearly arrived at the establishment of eating in common; which in other places we have said it is difficult to establish, but no one will suppose but that it ought

to be adopted in Crete. After what manner, however, must it be established? Shall we say as here, or as in Lacedæmon? or is there a third mode better than both these? It appears to me to be difficult to discover this third mode, and that when found it will not be productive of any great good. For what we have now instituted appears to have been accomplished in an elegant manner. After this, it follows that we should speak respecting the apparatus of food, and show in what manner it should be procured for our citizens. Food then in other cities is all-various, and procured from many places, but especially from two places. For food is obtained for the greatest part of the Greeks from the earth and sea; but to our citizens from the earth alone. This, therefore, will be easy for the legislator. For much less than half of the laws will be sufficient; and these will be more adapted to free-born men. For the legislator of this city will have nothing to do with naval and mercantile affairs, or with inn-keepers, publicans, victualling-houses, miners, borrowing money, usury, and ten thousand other things of this kind. But he will only have to give laws to husbandmen, shepherds, the curators of bees, and the guardians and superintendants of things of this kind: and his principal business as a legislator will consist in attending to marriages, the procreation, education, and discipline of children, and the establishment of magistrates in the city.

842d

It is, therefore, now necessary that we should direct our attention to nutriment, and to those who by their own labour procure it. Let the laws, therefore, called *georgic* be first established.

842e

And let this be the first law of *Jupiter Terminalis*⁵³: No one shall move the boundaries of land, neither that of a neighbouring fellow-citizen, nor of a neighbouring stranger, if he should possess the extremities of the land; but he should consider that the saying, ‘This is to move things immoveable’, is true.

843a

And every one should rather wish to move a mighty rock, than a boundary, or small stone, which terminates friendship and hatred by an oath. For Omophylus⁵⁴ Jupiter is a witness of the one, and Hospitable Jupiter of the other; and these divinities are roused in conjunction with the most hostile battles. He, too, who is obedient to the law shall be free from condemnation: but he who despises it shall be obnoxious to a twofold punishment; one, and that the first, from the Gods; but the second from the law. For the law says that no one shall voluntarily move the boundaries of his neighbour's land. But of him who does move them, any one that is willing may inform the husbandmen, who shall lead him to the court of judgment.

843b

Here he shall be condemned by the judges to make restitution, as one who distributes land privately and by force, and shall be otherwise punished in such manner as the judges shall determine.

843c

But, in the next place, many and small injuries of neighbours, when often taking place, produce great enmities, and render vicinity difficult and vehemently bitter. On this account a neighbour ought to be extremely cautious of injuring his neighbour, both in other things, and in every thing pertaining to agriculture. For to do an injury is by no means difficult, but is in the power of every man; but to profit is not in the power of every one. But he who, passing beyond his own boundaries, cultivates his neighbour's land, shall make a restitution, and, suffering the punishment of his impudence and illiberality, shall pay the injured person the double of his loss.

843d

Of all such like particulars, husbandmen should be the judges and censors. And of such as are greater, as I have said before, the whole order of the twelfth part; but of the lesser, those that preside over the guardians of these.

843e

And if any one distributes cattle, the husbandmen, considering the injury, shall judge and condemn accordingly. Likewise, if any one usurps a swarm of bees belonging to another, alluring the bees by the sound of brass, and thus rendering them familiar to him, he shall make a restitution to the injured person. And if any one sets fire to certain materials, without paying any attention to his neighbour's property, he shall pay that fine which the magistrates think fit to impose. In like manner, he who in planting does not leave the measure of his neighbour's land, shall be punished in such a manner as would be said to be sufficient by many legislators;

844a

whose laws we ought to use, and not think that the many and trifling particulars which are instituted by any casual legislator are to be adopted by a greater moderator of a city.

844b

For antient and beautiful laws respecting water are established for husbandmen, which yet do not deserve to be recited. But he who wishes to deduce water to his own place, should so deduce it from common fountains as not to cut off the apparent fountain of any private person. He may likewise be permitted to conduct the water where he pleases, except through houses, or certain temples, or sepulchres, at the same time being cautious not to do any damage, except what may arise from the derivation of the stream. But if the natural dryness of the ground in certain places should be incapable of retaining the waters from Jupiter, and there should be a defect of necessary drink, any one may dig in his own ground till he comes to chalky earth. And if in this depth he meets with no water, he may draw as much from his neighbours as his necessities require.

844c

But if there should be a scarcity of water with his neighbours, the quantity that should be daily used must be determined by the præfects of the land. However, if the waters from Jupiter abound, and those that inhabit or cultivate the lower places restrain the flux of the

water, so as to injure those in the higher grounds; or, on the contrary, if the inhabitants of the higher places, inconsiderately permitting the waters to flow, injure the inhabitants of the lower grounds, and disagreement arises between the two respecting this particular,—then, in the city, the city surveyor, but, in the country, he who presides over the land, shall order what each ought to do in this case. But he who is not obedient to this order shall suffer the punishment of his envy and moroseness, and shall give the injured person the double of his loss. A participation of the fruits of autumn should be made by all men as follows:

844d

—The God of autumn imparts to us two gracious gifts; one Dionysiacal, which does not require to be concealed; but another, to which concealment is natural. Let this law then be established respecting autumnal fruits. Whoever tastes of the rustic fruit of grapes, or of figs, before the time of vintage, which concurs with Arcturus, shall be fined fifty drachms sacred to Bacchus, if he has gathered these fruits from his own land;

844e

but if from that of his neighbour's, a mina; and if from other lands, two parts of a mina. Grapes and figs, which we denominate generous, may be gathered by any one, after what manner and when he pleases, if they are his own; but not when they belong to another, unless he obtains leave of the possessor; and this in conformity to the law which says that no one shall move that which he has not deposited, and that he who does so shall be fined. But if a slave, not complying with the orders of his master, gathers fruits of this kind, he shall receive as many lashes with a whip as the number of the grapes and figs which he gathered. When a native has bought any generous autumnal fruits, he may eat them if he pleases; but if a stranger as he passes along desires to eat these autumnal fruits, whether he is alone or with one companion, he may eat them as hospitable property:

845a

but the law forbids strangers from eating those fruits which are called rustic. If any one ignorantly gathers these, or if they are gathered by a slave, the slave shall be punished with stripes; but the free person shall be dismissed with an admonition that he may gather other autumnal fruits, but that those from which raisins, wine, and dry figs are made, are not fit to be gathered. With respect to pears, apples, pomegranates, and all such fruits, let it not be considered as base to gather them secretly. But if any one who is less than thirty years of age is detected gathering them, let him be chastised, but without wounds; and let not the free-born man suffer any punishment for inflicting this chastisement.

845b

Let it likewise be lawful for a stranger to partake of these fruits in the same manner as of generous autumnal fruits. If any person more advanced in years tastes of these, but does not take them away, let him, in the same manner as a stranger, be permitted to partake of all these:

845c

but if he is not obedient to the law, let him be considered as one who does not contend for virtue;—if any one gives information of this to the judges of these particulars.

845d

Again, water is the most nutritive of every thing pertaining to gardens, but it is easily corrupted. For neither the earth, the sun, nor the air, which together with water nourish things germinating from the earth, can be easily corrupted either by medicaments, turnings aside, or thefts: but all such things as these are able to take place respecting the nature of water; and on this account it requires the assistance of law. Let this, then, be the law respecting it: If any one voluntarily corrupts water belonging to another person by medicaments, or ditches, or thefts, whether such water is fontal or collected, he shall be taken before the ædiles;

845e

and, if convicted, he shall be punished adequately to his offence. With respect to the conveyance of all seasonable fruit, let it be lawful for any one who is willing, to carry his own fruit any where, so long as he does not

846a

injure any one, or so long as a gain arises to himself triple of the damage which his neighbour has sustained. Let the magistrates be the inspectors of these things, and of all such injuries as are either committed by violence or secretly, against a person himself, or his property. Let all such particulars be laid before the magistrates, if the injury does not exceed three minæ; but if it does, let the case be brought before the common courts of justice, and let him who has committed the injury be punished.

846b

But if any magistrate shall be found to condemn an accused person unjustly, let him be considered as a debtor to the injured person of twice the loss which he sustained. And, in short, let the unjust conduct of the magistrates be brought before the common courts of justice by any person that is willing. But as there are ten thousand small legal institutions, according to which punishments ought

846c

to be inflicted respecting the allotments of justice, citations, and the persons cited, whether the citation ought to be made between two, or between many;—all such particulars as these must not be left destitute of law, nor yet do they seem worthy to be noticed by an aged legislator. Let young men, therefore, give laws respecting these, imitating prior legal institutions, understanding small things from such as are great, and becoming experienced in the necessary use of them till every thing shall appear to be sufficiently established. After this, causing these institutions to be immovable, let them be used as such.

846d

With respect to other artificers, it is requisite to act as follows: In the first place, let no citizen labour about artificial works, nor yet a servant of any citizen. For a citizen who preserves the common ornament of the city, is engaged in an art which requires long continued exercise, and, at the same time, many disciplines, and the possession of it is not to be obtained by indolent application.

846e

But to labour accurately in two studies, or two arts, nearly surpasses the ability of human nature. Nor can any one sufficiently exercise one art, and at the same time direct his attention to one who exercises another. This, therefore, ought first of all to take place in the city, that no one shall at the same time be a coppersmith and a builder; and that a builder shall not attend more to the coppersmith's, than to his own, art, under a pretext that, because he has many

847a

servants who work for him, he very properly bestows more attention upon them, that greater gain may thence accrue to him from his own art: but every artist in the city shall exercise one art only, and from this derive his support. This law the ædiles should particularly attend to; and should punish with disgrace and infamy any one who inclines a citizen to a certain art more than to the study of virtue, till they have converted the citizen to his right course.

847b

But, if any stranger is found to apply himself to two arts, he shall be punished with bonds, fines, and expulsions from the city, and shall be compelled to exercise one art alone. With respect to the wages of workmen, and the destruction of works, and the injuries which workmen may either suffer or commit, the ædiles shall judge of these as far as to fifty drachms. Offences which merit a greater fine than this, shall be judged according to law in the common courts of justice.

847c

There shall, likewise, be no revenue in the city arising from the exportation and importation of goods. But, with respect to

frankincense, and other foreign aromatics, from which fumigations are made to the Gods, together with purple, and other dyed colours, which are not produced in this region, or any other article of foreign importation, let no one introduce any of these, nor yet again export any thing which the region necessarily requires. All these particulars must be attended to, and taken care of, by the twelve guardians of the laws, five of the elder being excepted.

847d

With respect to arms, and all warlike instruments, if there should be a necessity of any foreign art, whether relative to plants, or metals, or bonds, or animals which are subservient to war, the care of the importation and exportation of these must be committed to the masters of the horse, and the generals of the army; but the guardians of the law must establish respecting these becoming and sufficient laws. No victualling-houses shall be suffered, either in the city or in any part of the region for the sake of accumulating wealth.

847e

But it appears that the mode established by the law of the Cretans of distributing the food which is the produce of the country, is a proper one: for a general distribution into twelve parts is made of the whole produce of the land, which also is consumed. Every twelfth part of barley, wheat, all autumnal fruits, and vendible animals, should be triply divided according to proportion; one part being given to free-born persons, another to the servants of these, and a third part to artificers and strangers, whether such strangers have taken up their residence in the city through the want of necessary sustenance, or for the sake of any advantage to the city, or any individual in it.

848a

This third part, therefore, of all necessities, should be alone vendible from necessity; but nothing belonging to the two other parts should be necessarily sold. How, therefore, are these to be distributed in the most proper manner? In the first place, it is evident that we should distribute them partly equally, and partly unequally.

848b

Clinias: How do you say?

848b

Guest: It is necessary that every land should produce and nourish things better or worse than each of these.

848c

Clinias: Undoubtedly.

848c

Guest: As, therefore, there are three parts, let no more be distributed either to masters or slaves, or strangers, but let the distribution be made to all, according to the same equality of similitude. But let each citizen since he receives two parts, have the power of distributing both to slaves and free-born persons, as much, and such things, as he pleases. It is however proper that a greater quantity than these should be distributed in measure and number, and that a distribution should be made after an account is taken of all the animals which derive their nourishment from the earth. After this, it is necessary that habitations should be separately assigned them in an orderly manner. But the following order will be adapted to things of this kind. There ought to be twelve streets in the middle, and one in each of the twelve parts;

848d

and in each street a forum, and temples of the Gods, and of dæmons the attendants of the Gods, should be raised; and whether there are statues of certain inhabitants of Magnesia, or of other antients whose memory is preserved, to these the honours of antient men should be paid. The temples of Vesta, Jupiter, Minerva, and of him who is the leader of each of the other divinities that preside over the twelve parts, should be every where established.

848e

But first of all buildings should be raised about these temples in the highest place, as well defended receptacles for the guards: but the rest of the region should be distributed for the artificers into thirteen parts. And one part of these shall reside in the city, this part being

distributed into the twelve parts of the whole city; but another part shall be circularly distributed about the environs of the city. In every street artificers shall reside that are adapted to the purposes of husbandmen. The governors of the husbandmen, too, shall take care of all these particulars, and of such things as each place may require; and shall provide such places as will be most advantageous to the husbandmen.

849a

The ædiles in like manner shall take care of the artificers in the city. Things pertaining to the forum ought likewise to be taken care of by the præfects of the markets.

849b

After attention to sacred things, they should be careful, in the first place, that no one acts unjustly in buying or selling; and, in the next place, they should punish every one that deserves punishment, as being the inspectors of modesty and insolence. With respect to things vendible, they should, in the first place, consider, whether the citizens sell to foreigners in a manner conformable to law. But let the law be this: On the first day of the month, those that take care of foreigners shall exhibit a part of what is to be sold; viz. in the first place a twelfth part of the corn: and foreigners during the space of the whole month shall buy corn, and such things as pertain to corn, in the first market. But on the twelfth day of the month, the selling and buying of moist articles shall take place through the whole of the month.

849c

And on the twenty-third day of the month, let such animals be sold as may be wanted, together with such articles as husbandmen require, viz. skins and garments of every kind, whether knit or woven. But it is necessary that strangers should buy the possessions of others.

849d

However, let there be no buying or selling of wheat or barley, distributed into barleymeal, or of any other aliment, either among the citizens or their slaves. In the markets of the strangers, a stranger may

sell and exchange to artificers and their slaves, wine and food, and in like manner distributed flesh, which is generally called cauponation. A stranger, too, may be permitted to buy every day the whole materials of fire, from the inspectors of places, and sell it again to other strangers, for as much as he pleases, and when he pleases.

849e

Let every other useful article be sold in the common forum, in such places as the guardians of the laws, and præfects of the markets, together with the ædiles, shall appoint. Here let money be exchanged for things, and things for money; no one committing the exchange to another, but performing it by himself. However, if any one thinks proper to commit it to another, whether restitution is made to him or not, he must be contented, because no notice is taken in the courts of justice of such contracts.

850a

But if that which is bought or sold, has been bought or sold at a greater or less price than the law fixes upon vendible commodities, the quantity by which it exceeds the just price shall be taken an account of in writing by the guardians of the laws, and the contrary shall be expunged.

850b

Let the same things be enjoined respecting the registering of the property possessed by the inhabitants of the city. Let it likewise be lawful for any one to migrate to our city on certain conditions, viz. so that he is skilled in, and exercises, some art, and does not continue more than twenty years from the day of his being registered; during which time he shall not be forced to pay any tribute for buying and selling, nor be under any restraint, except that of conducting himself temperately. But when the twenty years are expired, he shall receive his own property and depart. However, if it should so happen during this time, that the city should be greatly benefitted by him, and he is desirous of continuing longer, or of settling for life in the city, let his request be complied with, if agreeable to the inhabitants

850c

of the city. With respect to

850d

the sons of the emigrants that

850e

are artists and fifteen years of age, let the time of their continuance in the city commence from their fifteenth year, so that they may stay, if they please, twenty years after this period, or longer if agreeable to the inhabitants. But if they choose to leave the city, they may depart after their registers, which were committed to the care of the magistrates, are obliterated.

Book IX

853a

As judicial affairs are consequent to all the preceding particulars, the discussion of them at present will be agreeable to the natural order of laws. But we have partly shown what the particulars are respecting which judgments ought to take place, viz. respecting agriculture and the like;

853b

though we have not as yet distinctly spoken of the greatest judgments, and shown what punishments they ought to inflict, and who should be the judges. It therefore follows that we should now speak of these.

853c

Clinias: Right.

853c

Guest: But it is after a manner base that the city which we say will be properly inhabited, and furnished with every thing adapted to the study of virtue, should observe all such laws as we are now about to establish. For to suppose that, in such a city, a man capable of the greatest iniquity will be born, so that it will be necessary to give laws by anticipation, and enjoin threatenings, if such a character should

arise, and this for the sake of preventing the greatest enormities, and that when they are committed, they may be legally punished,—to suppose this will, as I have said, be in a certain respect base. But since we do not, like the antient legislators, give laws to heroes the sons of the Gods, these legislators at the same time being themselves descended from the Gods, but

853d

being ourselves men, we at present give laws to those that are born from the seed of men;—since this is the case, we may justly be afraid lest any one of our citizens should be so naturally intractable and untamed, as not to be liquefied; just as leguminous substances, when blasted by thunder, cannot be subdued by fire. The first law, therefore, which we shall establish, though it is not agreeable to us to do so, is respecting sacrilege, if any one shall dare to commit it. Indeed, we neither wish, nor do we very much fear, that a citizen, when properly educated, will ever labour under this disease. But the servants of these, strangers, and the slaves of strangers, will attempt many things of this kind;

854a

for the sake of which especially, and at the same time fearing for all the imbecility of human nature, I shall speak about the law of sacrilege, and all other such particulars as are either difficult to be cured or entirely incurable. The preface, however, to these particulars, according to what has been formerly assented to, ought to be as short as possible.

854b

Some one, therefore, may thus address him who is excited by a vicious desire both day and night to plunder temples, mingling at the same time admonitions with his speech: O wonderful man, neither a human nor a divine evil moves and excites you now to sacrilege, but a certain execrable fury, arising in men from antient and unpurified offences, which you ought to dread with all your might. Learn, then, what this dread is.

854c

When any such opinion attacks you, betake yourself to expiations, betake yourself, in a suppliant manner, to the temples of those Gods that avert evils from mankind; and betake yourself to an association with good men. Among these partly hear, and endeavour yourself to say, that every man ought to honour things beautiful and just. But fly without turning back from an association with the vicious. And if, in consequence of your acting in this manner, the disease ceases, you have done well; but if not, considering that in this case it is better to die, liberate yourself from life. Since, therefore, we have sung these exordia to those whose thoughts lead them to deeds impious and destructive to the city, it is proper to dismiss him in silence who is obedient to the law: but to him who will not be persuaded, it is necessary, after the preface, to sing in a higher strain.

854d

He, then, who is detected in the act of sacrilege, if he is either a slave or a stranger, shall have his calamity written in his face and hands, and after he has received as many lashes with a whip as the judges shall think proper, he shall be driven naked beyond the borders of the region. For, perhaps, being brought to his right mind by this punishment, he will become a better man. For no punishment subsisting according to law is inflicted with an evil intention. But one of two things is nearly always effected: for he who suffers punishment either becomes better or less depraved.

854e

If, however, a citizen shall at any time appear to have perpetrated any thing of this kind, or some mighty and arcane crime towards the Gods, or his parents, or his country, the judge shall pronounce such an one to be incurable, in consequence of considering, that though he has been well nourished and disciplined from his childhood, yet he has not abstained from the greatest vices. But death to such a man is the least of evils. Such an one, therefore, that others may be benefited by

his example, being stigmatized with infamy, and expelled beyond the boundaries of the region, shall there be put to death.

855a

But let his children and race be honoured and praised, if they avoid his manners, as those that bravely fly from evil to good. It will not, however, be proper that the riches of any such person should become public property, in a polity in which the same and equal allotments ought to be perpetually preserved. But when any one perpetrates such things as are to be punished with a fine, he shall be fined as much as he possesses above his allotted portion, but the lot itself shall remain entire. The guardians of the laws, however, considering this affair accurately from written accounts, should always give a clear statement of it to the judges, that no one may be deprived of his allotments through want of money.

855b

If any one should appear to deserve a greater fine, and no one of his friends is willing to be bound for him, and procure his liberty, such an one shall be punished with lasting and apparent bonds, and with certain reproaches. But let no one offence ever by any means pass unpunished, nor any fugitive; but let him either be punished with death, or bonds, or stripes, or certain squalid seats, or with standing, or being exhibited in temples at the extremity of the region, or by fines, in the manner we have before mentioned.

855c

Let the guardians of the laws too be established the judges of death; and let the best among them be chosen for this purpose, who in the preceding year had acted in the capacity of magistrates. But the citations and accusations of these, and such like particulars, together with the manner in which they ought to take place, should be attended to by junior legislators. The manner, however, in which suffrages ought to be conducted, it is our business to determine. Let them, therefore, be given openly. But, prior to this, let the judge sit

before the accuser and defendant, and as near to them as possible, in a grave and dignified manner.

855d

Let all the citizens too that are at leisure, diligently attend as the hearers of such causes. And, in the first place, let the accuser speak, and afterwards the defendant. After this, let the senior judge diligently and sufficiently examine what was said:

855e

and, after the elder judge, all the other judges in order ought to consider what is worthy of discussion in the speeches of the accuser and defendant. But he who does not think there is any thing worthy of discussion in either of the speeches, should refer the investigation of it to another. And, lastly, such things as shall appear to be well said, being committed to writing, and signed by all the judges, shall be placed in the temple of Vesta. And again, assembling the next day into the same place, they shall in a similar manner examine and judge, and put their signatures to what shall appear to have been well said. When this has been thrice accomplished, and the proofs and witnesses have been sufficiently examined, each judge bearing in his hand a sacred pebble, and swearing before Vesta that he has judged to the utmost of his ability justly and truly, a judgment of this kind shall be thus brought to a conclusion.

856a

After crimes respecting the Gods, it is requisite to speak of those which pertain to the dissolution of a polity.

856b

He, therefore, who subjects government to the power of a man, enslaves the laws, makes the city subservient to factious societies, and, accomplishing all this by force, excites illegal seditions. It is proper to consider a character of this kind as the greatest of all enemies to the whole city. But he who, though he is not the author of any thing of this kind, yet possesses the greatest

856c

authority in the city, but takes no notice of these conspiracies, or if he does notice them, through timidity, suffers his injured country to be unrevenged,—a citizen of this kind ought to be considered as the second in wickedness. Every man who is of the smallest utility in a city should inform the judges of these particulars, and bring him to judgment who endeavours by stratagem to produce a violent and illegal mutation of the polity. But let the same judges give sentence in these cases as decided in sacrilege; and let the whole process be conducted in a similar manner. Let the suffrage too which vanquishes in multitude, be the sentence of death.

856d

And, in short, let not the disgrace and punishment of the father attend the children, unless the father, grandfather, and great-grandfather, of some one in succession, have deserved death. These, with their possessions, except as much as pertains to the lot, shall be sent to their antient paternal city. But as to those citizens who shall happen to have more children than one, and these not less than ten years of age, ten out of their number must be chosen by lot, which the father, or paternal or maternal grandfather, shall approve;

856e

and after they are chosen, their names must be sent to Delphi. Then, with a better fortune, the possessions and habitation assigned by lot shall be restored to him whom the Delphic God approves.

857a

Clinias: And very properly so.

857a

Guest: Let there be yet a third common law, respecting judges, and the mode of judgment, against those that are accused of treason. In a similar manner let there be one law respecting the abiding of children in, and their egression from, their country; just as we instituted one respecting the betrayer of his country, the man who commits sacrilege, and he who by violence destroys the laws of the city. With respect to theft too, whether in great or small matters, let one law,

and one punishment, be ordained for every kind of theft. For, when any one is condemned for thieving, if his own possessions, besides his allotted portion, are sufficient, he shall make a twofold restitution: and if he does not, he shall be fettered till he has either paid the appointed sum, or persuaded him to whom he is indebted to excuse him from paying it. But if any one is convicted of public theft, he shall then be freed from his bonds, when he has either persuaded the city, or made a twofold restitution.

857b

Clinias: How is it that we say, O guest, there is no difference whether the theft is small or great, and whether it is from sacred or not sacred places, and such other dissimilarities as subsist about the whole of thieving? For, since thefts are various, the legislator ought to attend to their varieties, and not inflict similar punishments on dissimilar offences.

857c

Guest: You most excellently repulse me, O Clinias, who am, as it were, hurrying along, and you likewise recall into my memory what I have formerly thought, that the particulars respecting the establishment of laws have never been by any means properly determined.

857c

Clinias: But how, again, do we say this?

857c

Guest: We did not adopt a bad image when we said, that all those of the present day that submitted to laws were similar to those slaves who are cured by slaves. For it is well to know this, that if at any time one of those physicians who meddle with the medical art from experience alone, without reason, should meet with a free-born physician discoursing with a free-born patient, and very nearly philosophising, by investigating in a rational manner the beginning of his disease, and afterwards discoursing about all the nature of bodies, he would readily and vehemently laugh, and would address the free-born physician in language not at all different from what is generally

used towards most physicians. For he would say to him, O stupid fellow, you do not cure the sick man, but you discipline him as if he wanted to become a physician, and not to be well.

857d

Clinias: And would he not speak properly by speaking in this manner?

857e

Guest: And may it not also be very properly objected against us, that whoever discusses laws in the manner we do at present, disciplines the citizens, but does not give them laws?

857e

Clinias: Perhaps so.

857e

Guest: But at present a fortunate circumstance happens to us.

857e

Clinias: What is that?

857e

Guest: That there is no necessity for us to

858a

establish laws, but that, entering voluntarily on the business of legislation, we have endeavoured to perceive in every polity what is best and most necessary, and after what manner it might take place. And now, as it seems, it is permitted us if we please to consider what is best, or, if we had rather, what is most necessary, respecting laws. We may choose, therefore, whichever is most agreeable to us.

858b

Clinias: We propose, O guest, a ridiculous choice, and we manifestly become similar to those legislators who are compelled by a certain mighty necessity to give laws immediately, and are not permitted to defer this till tomorrow. But it is lawful for us to speak through divine assistance, just as it is permitted those who gather stones, or any other materials of a building, to collect abundantly, and at leisure, such things as are adapted to the future building. Like builders,

therefore, who do not raise structures from necessity, but at leisure, let us lay down some things, and join together others, so that it may be rightly said that some things pertaining to the laws are placed as foundations, and that other particulars are raised on them as foundations.

858b

Guest: For thus indeed, O Clinias, our synopsis of laws will be more natural. But, by the Gods, let us consider this respecting legislators.

858c

Clinias: What?

858c

Guest: That there are writings and written discourses in cities respecting a variety of particulars, and that there are writings and discourses of the legislator.

858d

Clinias: Undoubtedly.

858d

Guest: Whether, therefore, shall we direct our attention to the writings of poets and others; writings which, whether in verse or in prose, are composed respecting the mode of conduct in life; but by no means apply ourselves to the writings of legislators? Or shall we direct our attention to these beyond all others?

858d

Clinias: To these far beyond others.

858d

Guest: But will it not be necessary that the legislator should only consult writings respecting things beautiful, good, and just, and that he should teach what is the nature of these, and how they should be studied by those that intend to be happy?

858d

Clinias: Undoubtedly.

858d

Guest: But it is

858e

shameful that Homer, Tyrtæus, and other poets, should have written more beautifully respecting life and the studies of men than Lycurgus, Solon, and other legislators.

859a

Or, is it not proper that writings respecting laws should be by far the most beautiful and best of all writings in a city: but that other writings should be consonant to these; or, if they are discordant, that they should be treated with ridicule? We ought, therefore, to conceive, that laws should be so written for cities that the legislator in composing them shall appear to have assumed the person of a father and mother, and the writings themselves ought to be full of benevolence and prudence, and not like those of a tyrant and despot, commanding, threatening, and written on walls. Let us consider, therefore, whether we should endeavour to speak in this manner respecting laws, whether we are able or not. Let us, however, attempt it with alacrity, and, proceeding in this way, patiently endure whatever difficulties we may have to encounter. And may our journey be prosperous! which it will be if Divinity pleases.

859b

Clinias: You speak well. Let us, therefore, do as you say.

859b

Guest: In the first place, then, let us accurately consider, as we began to do, respecting sacrilege, every kind of theft, and all injuries. And let us not be indignant if, while delivering laws in an intermediate manner, we establish some things, and deliberate about others. For we are becoming to be legislators, but are not yet, though, perhaps, we soon shall be. But if it is agreeable to you, as I have said, to consider respecting the particulars I have mentioned, let us consider them.

859c

Clinias: By all means.

859c

Guest: However, respecting all beautiful and just things, we should endeavour to consider this, in what manner we now accord, or dissent from ourselves: for we acknowledge that we desire, though we may not be able, to excel most others.

859d

Clinias: What kind of disagreements among ourselves do you speak of?

859d

Guest: I will endeavour to inform you. With respect to justice entirely, just men, things, and actions, we all of us, in a manner, agree that all these are beautiful. So that, if any one should strenuously affirm that just men, through the habit of justice, are all-beautiful, though they should be deformed in body, there is scarcely any one who by thus speaking would be considered as speaking in a disorderly manner. Is not this true?

859e

Clinias: Perhaps so.

859e

Guest: But let us see whether all such things as partake of justice are beautiful: for all our passions are nearly equal to our actions.

859e

Clinias: How so?

859e

Guest: Whatever action is just, so far as it participates of the just, so far also it nearly participates of the beautiful.

859e

Clinias: Undoubtedly.

859e

Guest: If a passion, therefore, which participates of the just, is acknowledged by us to be beautiful on this account, our discourse by such an assertion would not be rendered dissonant.

860a

Clinias: True.

860a

Guest: But if we should agree that a passion is just, but at the same time base, the just and the beautiful would be dissonant, in consequence of asserting that just things are most base.

860a

Clinias: How is this?

860a

Guest: It is not at all difficult to understand. For the laws which a little before have been established by us, appear to announce things perfectly contrary to the present assertions.

860b

Clinias: After what manner?

860b

Guest: We established it as just, that he who committed sacrilege should die; and likewise the enemy of well-established laws; and, as we were about to establish many other laws of this kind, we desisted, on perceiving that these were passions infinite both in multitude and magnitude: and that they were the most just, but at the same time the most base, of all the passions. Do not things just and beautiful after this manner appear at one time to be the same, and at another to be most contrary?

860c

Clinias: They do appear so.

860c

Guest: By the multitude, therefore, things beautiful and just, which are so dissonant with each other, are denominated things separate.

860c

Clinias: It appears so, O guest.

860c

Guest: Let us therefore again, O Clinias, see how we accord with ourselves respecting these things.

860c

Clinias: What concord and what particulars are you speaking of?

860c

Guest: I think it has clearly been shown by me in the foregoing discourse.

860c

Clinias: How?

860c

Guest: However, if it has not been already shown by me, yet consider me as now speaking about it.

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Clinias: After what manner?

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Guest: That all vicious men are in all things involuntarily vicious;

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and that, if this is the case, this also must necessarily follow.

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Clinias: What?

860e

Guest: That the unjust is a vicious man; and that the vicious man is involuntarily such. But the voluntary can by no means be done in an involuntary manner. He, therefore, who acts unjustly, will appear to act so in an involuntary manner to him who considers injustice as a thing involuntary. This also too is now acknowledged by me. For I have agreed, that all men act unjustly involuntarily, though some one, for the sake of contention or ambition, may say that unjust men are involuntarily unjust, but yet many act unjustly voluntarily. This, however, is not my assertion. After what manner, then, shall I accord with my own assertions, if any one, O Clinias and Megillus, should thus interrogate me? If these things are so, O guest, what would you advise us respecting the city of the Magnesians? Shall we give laws to them, or not? I say, undoubtedly. Do you distinguish injuries then by the voluntary and involuntary? And do you ordain greater

punishments for voluntary offences and injuries, than for such as are involuntary? Or do you punish all offences equally, as considering that no injuries are voluntarily committed?

861a

Clinias: You speak properly, O guest. But what use shall we make of what has now been said?

861a

Guest: You interrogate well. In the first place, then, we shall use what has been said for the following purpose.

861a

Clinias: What purpose?

861b

Guest: Let us call to mind that it was well said by us above, that there is great confusion and dissonance among us respecting things just. Resuming this, therefore, we again ask ourselves whether, since we have neither solved the doubt about these things, nor defined what is their difference, though in all cities, by all legislators that have ever existed, voluntary and involuntary injuries are considered as forming two species of injuries, and laws are established conformable to this opinion,—whether, therefore, since this is the case, ought we to dismiss what we have now advanced, after we have asserted that it is, as it were, divinely said, without offering any arguments to show the rectitude of such assertions? Certainly not. But it is in a manner necessary, that before we establish laws we should evince that these two things have a subsistence, and what is the difference between them; that, when any one establishes a punishment for either, every one may understand, and be able to judge, whether it is established in a becoming manner, or not.

861c

Clinias: You appear to us, O guest, to speak well. For it is fit we should do one of two things, viz. either not say that all unjust actions are involuntary, or first of all evince by defining that this is properly asserted.

861d

Guest: One of these two things, therefore, I can by no means endure, I mean the denying that I think it is so, (for this would neither be legal nor holy). But after what manner these are two, if they by no means differ with respect to voluntary and involuntary, but with respect to something else, we should endeavour to evince.

861d

Clinias: By all means, O guest: for we cannot otherwise understand the nature of these.

861e

Guest: Let it be so. Do not, therefore, many damages take place among citizens in their communications and associations with each other, in which the voluntary and involuntary abound?

861e

Clinias: Undoubtedly.

861e

Guest: Whether, therefore, does any one,

862a

considering all damages as injuries, think, in consequence of this, that they are attended with twofold injuries, one kind being voluntary, and the other involuntary? For the involuntary damages of all men are neither in number, nor magnitude, less than the voluntary. But consider whether I say any thing to the purpose, or not. For, do I not say, O Clinias and Megillus, that when some one unwillingly hurts another, he acts unjustly, but involuntarily injures one who is unwilling to be injured? And do I legally establish this as an involuntary injury? Indeed I do not at all consider a damage of this kind as an injury, whether it is of a greater or less magnitude.

862b

But we often say that he who assists another in an improper manner acts unjustly, if his assistance is not victorious. For, my friends, it is not proper, neither if any one imparts any thing, nor if, on the contrary, he takes any thing away, to call such an action simply just or

unjust: but the legislator should consider whether he who benefits, or is the cause of detriment to another, is endued with worthy manners, and employed those manners justly. And he should look to these two things, viz. injustice, and detriment. He should likewise, as much as possible, legally indemnify the person that has sustained a damage, restore what has been lost, raise what has fallen, and repair the ravages of death and wounds. Lastly, he should always endeavour that the discords arising from damages may, by means of the laws, terminate in friendship.

862c

Clinias: These things are well said.

862c

Guest: Unjust damages, therefore, and emoluments, if any one happens to derive emolument from injuring another, ought to be cured, if they are such as are capable of being cured, as diseases inherent in the soul.

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But it is requisite to say, that the cure of injustice verges to this.

862e

Clinias: To what?

862e

Guest: That the law may discipline every one who does an injury, whether it be great or small, and may entirely compel him, either that he shall never afterwards dare to do the like voluntarily, or by far less frequently, through the dread of the consequent punishment. In whatever manner any one may accomplish this, whether by works or words, pleasure or pain, honour or infamy, fines or gifts, so as that men may either love, or at least not hate, the nature of justice, but may hate injustice,—this is the business of the most beautiful laws. But those whom the legislator perceives to be incurable with respect to these particulars, he should punish in the extreme, as knowing that death is better than life to all such as these; and that when they are liberated from life they will doubly benefit others. For they will serve

as a warning to others not to act unjustly, and the city, by their death, will be freed from bad men. On this account *it will be necessary for the legislator to punish INCURABLE offences with death, but BY NO MEANS on any other account.*

863a

Clinias: These things appear to have been spoken by you in a very sufficient manner; but we should gladly hear you relating still more clearly the difference between injustice and detriment.

863b

Guest: I shall endeavour, therefore, to do and say as you request me. For it is evident that you have both said to, and heard from, each other thus much respecting the soul, that anger naturally residing in it, whether as a certain passion, or a certain part, and being contentious and invincible, subverts many things through irrational violence.

863b

Clinias: Undoubtedly.

863b

Guest: Besides this, too, we do not call pleasure the same as anger, but we say that it possesses dominion from a contrary power, and that it persuades us, with a violent deception, to do whatever it pleases.

863b

Clinias: And very much so.

863d

Guest: He, likewise, who says that ignorance is the third cause of crimes will not be deceived. But he will be a better legislator who gives this a twofold division: considering one kind as simple, and the cause of light offences; but the other twofold, when any one is void of discipline, not only from being detained by ignorance, but by an opinion of wisdom, so as to think that he has a perfect knowledge about things of which he is entirely ignorant. Things of this kind, therefore, when followed by power and strength, are to be established as the causes of mighty and rustic crimes; but when followed by imbecility, as in this case they become the crimes of children and old

men, they are to be considered as crimes, and laws are to be established for those that commit them; but, at the same time, they should be reckoned the mildest of all crimes, and as deserving the most abundant indulgence.

863d

Clinias: You speak reasonably.

863d

Guest: We nearly, therefore, all of us speak of pleasure and anger, as things to which some of us are superior, and by which others of us are vanquished: and this is truly the case.

863e

Clinias: Entirely so.

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Guest: But we never have at any time heard that one of us is superior to ignorance, and another vanquished by it.

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Clinias: Most true.

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Guest: But we say that all these allure us to their will, and often, at the same time, draw us to things contrary.

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Clinias: Often, indeed.

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Guest: But I will

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now explain to you clearly what I call the just and the unjust, without any variety of distinction. For I entirely denominate injustice to be the tyranny of anger, fear, pleasure, and pain, envy and desire in the soul, whether such a tyrant injures any one, or not. But the opinion of that which is best, whether it is the conception of cities, or of certain private individuals, if, possessing dominion in the soul, it adorns the whole man, though it may in a certain respect lead him into error,—

this I denominate justice, and call every thing which is performed from this opinion, just. And I further add, that the whole life of those who are obedient to a principle of this kind will be most excellent. But a damage of this nature is considered by the multitude as involuntary injustice. However, our business at present is not a contention about names.

864b

But since we have evinced that there are three species of crimes, let us, in the first place, still more diligently recall these into our memory. Of pain, therefore, which we denominate anger and fear, there is one species for us.

864c

Clinias: Entirely so.

864c

Guest: But of pleasure and desires there is a second species; a third of hopes and a desire of true opinion about that which is best. This third species being divided into two parts, five species will be produced, for which laws are to be established, differing from each other in two genera.

864c

Clinias: What are these?

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Guest: The one, every thing which is performed through violent and according actions; the other, which takes place with darkness and deception in a secret manner. And sometimes actions are attended with both these; which, if they are treated in a proper manner, ought to be restrained by the severest laws.

864c

Clinias: It is just they should.

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Guest: But let us now return whence we have digressed, and finish the establishment of laws. The particulars then which we proposed to discuss were respecting sacrilege, betrayers of their country, and

those who corrupted the laws, by dissolving the polity governed by those laws. Some one may perhaps commit one or other of these through insanity, disease, excessive old age, or youthfulness, which last does not in any respect differ from the other causes which we have enumerated.

864e

If it shall appear that any one thus affected has perpetrated one of these crimes, when the judges are chosen, and the crime is divulged, either by the guilty person or the inspector of the deed, he shall be judged to have acted contrary to law; and he shall be entirely fined a simple fine for the injury which he has committed. But let him be exempt from other punishments, unless, having committed manslaughter, his hands are not pure from murder: for, in this case, departing to another country, he shall be exiled for a year. If he returns before the time prescribed by the law, or shall be detected within the borders of the country, he shall be imprisoned for two years in the public gaol by the guardians of the laws, but liberated from his bonds after this period.

865a

However, as we began with murder, let us endeavour to establish laws consummately for every species of it. And, in the first place, let us speak concerning violent and involuntary homicide. If any one, therefore, in a contest, and public gymnastic exercises, shall involuntarily slay his friend, whether his death happens immediately, or some time after, from the wounds which he has received; or, if a man kills his friend in battle in a similar manner, or in warlike exercises instituted by the magistrates, whether with naked bodies, or with certain

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arms in imitation of warlike exercises,—in all these cases let him be purified according to the law about these particulars received from Delphi. But let all physicians who, in endeavouring to cure, have unwillingly been the death of any one, be considered as pure

according to law. If any one with his own hand unwillingly slays another, whether with his own naked body, or with an instrument or dart, or from administering drink or food, or by the hurling of fire, or tempest, or the privation of breath, whether he does this with

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his own body, or through the means of other bodies, let him be entirely considered as one that slays with his own hand, and suffer the following punishments: If he kills a slave belonging to another person, thinking that it is his own, he shall indemnify the master of the dead slave, or be fined the double of the worth of such slave: but his worth shall be determined by the judges. The homicide, too, in this case shall use greater and more numerous purifications than those who commit murder in gymnastic exercises; and the proper interpreters of these things shall be those whom the Delphic God approves.

865d

But if any one kills his own slave, when he is purified according to law, let him be liberated from murder. If any one involuntarily slays a free-born person, let him be purified with the same purifications as he who cuts off a slave. And let him not despise one of the antient sayings. For it is said, that a free-born person who is violently put to death, will soon after his death be angry with his murderer;

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and being filled with fear and terror through

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his violent dissolution, and perceiving the person that slew him living after his usual manner, he will terrify, and, being disturbed himself, disturb with all his might his murderer and his actions, memory at the same time contributing to oppose him.

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On this account, it is requisite that a homicide should be exiled from every part of his country for a whole year.

866c

But, if it is a stranger who is slain, the homicide shall be expelled from the country of the stranger for the same length of time. And if any one is willingly obedient to this law, he who is the nearest relation of the deceased, and who was an inspector of all the particulars relative to the murder, shall pardon the homicide; with whom if he is entirely reconciled, it will be perfectly sufficient. But with respect to him who is not obedient to this law, and who, in the first place, being unpurified, dares to go to the temples of the Gods, and sacrifice; and, in the next place, is unwilling to be exiled for the above-mentioned time, such a one the nearest relative of the deceased shall accuse to the judges, and he shall suffer double the punishments which are due to the crime. If the nearest relative of the deceased does not call him to an account, the defilement, as it were, revolving on such a one, or, in other words, the slain person directing his anger towards him, he shall be accused by any one that pleases, and shall be compelled by law to leave his country for five years. But if a stranger involuntarily slays a stranger in the city, whoever is willing shall accuse him by the same laws. If an inhabitant slays a stranger, he shall be exiled for one year. And, universally, if a stranger slays a stranger, who is an inhabitant and a citizen, besides his purification he shall be banished for the whole of his life from the country in which laws of this kind have dominion. And if he returns illegally, the guardians of the laws shall punish him with death; and his property, if he has any, shall be given to the nearest relation of the deceased. However, if any one involuntarily returns before the limited time, being driven on the coast by a storm at sea, in this case, let him fix a tent on the shore, so that his feet may touch the water, and watch for a fit opportunity of sailing.

866d

But, if he should be forcibly brought into the city by any one, let him be liberated by the first magistrate he may meet with, and sent back with safety into exile. Again, if any one with his own hand shall slay a free-born person, being incited by anger to the deed, a thing of this

kind ought, in the first place, to receive a twofold distinction. For he commits murder through anger, who suddenly and unintentionally kills a man by blows, or any other such like means, so that immediately after the impulse penitence follows the deed.

866e

And he likewise murders another in anger, who having been previously defamed by ignominious words or deeds, and, endeavouring to be avenged, afterwards voluntarily slays the person by whom he has been injured, and is not penitent for the deed. Murder, therefore, as it appears, must receive a twofold distribution; and both of them nearly are produced by anger. But they may most justly be said to subsist between the voluntary and the involuntary. In reality, indeed, they are but images of the voluntary and involuntary. For, he who retains his anger, and does not immediately and suddenly, but with stratagem, at some distance of time, avenge himself, is similar to one who murders voluntarily. But he who does not conceal his anger, but immediately follows its impulse without premeditation, is similar to one who murders involuntarily. However, he is not altogether involuntary, but an image of one that acts involuntarily. On this account, it is difficult to determine respecting murders committed through anger, whether they should be established by law as voluntary or involuntary actions. The best and the truest method, therefore, that can be adopted is, to consider both these kinds of murder as images, and to divide them apart from each other, so as to class the one under premeditated, and the other under unpremeditated actions.

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Severer punishments, therefore, are to be ordained for those that commit murder through anger, with premeditation; but milder punishments for those that murder without deliberation, and suddenly.

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For, that which is similar to a greater evil should receive a greater punishment, but that which is similar to a lesser evil, a lesser punishment. Let it, therefore, be thus established by our laws.

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Clinias: By all means.

867c

Guest: But again returning to the subject

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we say, that if any one with his own hand slays a free-born person, but was incited to the deed by a certain anger, without premeditation, in other respects let him suffer the same punishment as it is proper he should suffer who kills a man without anger; but let him, from necessity, be exiled for two years, as a punishment for his anger. But he who commits murder through anger, but with deliberation, shall be punished in other respects in the same manner as the former character; but he shall be banished for three years instead of two, that his anger, which is greater, may be punished for a longer time. And let this be the universal establishment respecting these particulars. For it is difficult to give laws about such things with accuracy. For, sometimes, murder of this kind, which is considered by the law as of a more atrocious, will prove to be of a milder, nature;

867e

and sometimes that which is of a milder, will be considered as of a more atrocious, nature; according as the murder is committed in a more savage or a more gentle manner. But, for the most part, they will happen agreeably to the above-mentioned mode. Of all these particulars, therefore, the guardians of the laws should be inspectors. When the time of the banishment of these offenders is expired, the guardians of the laws must send twelve judges to the boundaries of the region, for the purpose of considering, in a still clearer manner, the actions of the exiles during this time; and that they may determine in a proper manner respecting their modesty and reception.

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But the exiles shall acquiesce in the judgment of these magistrates. And if again, on returning from banishment, any one of these, being impelled by anger, shall commit the same offence, he shall be perpetually banished: and if he returns from his exile, he shall be punished in the same manner as a stranger for returning from exile. Let him who kills his slave purify himself. But if he kills the slave of another person in anger, let him pay to the master of the slave double the worth of his loss.

868b

If any homicide is not obedient to the laws respecting murder, but, while he is unpurified, defiles by his presence the forum, gymnasia, and other sacred places,—whoever is willing may bring before a court of judgment both the homicide, and the relation of the deceased who has neglected to avenge the dead, and compel him to pay a double fine, and suffer in other respects a double punishment. And let the offending party consider the fine as legal. If a slave kills his master in anger, the kindred of the deceased shall be allowed to slay the homicide in whatever manner they please, and shall be pure from murder, so long as they do not by any means preserve the life of the slave. But if a slave does not kill his own master, but some other free-born person, in anger, he shall be given up by his master to the kindred of the deceased, who shall, from necessity, put him to death in whatever manner they please.

868c

If a father or mother shall in anger slay a son or daughter, by blows, or any other violent manner (a thing which will happen, though but

868d

rarely), let them be purified after the same manner as other homicides, and be exiled for three years. And after they return from exile, the husband shall be divorced from the wife, and the wife from the husband: and they shall never afterwards beget children together, nor shall either of these dwell together with him whose son or brother

either of them slew, nor communicate with him in sacred rites. But he who is impious with respect to these things, and does not obey these laws, shall be obnoxious to the charge of impiety by any one that is willing.

868e

If a man slays his wife, or a wife her husband, in anger, they shall be purified in a similar manner with other homicides, and shall be exiled for three years. But, on returning from exile, let not either of them be permitted to join with their children in sacred rites, nor ever eat at the same table with them. And, if either the father or the child is disobedient to this law, let them be obnoxious to the charge of impiety by any one that is willing. If a brother slays either a brother or a sister, or sister a brother or a sister, in anger, let them be purified and exiled in the same manner as parents that slay their children;

869a

and, on their return from exile, let them not eat at the same table, or join in sacred rites, with those whom they have deprived of brothers, or sisters, or sons. And if any one is disobedient to this law, he shall with justice be obnoxious to the charge of impiety.

869b

If any one, through incontinent anger, is so enraged with his parents as to dare to slay one of them in his insane fury,—if the dying parent, before he expires, shall voluntarily absolve his murderer from the deed, then, being purified in the same manner as those who commit murder voluntarily, and performing such other things as they perform, let him be considered as pure. But if the dying parent does not absolve him, let him be obnoxious to many laws. For he must be subject to the extreme punishments of whipping, and, in a similar manner, of impiety and sacrilege, because he has expelled the soul of his begetter.

869c

So that, if it were possible that a man could die frequently, it would be most just that a parricide or matricide should suffer many deaths. For,

how is it possible that he who is not permitted by any law to destroy his parents, who led forth his nature into light, even though he should find that he was going to be slain by them, but is enjoined by the legislator to endure all things rather than perpetrate a deed of this kind,—how is it possible, I say, that such a one can in any other way be properly punished? Let death, therefore, be ordained as the punishment of him who in anger slays either his father or mother.

869d

But if a brother slays a brother in his own defence, being attacked by him, through sedition taking place between them, or any other such means, let him be pure in the same manner as one who slays an enemy. And if a citizen slays a citizen, or a stranger a stranger, in his own defence, let him be similarly pure; as, likewise, if, in defending himself, a citizen slays a stranger, or a stranger a citizen, or a slave a slave. But if a slave, in his own defence, slays a free-born person, let him be obnoxious to the same laws as him who slays his father.

869e

Let the same thing also be understood respecting the absolution from murder in all these cases as was said concerning the absolution from parricide. If any dying person, therefore, among these, previous to his death, willingly absolves his murderer from voluntary murder, purifications shall be administered to the homicide, and he shall be exiled for a year. And thus we appear to have spoken sufficiently respecting murders committed by violence, involuntarily, and in anger. Let us now speak concerning such as are voluntary, and perpetrated with every kind of injustice, and from stratagems, through the tyranny of pleasures, desires, and envy.

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Clinias: You speak properly.

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Guest: Again, therefore, in the first place, let us speak to the utmost of our power concerning the causes of these. The greatest cause, then, is desire, which has dominion in a soul rendered savage by venereal

incentives. It is this which abundantly, and in the most vehement manner, inflames the minds of the multitude, and which, through a depraved nature and want of discipline, generates ten thousand loves of infinite riches. But we say that the want of discipline is the cause why both among the Greeks and Barbarians riches are praised in a vicious manner. For they place these in the first, though they belong to the third, rank of things good;

870b

and, through this opinion, destroy both themselves and posterity. For, to speak the truth to all cities respecting riches, is the most beautiful and the best of all things. But the truth is, that riches subsist for the sake of the body, and the body subsists for the sake of the soul. Since, therefore, those things are good for the sake of which riches naturally subsist, they will rank in the third place after the virtue of the body and soul.

870c

This reason, therefore, will inform us as a teacher, that he who desires to be happy ought not to seek after wealth indiscriminately, but in a just and temperate manner. For thus murders would not be committed in cities, which require to be purified by murders. But now, as I said in the beginning of this discussion, this is one and the greatest cause of the greatest punishments of voluntary murder. The second is the habit of an ambitious soul, which generates envy; and this is bitter to those that dwell together, and especially to him by whom it is possessed, and afterwards to the best persons in the city.

870d

But cowardly and unjust fears rank in the third place, which produce many murders, when such things have been transacted by any one, or are at present transacted, as no one wishes to be conscious have taken place, or do take place. On this account they take away by death those that might give information of such transactions, when they cannot prevent them from making a discovery by any other means. And thus much for a preface to all these particulars. To which may be added,

what many who are studious respecting the mysteries have heard about things of this kind, of the

870e

truth of which they are vehemently persuaded,—I mean, that such actions are punished in Hades, and that the perpetrators of them, again returning hither, necessarily suffer punishment according to nature, and end their days by suffering the very same kind of death which they caused another to suffer.

871a

For him, therefore, who from this preface is persuaded, and is in every respect afraid of such a punishment, there is no occasion to establish a law respecting voluntary murder: but for him who will not be persuaded by it let the following law be ordained. He who designedly and unjustly slays with his own hand his fellow-citizen, shall, in the first place, be expelled from temples, from the forum, from ports, and from every general assembly, that he may not defile any of these by his presence; and this, whether any one forbids him from these places or not.

871b

For the law forbids him, and forbids him as a perpetual injunction to the whole city. But the male or female relative, as far as to a cousin, of the deceased, who does not prosecute such a one in a proper manner, nor expel him from these places, shall first of all receive in himself the defilement, together with the hatred of the Gods, agreeably to the imprecation of the law. And, in the second place, he shall be obnoxious to any one who is willing to revenge the dead.

871c

He who is willing to do this, having performed every thing respecting washings, and such other particulars as Divinity has caused to be legal in cases of this kind, and uttered such things as must be previously announced, let him proceed, and compel the homicide to suffer the punishment of his deed according to law. But that these things ought to take place through certain prayers and sacrifices to certain Gods,

who attend to such particulars, and are careful that murder may not be perpetrated in cities, will easily be apparent to the legislator. However, who these Gods are, and in what manner these judgments may be introduced, so as to take place with the utmost rectitude with respect to

871d

a divine nature, the guardians of the laws, together with the interpreters and diviners, must promulgate. But let the judges of these particulars be those to whom we have given the power of punishing sacrilege. Let him too who is condemned, be punished with death; and let him not be buried in the country of the murdered person, on account of his having acted in an impudent, as well as an impious manner. If he makes his escape, being unwilling to stand his trial, let him be perpetually exiled. And if he is ever detected in any part of the country in which he has committed the murder, he who

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first meets with him, whether he was the murderer of one of his kindred, or fellow-citizens, shall slay him with impunity; or shall deliver him bound to those magistrates that preside as judges over these affairs, that he may by them be put to death. But if any one should stand forth in his defence, he shall be bound for his appearance, and shall procure three bondsmen, whom the judges shall think sufficient, for the purpose.

872a

If he is either unwilling or incapable of doing this, he shall be bound by the magistrates, and properly secured, that he may be punished for his interference. If any one slays another, not with his own hand, but by consultation and stratagem, and yet, though he is the cause of the murder, and not purified in his soul, shall reside in the city where the deed was committed, such a one, being condemned, shall be similarly punished, except that he shall not be permitted to procure bondsmen, but shall be allowed his proper sepulchre. Let other things respecting him take place in the same manner as above. Let the same particulars

too be established respecting strangers towards strangers, citizens and strangers towards each other, and slaves towards slaves, in murder committed with the homicide's own hand; and in that which is committed by consultation and stratagem, excepting that these latter homicides shall be obliged to give bondsmen, in the same manner as those that murder with their own hands.

872b

If a slave voluntarily murders a free-born person, whether with his own hand, or through consultation, and is condemned, the public executioner shall lead him to the tomb of the murdered person, or to a place where he may see the tomb. Here he shall be whipt as long as the person that apprehended him pleases, and if he survives the whipping, he shall be put to death. But if any one kills a slave who has not in any respect acted unjustly, through fear lest he should disclose his base and vicious actions, or through some similar cause, he shall be punished in the same manner as if he had slain a citizen.

872c

However, if cases should happen for which it is very difficult to establish laws, at the same time that it is impossible not to deliver laws respecting them, such as the voluntary, and, in every respect, unjust, murdering of kindred, whether the homicide accomplishes this with his own hand, or by consultation and stratagem, (murders which frequently take place in cities badly inhabited and governed, and sometimes in a region where no one would expect to find them)—in such cases as these, it will be proper that what was lately mentioned by us should be repeated. For, perhaps, some one, on hearing these things, may be induced more willingly to abstain from the most impious of all murders.

872d

For a fable, or a discourse, or by whatever other name it may be proper to call it, is clearly delivered by ancient priests, that Justice, the avenger and inspector of the murdering of kindred, uses the law of which we have just now spoken. Hence, they say, she has ordained that

he who commits any such action shall necessarily suffer the same things as he has committed. So that, if any one has ever murdered his father, he shall himself, in certain periods of time, be violently put to death by his children. And, if any one has murdered his mother, he shall, in succeeding times, partake from necessity of a feminine nature, and be deprived of life by his offspring.

872e

For they add that, when common blood is defiled, there is not any other purification, nor can the stain be washed away by other means, than by the guilty soul suffering murder for murder, and in a similar manner, and laying asleep the anger of all the kindred of the murdered person. It is proper, therefore, that men should be restrained from crimes of this kind, through the fear of those punishments which are inflicted by the Gods. But if such a miserable calamity should happen to any, as that they should designedly and voluntarily dare to deprive father or mother, brothers or children, of life, let the following law respecting things of this kind be established by the mortal legislator. By a public declaration they shall be expelled from all sacred places, and shall be obliged to give bondsmen, in the same manner as was mentioned above.

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And when any one is condemned for murder of this kind, he shall be put to death both by the servants of the judges and the magistrates, and shall be driven naked out of the city to an appointed place, where three roads meet. Then all the magistrates, for the sake of the whole city, carrying each of them a stone, shall hurl it at the head of the dead body, and thus expiate the whole city. After this, carrying the dead body to the boundaries of the region, and hurling it thence, they shall leave it unburied, according to law.

873b

—But what ought he to suffer who slays his nearest, and, as it is said, most friendly, relative? I mean the man who kills himself, and by violence deprives himself of the allotment of fate; being neither

compelled to do this by the judgment of the city, nor by a grievous and inevitable chance of fortune, nor by any extreme shame or poverty; but, through indolence and effeminate timidity, unjustly punishes himself. What purifications, and what mode of interment, ought to be legally established respecting such a one, Divinity knows:

873c

but the nearest relatives of the deceased must inquire what these are from the interpreters of the Gods, and the laws about these. As to their sepulture, let them be buried in solitary places, where no one else is buried, and in those parts of the region which are the boundaries of the twelve divisions, and which are desolate and without a name. Let them, likewise, be buried in an ignoble manner, neither making their tombs conspicuous by the erection of pillars, or the inscription of their names.

873d

If a beast of burthen, or any other animal, shall kill a man, unless this happens in some public contest, the relations of the person so killed shall avenge his death: and the præfects of the land shall do whatever the relation or relations of the deceased command. But the punishment shall consist in driving the animal beyond the boundaries of the region, and there slaying him.

873e

If any inanimate thing deprives a man of life, except thunder, or any other such-like dart sent from Divinity, by either falling on the man, or the man falling on it, he who is nearest of kin to the deceased shall appoint his neighbour to be a judge in this case, and shall make an expiation both for himself and the whole of his kindred.

874a

But the thing condemned shall be exterminated the region, in the same manner as animals that are homicides. If any one is found dead, and it is not manifest by whom he was slain, but cannot be discovered after the most diligent search, proclamations must be employed as in

874b

other murders, and the crier must proclaim in the forum, that whoever has slain this or that person, as being guilty of murder, must not approach any sacred places, nor reside in any part of the region where the deed was committed: for, if he is detected within the boundaries of the said region, he shall be put to death, and, being hurled beyond them, left unburied. Let this one law, therefore, be established as the principal one respecting murder. And thus much may suffice about things of this kind. Let the following, then, be the particular cases in which he who commits murder will be pure.

874c

If any one detects a thief entering his house by night, for the purpose of robbing it, and slays him, let such an one be pure. In like manner, let him be pure who slays a highwayman in his own defence. And if any one uses force respecting venereal concerns towards a free-born woman or boy, let him be put to death with impunity, either by the injured party, or by the father, brothers, or sons of the person so injured. Likewise, if a man meets with any one offering violence to his wife, and kills him, let him be pure, according to law. And if any one, in assisting his father, or mother, or children, or brothers, or wife, in doing that which is by no means unholy, should slay some one, let him be in every respect pure. And thus far we have given laws concerning that education and discipline of the living soul, which if it is fortunately endued with, it may be suffered to live, but of which if it is unfortunately deprived, it must be put to death: and we have likewise ordained such punishments as murders deserve. We have spoken too respecting the nutrition and discipline of bodies.

874d

It now remains that we should define, to the utmost of our power, what violent, voluntary, and involuntary actions are, and how many they are in number, and what are the punishments accommodated to each.

874e

For these, as it appears, will be properly discussed after those. But even the vilest legislator will place the consideration of wounds, and mutilations from wounds, after murder.

875a

Wounds, therefore, are to be divided in the same manner as murders. For some of them are inflicted involuntarily; others through anger; some through fear; and some voluntarily and from design. Respecting all these, the following observations must be premised. It is necessary that laws should be established for men, and that they should live according to law, or they would in no respect differ from the most savage animals. But this is owing to the nature of men, which is never found to be sufficient of itself to know what is advantageous to a human polity;

875b

and, when it does know this, is never always able to do and wish that which is best. For it is, in the first place, difficult to know that not private but public advantage must necessarily be attended to by the political and true art; (for that which is common binds, but that which is private dilacerates, cities,) and that it is more advantageous, both to the public and individuals, that common concerns should be well established, than such as are private. In the second place, though some one should know sufficiently from art, that these things naturally subsist in this manner, yet, after this, if he should govern the city with an unrestrained authority, he would be incapable of persevering in this dogma, and of living

875c

in the opinion that common advantage should be nourished in a city, and private follow the general good. But the mortal nature will always impel him to prerogative and private advantage: for this nature avoids pain, and pursues pleasure, in an irrational manner; prefers both these to that which is more just and excellent; and, producing darkness in itself, fills at length both itself and the whole city with evils of every kind. Indeed, if any man, through a divine destiny,

should be naturally sufficient to comprehend what is the public good, he would require no laws for the government of himself; for neither any law, nor any order, is better than science; nor is it lawful that intellect should be subservient and a slave to any thing, but that it should be the ruler of all things, if it is thus true, and really free by nature. But now, with respect to such an intellect as this, it cannot be said, that it is not by any means any where to be found, but it should be said that it is but rarely seen. That which ranks, therefore, in the second place, must be chosen, viz. order and law; of which many things are indeed perceived, but it is impossible to view all that pertains to them. And thus much we have said for the sake of these things.

875d

—Now, let us ordain what he who wounds or injures another ought to suffer or pay.

875e

For it is easy for every one to comprehend properly, whether any one is wounded or not, who it is that is wounded, in what part, and after what manner. For there are an innumerable multitude of particulars of this kind, and which very much differ from each other. It is, therefore, alike impossible, to refer all, or no one of these, to courts of justice. For this one thing, in all these, must necessarily be referred to the decision of justice. I mean, whether each of these was done, or not. That nothing, indeed, should be determined by courts of justice respecting the fine for injuries of this kind, but that all things, both small and great, should be determined by law, is nearly impossible.

876a

Clinias: What then shall we say after this?

876a

Guest: That some things should be referred to courts of justice, but that others should be determined by the legislator himself.

876a

Clinias: What are the particulars then which the legislator must decide, and what those which must be decided by courts of justice?

876a

Guest: With the greatest propriety, after these things, the following assertions may be made:

876b

That, in a city in which the courts of justice are depraved and dumb, the opinions of the judges concealed, and sentence privately passed; and in which something still more dire than this takes place, when each of the judges decides, not in silence, but in the midst of tumult, as in a theatre, the rhetoricians praising and blaming with loud exclamations;—then a heavy calamity befalls the whole city.

876c

If, therefore, from a certain necessity, any one should be compelled to give laws to such courts of justice, it would not be a fortunate circumstance; but, at the same time, he who is forced to give them, should commit only the smallest fines to the judges, but should clearly ordain the greatest part of them himself. But, in a city, in which courts of justice are established with as great propriety as possible, and the judges are well educated, and examined with the greatest accuracy; in such a city, it will be proper and becoming to refer many things to the decision of such judges, respecting the punishment of such as are condemned.

876d

No one, therefore, should be indignant with us, that we do not now promulgate to these, such things as are the greatest and most numerous, which judges that are educated in the vilest manner may be able to perceive; and who likewise may be capable of punishing every offence in a proper manner. But, as we are of opinion that those for whom we promulgate laws, will not be in the smallest degree inelegant judges of these things, we shall commit most things to their decision.

876e

However, as we have often said, in the former part of this discussion, that a description and formulæ of punishments ought to be given as examples to judges, which are never to be transgressed, and this we ourselves have accomplished,— this was then both rightly asserted and performed, and must be observed at present, as we are again returning to the laws. Let the written law, therefore, be established respecting wounds.

877a

If any one, thinking in conjunction with his will to slay his friend, (if his friend is one of those whom the law forbids him to injure) wounds, but is not able to kill him, such an one, as neither deserving pity nor regard, we shall compel to suffer the punishment of murder, no otherwise than if he had actually slain his friend: except we should reverence his fortune, if it should not be entirely bad, and also the dæmon who, commiserating both him and the wounded person, may become an averter of evil to both, and may cause the wound of the one not to be incurable, and the fortune and calamity of the other to be devoted to the Furies. Giving thanks, therefore, to this dæmon, and not opposing him, we shall take away the punishment of death from him that inflicted the wound, but order him to be exiled for life in a neighbouring city, and there enjoy the fruits of all his possessions.

877a

If the wounded person, however, has suffered any loss, he shall make him a proper restitution, and such an one as the court of justice shall determine.

877b

But those judges that decide in cases of murder shall decide in this case.

877c

If a child designedly wounds his parent, or a slave his master, the punishment shall be death. And if a brother designedly wounds a brother or sister, or a sister a sister or brother, the punishment shall in like manner be death. But if a woman wounds her husband with an

intention of slaying him, or a husband his wife with the same design, let each be perpetually banished. And, with respect to their property, if their sons or daughters are at that time but children, let persons be appointed to manage their affairs, and take care of the orphan children. But if their sons or daughters are adults, let them not be compelled to provide for their exiled parent, but let them be permitted to take possession of his or her property. If any one who has no children happens to fall into calamities of this kind, let his kindred, as far as to cousins, both of the male and female side, assemble, and, consulting together with the guardians of the laws and priests, in the house of the exiled person, let one family out of the five thousand and forty houses of the city be appointed as his heir:

877d

at the same time considering that no house out of this number is so much the property of its inhabitant, and his kindred, as of the city at large. It is requisite, indeed, that the city should possess its own houses, to the utmost of its power, in the most holy and prosperous manner.

877e

When any house, therefore, is at the same time both unfortunate and impious, in consequence of its possessor leaving no children behind him, and of having been condemned for voluntary murder, or any other crime towards the Gods, or his fellow citizens, the punishment of which according to law is evidently death, or perpetual exile;—when this is the case, in the first place, let the house be purified and expiated according to law;

878a

and, in the next place, let the kindred, as we just now said, assembling together with the guardians of the laws, consider what family in the city is most renowned for virtue, and at the same time fortunate, and consisting of a numerous progeny. Let one of the children belonging to this family be adopted by the father of the deceased, and by his grandfather and great grandfather, beseeching, at the same time,

Divinity that he may be a parent, master, and minister of holy and sacred rites, with better fortune than his predecessor. Having prayed after this manner, let him be appointed heir according to law. But let the guilty person be suffered to lie without a name, without children, and without any lot, in consequence of being oppressed by such calamities as these. Boundary, however, as it appears, is not in all things mingled with boundary. But where there is a common confine, this, being previously hurled in the middle of both boundaries, subsists between both.

878b

And we have said that crimes committed through anger are of this kind, subsisting between voluntary and involuntary crimes. If then any one is condemned for wounding another through anger, if the wound shall prove to be curable, he shall pay the double of the loss sustained; but if incurable, he shall make a four-fold restitution. If the wound shall prove to be curable, but at the same time becomes the cause of great shame and disgrace to the wounded person, he shall likewise pay a fourfold fine.

878c

But if any one, in wounding another, not only injures the wounded person, but the city, by rendering him incapable of assisting his country against the enemy, he shall be similarly fined, and, besides this, make restitution to the city for its loss. Besides, too, his own military duties, he shall perform those of the wounded person; or, in case of non-compliance, he shall be accused according to law, by any one that is willing, for neglect of military duty. He shall likewise make a double, triple, or quadruple restitution, according to the decision of the judges.

878d

If one near relation in a similar manner wounds another, the parents and kindred, as far as to the male and female cousins assembling together, shall decide the case among themselves, and shall deliver the offender to his parents to be punished according to nature. But if

the punishment should be doubtful, it shall be determined by the kindred on the male side. And if they are incapable of deciding the case, they shall betake themselves at last to the guardians of the laws.

878e

When children inflict any such wounds on their parents, the judges shall be those that have passed beyond their sixtieth year, and whose children are truly their own, and not such as are adopted. He that in this case is condemned shall be put to death, or suffer some greater punishment, or one that is not much less; but no one of his kindred shall be permitted to judge him, though he should be of the age prescribed by law.

879a

But if a slave wounds any free-born person in anger, his master shall deliver him to the wounded person, that he may punish him in whatever manner he pleases: but if his master does not deliver him, he himself shall make a compensation for the injury. If any one has a suspicion that the slave and wounded person acted from mutual compact, he shall acquaint the judges with his suspicion; and if he does not prove that his suspicion was true, he shall be fined triple of the damage sustained; but if he does prove it, let him be obnoxious to slavery, who has acted thus artfully with a slave.

879b

But let him who involuntarily wounds another, pay a simple fine. For no legislator is sufficient to govern fortune. Let the judges also be such as were appointed for children when guilty of wounding their parents, and let these determine the proper punishment. All the above-mentioned passions, indeed, are violent; and every kind of striking likewise is violent.

879c

It is necessary, therefore, that every man and every woman should always think about things of this kind, that an elderly person is to be honoured in no small degree beyond a younger person; that they are so by the Gods; and must be so by men who design to be saved and be

happy. To see, therefore, an elderly struck by a young man in a city, is shameful, and odious to Divinity.

879d

But it seems fit that every young man, when struck by an old man, should patiently endure it, through a reverence of his age. Let it, therefore, be thus: Every one shall reverence both in word and deed a person older than himself; and in such a manner, that whoever is more than twenty years of age, whether male or female, may be revered as a father or mother; and so that every young person may abstain from offering violence to any who are capable of begetting or bringing forth children, through regard to the Gods that preside over births. In a similar manner, let no violence be offered to a stranger, whether he has resided for some time in the city, or has but recently taken up his abode in it. For, whether he excites contention, or resists an injury, let no one dare to chastize him with blows.

879e

But if a stranger should dare wantonly to strike a citizen, let him who thinks he ought to be punished bring him before the præfects of the city, but not strike him himself, that, by thus refraining from a stranger, he may be far from daring to strike a fellow-citizen. The præfects of the city, reverencing the hospitable God, shall examine the affair; and if it shall appear that the stranger has acted unjustly, the citizen shall give him as many lashes with a whip, as the blows which he received from him, that he may prevent him from daring to do the like in future. But if it shall appear that the stranger has not acted unjustly, after threatening and disgracing the person that brought him before the præfects of the city, let both be dismissed. If one person strikes another of the same age with himself, or who is a little older, but without children, or if an old man strikes an old man, or one youth another, the injured parties may defend themselves according to nature, without weapons, with their naked hands. But if any one who is more than forty years of age shall dare to strike another, either

while the person he strikes is attacking another, or defending himself, let him be called rustic, illiberal, and servile;

880a

and he may be considered as sufficiently punished by this reproach. And if any one is obedient to these admonitions, he will be of a tractable disposition; but let him who cannot be persuaded by them, and who despises this exordium, receive with alacrity the following law: If any one strikes another who is older than himself by twenty years or more,—in the first place, let him who happens to be present at the time, if he is neither of an equal age, nor younger, prevent any further violence; or, if he does not prevent it, let him be considered as unworthy according to law.

880b

But if he is of the same age with, or younger than, the person struck, let him defend him as if he was his brother or father, or as if he was his superior. And, besides this, let him be obnoxious to judicial punishment, who, as we have said, dares to strike a person older than himself:

880c

and if he is condemned, let him be punished with bonds, for not less than a year; or for a longer time, if it shall seem proper to the judges by whom he is condemned. If a stranger or an inhabitant shall strike one who is twenty years older than himself, let the same law have the same power, with respect to those that are present giving him assistance. And let him who in this case shall be condemned, if he is a stranger, and not an inhabitant of the city, be punished with bonds for the space of two years.

880d

But if he is an inhabitant of the city, and is not obedient to the laws, let him be punished with bonds for three years, if the court of justice does not determine that he shall be punished for a longer time. Let whoever happens to be present on this occasion, and does not give assistance according to law, be fined. And if he possesses one of the

first and largest estates, let him be fined a mina; but if his estate is of the second rank, fifty drachms; if of the third, thirty; and if of the fourth, twenty.

880e

Let the court of justice too respecting all such particulars consist of the generals of the army, the præfects of the military orders, the governors of tribes, and the masters of the horse. But with respect to laws, as it appears, some are instituted for the sake of worthy men, that they may be instructed by them, how they may associate with each other in a benevolent manner; but others for the sake of those who, avoiding discipline, and being of an intractable nature, are disposed to rush into every kind of vice. It is for these that what follows is asserted, and that the legislator necessarily establishes laws; at the same time wishing, that there may never be any occasion to use them.

881a

Whoever, therefore, dares to strike his father or mother, or the progenitors of these, neither dreading the anger of the Gods above, nor the punishments which are said to be inflicted under the earth, but, as one who thinks he knows that of which he is perfectly ignorant, despises assertions which are both antient and assented to by all men, and in consequence of this acts unlawfully,—such a one requires the most extreme remedy. Death, therefore, is not the last remedy, but the punishments which are inflicted in Hades are rather ultimate remedies; and which, though they are most truly said to exist, yet are incapable of averting souls of this kind from evil. For, if they were capable, there never would be found any who would impiously dare to strike their parents. It is requisite, therefore, that the punishments for crimes of this kind in the present life, should be as much as possible in no respect inferior to those which are inflicted in Hades.

881b

Let the following law, therefore, be established: If any one who is not insane shall dare to strike his father or mother, or their fathers or mothers,—in the first place, let any one who is present (as was mentioned before) give assistance. And if it is an inhabitant that gives assistance, let him be called to take the principal seat in the games; but if he does not give assistance, let him be perpetually banished from the region. If he is not an inhabitant, but gives assistance, let him be praised; but if he does not give assistance, let him be blamed. If a slave gives assistance, let him be made free; but if he does not assist, let him receive a hundred lashes with a whip. And if this happens in the forum, let the punishment be inflicted by the præfects of the market;

881c

but if in any other part of the city, by the ædiles. In like manner, if it should happen beyond the city, let him be punished by the governors of the husbandmen. If any citizen is present when a parent is struck by his child, whether such citizen is a boy, a man, or a woman, let him give assistance, at the same time exclaiming that such conduct is impious. But if he does not give assistance, let him be obnoxious to Jupiter Omognius⁵⁵ and Patroïus⁵⁶.

881d

Lastly, if any one is condemned for striking his parents, let him, in the first place, be perpetually banished from the city to some other region; and, in the next place, let him be expelled from all sacred places and ceremonies; from which if he will not abstain, let him be punished with blows by the magistrates that take care of rural affairs, and entirely in such a manner as they please. And if he returns from exile, let him be punished with death. If any free-born person shall eat or drink with such a one, or have any transactions with him, or voluntarily touch him, if he should happen to meet with him,—such a one shall neither be suffered to enter into any temple, or forum, nor in short into the city, till he is purified;

881e

for he should think that he has had communication with an execrable fortune. But if, being unpersuaded by the law, he illegally defiles sacred places, and the city,—whatever magistrate, perceiving this, does not punish such an one, let him be accused as guilty of one of the greatest crimes. If a slave strikes a free-born person, whether he is a stranger or a citizen, let any one who is present give assistance, or be punished with the above-mentioned fine, according to the value of his estate. Those who are present, therefore, shall succour the injured person, and deliver to him the offender bound. Then the injured person, receiving him in this condition, shall give him as many lashes with a whip as he pleases; observing, at the same time, not to injure his master, to whom he shall afterwards deliver him, to be possessed according to law.

882a

But let the law be this: If a slave strikes a free-born person, without being ordered to do so by the magistrates, his master, on receiving him bound from the person he has injured, shall not free him from his bonds till the slave has persuaded the injured person that he deserves to be released from them. Let the same laws be adopted for women, in their conduct towards each other, with respect to all these particulars;

882e

and for women towards men, and men towards women.

Book X

884a

After the laws respecting wounds, let the following general law be established respecting violence of every kind;

884b

that no one shall carry or take away any thing belonging to another, or use his neighbour's property, if he has not obtained the consent of its possessor.

884c

For all the above-mentioned evils have depended, depend at present, and will depend on a thing of this kind.

884d

But the greatest of the remaining evils are the intemperance and insolence of young men. The first of these consists in insolent and injurious behaviour towards sacred concerns.

884e

And the intemperance and insolence of young men are particularly mighty evils when they take place in public and holy affairs, or in any common part of the tribes, or any other communions of this kind.

885a

But the second of these crimes, and which rank in the second place, are those committed towards private sacred concerns and sepulchres. Those of the third rank, separate from the above-mentioned particulars, consist in insolent behaviour towards parents. The fourth kind of insolence takes place when any one, despising the magistrates, takes away or uses any thing belonging to them, contrary to their intention. The fifth consists in unjustly calling to account the political conduct of any citizen. And for each of these a common law must be established.

885b

For, with respect to sacrilege, we have summarily said in what manner it ought to be punished, if it is committed with violence and secrecy. Let us now speak concerning the punishment which those ought to suffer who speak or act in an insolent manner towards the Gods, premising first of all the following particulars, as an atonement. He who believes that there are Gods, conformably to the laws, will never at any time voluntarily act in an impious manner, or speak illegally. But he who does so will suffer one of these three things: either he will not believe that there are Gods; or he will believe that there are, but that they take no care of human affairs; or, in the third place, he will believe that they are easily appeased by sacrifices and prayers.

885c

Clinias: What then shall we do, and what shall we say to them?

885c

Guest: O good man! let us, in the first place, hear what I prophesy they will jocosely say in contempt of us.

885c

Clinias: What?

885c

Guest: They will, perhaps,

885d

in a reviling manner thus address us:—O Athenian guest, you Lacedæmonian, and you Cnossian, you speak the truth. For some of us are by no means of opinion that there are Gods; others among us believe that they take no care of human affairs; and others, that they may easily be appeased by sacrifices and prayers, agreeably to what you said. But we think it proper, in the same manner as it appeared proper to you respecting laws, that before you threaten us severely you should endeavour to persuade and teach us that there are Gods, adducing for this purpose sufficient arguments; and likewise, that they are beings too excellent to be allured in an unjust manner by any gifts. For, now often hearing these, and other such particulars, asserted by the best of poets, rhetoricians, prophets, priests, and ten thousand others, the greater part of us do not turn from acting unjustly, but we endeavour by such conduct to obtain a remedy for our evils.

885e

But from legislators who confess themselves not to be rustic, but mild, we think it reasonable to expect that they should endeavour to persuade us that there are Gods; so that, though they may not speak better than others respecting the existence of the Divinities, yet they may speak better with respect to truth. And perhaps, indeed, we may be persuaded by you. If, therefore, we speak in a proper manner, comply with our request.

886a

Clinias: It appears therefore easy, O guest, to show the truth of this assertion, that there are Gods.

886a

Guest: How?

886a

Clinias: In the first place, the earth and sun, all the stars, and the seasons so beautifully adorned and distinguished by months and years, evince the truth of this assertion. To which we may add, that all men, both Greeks and Barbarians, believe that there are Gods.

886b

Guest: O blessed man, I am afraid for the depraved, (for I will not ever say that I am ashamed of them,) lest you should despise them. For you are ignorant with respect to the cause of the difference between them and others, and think that their souls are impelled to an impious life through the incontinence alone of pleasures and desires.

886b

Clinias: But what other cause is there, O guest, besides this?

886b

Guest: One, of which you are nearly entirely ignorant, through living remote from such characters.

886b

Clinias: What is it?

886b

Guest: A certain ignorance of a very grievous nature, and which appears to be the greatest prudence.

886b

Clinias: How do you say?

886b

Guest: There are certain writings among us, partly in verse and partly in prose, which, as I understand, you have not, through the virtue of your polity.

886c

The most antient of these writings assert, respecting the Gods, that the nature of Heaven, and of the other Divinities, was first generated; and at no great distance from the beginning of these compositions, the generation of the Gods, and their discourses with each other, are related. It is not easy to censure these writings, on account of their antiquity, whether they may be properly adapted to the hearers of them, or not. But I shall never praise them as useful, nor as in every respect speaking properly respecting the reverence and honour which is due to parents. Let us, therefore, dismiss and bid farewell to the writings of the antients, and speak of them in such a manner as is pleasing to the Gods. But let us accuse such assertions of junior wise men as are the causes of evil. Their assertions, then, produce the following effect:—When you and I, as arguments that there are Gods, adduce the sun and moon, the stars, and the earth, as Gods and Divine natures,—others, persuaded by these wise men, will say that they are earth and stones, incapable of paying any attention to human affairs, though they are celebrated as Divinities in discourses well calculated to procure persuasion.

886d

Clinias: Such an assertion, O guest, would be of a dangerous nature, even if I was the only one that heard it;

886e

but now, since it is heard by many, it is still more dangerous.

887a

Guest: What then ought we to say, and what ought we to do? Shall we apologize as if we were accused by some impious person for acting in a dire manner by establishing laws as if there were Gods? Or shall we bid farewell to these, and again return to the discussion of laws, that this our preface to the laws may not become more extended than is proper? For our discourse will be far from being short, if we sufficiently exhibit what is necessary to men prone to impiety; wish to deter them from wickedness; to render them indignant with what is base; and afterwards to establish laws in a proper manner.

887b

Clinias: But, O guest, we have often said in the course of this short time, that in the present discussion brevity is not to be preferred to prolixity. For nothing (according to the saying) pursues us urging. But it would be ridiculous, and at the same time base, to prefer that which is shorter to that which is best. For it will be a thing of no small consequence if our discourse shall possess any persuasive arguments that there are Gods, that they are good, and that they honour justice far more than men. For this will be nearly the most beautiful and excellent preface to all our laws. Without any molestation, therefore, and delay, let us, to the utmost of our power, omit nothing which may tend to persuade that these things are so.

887c

Guest: What you have just now said appears to me to call us to prayer, since you excite yourself with alacrity to the ensuing discourse, and do not admit of any further delay. *But how can any one, without anger, speak concerning the existence of the Gods, as if it was a thing of a doubtful nature?*

887d

For it necessarily follows that we must be indignant with, and hate, those who are the causes to us of the present discussion. These, indeed, might be persuaded there are Gods, from what they heard while children, and while they were yet nourished with milk from their nurses and mothers, as it were in songs, both in sport and in earnest, in sacrifices and prayers. For in these they must have seen and heard in the sweetest manner their parents supplicating the Gods with the greatest earnestness for themselves and children, and proclaiming, by their prayers and supplications, that there are indubitably Gods.

887e

Besides this, too, they must have heard and seen both Greeks and Barbarians, during the rising and setting of the sun and moon, supplicating and adoring, as well when their affairs were prosperous

as when they were adverse; by all which they might be led to conclude that there are Gods, without any suspicion to the contrary.

888a

But with respect to those who despise every thing of this kind, though not from one sufficient argument, as every one who possesses the least degree of intellect will acknowledge, and on this account compel us to speak as we do at present, how shall we be able to correct them in mild language, and at the same time, in the first place, teach them that there are Gods? Let us, however, dare the attempt.

888b

For it is not proper that, at the same time they are insane through the voracity of pleasure, we should be transported through anger with such characters as these. Laying aside all anger, therefore, let us previously address those who are thus vitiated in their dianoëtic part, and mildly speak to one of them as follows: O boy, you are as yet a youth; but time, as it advances, will cause you to change your opinions, and think in many respects contrary to what you do at present. Wait, therefore, till that period, that you may be able to judge concerning things of the greatest consequence. But to possess right conceptions respecting the Gods, though to you at present it appears to be a thing of no consequence, is of the greatest importance as to living well, or the contrary. If, therefore, I announce to you what follows as one of the things of the utmost consequence, I shall by no means speak falsely. Not you alone, nor your friends, are the first that have entertained this opinion respecting the Gods, but there always have been a greater or less number who have laboured under this disease.

888c

I will, therefore, tell you what happens to most of them, viz. that they do not remain in this opinion, that there are no Gods, from youth to old age. Two opinions, indeed, respecting the Gods remain, though not in many, yet in a few,—I mean, that there are Gods, but that they take no care of human affairs; or, if they do, that they may be easily

appeased by sacrifices and prayers. If, therefore, you will be persuaded by me, wait, considering whether this is the case or not, till you possess as clear information in this particular as can possibly be obtained. And in order to this, interrogate others, and particularly the legislator. But at the present time do not dare to act in any respect impious towards the Gods. For he who establishes laws for you will endeavour, both now and hereafter, to teach you how these things subsist.

888d

Clinias: What has been said thus far, O guest, is most beautiful.

888e

Guest: Entirely so, O Megillus and Clinias; but we are ignorant that we have fallen upon a wonderful assertion.

888e

Clinias: What kind of assertion do you mean?

888e

Guest: That which in the opinion of many is the wisest of all assertions.

888e

Clinias: Speak yet clearer.

888e

Guest: Some then say, with respect to all things that have been, are, and will be, that some subsist from nature, others from art, and others through fortune.

889a

Clinias: And they speak well.

889a

Guest: It is fit, indeed, that wise men should speak properly. Following them, therefore, let us consider what they meant by this assertion.

889a

Clinias: By all means.

889a

Guest: It appears (say they) that the greatest and most beautiful things are produced by nature and fortune, but lesser things by art; which receiving from nature the generation of great and primary works, fashions and fabricates all smaller works, which we all of us denominate artificial.

889b

Clinias: How do you say?

889c

Guest: I will speak still clearer. They say⁵⁷ that fire and water, earth and air, subsist from nature and fortune, and not from art. That the bodies also, which are posterior to these, viz. of the earth, the sun, the moon, and the stars, are generated through these, which are entirely destitute of soul. They add, that, all things being casually borne along by the impulse of fortune, they became in a certain respect properly harmonized together, viz. the hot with the cold, the dry with the moist, the soft with the hard; and, in short, that all things of a contrary temperament were, from necessity, through fortune mingled together. That, besides this, the whole of heaven, with all that it contains, all animals and plants, and the seasons of the year, were produced after this manner: not (say they) through intellect, or any divinity, nor yet through art, but, as we have said, from nature and fortune. That afterwards mortal art was generated from these by mortals, and that through its assistance certain posterior disciplines were produced, which do not very much partake of truth, but are certain images allied to each other; such as painting, music, and the sister arts, beget. They add, that if there are any arts which produce any thing of a serious nature, they are such as communicate their own power with that of nature; such as are the arts of medicine, agriculture, and gymnastic: and that the political art communicates in a certain small part with nature, but very much with art.

889d

So that, according to them, the whole of legislation does not consist from nature, but art,

889e

and its positions are not true.

890a

Clinias: How do you say?

890a

Guest: O blessed man, they say in the first place, that the Gods do not subsist from nature, but from art and certain laws, and that these are different in different nations, according as the legislators by mutual agreement have determined. They likewise assert, that things beautiful or becoming are not the same by nature as by law; and that things just have not any natural subsistence whatever, but that men always dissent among themselves respecting these, and are perpetually changing them. That, when they are changed by them, they then possess authority, deriving their subsistence from art and laws, and not from any certain nature. These, my friends, are the particulars which are taught young men from the writings of the wise, both in prose and verse, and by which they learn that the most just is that which is obtained by violence. Hence, young men fall into impiety so as to believe that there are not Gods, such as the law ordains us to conceive have an existence. Hence, too, seditions arise, through which men are drawn to a life consisting in vanquishing others, and refusing subjection to others according to law, as if it was a life naturally proper.

890b

Clinias: O guest, what a circumstance have you related, and what a pest to young men, both publicly to cities, and to private families!

890c

Guest: You speak truly, O Clinias. What then ought a legislator to do in this case? Ought he only to threaten every one in the city, that they shall be punished unless they assert and believe that there are Gods, such as the law says there are; and unless they conceive they ought to act in such a manner with respect to things beautiful and just, and every thing else of the greatest consequence, and whatever pertains

to virtue and vice, as the writings of the legislator enjoin? If, therefore, any refuse to obey his laws, ought he to punish some with death, others with stripes and bonds, others with infamy, and others with poverty and exile? but ought he to pay no attention to persuasion and gentle methods, at the same time that he is establishing laws?

890d

Clinias: By no means, O guest. But if any persuasion, though small, respecting things of this kind can be obtained, a legislator who is of the least worth ought by no means to be weary, but, as it is said, with the most strenuous exertions of his voice, should give assistance to the antient law, by asserting that there are Gods, and such other things as you have discussed; and should give his suffrage both to nature and art, that they have a natural subsistence, or a subsistence not inferior to that of nature, since they are the progeny of intellect, according to the dictates of right reason, as you appear to me to assert, and as I believe.

890d

Guest: O most prompt Clinias, is it not difficult to follow by a reasoning process things asserted by the multitude, and which are of a very extended nature?

890e

Clinias: But what, O guest? Shall we patiently endure to discourse in so

891a

prolix a manner about intoxication and music, and shall we not be equally ready to speak about the Gods, and such-like particulars? Besides, such an undertaking will be of the greatest assistance to legislation, when prudently conducted, since those written mandates pertaining to the laws, which have always been subject to reprehension, will thus entirely remain undisturbed. So that we ought not to be terrified if those things should at first be difficult to hear, which, when often repeated, may be apprehended even by one whom, from his inaptitude to learning, it is difficult to instruct. These things,

therefore, though they may be prolix, yet, if they are useful, they are not to be considered as of no consequence; nor does it appear to me to be holy not to assist these assertions to the utmost of our power.

891a

Megillus: O guest Clinias, you appear to me to speak most excellently.

891b

Guest: He does very much so indeed.

891b

Megillus: Let us, therefore, do as he says. For, if assertions of this kind were not, as I may say, scattered among all men, there would be no occasion of arguments to prove that there are Gods: but now this is necessary. Since, therefore, the greatest laws are corrupted by vicious men, to whom does it pertain to give assistance to them more than to the legislator?

891c

Clinias: To no one.

891c

Guest: But inform me again, O Clinias, (for it is proper that you should partake of this discourse,) does it not appear that he who asserts the above-mentioned particulars considers fire and water, earth and air, as the first of all things, and that he denominates these very things nature, but is of opinion that soul was produced afterwards from these? Indeed, it not only appears to be so, but is truly signified to us by the very assertions themselves.

891d

Clinias: Entirely so.

891d

Guest: Whether or no, therefore, by Jupiter, have we found, as it were, a certain fountain of the stupid opinion of those men who have ever touched upon physical inquiries? Consider, investigating the whole affair. For it will be of no small consequence if it shall appear that those who meddle with impious assertions, and thus rule over others,

do not employ good, but vicious arguments. To me, therefore, this appears to be the case.

891d

Clinias: You speak well: but endeavour to show that it is so.

891d

Guest: But I shall appear to employ unusual arguments.

891d

Clinias: Let not this make you sluggish, O guest. For I understand that you are of opinion we shall wander from the business of legislation, if we engage in a disputation of this kind. But if it is not possible to show by any other method than this that the laws speak properly concerning the Gods, let us, O wonderful man, adopt it.

891e

Guest: I will enter, therefore, on this discourse, which, as it appears, is so unusual. Those discourses, then, which render the soul impious, assert that the first cause of the generation and corruption of all things is not the first, but was produced afterwards; and that what was posterior is prior. On this account they err respecting the true essence of the Gods.

891e

Clinias: I do not yet understand.

891e

Guest: Almost all men,

892a

O my associate, appear to be ignorant what the soul is, and what power it possesses, both with respect to other things and its generation; I mean, that it ranks among things first, that it had a subsistence prior to all bodies, and that more than any other nature it rules over the mutation and all the ornament of bodies. If this is the case, does it not necessarily follow, that things allied to soul will have an origin prior to those pertaining to body, soul itself being more antient than body?

892b

Clinias: It is necessary.

892c

Guest: Opinion, therefore, diligent attention, intellect, art, and law, will be prior to things hard and soft, heavy and light. Besides this, too, great and primary works and actions, which are produced by art, will rank among things first; but natural productions, and nature herself, (which they do not properly denominate,) will be things posterior, and in subjection to art and intellect.

892c

Clinias: How?

892c

Guest: They are not willing to say that the generation about things first is nature, though it would be right to call it so; and they place bodies in the first rank of beings. But if soul shall appear to belong to the first order of things, and not fire or air, it may nearly be said with the greatest rectitude, that soul was generated⁵⁸ prior to body; that, if these things subsist in this manner, they will subsist naturally, viz. if any one evinces that soul is more antient than body; but that this will by no means be the case if they subsist otherwise.

892d

Clinias: You speak most true.

892d

Guest: Shall we, therefore, after this manner proceed to what follows?

892e

Clinias: Undoubtedly.

892e

Guest: But let us by all means guard against and avoid fraudulent arguments, lest these, which are of a juvenile nature, should deceive by false persuasion us who are advanced in years, and thus render us ridiculous; and lest we should appear to attempt greater things, and wander from such as are smaller. Consider, therefore, if it were necessary that we three should pass over a very rapid river, and I, who

am the youngest of the three, and have tried many rivers, should say it is proper that I should first of all endeavour to pass over it by myself, leaving you in safety, and should consider whether or not it may be passed over by you, who are more aged than myself; that afterwards, this being agreeable to you, I should either call you to ford the river in conjunction with me, or, if it should be too deep for you, encounter the danger by myself;—consider, I say, if in this case I should not appear to speak to the purpose. In like manner, since the discourse we are now entering on is of a more vehement nature, and perhaps nearly inaccessible by

893a

your strength, lest it should cause in you a dark giddiness, by leading you to questions to which you are unaccustomed, and afterwards overwhelm you with disgrace and sorrow, it appears to me that I ought, in the present case, first to interrogate myself, while you hear in safety, and, after this, again answer myself; proceeding in this manner till the whole of this discourse respecting the soul is finished, and it is shown that soul is prior to body.

893b

Clinias: You appear to us, O guest, to speak most excellently: do, therefore, as you say.

893c

Guest: Come then, let us invoke Divinity; for, if it is ever proper to do so, it will be requisite in the present case; and let us beseech the Gods with the greatest earnestness to assist us in demonstrating their existence. Holding, therefore, as by a certain secure rope, let us ascend into the present reasoning. And it appears to me that, by the following interrogations respecting these things, I shall most securely answer my opponent. If any one then should ask me, O guest, do all things stand still, and is nothing moved? Or, does the very contrary to this take place? Or, are some things moved, but others stand still? To this I should reply, Some things are moved, and others stand still. Do not, therefore, the things which stand still, abide in a certain place, and are

not the things which are moved, moved in a certain place? Undoubtedly. And some things do this in a certain respect in one seat, but others in more than one. Do you mean we shall say that some things which abide, receiving the power in the middle, are moved in one, in the same manner as the periphery of circles, which are said to stand still, revolves?

893d

I do. But we understand that in this revolution a motion of this kind, leading round the greatest and the least circle, distributes itself analogously in small and large circles, and is itself, according to proportion, less and more. On this account it becomes the fountain of all wonderful things, proceeding homologous according to slowness and swiftness, in large and small circles, and thus accomplishing what to some one it might appear impossible to accomplish.

893e

You speak most true. But by things moving in many things, you appear to me to mean such as are moved locally, always passing from one place to another. And sometimes, indeed, they obtain the basis of one certain centre, and sometimes of more than one⁵⁹, by being rolled round. Each too meeting with each, they are cut by those that stand still. But when they meet with each other, and are borne along in an opposite direction, then the parts situated in the middle, and those between these, becoming one, they are mingled together. I acknowledge that these things are as you say. Besides this, too, the things which are mingled together are increased; but when they are separated, they are then corrupted, when the permanent habit of each remains;

894a

but when it does not remain, it is dissolved through both. But the generation of all things takes place when a certain passion is produced, viz. when the principle⁶⁰ receiving increase arrives at a second transition, and from this to that which is near it; and when it has arrived as far as to three, it possesses sense in things sentient.

Every thing, therefore, is generated by this mutation and transition. However, a thing truly is, when it abides: and when it is changed into another habit, it becomes entirely corrupted. Have we not therefore, O friends, enumerated all the forms of motion, except two?

894b

Clinias: Of what kind are those?

894b

Guest: They are nearly those, O excellent man, for the sake of which the whole of our present discussion is undertaken.

894b

Clinias: Speak more clearly.

894b

Guest: Was not the present discussion undertaken for the sake of soul?

894c

Clinias: Entirely so.

894c

Guest: Let one motion then be that which is able to move other things, but is always incapable of moving itself⁶¹: but let the other be that which is always able to move both itself⁶² and other things, by mingling and separating, by increase, and the contrary, and by generation and corruption; and this motion is different from all the other motions.

894c

Clinias: Be it so, therefore.

894d

Guest: Shall we not, then, place that motion as the ninth, which always moves another, and is moved by another; but call that the tenth⁶³ motion, which moves both itself and others, which is adapted to all actions and passions, and which is truly denominated the mutation and motion of all things?

894d

Clinias: Entirely so.

894d

Guest: But which of the ten motions shall we with the greatest rectitude judge to be the most robust, and by far the most efficacious of all motions?

894d

Clinias: It is necessary to say, that the motion which is able to move itself is infinitely to be preferred to the rest, and that all the others are posterior to this.

894d

Guest: You speak well. Must not, therefore, one or two of the things which have not at present been rightly asserted by us be transposed?

894d

Clinias: What things do you mean?

894d

Guest: We did not altogether speak properly respecting the tenth motion.

894e

Clinias: Why so?

894e

Guest: Because, according to reason, it is the first in generation and strength; but that which follows this is the second, though it has been just now absurdly called by us the ninth.

894e

Clinias: How do you say?

894e

Guest: Thus. When one thing moves another, and something else always moves this, will there ever among such things as these be any thing which is first moved? But how is it possible that a thing which is moved by another can ever be the first of things changed? It is certainly impossible. But when a thing moving itself causes mutation in something else, and this latter in some other, and ten thousand things are thus moved in succession,—whether or no in this case will

there be any other principle of all the motion than the mutation of that which moves itself?

895a

Clinias: You speak most excellently. These things, therefore, must be granted.

895a

Guest: Further still, let us thus interrogate and answer ourselves. If all generated natures should, after a manner, stand still, as many of those we are now addressing dare to say they do, which among the above-mentioned motions would necessarily first take place?

895b

Clinias: Doubtless that which moves itself. For the motion depending on another could not by any means take place till it had previously undergone some mutation.

895b

Guest: We must say, therefore, that the principle of all motions, and which first subsists in things abiding and in motion, is that which moves itself; and that this is necessarily the most antient and the most powerful mutation of all things: but that the second is that which is changed by another, and at the same time moves others.

895b

Clinias: You speak most true.

895b

Guest: Since we have, therefore, arrived thus far in our discourse, let us also answer the following question.

895b

Clinias: What is that?

895b

Guest: If we should see this first motion taking place in a terrene, aquatic, or fiery-formed body, whether simple or mixed, what passion should we say was inherent in a thing of this kind?

895c

Clinias: Do you ask me, whether that which moves itself should be said to live?

895c

Guest: I do.

895c

Clinias: Undoubtedly it should.

895c

Guest: But what? When we see soul inherent in any thing, do we admit that it lives through any thing else than this?

895d

Clinias: Through nothing else.

895d

Guest: Consider then, by Jupiter, are you willing to understand three things respecting every thing?

895d

Clinias: How do you say?

895d

Guest: One of these is essence, another the reason or definition of essence, and a third the name. And likewise the interrogations respecting every being are two.

895d

Clinias: How two?

895d

Guest: Sometimes each of us, when a name is proposed, inquires the reason of the denomination; and sometimes, when the reason is proposed, we inquire after the name. Are you, therefore, willing that we should now speak of a thing of this kind?

895e

Clinias: Of what kind?

895e

Guest: A twofold distinction is found in other things, and in number. Thus, for instance, in number, the name indeed is the even, but the

definition is one number divided into two equal parts.

895e

Clinias: Undoubtedly.

895e

Guest: My meaning is this. Do we signify the same thing in each, when, being asked concerning the name, we assign the reason, or, when, being asked the reason, we assign the name; since we denominate one and the same thing by name, even, but, by reason or definition, a number divided into two equal parts?

895e

Clinias: Entirely so.

896a

Guest: But what is the definition of that which is called soul? Have we any other than that which was just now mentioned by us, I mean a motion capable of moving itself?

896a

Clinias: Do you say, that the being moved by itself is the definition of that essence which we all denominate soul?

896a

Guest: I do say so. But if this be the case, do we yet desire it should be more sufficiently shown, that soul is the same with the first generation and motion of things which now are, have been, and shall be; and, again, of all the contraries to these; since it appears that soul is the cause of all mutation and motion to all things?

896b

Clinias: Certainly not. For it has been sufficiently shown, that soul is the most antient of all things, and is the principle of motion.

896b

Guest: Will not, therefore, the motion which subsists through another in another, but which is never the cause of a thing moving itself, be the second in order? and ought it not to be placed after the former

motion, by whatever interval of numbers any one may choose to assign, since it is truly the mutation of an inanimate body?

896c

Clinias: Right.

896c

Guest: We have said, therefore, with rectitude, propriety, and in the most perfect manner, that soul was generated prior to body, but that body is posterior and secondary, soul naturally possessing dominion, and body subjection.

896c

Clinias: With the greatest truth, therefore.

896c

Guest: But do we recollect, that it was acknowledged by us above, that if soul should appear to be more antient than body, the things pertaining to soul would also be more antient than those pertaining to body?

896d

Clinias: Entirely so.

896d

Guest: Disposition, therefore, manners, volitions, reasonings, true opinions, attention, and memory, must have been generated prior to the length, breadth, depth, and strength of bodies, on account of the priority of soul to body.

896e

Clinias: Necessarily so.

896e

Guest: Is it not, therefore, after this necessary to acknowledge, that soul is the cause of things good and beautiful, evil and base, just and unjust, and of all contraries, since we establish it to be the cause of all things?

896e

Clinias: Undoubtedly.

896e

Guest: Is it not also necessary to assert, that soul, which governs all things, and which resides in all things that are in any respect moved, governs likewise the heavens?

896e

Clinias: Certainly.

896e

Guest: But does one soul, or many, govern them?

896e

Megillus: Many: for I will answer for you.

896e

Guest: We should not, therefore, establish less than two, one beneficent, and the other of a contrary⁶⁴ nature.

896e

Clinias: You speak with the utmost rectitude.

897a

Guest: Soul, therefore, by its motions, leads every thing in heaven, earth, and the sea; and the names of these motions are—to will, to consider, take care of, consult, form true and false opinions, rejoicing, grieving, daring, fearing, hating, loving; together with all such primary motions as are allied to these, and which, receiving the secondary motions of bodies, lead all things to increase and decay, separation and concretion, and to things consequent to these, such as heat and cold, gravity and levity, the hard and the soft, the white and the black, the sour, sweet, and bitter; and, lastly, to all things which, soul employing, when it perpetually receives a divine intellect, as being in this case a goddess, disciplines all things with rectitude and felicity; but when it is conjoined with folly, it produces every thing contrary to these. Shall we admit that these things subsist in this manner, or shall we yet doubt whether they do not in a certain respect subsist differently?

897b

Clinias: By no means.

897b

Guest: Whether, therefore, shall we say, that the genus of soul which is prudent, and full of virtue, governs heaven and earth, and the whole period of generated nature, or that which possesses neither of these? Are you willing, therefore, that we should answer this question as follows?

897b

Clinias: How?

897b

Guest: Thus, O wonderful man. If the whole path of the heavens, and the local motion of all the natures it contains, possess a nature similar to the motion, circulation, and reasonings of intellect, and proceed in a manner allied to these, it must evidently be granted, that the most excellent soul takes care of the whole world, and leads it according to a path of this kind.

897c

Clinias: Right.

897c

Guest: But if it proceeded in a mad and disordered manner, it must be led by an evil soul.

897c

Clinias: And this also is rightly asserted.

897c

Guest: What nature, then, does the motion of intellect possess? To this question indeed, O friends, it is difficult to answer prudently. It is, therefore, just, that I should now answer for you.

897c

Clinias: You speak well.

897c

Guest: Let us not, therefore, looking as it were to the sun in an opposite direction, and thus introducing night in midday, answer the present question, as if we could ever sufficiently behold and know

intellect with mortal eyes: for, by looking to the image of the object of our interrogation, we shall see with greater security.

897e

Clinias: How do you say?

897e

Guest: Let us receive from among those ten motions, as an image, that to which intellect is similar. This motion I will recall into your memory, and answer for you in common.

897e

Clinias: You speak in the most beautiful manner.

897e

Guest: We must remember, therefore, it was asserted by us above, that of all things that exist, some are moved, and others abide.

897e

Clinias: It was so.

897e

Guest: But, of things which are moved, some are moved in one place, but others are borne along in more than one.

898a

Clinias: They are so.

898a

Guest: But it is necessary that these motions, which are always borne along in one, should be moved about a certain middle, in imitation of circles fashioned by a wheel, and that they should be, in every respect, as much as possible allied and similar to the circulation of intellect.

898b

Clinias: How do you say?

898b

Guest: That both of them are moved according to the same, in a similar manner, in the same, about the same, and towards the same, according to one reason and order. If, therefore, we should say that intellect, and the motion which is borne along in one, are similar to

the local motions of a sphere fashioned by a wheel, we should not by any means be bad artificers in discourse of beautiful images.

898c

Clinias: You speak with the utmost rectitude.

898c

Guest: The motion, therefore, which is never borne along in a similar manner, nor according to the same, nor in the same, nor about the same, nor towards the same, neither in ornament, nor in order, nor in one certain reason, will be allied to all folly.

898c

Clinias: It will, with the greatest truth.

898c

Guest: Now, therefore, it will be no longer difficult to assert openly, that since it is soul which leads all things in a circular⁶⁵ manner, it must necessarily follow that the circulation of the heavens must be led round, taken care of, and adorned, either by the most excellent soul, or the contrary.

898c

Clinias: O guest, from what has been said, it is not holy to say otherwise than that either one soul, or many souls, possessing every virtue, cause the circulation of the heavens.

898d

Guest: You understand my arguments, O Clinias, most excellently: but listen still further to this.

898d

Clinias: To what?

898d

Guest: If soul convolves the sun, moon, and the other stars, is not each of these convolved by a soul⁶⁶ of its own?

898d

Clinias: Undoubtedly.

898d

Guest: We shall, therefore, discourse about one soul, in such a manner, that what we say may be accommodated to all the stars.

898d

Clinias: What soul is that?

898d

Guest: Every man perceives the body of the sun, but no one its soul; nor, indeed, does any one perceive the soul of any other body, either of a living or of a dead animal; but there is every reason to believe that this genus of things is naturally incapable of being seen by any of the corporeal senses, but is of an intelligible nature. Let us, therefore, by intellect alone, and the dianoëtic energy, apprehend this respecting it.

898e

Clinias: What?

898e

Guest: If soul is the leader of the sun, we shall perhaps not err in asserting, that it accomplishes this by one of these three modes.

898e

Clinias: What modes?

899a

Guest: That either, residing within this apparent circular body, it entirely rolls it along, in the same manner as our soul moves us, or that, in a certain respect being situated externally, and connecting itself with a body of fire or air, according to the assertions of some, it violently impels body with body; or, in the third place, being itself destitute of body, it governs this visible orb through possessing certain other powers transcendently admirable.

899a

Clinias: Certainly.

899a

Guest: This then is necessary,—that all things should be governed by this soul, according to one of these modes. But whether this soul residing in the sun, as in a chariot, imparts light to all things, or

whether it is situated externally, or in whatever other manner it may be connected with this visible orb, it is better that all men should consider it as a God. Or, how shall we say?

899b

Clinias: *This must certainly be acknowledged by every one who has not arrived at the extremity of folly.*

899c

Guest: *But with respect to all the stars, and the moon, years, months, and the seasons, shall we speak in any other manner than this—That since a soul and souls, good from the possession of every virtue, appear to be the causes of all these, they should be called GODS, whether being resident in bodies, and thus becoming animals, they adorn all heaven, or in whatever other manner they may accomplish this? And, in the next place, can he who assents to these things deny that all things are full of GODS?*

899c

Clinias: No one, O guest, is so *insane* as to deny this.

899c

Guest: Assigning, therefore, certain boundaries at present to him, O Clinias and Megillus, who does not believe that there are Gods, let us dismiss him.

899c

Clinias: What boundaries do you mean?

899c

Guest: Either that he must teach us we do not speak rightly, in asserting that soul is the first generation of all things, together with such other particulars as are consequent to this; or, if he is incapable of asserting any thing better than we have asserted, that he shall be persuaded by us, and live for the remainder of his life in the belief that there are Gods. Let us, therefore, now see whether we have spoken sufficiently or not, in our arguments that there are Gods, to those who deny their existence.

899d

Clinias: Your arguments, O guest, are very far from being insufficient.

899e

Guest: Let this, then, be the conclusion of our discourse to these. But let us cure, in the following manner, him who believes that there are Gods, but that they take no care of human affairs.—O most excellent man! we shall say, because you think that there are Gods, a certain nature allied to Divinity leads you to honour, and believe in that which is connate with yourself; but the prosperous condition of evil and unjust men, both in private and public, who, though they are not truly happy, yet are considered to be so in the highest degree in the inelegant opinion of the multitude, and are improperly celebrated as such in poetical, and a variety of other compositions;—this it is which leads you to impiety.

900a

Or, perhaps, on seeing impious men leaving behind them, after having arrived at old age, grandchildren in the greatest honours, you are disturbed: Or from hearing, or perhaps being yourself an eye-witness, of some who, though they have acted in a most impious and dire manner, yet, by means of such actions, have arrived from slender possessions and small power to tyrannies and the greatest wealth. It is evident that, in all such cases as these, you are unwilling to blame the Gods as the causes of them, through your alliance with their nature, but, at the same time, being led by a certain privation of reason, and not being able to be indignant with the Gods, you have arrived at the present condition, so as to believe in their existence, but that they despise and neglect human affairs.

900b

That the present dogma, therefore, may not lead you to greater impiety, but that you may be removed further from it, we shall endeavour, to the utmost of our power, to convince you of its fallacy, conjoining the following discourse with the former, which we employed against those who entirely denied the existence of the Gods. But do you, O Megillus and Clinias, take upon you to answer for the

young man, as you did before; and if any thing difficult should happen to take place in our discourse, I, taking hold of you as I just now did, will pass over the river.

900c

Clinias: Rightly said. Do you, therefore, act in this manner; and we to the utmost of our power will do as you say.

900d

Guest: But, perhaps, it will not be difficult to evince that the Gods pay no less attention to small things than to such as transcend in magnitude. For it was just now asserted by us, that they are good from the possession of every virtue, and that, in consequence of this, a providential concern for all things is in the highest degree accommodated to their nature.

900d

Clinias: This was vehemently asserted.

900d

Guest: Let us, therefore, in common investigate that which follows this,—I mean, what the virtue of the Gods is, since we acknowledge that they are good. Do we not then say, that to be temperate, and to possess intellect, are things pertaining to virtue, but the contraries of these to vice?

900d

Clinias: We do say so.

900d

Guest: But what? Does not fortitude belong to virtue, and timidity to vice?

900e

Clinias: Entirely so.

900e

Guest: And do not we say that some of these are base, and others beautiful?

900e

Clinias: It is necessary we should.

900e

Guest: And must we not say that such among these as are base belong to us, but that the Gods participate neither any thing great, nor any thing small, of such-like particulars?

900e

Clinias: And this also every one will acknowledge.

900e

Guest: But what? Do we place negligence, indolence, and luxury, as belonging to the virtue of the soul? Or how do you say?

900e

Clinias: How can we?

900e

Guest: As belonging, therefore, to the contrary?

901a

Clinias: Yes.

901a

Guest: The contraries, therefore, to these belong to that which is contrary.

901a

Clinias: To that which is contrary.

901a

Guest: What then? Will not he who possesses these contraries be considered by all of us as luxurious, negligent, and indolent, and, according to the poet⁶⁷, similar to a drone bee, without a sting?

901a

Clinias: The poet speaks with the utmost rectitude.

901a

Guest: It must not, therefore, be said, that Divinity possesses manners that are odious to him, nor must we permit any one to make such an assertion.

901a

Clinias: By no means. For how can it be said?

901b

Guest: But will he to whom it belongs in the most eminent degree to do and take care of any thing, will the intellect of such a one take care of great, but neglect small things? And shall we not in every respect err by praising such an assertion? But let us consider as follows: Will not he who acts in this manner, whether he is a God or a man, be influenced by two species of action?

901b

Clinias: What are those two?

901b

Guest: I will tell you: Either because he thinks the neglect of small things is of no consequence to the whole; or, if he thinks it is of consequence, yet he pays no attention to them, through indolence and luxury. Or is it possible that negligence can take place in any other way? For, when any one is incapable of taking care of all things, and, in consequence of this, neglects either such as are small, or such as are great, he is not in this case said to be negligent, whether it is a man or a God who is thus destitute of power.

901c

Clinias: Undoubtedly not.

901c

Guest: But now let those two answer us three, who, though they both of them acknowledge there are Gods, yet one of them considers the divinities as easy to be appeased, but the other as neglecting small affairs. Let us, therefore, thus address these in the first place: You both acknowledge that the Gods know, see, and hear all things, and that nothing which is either an object of sense or science can be concealed from them. Do you not say that this is the case? Or how do you say?

901d

Clinias: That this is the case.

901e

Guest: But what? Are they not able to accomplish all things which both mortals and immortals are able to accomplish?

901e

Clinias: How is it possible they should not acknowledge this?

901e

Guest: We, that are five in number, also agree that the Gods are good and most excellent.

901e

Clinias: Very much so.

901e

Guest: Must we not, therefore, acknowledge that it is impossible for them ever to act in an indolent and luxurious manner, since they are such as we have granted them to be? For, in us, indolence is the offspring of timidity, but sluggishness, of indolence and luxury.

901e

Clinias: You speak most true.

901e

Guest: But the Gods cannot be negligent through indolence and sluggishness; for timidity is not present with them.

901e

Clinias: You speak with the utmost rectitude.

901e

Guest: It remains, therefore, that if they neglect a few things, and such as are small in the universe, they must either do so because they know that things of this nature ought by no means to be taken care of, or because they are ignorant that they ought to be taken care of; for, can there be any other alternative?

902a

Clinias: None.

902a

Guest: Whether, therefore, O most excellent and best of men, shall we consider you as saying that the Gods neglect these in consequence of

being ignorant that they ought to be taken care of; or that, like the most depraved of men, they know that this is proper, but are prevented from acting agreeably to their knowledge, through being vanquished by certain pleasures or pains?

902a

Clinias: But how could this be possible?

902b

Guest: Besides, human affairs participate of an animated nature, and at the same time man is the most religious of all animals.

902b

Clinias: It appears so.

902b

Guest: We likewise say that all mortal animals are the possessions of the Gods, in the same manner as all heaven.

902c

Clinias: Undoubtedly.

902c

Guest: Whether, therefore, any one says, that these things are considered either as small or great by the Gods, it is not proper, since they are the most provident and best of beings, that they should neglect their possessions. But further still, in addition to these things, let us consider this.

902c

Clinias: What?

902c

Guest: Respecting sense and power, whether they are not naturally contrary to each other, with reference to facility and difficulty.

902c

Clinias: How do you say?

902c

Guest: Small things are seen and heard with greater difficulty than such as are large. But to carry, govern, and take care of a few things,

and such as are small, is in every respect more easy than to carry, govern, and take care of the contraries to these.

902d

Clinias: It is by far more easy.

902d

Guest: But since it is the province of a physician to take care of a certain whole, and he is both willing and able to do this, will this whole ever be in a good condition if he neglects parts, and such things as are small?

902d

Clinias: By no means.

902d

Guest: But neither will things numerous and mighty ever be well conducted either by pilots, or commanders of an army, or certain political characters, or any others similar to these, without an attention to things few and small. For builders say, that great stones cannot be well placed without small ones.

902e

Clinias: For how can they?

902e

Guest: We ought not, therefore, to think that divinity is more vile than mortal artificers: for these, by how much the more skilful they are, by so much the more accurately and perfectly, from one art, do they accomplish things small and great pertaining to their peculiar works. Since this is the case, can it be supposed that divinity, who is most wise, and who is both willing and able to energize providentially, will alone take care of great things, but by no means of such as are small, which it is easy to take care of, like one indolent, or timid, or sluggish through labour?

903a

Clinias: We can by no means admit this opinion, O guest, concerning the Gods; for this would be forming a conception neither holy nor

true.

903a

Guest: It appears, therefore, to me, that we have now sufficiently spoken to him who accuses the Gods of negligence.

903b

Clinias: Certainly.

903b

Guest: But we have hitherto forced him by our arguments to change his opinion.

903b

Clinias: Right.

903b

Guest: It appears, however, to me that he yet requires to be enchanted by certain words.

903b

Clinias: What words, O good man?

903b

Guest: We should persuade the young man, that

903c

he who takes care of the whole has constituted all things with a view to the safety and virtue of the whole, every part of which, as much as possible, suffers and acts in a manner accommodated to its nature; that over each of these parts rulers are placed, who always cause that which is smallest in every action and passion to receive its ultimate distribution; among which parts, O miserable creature, thou art one, and which, though *diminutive in the extreme*, continually directs its views to *The All*. But you are ignorant that every generated nature subsists for the sake of the whole, that the universe may enjoy a blessed life, and not for your sake, but that you subsist for the sake of the universe. For every physician, and every artificial fabricator, effects all things for the sake of the whole, and regards that which is best in common;

903d

fashioning a part for the sake of the whole, and not the whole for the sake of a part. You, however, are indignant, in consequence of not knowing how that which is best with respect to yourself happens both to the universe and yourself, according to the power of common generation. But since a soul which is connected at different times with different bodies undergoes all-various mutations, either through itself, or through some other soul, nothing else remains to be done by the *dice-player* than to transfer manners when they become better, into a better place, but, when they become worse, into a worse place, according to the proper condition of each, that they may obtain convenient allotments.

903e

Clinias: How do you say?

903e

Guest: I appear to myself to speak with reference to the facility with which the Gods take care of all things. For if any one, always looking to the whole, fashions any thing, and transforms all things, with a view to this, such as animated water from fire, and not many things from one, or one thing from many, participating of a first, second, or third generation, there will be an infinite multitude of transposed ornaments. But now there is an admirable facility in the power that provides for the universe.

904a

Clinias: How, again, do you say?

904b

Guest: Thus. Since our king beholds all our actions, and these are animated, containing much virtue and much vice, and since both soul and body are generated indestructible⁶⁸, though not eternal, like the Gods according to *law*⁶⁹, (for there never would be any generation of animals if either soul or body was destroyed,) and besides, since that which is good in the soul is always naturally disposed to assist, but that

904c

which is evil in it to injure,—our king, perceiving all these things, devised in what manner each of the parts should be situated, so that virtue might vanquish in the universe, but vice be subdued, in the most eminent degree, and in the best and most facile manner. He devised, therefore, how each particular should be generated with reference to the universe, what seat it should reside in, and what places it should be allotted: but he left to our will the causes of this or that generation. For where the desire of any soul is, and such as is its condition, there each of us nearly resides, and such for the most part each of us subsists.

904c

Clinias: It is likely.

904d

Guest: Every thing, therefore, that participates of soul is changed, and possesses in itself the cause of this mutation; but, when changed, it is borne along according to the order and law of fate. And those souls whose manners are less changed, have a less extended progression; for they proceed no further than the superficies of the region. But those whose manners are more changed, and are more unjust, fall into depth, and into the places beneath, which are denominated Hades, and the like, where they are vehemently terrified, and conversant with dreams, both living and when freed from body. A greater soul, however, when it participates either of virtue or vice, becoming in this case strong, through its own will, and converse with other natures, if, mingling with divine virtue, it becomes eminently divine, then it is translated into another better place, which is entirely holy:

904e

but if it mingles itself with the contrary to divine virtue, then its life is transferred into a contrary place. This then, O boy and young man, who think that you are neglected by the Gods, is the judgment of the Olympian divinities;— that he who is more depraved shall depart to more depraved souls, but he who is better, to such as are better, both

in life, and in all deaths, and that he shall both suffer and do such things as ought to be done by similars to similars. But neither you nor any other should pray that you may be exempt from this judgment of the Gods.

905a

For those who ordained this established it more firmly than all judgments, and as that which ought to be venerated in every respect. Indeed, you will never be neglected by this judgment; not though you were so small, that you could descend into the profundities of the earth, or so elevated, that you could fly into heaven. But you will suffer from these divinities the punishment which is your due, whether you abide here, or depart to Hades, or whether you are removed to a place still more rustic than these.

905b

My discourse to you, likewise, will be the same respecting those impious men whom you have seen rising into consequence from small beginnings, and whom you have considered as having passed from felicity to misery. For it has appeared to you that, in the actions of these, as in a mirror, the negligence of all the Gods was visible; and this, from your being ignorant in what manner the end of such characters contributes to the good of the whole.

905c

But can you think, O most courageous of all men, that it is not necessary to know this, which he who is ignorant of, will neither be able to perceive, nor discourse about, the felicity of life, and an unhappy fortune. If, therefore, Clinias, and the whole of this aged company, are able to persuade you that you do not know what you say respecting the Gods, divinity will assist you in a beautiful manner; but if you still require some further reason, hear, if in any respect you possess intellect, what we shall say to our third antagonist. For, that there are Gods, and that they take care of men, I should say, has been not altogether badly demonstrated. But that the Gods can be moved

by the gifts of certain unjust men, must not be granted to any one, but confuted in every possible way to the utmost of our power.

905d

Clinias: You speak most beautifully; and we shall do as you say.

905e

Guest: Come, then, by the Gods themselves, if they are moved by gifts, in what manner are they moved; and what kind of beings must they in this case be? For it is necessary that they must possess sovereign authority who continually govern all heaven.

906a

Clinias: Certainly.

906a

Guest: But to what rulers are they similar, or what rulers are similar to them, that we may be able to compare small things with great? Whether will the charioteers of two-yoked cars that contend in the course be such as these, or the pilots of ships? Perhaps, however, they may be assimilated to certain commanders of armies, or to physicians, who are cautious respecting the war of diseases about bodies, or to husbandmen, who fear for their plants during the stormy seasons, or to shepherds and herdsmen. For, since we have granted that the universe is full of much good, and much evil, though not of more evil than good, we say that a thing of this kind is an immortal war, and requires an admirable defence. But the Gods, and, at the same time, dæmons, fight for us; and we are the possession both of Gods and dæmons. Injustice and insolence, however, together with imprudence, corrupt us.

906b

And, on the contrary, justice and temperance, in conjunction with prudence, which reside in the animated powers of the Gods, preserve us. But that something of these resides in us, though for a short time, may be clearly seen from this; for certain souls residing on the earth, and possessing an unjust gift, are evidently savage towards the souls

of guardians, whether they are dogs, or shepherds, or in every respect the highest of all rulers.

906c

These they attack, persuading them by flattering words and specious enchantments, (according to the rumours of the wicked,) that it is lawful for them to usurp an unjust authority among men, without any disagreeable consequences to themselves. This fault, which we denominate prerogative, is called, in fleshly bodies, disease; in the seasons of the year, pestilence; and in cities and polities, by changing the word, injustice.

906d

Clinias: Entirely so.

906d

Guest: According to this reasoning, therefore, it is necessary to say, that he who asserts that the Gods always pardon unjust men, when a part of their unjust acquisitions is offered to them, asserts at the same time that they are like dogs, to whom wolves give a small portion of their rapine, and who, becoming mild by gifts, permit them to plunder the herds. Is not this the assertion of those who consider the Gods as easily appeased?

906e

Clinias: It is.

906e

Guest: But will not he be the most ridiculous of all men, who assimilates the Gods to any of the above-mentioned guardians? Shall we say, therefore, that they resemble pilots, who giving themselves up to the libation of wine, and the odour of flesh, destroy both the ships and the sailors?

906e

Clinias: By no means.

906e

Guest: But neither do they resemble charioteers, who, when orderly arranged in the course, through being corrupted by gifts, yield the

victory to the two-yoked cars of their opponents.

906e

Clinias: For such an assertion produces a dire image.

906e

Guest: But neither do they resemble the commanders of an army, nor physicians, nor husbandmen, nor shepherds, nor certain dogs seduced by wolves.

907a

Clinias: Prophecy better things. For how is it possible they can resemble any of these?

907a

Guest: But are not all the Gods the greatest of all guardians, and guardians of the greatest affairs?

907a

Clinias: Very much so.

907a

Guest: Shall we say, then, that those who are the guardians of the most beautiful things, and who, as guardians, are transcendent in virtue, are worse than dogs, and men of a moderate character, who never betray justice by receiving in an unholy manner gifts from unjust men?

907b

Clinias: By no means; for such an assertion is not to be borne. And he who entertains such an opinion may most justly be considered as the worst and most impious of men.

907b

Guest: We may say, then, that we have sufficiently demonstrated the three things which we proposed to evince, viz. that there are Gods; that they take care of all things; and that they are not in any respect to be moved by gifts, contrary to what is just.

907b

Clinias: Undoubtedly; and we assent to these reasons.

907c

Guest: And besides this, in a certain respect we have spoken more vehemently, through the contention of vicious men. But, O friend Clinias, we have employed a discourse of a contentious nature, lest our adversaries, thinking that they had vanquished, should imagine they had a license to do whatever they pleased, conformably to their conceptions respecting the Gods. Through an earnest desire of preventing this, we have spoken in a more novel manner. But if, during this short time, we have offered any thing calculated to persuade these men that they should hate themselves, and embrace contrary manners, the exordium of our laws respecting impiety will have been beautifully delivered.

907c

Clinias: Let us hope that this will be the case; but if it should not, the legislator is not to be accused for this kind of discourse.

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Guest: After the preface, therefore, the discourse which is the interpreter of the laws will properly follow, proclaiming to all impious persons, that they must depart from their depraved manners, and betake themselves to such as are pious. But for those who will not be persuaded by these arguments, let the following law of impiety be established:

907e

—If any one speaks or acts impiously, let any one who is present defend the cause of piety, and give information to the magistrates of the affair: and those magistrates that are first made acquainted with it, shall bring the offender before the court of justice appointed by law for the determination of such cases. But if any magistrate, on hearing the affair, does not act in this manner, let him be accused of impiety by any one who is willing to punish him, for the sake of the laws.

908a

And if any one is condemned, let the court of justice punish him for the several impieties he has committed. Let bonds, then, be the

punishment of all impious conduct. And let there be three prisons in the city: one common for most crimes about the forum, for the sake of securing a multitude of persons; another situated about the place where a nocturnal assembly is held, and which is to be denominated the prison for the correction of manners; and a third in the middle of the region, and in that part which is most solitary and rustic, calling it by the name of the prison of punishment. With respect to impiety, there are three causes of it, as we have already mentioned; and since two things take place from each of such-like causes, there will be six genera of crimes against the Gods, which require neither an equal nor a similar punishment. For some, who though they do not in any respect believe there are Gods, yet, from naturally possessing a just disposition, hate the vicious, and, through being indignant with injustice, neither commit unjust actions themselves, nor associate with, but avoid, unjust men, and love the just.

908b

But others, besides the opinion that all things are destitute of the Gods, fall into incontinence of pleasures and pains, at the same time possessing strong memories and acuteness with respect to disciplines. The opinion that there are no Gods, is a passion common to both these; but they differ in this, that the one is the cause of less, and the other of more, evil than other men. The one of these speaks with the greatest freedom concerning the Gods, sacrifices and oaths;

908c

and, as he ridicule s others, will perhaps render others like himself, unless he is punished. But the other who is of the same opinion, is considered by the vulgar as ingenious, and is full of fraud and stratagem. From these characters many diviners are produced, and such as are excited to every kind of incantation.

908d

Sometimes, too, from these tyrants, public speakers, and commanders of armies, are formed; and those who in their private mysteries act

insidiously, and deceive men by sophistical devices. Of these, indeed, there are many species;

908e

but two of them deserve the establishment of laws: of which the ironic produces crimes that deserve more than one or two deaths; but the other requires admonition and bonds. In a similar manner, too, the opinion that the Gods are negligent, produces two characters; and the opinion that they are easily appeased, another two.

909a

Since, therefore, the impious are thus distinguished, those who become such through folly, without a vicious disposition and corrupt manners, the judge shall confine in the prison for correction, for not less than five years. But, during this time, let no one of the citizens converse with them, except those that participate of the nocturnal assembly, who associate for the purpose of admonishing and procuring safety to the soul. When the period arrives that they are to be liberated from their bonds, if any one among them shall appear to be more modest in his manners, let him dwell together with the modest; but if it appears that he is not, and he is again condemned for the same crime, let him be punished with death.

909b

With respect to such as, in addition to their believing that there are no Gods, or that they are negligent, or easily appeased, are of a savage disposition, despising mankind, alluring the souls of many while living, and asserting that they can allure the souls of the dead; likewise, pretending that they can persuade the Gods by sacrifices, prayers, and incantions, and endeavouring by these means to destroy private persons, whole families, and cities, for the sake of their riches, — among such as these, whoever shall be condemned, let him

909c

be fettered in the prison which is in the middle of the region, and let no free-born person be ever allowed to visit him, but let the food appointed for him by the guardians of the laws be brought to him by

servants. But, when he dies, let him be hurled beyond the boundaries of the region, and left without a tomb. And, if any free-born person shall bury him, let him sustain the punishment of impiety by any one who is willing to inflict it. If he leaves behind him children sufficient for the purposes of the city, let the guardians of orphans take no less care of these than of others, and from the very day on which their father was condemned. But it is proper that a common law should be established for all these, which may cause the multitude to behave less impiously towards the Gods, both in word and deed, and may render them less void of intellect, through not permitting them to make innovations in sacred concerns. Let the following law, then, be simply established for all of them:

909d

—No one shall have a temple in any private house. But when any one intends to sacrifice, let him go to public buildings raised for this purpose, and present his offerings

909e

to those priests and priestesses who take care of these particulars in a pure and holy manner. Here let him pray, together with these, and any other who is willing to join him in prayer. Let these things be adopted, because it is not easy to establish temples and statues of the Gods;

910a

but to effect a thing of this kind properly, is the work of a mighty dianoëtic power. But it is usual, with women particularly, and all such as are imbecile, or in danger, or want, or, on the contrary, when they receive an abundance of any thing, always to consecrate that which is present, vow sacrifices, and promise statues to the Gods, dæmons, and the sons of the Gods; being terrified by spectres when awake, and, in a similar manner, recollecting many visions in dreams; for all which they endeavour to obtain remedies, and for this purpose fill all the pure places in houses and streets with altars and temples. For the sake of all these particulars, it is requisite that the law we have just mentioned should be established;

910b

and besides this, for the sake of the impious, lest they, fraudulently usurping these in their actions, and raising temples and altars in private houses, should think to make the Gods propitious by sacrifices and prayers; thus infinitely increasing their injustice, and provoking the indignation of the Gods, both against themselves, and those that permitted them to act in this manner, though men of a better character. For by this means the whole city becomes subject to the punishment of impiety, and, in a certain respect, justly.

910c

Divinity, indeed, does not blame the legislator; for the law established by him says, that no one shall possess temples of the Gods in private houses. But if it shall appear that any one possesses temples, and performs orgies in any other places than such as are public, he who detects him shall announce the affair to the guardians of the laws. And if such a one, whether a man or a woman, shall be found not to have committed any great or impious crimes, he shall be obliged to carry his private sacred concerns to public temples: and if he does not immediately comply with the law, let him be fined till he does.

910d

But, if any one acting impiously shall appear to have committed, not the impious deed of boys, but of impious men, whether by sacrificing to the Gods in private or in public temples, let him be condemned to death, as one who has sacrificed impurely. However, the guardians of the laws must judge whether his impiety is puerile or not, and thus, when he is brought before a court of justice, must inflict on him the punishment of impiety.

Book XI

910e

It now remains that we should speak of mutual compacts, and the order which they ought to receive.

913a

But a thing of this kind is, in a certain respect, simple. I mean, that no one shall touch my property, nor move the least thing belonging to me, without my consent. And I, if I am endued with a sound mind, shall act in the same manner with respect to the property of others. In the first place, then, we shall speak about such treasures, as some one may deposit both for himself and those belonging to him, who

913b

is not descended from my parents, and which I should never pray that I might find, nor, if I did find, should move, nor be induced to partake of, by those who are called diviners. For I should never be so much benefited by the possession of riches, when obtained after this manner, as I should excel in the virtue of the soul, and in justice, by not receiving them. For thus I should acquire one possession instead of another, a better in that which is better; preferring the prior possession of justice in the soul, to wealth.

913c

For it is well said of many particulars, that things immovable should not be moved; and it may be said of this, as being one of them. It is likewise proper to be persuaded by what is commonly asserted about these things, that such particulars do not contribute to the procreation of children. But he who takes no care of children, and neglects the legislator, and, therefore, takes away that which neither he nor his grandfather deposited, such a one corrupts the most beautiful and simple law, which was established by a man by no means ignoble, and which says, You shall not take away that which you have not deposited.

913d

What then ought he to suffer, who despises these two legislators, and who takes away that which he did not himself deposit, and which is not a small affair, but a mighty treasure? Divinity, indeed, knows what punishment he ought to suffer from the Gods. But let us declare what he ought to suffer from men.

913e

Let him who first perceives him, give information of the affair:—if it happens in the city, to the ædiles;

914a

if in the forum, to the præfects of the markets; and, if in any other part of the region, to those that take care of the land, and the governors of these. When the affair becomes apparent, let the city send to Delphi, and let what the God determines, both respecting the money and him that has moved it, be performed by the city conformable to the oracle. And if he who gives the information is free-born, let him be considered as a virtuous character; but, if he does not give information, as a vicious character. If he who reveals the affair is a slave, it will be proper that he should be made free by the city, and that the city should pay his master the price of his manumission; but, if he does not reveal it, let him be punished with death. Let a similar law follow this, respecting things small and great.

914b

If a man leaves any property, whether willingly or unwillingly, let him who may happen to meet with it suffer it to remain; considering that the dæmon who presides over roads defends things of this kind, which are dedicated to Divinity by law. When any one, being unpersuaded by this law, takes away such property to his own house, if he is but of little worth,

914c

being a slave, let him receive many lashes with a whip, from any one not less than thirty years of age who may happen to meet him. But, if he is free-born, besides being considered as illiberal, and void of law, let him pay as a fine ten times the worth of what he took away to its proper owner. When any one accuses another of holding his property, whether it be much or little, and the person who detains it acknowledges that it is in his possession, but denies that it is his who demands it,—if a written account of the affair is given to the magistrates according to law, he who detains it shall be called before a

magistrate, and if it shall appear to be the property of the accuser, it shall be restored to him.

914d

But if it shall be found to belong to neither, but to some absent person, if its possessor will not engage to restore it to the absent person, let him be compelled to deposit it. If a written account of the affair is not given to the magistrates, let the property be deposited with the three oldest magistrates till sentence is passed. And, if the subject of dispute is an animal, let him who upon trial is cast, pay the magistrates the expense of its keeping; but let the affair be decided by the magistrates within the space of three days. If any one leads away another as a slave, who is going to be manumitted, let him who leads him be dismissed; but he who is thus led away, if he can procure three respectable bondsmen, shall be considered as free; but otherwise not. But if any one is led away in any other manner, let him by whom he is thus led be obnoxious to the charge of using violence, and be condemned to restore double the loss to the person led away.

914e

Every one, too, may be permitted to lead away his freeman, if he is not served by him, or not sufficiently. The attention, however, which such a one ought to pay his master consists, in the first place, in going thrice every month to his master's house, and announcing that he is prepared to do whatever is just, and in his power; and, in the second place, that he may perform, with respect to matrimony, whatever shall appear requisite to his master. But it shall not be lawful for him to possess greater wealth than the person by whom he was liberated: but, if he does possess more, let the excess be given to his master. Let a freed person not remain in the city more than twenty years, but, in the same manner as strangers, let him after this period depart, taking with him the whole of his property, unless he can persuade the magistrates and his liberator to the contrary. But if the possessions of a freed person, or of any other stranger, exceed those of the third estate, let him, on the thirtieth day after this has been discovered to

be the case, take his property and depart; and let him not, though he should request it, be permitted by the magistrates to stay any longer.

914e

Let him who disobeys this law be brought before a court of justice; when condemned, be punished with death; and let his riches become public property. Let the judges of the tribes take cognizance of these cases, unless the litigants have previously settled the affair among themselves by means of their neighbours or arbitrators. If any one asserts that a certain animal, or any thing else, is his own property, let him who possesses it take it either to the seller, or to him who properly and justly gave it, or who after some other manner delivered it of his own authority.

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And let it remain with a citizen, or an inhabitant of the city,

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for thirty days, but

915c

with a stranger for

915d

five months, so that the middle of these may be that month in which the sun is turned from the summer to the winter tropic. Let whatever one person changes with another through buying or selling, be exchanged in a place appointed for each in the forum, and let every thing pertaining to buying and selling be transacted in this place, and no where else.

915e

Likewise, let there be no delay either in buying or selling. But, if the commutation is made in other places, let no judgment according to law be passed upon it. With respect to feasts, in which every man pays his own share, if any difference should arise in settling the payment of the shares, let the parties so transact with each other as about a thing which is not noticed by the courts of justice. Let a seller, who receives no less than fifty drachms as the price of his commodity, be obliged to

wait ten days in the city, and let the buyer know the place of his abode;

916a

and this for the sake of those complaints and legitimate abatements which usually happen about things of this kind. But let lawful and unlawful abatements take place as follows: When any one sells a slave who labours under a consumption, or the stone, or the strangury, or that which is called the sacred disease, or any other disease which is immanifest to many, is of long continuance and difficult to cure, whether of the body or mind, if a physician or a master of gymnastic buys him, no abatement shall be made;

916b

nor yet when the seller informs the buyer of the true condition of the article of sale. But if an artist sells to an ignorant person any thing of this kind, the buyer shall be permitted to return the person bought by him, who labours under any disease but the sacred, within six months: but if he labours under this disease, he shall be permitted to return him within a year. Affairs of this kind shall be decided by physicians chosen by the common consent of the litigants. He who in these cases is condemned, shall pay to the buyer double the price for which he sold him.

916c

But if one ignorant person sells any thing to another, let the return and judgment be made in the same manner as was mentioned above; and let him who is condemned pay a simple fine. If any one sells a homicide to another, if the transaction takes place between two skilful persons, let no return be made; but if between a skilful and ignorant person, let a return then be made when the buyer perceives the case. But let the affair be decided by the five youngest guardians of the laws.

916d

If it shall appear that the seller was not ignorant that the person he sold was a homicide, let the house of the buyer be purified according

to the law of the interpreters, and let the seller pay him triple the price of the homicide. Let him who changes money for money, or for animals, or any thing else, give and receive every thing unadulterated, agreeably to the injunctions of law. About the whole of this vice, however, it is requisite to lay down a preface, in the same manner as in other laws.

916e

Every man, indeed, ought to consider adulteration, lying, and deception, as forming one genus, about which it is usual for the multitude to say, though very erroneously, that when each of these is opportunely adopted, the result is frequently proper. But as they leave the occasion, the where, and the when, disorderly and indefinitely, they often by this assertion both injure themselves and others. The legislator, however, should not suffer this indefinite to be unnoticed, but greater or lesser boundaries ought always to be clearly determined. Let them, therefore, now be determined. Let no one tell a lie, or deceive, or adulterate any thing, calling at the same time on the Gods, unless he is desirous of becoming odious to Divinity.

917a

This, however, will be the case with him, in the first place, who, swearing falsely, despises the Gods; and, in the second place, with him who speaks falsely before those that are better than himself. But the good are more excellent than the bad, and, in short, the elder than the younger. On this account, parents are better than their offspring, men than women and children, and governors than the governed. All these ought to be revered in every government, and especially in political governments, for the sake of which we have engaged in the present discussion.

917b

For he who adulterates any thing in the forum, lies and deceives, and, calling on the Gods, swears falsely before the guardians of the forum, and violates their laws, neither fearing men, nor reverencing the Gods. To be careful, indeed, not to contaminate the names of the Gods,

is in every respect beautiful; for they ought not to be used in common like other names, but every thing pertaining to the Gods should be preserved in a pure and holy manner. Let the following law, therefore, be established for those who will not be persuaded to act in this manner:

917c

—He who sells any thing in the forum shall not be suffered to fix two prices to any article; but when he has fixed a simple price, if he does not sell it, he shall take it away, and be allowed to bring it back again on the same day, without valuing it at a higher price than before. Let praise, and taking an oath, never be employed in selling.

917d

And if any one is disobedient to this law, any citizen, not less than thirty years of age, who detects him in swearing, shall strike him with impunity; and if he neglects to do this, let him be considered as a betrayer of the laws. But let him who detects any one selling an adulterated article, and incapable of being persuaded by what we have now said, expose the fraud of such a one, if he is able, before a magistrate; and let a slave, or an inhabitant, bring with him the adulterated article. Let a citizen, who neglects to accuse such a one, be pronounced a bad man, as one who defrauds the Gods: but, if he accuses him, let him dedicate the adulterated article to the Gods who preside over the forum.

917e

Let him who openly sells things of this kind, besides being deprived of the adulterated article, receive publicly as many lashes with a whip as there are drachms in the sum for which he sold the article; a cryer at the same time proclaiming in the forum the cause of his being whipped. Let the præfects of the markets, and the guardians of the laws, endeavour to detect all the adulterations and evil practices of the sellers, by making inquiry of men skilled in vendible articles, and cause to be written on a pillar before the forum what a seller ought to do, and what not, so that men of this kind may clearly know how to

act according to law in disposing of their respective articles. As to the particulars relating to the ædiles, we have spoken of these sufficiently above. But if it should appear that any thing is wanting to these, let them supply the deficiency by communicating with the guardians of the laws, and afterwards let them write their first and second legal institutions on a pillar.

918a

After adulteration it follows that we should speak of cauponation⁷⁰. But about the whole of this we shall first of all give our advice, and the reasons for such advice, and afterwards establish a law respecting it. For all cauponation in a city does not subsist for the sake of injuring the city, but naturally for the sake of the contrary. For how is it possible that he should not benefit the city who causes money, from being possessed in an incommensurate and anomalous manner, to be possessed equably, and with commensuration?

918b

It is requisite to say, that the power of money, the merchant, the mercenary character, and the inn-keeper, will accomplish this for us. For these, and others of this kind, whether they act in a more becoming or a more base manner, endeavour to supply the indigence of others, and render possessions equal. But let us consider the reason why this appears neither beautiful nor becoming, and why it is calumniated; that though we may not procure a remedy for the whole by law, yet we may for a part.

918c

Clinias: This affair, as it appears, is of no trifling nature, and requires no small degree of virtue.

918c

Guest: How do you say, O friend Clinias?

918d

A small part of mankind naturally, and who are educated in the best manner, are able, when they are in want, or influenced by the desire of certain things, to conduct themselves with moderation, and, when

they have it in their power to acquire great wealth, behave soberly, and prefer moderation to excess. But the vulgar conduct themselves in a manner perfectly contrary to these. For they desire without measure; and when it is permitted them to become moderately, they choose to become immensely rich. On this account, all such as are conversant with cauponation and merchandize are calumniated, and subject to shameful disgrace.

918e

For, if any one (which never did take place, nor ever will) should compel (though indeed it is ridiculous to mention it) the best of men to keep an inn for a certain time, or victualling-house, or do any thing of this kind; or if certain most excellent women, through the necessity of fate, should engage in such employments, we should know that they were honest and laudable, and that, when they are conducted according to uncorrupt reason, all such characters as these should be honoured as sustaining the part of mothers and nurses.

919a

But now, since inns and victualling-houses are raised in solitary places, and at a great distance from cities, they serve as places of shelter for those that are caught in a storm, and afford a cool retreat to those that are oppressed with heat. They do not, however, dismiss those that take refuge in them like friends, with hospitable gifts, but cruelly compel them to ransom themselves, as if they were enemies and captives, and plunder them of all their possessions.

919b

These, and other base actions of this kind, subject those employments to calumny which are calculated to assist the indigent. A legislator, therefore, ought always to devise a remedy for these. For it is a true and antient saying, that it is difficult to fight against two things, as is evident in diseases, and many other particulars. And in the present case, indeed, there is an opposition against two things, poverty and riches;

919c

the latter of which corrupt the soul of men through luxury, and the former leads them through pain to impudence. What remedy, therefore, can be devised for this disease in a polity endued with intellect? In the first place, we must endeavour to the utmost, that it may use cauponation in the smallest degree; and, in the next place, we must assign cauponation to those men whose manners, when corrupt, will be no great pest to the city;

919d

and, in the third place, some method must be devised by which the souls of these men may not easily be filled with impudence and illiberality. But, after what has now been said, a certain law respecting these things presents itself to us, with good fortune. The city of the Magnesians, which Divinity first raised, is by Divinity again inhabited. Among these there is a law, that no husbandmen who belong to the forty-five thousand houses shall either voluntarily or involuntarily be an inn-keeper or a merchant, or act in the capacity of a servant to any private person, unless that person becomes in his turn a servant to him; a father and mother, with their progenitors, all his elders, and such as being free live in an independent manner, being excepted.

919e

It is not, however, easy to determine by law who is free, or the contrary; yet such as these are distinguished from the nobles by the hatred and love which they bear towards them. But let him who through a certain art is engaged in illiberal cauponation be accused before those who hold the first rank in virtue, by any one that is willing, as a disgrace to his family.

920a

And if it shall appear that he has defiled his paternal house by any unworthy employment, let him, after having been fettered for a year, abstain from such employment. If, after this, he engages in it again, let him be fettered for two years. And let him always be confined in bonds as often as he is detected, twice as long as the preceding time. But a second law orders that all such as are not citizens, together with

foreigners, shall exercise cauponation. And a third law ordains, that the foreigner or inhabitant who engages in this art, shall either be a most excellent character, or vicious in the smallest degree.

920b

It is proper, likewise, that the guardians of the law should consider that they are not only guardians of those who are easily prevented from acting in an illegal and vicious manner, viz. those who are well-born and educated; but that they are much more guardians of those who are different from these, and who engage in employments by which they are strongly impelled to improbity.

920c

Since, however, cauponation is abundantly various, the guardians of

920d

the laws should assemble together with those that are skilled in the several species of it; and, as we observed a little before concerning adulteration, which is allied to this art, they should, in the first place, establish such things as appear necessary to the city. Afterwards, having inquired into the cost and emolument attending this art, they should attend to the moderate gain resulting from it, and establish its expenses and emoluments.

920e

And some particulars should be attended to by the præfects of the markets, others by the ædiles, and others by the præfects of the land. After this manner nearly will cauponation be advantageous to every one, and injure those by whom it is exercised in the city in the smallest degree. The genus of artificers is sacred to Vulcan and Minerva, who furnish our lives by their arts. But those individuals are sacred to Mars and Minerva who preserve the works of artificers by other arts of an assistant and defensive nature. The genus of these is, indeed, justly sacred to these Gods: and all these providentially take care of the region and people. Some of them, too, preside over warlike contests; but others effect the generation of instruments, and works for hire. Reverencing, therefore, the Gods that are the authors of these

arts, it will not be proper to deceive them, by lying about things of this kind. If any artificer does not complete his work in a prefixed time, through a vicious disposition, but, paying no reverence to the divinity who is the giver of life, through a blindness of intellect, thinks that his kindred God will pardon him, such a one, in the first place, will be punished by the God himself; and, in the second place, let it be established by law, that he shall be fined the worth of the work which he has not finished in the proper time, and that, beginning again, he shall complete it in the time first agreed upon.

921a

Let the same law too consult for the artificer as for the seller of vendible articles. Let care be taken, therefore, that he does not ask more than the worth of his work, but let his demand be most simple, and accommodated to its worth. For an artist knows the worth of his work. In cities, therefore, consisting of free men, it is not proper that an artist should endeavour to deceive the simple by art, which is naturally clear and void of falsehood. Hence, when this is the case, the injurer shall make a proper recompense to the injured person.

921b

If any one, in paying an artist for his work, does not pay him according to the agreement, despising Jupiter the guardian of the city, and Minerva who communicates with the polity, and, being influenced by a little gain, dissolves mighty communions; in this case, let the law assist the union of the city, in conjunction with the Gods.

921c

Let him, therefore, who, having ordered a work to be executed for him, does not pay for it in the appointed time, be fined double the price agreed upon. And let judgment be passed on things of this kind in the courts of justice belonging to the tribes.

921d

As we have, however, made mention of artificers, and as commanders of armies and military arts are artificers of safety to a city, it is but just that we should also speak of these. If, therefore, any one of these

undertakes any public work, whether voluntarily or from command, and executes it in a becoming manner, let the law confer upon him the honour of unceasing praise, which is the reward of warlike men.

921e

But the law may be justly blamed which does not reward him who conducts himself well in military affairs. Let the following law, therefore, be established for these, mingled with praise, and which does not compel, but consults the multitude of the citizens:

922a

that such good men shall be honoured in the second place, as have been saviours of the whole city, whether by their valour, or by warlike devices; for the first honour must be given to those who have been remarkably obedient to the written laws of good legislators.

922b

We have, therefore, now nearly spoken sufficiently of the greatest compacts among men, except those pertaining to orphans, and the guardians of orphans. It is, therefore, necessary in the next place to speak of these. The beginning of all these is the desire of the testator, and the fortune of those that make no will. I have said it is necessary to speak of these, O Clinias, in consequence of looking to the difficulty respecting them: for it is not possible to leave them in a disordered manner. For testators would desire many things differing from each other, and contrary to the laws, to the manners of the living, and to their ancestors, if any one should simply give them permission to make their wills in whatever manner they pleased, and should ordain, that every will made near the end of life shall be properly executed. For most men, when they consider themselves as about to die, are affected with stupidity and remissness.

922c

Clinias: What induces you to say this, O guest?

922c

Guest: A man when about to die, O Clinias, is morose, and is full of such language as is terrible to legislators, and difficult for them to

endure.

922c

Clinias: How so?

922c

Guest: Desiring to be the lord of all things, it is usual for him to speak with anger.

922d

Clinias: What does he say at this time?

922d

Guest: It is a dire thing, says he, O Gods, if it is not permitted me to leave my property in whatever manner I please, and to bequeath some more, and others less, according as they were evidently well or ill affected towards me in my diseases, in my old age, and in other all-various fortunes.

922d

Clinias: Does he not therefore, O guest, appear to you to speak well?

922e

Guest: Antient legislators, O Clinias, appear to me to have been effeminate, and to have looked to a trifling part of human affairs in the establishment of laws.

923a

Clinias: How do you say?

923a

Guest: That, being terrified at this language of the dying man, they made a law, that every one should be permitted to make his will as he pleased. But both you and I could answer the dying in your city in a more elegant manner.

923a

Clinias: How?

923b

Guest: O friends, (we should say) who have but a short time to live, it is difficult for you to know your affairs, and likewise to know yourselves,

according to the inscription of the Delphic temple. I, therefore, being a legislator, consider that neither yourselves, nor these possessions, are your own, but that they belong to the whole of your race, both past and to come, and that both the whole of your race and possessions, by a much greater priority, belong to the city. This being the case, if any one, through flattery, either when you are diseased, or in your old age, should persuade you to make your will in an improper manner, I should not admit such a will to be voluntarily made. But, looking to that which is best both for the whole city, and the whole of your race, I shall establish laws in such a manner as that the advantage of individuals may give way, as it is fit it should, to that of the public. Do you, therefore, be mild and benevolent towards us, as human nature requires you should. It will be our part to take care to the utmost of our power of every thing belonging to you, and not in a partial manner, by neglecting some things and attending to others. Let this then, O Clinias, be the consolation which we address in a prefatory manner to the living and the dead. But let the law be as follows:

923c

—Let him who makes a will, and has children, in the first place appoint that child his heir whom he thinks most deserving.

923d

And, in the next place, let him signify which of his children he chooses to consign over to the care of another person. If any one of his children shall remain without an hereditary portion, and there is reason to expect that this child will be sent into a colony according to law, let the father be permitted to leave him from his other possessions as much as he pleases, except the paternal allotment, and every thing pertaining to it. But if there are many children thus circumstanced, let the father bequeath them, as he pleases, whatever remains beyond the allotment. However, if any one of these possesses a house, let him not leave such a one any money. In like manner, let him not bequeath a daughter any thing if she is betrothed to a man;

923e

but let him bequeath her something if she is not betrothed. If any allotment in the region belonging to sons or daughters shall be found after the will has been made, let it be left to the heir of the person that made the will. If the testator has no sons, but daughters, let him signify in writing what men he would wish as husbands for his daughters, and as sons for himself. And if the son of any one, whether natural or adopted, happens to die before he has arrived at manhood, let the testator mention this circumstance in the will, and signify who he wishes should be his son in his stead, with more auspicious fortune.

924a

If any one who has no children makes a will, let him be permitted to leave the tenth part of his possessions, beyond the allotment, to any one that he pleases. Let him bequeath all the rest benignantly, without blame, and according to law, to the son whom he adopts. If the children of any dying person require tutors, and the father in his will has mentioned those whom he wishes to undertake this office, let such persons enter on this employment according to his wish, if it is agreeable to them. But, if such a one has either died intestate, or has not mentioned the tutors in his will, let the next of kin undertake this office,—two on the father's side, two on that of the mother, and one from among the friends of the deceased.

924b

In this case, too, let the guardians of the law appoint the tutors. And let the whole care pertaining to orphans devolve on fifteen of the guardians of the laws that are older than the rest. And this number being divided into three parts, let three of them every year undertake this office, till the five periods are accomplished in a circle. Let the greatest care likewise be taken that this mode may never fail. If any one dies intestate, and leaves behind him children that require a guardian, let them be provided for by the same laws. But if any one dies unexpectedly, and leaves behind him daughters, let him pardon the legislator if he disposes of his daughters in consequence of looking

to two things, viz. proximity of race, and the preservation of the allotment. The third thing which a father ought to attend to is, the choosing a proper son for himself, and a husband for his daughter: but this he omits, because the consideration of it belongs to impossibilities. Let the following law, therefore, be established about things of this kind:

924c

—If any one, dying intestate, leaves behind him daughters, let the brother on the

924d

father's or mother's side, if he is without an allotment, take care both of the daughter and the allotment of the deceased. But, if his brother is not living, let his brother's son undertake this office, if his age is sufficient for the purpose. If no one of these survives, let the charge devolve on the son of his sister; and let the fourth after these be his father's brother; the fifth, the son of this brother;

924e

and the sixth, the son of his father's sister. Let a similar process be always adopted when a man leaves behind him daughters, viz. through brothers and cousins; first, the males, and afterwards the females, in the same family. But let the judge determine the fitness or unfitness of the time of marriages, by looking at the males naked, and at the females naked, as far as to the navel.

925a

If there is a want of kindred, as far as to the sons of brothers and grandfathers, whatever citizen the girl shall choose, with the consent of her tutors, shall become the heir of the deceased, and the husband of his daughter.

925b

Further still, if there should happen to be but few inhabitants in the city, and the virgin should wish to make some one who is sent into a colony her father's heir, let this person, if he belongs to her family, proceed to the allotment according to the order of law.

925c

But if he is a citizen, but not related to her, let him marry her if he pleases, according to her own choice, and that of her guardians; and, returning home, let him take possession of the hereditary estate. If any one dies intestate, and without children, either of the male or female sex, let other particulars take place according to the above-mentioned law, but let the males and females of the family enter as kindred the desolate house, as those to whom the allotment properly belongs. In the first place, let the sister enter;

925d

afterwards the daughter of the brother; in the third place, the daughter of the sister; in the fourth place, the sister of the father; in the fifth place, the daughter of the father's brother; and, in the sixth place, the daughter of the father's sister. Let these live together with those according to proximity and what is right, in the manner we have established above. But let not the weighty nature of laws of this kind escape us, and let us not be insensible to the difficulty of ordering a relation of a deceased person to marry a relation.

925e

For he who introduces such a law as this, does not appear to consider that ten thousand impediments may arise respecting mandates of this kind, so as to render persuasion to a compliance with them ineffectual. For many had rather suffer any thing than marry a person whose body is either diseased or maimed, and whose dianoëtic part is not in a sound state. The legislator, therefore, will, perhaps, appear to some, though improperly, to pay no attention to these. Let this, then, be as it were a common preface, both for the legislator, and those that are governed by his laws. Those, indeed, for whom laws are made, ought to pardon the legislator, because, while he is taking care of public concerns, he cannot at the same time attend to private calamities. We should also pardon those for whom laws are made, if they are sometimes incapable of perfectly complying with the

mandates of the legislator, through his ignorance of private calamities.

926a

Clinias: In what manner then, O guest, will it be most proper to act in this case?

926a

Guest: Arbiters, O Clinias, must necessarily be chosen for laws of this kind, and for those that are governed by them.

926b

Clinias: How do you say?

926b

Guest: It will sometimes happen, that a rich young man given to luxury will be unwilling to marry the daughter of his father's brother, though rich, in consequence of aspiring after a greater marriage; and sometimes he will necessarily be unwilling to comply with the law which forces him to marry a girl who is disordered either in body or mind, considering this as the greatest of all calamities. Let, therefore, the following law respecting these particulars be established by us:

926c

—If any accuse the established laws on account of wills or marriages, or any thing else, asserting that the legislator, if he were living, would not compel them to act in such a manner, or to marry such a person; and if any relation or tutor should affirm that the legislator left fifteen guardians of the laws as arbiters and fathers of the orphans,—in this case, let the litigants apply to these, and abide by their decision.

926d

But, if it shall appear that the guardians of the law exercise greater authority than they ought, let the affair be brought before select judges; and, when determined, let him who is condemned be branded with infamy,—this being a punishment, to him who possesses intellect, of a more weighty nature than a very considerable fine.

926e

After this, a second generation, as it were, follows with respect to orphans. For education and discipline follow the first generation, of which we have spoken. But, after the second, it is necessary to devise some means by which orphans may be oppressed with calamity as little as possible. In the first place, then, we say, that guardians of the laws should be appointed for them in the place of parents, and not worse than these; and that they should take care of them every year as if they were their own offspring. Let this, then, be our preface respecting the education of orphans, and the appointment of tutors for them.

927a

For we appear to me to have spoken opportunely above, when we asserted, that the souls of the dead possessed a certain power, through which they bestowed a providential attention to human affairs. This, indeed, is true, but the confirmation of it requires a long discourse. It is likewise proper to believe in other traditions respecting things of this kind, which are both numerous and very antient. Legislators, too, unless they are perfectly insane, ought to believe in the truth of these traditions.

927b

Since, therefore, these things naturally subsist after this manner, those that attend to the desolate condition of orphans should, in the first place, fear the Gods above; and, in the next place, the souls of the deceased, who naturally take a particular care of their offspring, and who are, therefore, propitious to those that honour them, but hostile towards those that despise them. Add, too, that the souls of those that are living, but are in old age, and who in a city happy through good laws possess the greatest honours, and whose children and grandchildren

927c

live a pleasant life, through paying them a proper attention,—these acutely hear and perceive things of this kind, and are benevolent to those that behave justly to orphans, but in the highest degree

indignant with those that injure them. For they consider the deposit of orphans as the greatest and most holy of all deposits. It is requisite, therefore, that the tutor and magistrate who possesses the smallest degree of intellect, should direct his attention to these particulars, and bestow as much care on the discipline and education of orphans as of his own offspring.

927d

He, therefore, who is persuaded by this preface to the law, and who acts in no respect unjustly towards orphans, will evidently be exempt from all anger of the legislator about things of this kind. But let him who is unpersuaded by it, and injures any one who is deprived of either father or mother, suffer twice the punishment he would have sustained from injuring one, both of whose parents were living.

927e

The laws which follow relate to the tutors of orphans, and the attention which magistrates should pay to the tutors. If, therefore, they possessed a paradigm of the education of free children, the tutors both taking care of these and their own concerns, and if they had laws respecting these sufficiently distinct, we should not without reason establish certain laws for tutors, as very much differing from others, and distinguish, by various pursuits, the life of orphans from that of those who are not orphans. But now, with respect to every thing of this kind, the privation of parents does not with us differ much from paternal government, but is unwilling to equalize honour, dishonour, and providential care. Hence the law, through its attention to orphans, consoles and threatens. And further still, it will be very opportune for it to threaten as follows:

928a

—He who takes care either of a female or a male, and who from among the guardians of the law is appointed to observe the tutor of these, shall possess the same affection for the orphans intrusted to his care as if they were his own offspring;

928b

nor shall he bestow less attention to their affairs, but even more, than to his own. Let every one, therefore, take care of orphans conformably to this law.

928c

But, if any one acts contrary to this law in affairs of this kind, let such a tutor be condemned by a magistrate. And if it shall appear to the kindred of the orphans, or to any other of the citizens, that the tutor has acted negligently or viciously, let him be brought before a court of judgment, and make a fourfold restitution of the loss sustained, and let one half be given to the boy, and the other to the accuser. When an orphan arrives at puberty, if he thinks that he has been neglected by his tutor, let him be permitted to call his tutor to an account for five years from the time that his tutorship is finished.

928d

And if any tutor is condemned, let a court of justice determine what he ought to suffer, or what fine he ought to pay. If any magistrate shall appear to have injured an orphan through negligence, let a court of justice determine the restitution which he ought to make. But, if he shall appear to have injured the orphan through injustice, besides making a restitution, let him be deprived of the office of a guardian of the law; and let another common guardian of the city be appointed in his place by the region and the city. Greater discord takes place between fathers and sons, and sons and fathers, than is proper, in which fathers think that the legislator ought to permit them to renounce their sons by a public crier, so as that they may no longer be their sons according to law:

928e

and sons are of opinion that they ought to be allowed to accuse their fathers of madness, when they are disgracefully circumstanced through disease or old age. These things usually take place when the manners of men are perfectly corrupt. For, if the half only of these evils took place, as that the parents alone, or the children alone, were vicious, calamities which are the progeny of such a mighty hatred

would have no existence. Indeed, in any other polity, a son, when abandoned by his father, would not necessarily be deprived of the city. But, in a city governed by these laws, he who is given up by his father must necessarily take up his abode in some other place. For no one is allowed to unite himself with any family of the five thousand and forty houses. On this account it is necessary, that the son who is abandoned by his father should not only be driven from his father, but from his whole race. It is proper, therefore, in things of this kind, to act according to the following law:

929a

—When any one, through anger by no means fortunate, whether he is justly enraged or not, desires to be liberated from an alliance with him whom he has begotten and educated, let him not be permitted to accomplish his desire either in an improper manner or directly.

929b

But, in the first place, let him assemble his own relations, as far as to his cousins, and, in a similar manner, those of his son on the mother's side. When they are assembled, let him accuse his son to them, and show them that he deserves to be expelled from all his kindred. Let the son also be permitted to defend himself, and endeavour to prove that he does not deserve to suffer any thing of this kind.

929c

And if the father persuades them that his accusation is just, and all the relations, both male and female, except the father, mother, and the son himself, vote for his being abandoned; when this is the case, let a father be permitted to renounce his son, but by no means when this is not the case. If any citizen wishes to adopt a son whom his father abandons, let him not be restrained from adopting him by any law. For the manners of youth naturally sustain many mutations in life.

929d

But, if no one in the space of ten years wishes to adopt such a son, let those whose province it is to send offspring into a colony, take care that this rejected son is made an inhabitant of such a colony in a

proper manner. If a certain disease, old age, or severity of manners, or all these together, more than any thing else, render a man insane, and this is concealed from every one except his domestics; and if such a one dissipates his substance, as being the master of it, but his son is unwilling to accuse his father of madness, in this case let the following law be established:

929e

—In the first place, let the son go to the oldest guardians of the law, and inform them of his father's calamity.

930a

Afterwards, let these, when they have sufficiently considered the affair, consult whether the father should be proscribed, or not: and, if they agree that he should be proscribed, let them be both witnesses and patronizers of the cause. But, if the father is condemned, let him not afterwards possess any authority over his own affairs, but dwell at home for the rest of his life like a child. If a husband and wife, through the wretchedness of their manners, live in discord with each other, let ten men who subsist in the middle of the guardians of the laws, and, in a similar manner, ten women who are curators of marriages, take care of things of this kind.

930b

And if they are able to procure a reconciliation, let their decision be valid. But, if their minds are too vehemently inflamed to admit of a reconciliation, let them seek, to the utmost of their power, after such persons as are adapted to reside with each. It appears, indeed, that the manners of such as these are far from being mild; and, on this account, we should endeavour to adapt to them more profound and gentle manners. And such, indeed, as are without children, or have but a few, and disagree, let these be compelled to marry again, for the sake of procreating children. But let such as, having a sufficient number of children, disagree, be divorced, and united with others, for the sake of that attention which old age requires.

930c

If a woman dies, and leaves behind her male and female children, let the law not compel, but persuade, the husband to educate his children without marrying again. But if there are no children, let him be compelled to marry again, till he has procreated children sufficient both for his family and the city. But, if a man dies, and leaves behind him a sufficient number of children, let the mother of the children educate them, remaining a widow. If she appears, however, to be too young to live in a state of health without a husband, let her kindred, in conjunction with the women that take care of marriages, consult what is fit to be done both for her and the children. And if both these are in want of children, let them marry for the sake of having children. But let an accurate sufficiency of children be a male and female according to law. When it is allowed that any offspring is the progeny of the begetter, but it is necessary to have recourse to a court of justice in order to know which of the parents the child ought to follow, let the following mode be adopted:

930d

—If a female slave has connection with a slave, or with a free-born person, or with a freed-man, let the offspring be the property of the master of the female slave. But if a free-born woman is with child from a slave, let the master of the slave, in a similar manner, be the master of the offspring.

930e

If any master has a child by his own slave, or any mistress is pregnant from her slave, and this becomes apparent, let the women send the offspring of the woman, together with the father, into another region: but let the guardians of the law banish the offspring of the man, together with the mother of such offspring. However, neither will Divinity, nor any man who is endued with intellect, ever advise any one to neglect his parents. Indeed, the assertion, that it is proper to know how to worship the Gods, will be a proper preface with respect to the honouring and dishonouring of parents. Antient laws concerning the Gods are among all men established in a twofold

manner. For, clearly perceiving some of the Gods⁷¹, we honour them; but we fabricate images of others;

931a

and while we rejoice in these images though inanimate, we think that the animated Gods themselves will be benevolent and propitious to us for the attention which we pay to these. He, therefore, whose father or mother, or the fathers or mothers of these, reside in his house, worn out with old age, like precious furniture, such a one will never think that any other such image, or one more efficacious, can ever reside in his house, if he pays that reverential regard to it which he ought.

931b

Clinias: Of what proper reverential regard are you speaking?

931b

Guest: I will tell you. For things of this kind, O friends, deserve to be heard.

931b

Clinias: Only speak.

931c

Guest: We say that Oedipus, being dishonoured by his children, imprecated on them those things which every one is perfectly acquainted with, and has heard were inflicted by the Gods. Amyntor, too, is said to have cursed his son Phœnix in anger, and Theseus, Hippolytus, and innumerable other fathers, innumerable other sons. From which it becomes apparent, that the Gods hear the prayers of parents against their children. For it is most just that nothing should be so noxious to a child as the imprecation of his parent. Nor let any one think that the prayers of his father and mother are alone heard by the Gods according to nature, when they are despised by him, for they are also heard when they are honoured by, and are vehemently dear to, him. On this account, when in their prayers they earnestly invoke the Gods to bless their children, ought we not to think that they are similarly heard by them, and that the Gods equally impart to them

such things as are good? For otherwise they would not be just distributors of what is good, which we say becomes the Gods the least of all things.

931d

Clinias: Certainly.

931d

Guest: We should think, therefore, as we observed a little before, that we cannot possess any image which is more honoured by the Gods, than our fathers and grandfathers, mothers and grandmothers, when worn out with age.

931e

When any one honours these, divinity rejoices: for, otherwise, he would not hear their prayers. The image, indeed, of our progenitors ought to be considered by us, as far more wonderful than inanimate images. For animated images when they are revered by us, pray for us, but do the very contrary when they are despised by us. But inanimate images do neither of these. So that he who behaves properly to his father, grandfather, and all of this kind, such a one possesses the most powerful of all images with respect to procuring divine benevolence.

931e

Clinias: You speak most beautifully.

931e

Guest: Every one, therefore,

932a

endued with intellect will fear and honour the prayers of his parents, as knowing that they have often been profitable and noxious to many. These things, then, are thus established by nature. By good men, therefore, their aged progenitors when living to the extremity of life, will be considered as a treasure; and, if they die before they arrive at that period, they will be vehemently desired by them. On the contrary, they will be terrible in the extreme to the vicious. Let every one,

therefore, persuaded by these assertions, honour his parents according to law.

932b

But if any one is deaf to these exordia, for such the following law will be properly established. If any one then, in this city, reverences his parents less than he ought, and does not pay them more attention than he does his sons, grandsons, and himself, neglecting to comply with their will in all things beyond that of others, let parents who are so neglected, give information of the affair themselves, or by some other, to three of the oldest guardians of the law, and likewise to three of the women that have the care of marriages. And let these, after they have investigated the affair, punish the offender; if he is a young man, indeed, with stripes and bonds, if he is not more than thirty years of age;

932c

and let the same punishment be inflicted on a woman, if she is forty years of age. But if they are older than this, and yet do not cease to neglect their parents, but afflict them, let them be brought before a court of justice, and be tried by those citizens who surpass all the rest in age:

932d

and, if they are condemned, let the court of justice determine what they ought to suffer, without omitting any punishment which ought to be inflicted on such an occasion. If any one, however, who is afflicted by his children, is unable to tell his condition, let any free person who hears of his case, announce it to the governors; or let him, if he omits to do this, be considered as a vicious person, and be accused by any one that is willing of the injury sustained. But if a slave gives information of this affair, let him be made free. And if he is the slave either of the afflicting or afflicted person, let him be made free by the magistrate who is acquainted with the affair.

932e

But if he is the slave of any other citizen, let his ransom be paid for to his master, by the public. Let the magistrates, likewise, be careful that no one injures a person of this kind, on account of his giving information. With respect to injuries by poisons, we have already made a division of such of these as are deadly:

933a

but we have not yet distinguished other injuries, whether they are committed by means of drink or meat, or unctions, voluntarily, and with premeditation. For there are two kinds of poisons pertaining to the human species. For, as we just now clearly said, bodies are naturally injured by bodies: and, in the next place, by enchantments, incantations and bindings, some who dare to injure others, are persuaded that they are able to accomplish their purpose through these, and others, that nothing is so easy as to be injured by those that possess the power of witchcraft.

933b

These particulars, therefore, and all that pertains to things of this kind, it is neither easy to know how they naturally subsist, nor, if any one does know, to persuade others. But the minds of men being dubious as to things of this kind, it is not worth while to endeavour to persuade them that, if at any time they see waxen images, whether in gates, in places where three roads meet, or on the tombs of their parents, they should despise every thing of this kind, as they have no clear notions concerning them.

933c

Giving a twofold division, therefore, to the law respecting enchantments, in the first place, we shall exhort, admonish, and advise men, not to attempt any thing of this kind; nor terrify the multitude, who are frightened like children; nor compel the legislator and judge to procure a remedy for such fears of mankind. For, in the first place, he who endeavours to hurt another by poison, if he does not possess medical science, cannot know what he does with respect to bodies.

933d

The same may be said of him who endeavours to injure another by enchantment, unless he happens to be a diviner, or an interpreter of portents. Let the following law, therefore, be established respecting poisons. He who employs poison, not for the purpose of killing a man, but cattle, or swarms of bees, or in order to injure them some other way than by procuring their death, if he happens to be a physician, and is condemned for poisoning, let him be punished with death; but if he is unskilled in medicine, let a court of justice determine what he ought to suffer, or what fine he ought to pay.

933e

But if any one by bonds, or allurements, or certain incantations, or such like enchantments, is found endeavouring to injure another, if he is a diviner, or an interpreter of prodigies, let him be put to death. But if any one is accused of witchcraft, without being a diviner, let his punishment in a similar manner be determined by a court of justice. Let him who injures another by fraud or force, pay a great fine, if the injury is great, but a smaller fine, if the injury is small;

934a

and let restitution in all cases be equivalent to the loss sustained. And, in all injuries, let the injurer be fined till he is amended. If it shall appear that any one was impelled to injure another, by a folly foreign to his nature, through the imprudence of youth, let him be sentenced to pay a lighter fine; but if by his own proper folly, or through the incontinence of pleasures and pains, or through fear, envy, certain desires, or anger difficult to cure, a heavier fine. At the same time observing, that offenders are not to be punished because they have acted ill, (for what is done, can never become undone,) but that afterwards both offenders, and those that see them punished, may hate injustice, or may be in a considerable degree liberated from a calamity of this kind. For the sake of all these particulars, and looking to all these, the laws, like good archers, should consider this as a mark,

viz. the magnitude of punishment, and the proper desert in each offence.

934b

A judge, therefore, ought to act in this manner, as the minister of

934c

the legislature, since it is permitted him by law to establish what punishment offenders ought to suffer: and, like a painter, he should diligently copy his original. This, indeed, O Megillus and Clinias, should be done by us at present, in the most beautiful and best manner; and we should establish what punishments ought to be inflicted, both on base actions committed by fraud, and those committed by violence; and this in such a manner as the Gods, and the sons of the Gods, will permit us to establish.

934d

Let no one then who is insane be openly seen in the city, but let the relations of the insane person keep him secure at home, in the best manner they are able. If they do not, let them be fined. And let him who possesses the largest estate be fined a hundred drachms, if he is negligent in securing an insane person, whether he be a slave, or free.

934e

But let him who possesses the next estate to this, be fined four out of five parts of a mina; he who possesses a third estate, three parts of a mina: and, he who possesses a fourth estate, four parts. Many, indeed, are rendered insane by various means. Some, as those of whom we have just spoken, through disease. Others through anger, and the vicious education of a depraved nature; who, being incited by a trifling enmity, talk loudly, and blaspheme each other. But nothing of this kind ought to take place in a city governed by good laws. With respect to every kind of slander, therefore, let the following law be established. Let no one slander another. But when one person in discourse with another is doubtful of any particular, let him with whom he discourses instruct both him and those that are present in the truth of the case, and entirely abstain from slander.

935a

For men, when they slander each other with base words, are to be considered as effeminate. And, in the first place, from words, which are a light thing, hatred and grievous enmities are often produced in reality. For he who is gratified with anger, which is a thing of an unpleasant nature, and is filled with it as with noxious aliment,—such a one, being rendered as rustic and savage in this part of his soul as he was once gentle and mild through discipline, leads a morose life, and receives from anger this bitter grace.

935b

Hence, nearly all men from things of this kind, utter something ridiculous to their adversaries; and he who accustoms himself to a thing of this kind, either errs in every respect, or destroys many parts of magnanimity. On this account, therefore, let no one ever speak in this manner in a temple, or where public sacrifices are performed; or in places of contest, or the forum, or in a court of justice, or in any common assembly. But let the magistrate, who is present at the time, freely punish any one who acts in this manner: and, if he neglects to do so, let him be considered as one who pays no attention to the laws nor the mandates of the legislator, and let him never be permitted to contend for the rewards which are conferred on virtue.

935c

But, if any one uses slander in other places, either by provoking, or answering, let any more elderly person who is present, in defence of the law, restrain with blows those who are incited by a foreign and vicious anger; or, if they do not, let them be punished in the manner mentioned above.

935d

We say, too, at present, that he who is entangled with slander will not be able to refrain from sometimes speaking ridiculously; and this is what we condemn when it takes place through anger. But what then? Shall we admit the jests and ridiculous slanders which comedians employ against the citizens, if they are not accompanied with anger?

Or shall we give this affair a twofold division, viz. into the jocose and the serious? And, indeed, any one may be permitted jocosely to employ ridicule without anger. But let no one be allowed to employ it, as we said before, when inflamed with anger.

935e

Let us now, therefore, establish by law to whom this may be allowed, and to whom not. Let not then a composer of comedies, or of iambic or musical melody, be permitted either in words or images to slander any citizen, either in anger or without anger.

936a

And, if any one disobeys this law, let those that determine the rewards of contests drive him from the region the very same day, or they shall be fined three minæ, sacred to the God to whom the contest belongs. But let the others, whom we mentioned above, be permitted to employ ridicule without anger, and in sport; but let them not be permitted to do this seriously, and in anger. Let the determination, too, of this affair be committed to him who takes care of the whole discipline of youth. And let him who composes any thing be permitted to make it public, if it is approved of by this curator of youth:

936b

but if he does not approve of it, let not the author be permitted to show it to any one, or instruct in it either a slave or a freeborn person. Or, if he does, let him be considered as a vicious character, and as one who disobeys the laws. But he deserves commiseration who, when temperate, or possessing some other virtue, or a part of virtue, is oppressed with a certain calamity, either from hunger, or something of a similar kind; but this cannot be said universally of any one who falls into such-like misfortunes. Hence it will, indeed, be a wonderful circumstance if a man of this kind is so entirely neglected as to arrive at extreme poverty, whether he is a slave, or free, in a polity and city which is moderately inhabited. On this account, the following law may be safely established by the legislator. Let there be no beggars in the city. But if any one attempts to procure food by prayers which cannot

be satisfied, let the præfects of the forum expel him from the forum, and the governor of the ways and buildings from the city: and let the magistrate who presides over the lands expel him from every other part of the region, that the whole country may be pure from an animal of this kind.

936c

If a male or a female slave injures the property of another person undeservedly,

936d

whether through inexperience, or intemperate conduct, let the master of such slave either make satisfaction to the injured person, or deliver up to him the injurer. But if the master of the slave contends that the affair happened through the mutual craft of the injurer and injured, that the slave might be taken from him, let him charge with the crime of malice the person who says he has been injured; and, if he convicts him, let him receive from him double the price at which a court of justice had valued the slave. If the master of the slave is convicted, let him both make the injured person a recompense for his loss, and deliver up the slave.

936e

And, if a heifer, horse, or dog, or any other animal, injures any neighbouring property, let the master of the animal in a similar manner make restitution for the loss. If any one refuses to bear witness willingly, let him be cited by him who is in want of his evidence; and when cited, let him attend at a proper time, and bear witness to the best of his knowledge. But if he says that he is ignorant of the affair, let him swear that he is ignorant of it by the three Gods, Jupiter, Apollo, and Themis, and be dismissed. Let him who, when called to bear witness, does not attend, be obnoxious to the injury, according to law.

937a

If any judge is cited to give evidence, let him not, in giving evidence, pass sentence on the case. Let a free woman be permitted to bear

witness, defend a cause, and obtain justice, if she is more than forty years of age, and is unmarried. But, if she is married, let her be permitted to bear witness only.

937b

Let a male and female slave, and a boy, be alone permitted to bear witness and defend a cause in cases of murder, if they can give sufficient security for their appearance at the trial, if they should happen to be accused of bearing false witness. If any one accuses another of bearing false witness, let each of the litigants consider the testimony, both in whole and part, before sentence is passed. But let the magistrates preserve in writing the accusations of bearing false witness made by both, and bring them forward for the purpose of determining the false witnesses. If any one shall be found to have given false witness twice, let the law no longer compel him to bear witness again.

937c

But if he shall be found to have given false witness thrice, let him not be permitted ever to bear witness again. And if he dares after this to bear witness, let any one who is willing give information of him to a magistrate. Afterwards, let the magistrate deliver him to a court of justice, and, if he is convicted, let him be put to death. When in any law-suit false witnesses are detected, and are found to be the means of an opponent gaining his cause, if more than half of the witnesses are condemned, let no judgment be passed from their evidence. But it is proper in this case diligently to inquire, whether or not any sentence should be passed; that, in whatever manner the cause may be determined, by this means justice may be done.

937d

Since, however, there are many beautiful things in the life of man, in most of them dire calamities are, as it were, naturally inherent, through which they are stained and defiled. But why should not justice among men be beautiful, which renders all human affairs mild? And this being beautiful, why should it not be beautiful to patronize

the cause of another? This, then, being the case, a certain evil calumny gives a beautiful name to an art, which, it says, was first devised in judicial affairs;

937e

by means of which, in litigations, and the patronizing of causes, any one may vanquish another, whether the cause is just or not.

938a

They add, that the gift of this art, and of the arguments proceeding from it, consists in bestowing rewards from money. This, therefore, whether it is an art, or a certain exercise void of art, must by no means be planted in our city; but, reverencing the legislator, it should be persuaded not to speak contrary to justice, and should be sent to some other region. Those, then, that are persuaded by these arguments we pass over in silence: but let the following law be announced for those that are unpersuaded by them:

938b

—If it shall appear that any one endeavours to give a contrary direction to the power of justice in the souls of the judges, and either excites or patronizes many unseasonable law suits, let any one who is willing charge him with acting basely in judicial matters, or with patronizing a bad cause. And let the cause be tried in a select court of justice.

938c

If, too, he is condemned, let the court of justice determine whether he acted in this manner through avarice or love of contention.

938d

And if through a love of contention, let the

938e

judges appoint him a certain time, beyond which he shall neither plead any cause himself, nor patronize that of another. But if through avarice, if he is a stranger, let him depart from the city without ever returning to it again, or if he neglects to do this, let him be put to death. If he is a citizen, in consequence of thus improperly honouring

money, let him be immediately put to death. Likewise, let him be put to death who has been found by a court of justice to have acted twice in this manner.

Book XII

941a

If an ambassador or a crier deceives the city in any thing committed to his charge, or does not announce what he is sent to proclaim; or again, when returning from friends or enemies, does not truly relate the message he received from them, let a written information be drawn up against such a one, as irreligiously despising, contrary to law, the denunciations and mandates of Hermes and Jupiter.

941b

And if he is condemned, let the judges determine what he ought to suffer, or what fine he ought to pay. The theft of money is, indeed, illiberal, but rapine is base. But no one of the sons of Jupiter will ever do any thing of this kind, in consequence of being delighted either with fraud or force. Let no one, therefore, acting in a disorderly manner through poets, or certain mythologists, be falsely persuaded that if he thieves either by fraud or force, he does not act basely, but does that which the Gods themselves have done. For this is neither true nor becoming; but he who illegally acts in this manner, is neither a God, nor a son of the Gods. But it is proper that these things should be known by the legislator rather than by all poets. He, therefore, who is persuaded by this our discourse, is happy, and will be happy through the whole of time; but he who is unpersuaded by it, must be restrained by the following law:

941c

—If any one commits any public theft, whether it is great or small, he ought to suffer the same punishment.

941d

For he who takes away a thing of small consequence, thieves with the same desire, though with less force. But he who moves any thing of greater consequence, and does not restore it to its proper place, is wholly unjust. The law, however, thinks it proper that the one should be less punished than the other, not on account of the smallness of the theft, but because, perhaps, one of these characters may be cured, but the other is incurable.

941e

If a slave, or a stranger, is accused and condemned of any public theft, let sentence be

942a

passed on him what he ought to suffer, or what fine he ought to pay, as if it were probable that he might be cured. But if any citizen, who has been properly educated, is convicted of having committed any public theft, or violence, whether he is detected in the fact or not, let him be punished with death, as one who is nearly incurable. For the sake of war, indeed, many consultations and many laws are very properly instituted. The greatest of all things, however, consists in this, that neither any male or female be at any time without a governor, nor the soul of any citizen be ever accustomed, either seriously or in sport, to do any thing from itself alone;

942b

but that in all war, and in all peace, it perpetually looks to a governor, and lives following his mandates, so as to comply with them in the smallest particular; to stand when he commands, walk, engage in gymnastic exercises, wash, eat, rise by night for the purpose of keeping guard and giving signals; and in dangers themselves, neither to pursue nor give way to any one, without the mandate of the governors.

942c

And, in one word, that it should never be taught to do or know any thing separate from others; but that the life of all men should, in the highest degree, in all things be collected into one, subsist together,

and be common. For nothing will ever be more excellent, better, or more artificial than this, for the purpose of procuring safety and victory in war.

942d

In peace, too, men should be accustomed from their childhood to govern others, and to be governed by others. But anarchy should be expelled from all life, both from that of men, and of beasts that are in subjection to men. All choirs, too, should be celebrated, with a view to the best mode of conducting war; and all facility, dexterity, and promptitude, should be studied for the sake of this. On this account, too, we ought to accustom ourselves to endurance of hunger and thirst, cold and heat, and a hard bed. And, what is greatest of all, for the sake of this we should be careful not to corrupt the power of the head and feet by the tegument of foreign clothing, which destroys the generation and nature of our proper hairs and shoes.

942e

For these extremities, when preserved, possess the greatest power of the whole body, but the contrary when they are not preserved. And one of these is in the highest degree subservient to the whole body; but the other is endued with a principal authority, naturally possessing all its principal senses. And this praise of a warlike life ought to be heard by young men. But the law is as follows:

943a

—Let every one engage in war who is chosen for this purpose, or is deputed a certain part. But, if any one, through a certain vice, deserts his post without leave from his commander, let him be accused of desertion, when he returns, to the principal officers of the army. Let him be judged, too, by all the military orders, by the horse and the foot separately, and in a similar manner by the rest.

943b

And let the foot be introduced to the foot, the horse to the horse, and each of the other orders to those of the same rank with themselves. If any one is condemned, let him afterwards be prohibited from

engaging in any military contest, or accusing another of neglect of military duty. And besides this, let a court of justice determine what he ought to suffer, or what fine he ought to pay. After this, when the trial for desertion is finished, let the commanders again assemble each of these orders, that military rewards may be conferred on those who have conducted themselves strenuously in battle.

943c

But any one who is willing may judge of the victory among those of the same rank with himself, so as that he neither produces arguments nor witnesses of any former battle, but alone considers the battle which has then been fought. Let a crown of olive, too, be the reward of the military champion. And afterwards, let those that have obtained these crowns suspend them in the temples of the warlike Gods, with any inscription they please, that they may be a testimony through the whole of life of the military virtue of the most valiant, and those that were valiant in the second and third degree.

943d

But, if any one engages in battle, and leaves the army before he is dismissed by his commanding officers, let him be tried by the same judges as the deserter was tried by, whom we mentioned above, and, if condemned, let him be similarly punished. It is proper, however, that one man, when he is about to judge another, should be fearful lest he should either voluntarily or involuntarily inflict punishment falsely. For justice is said, and is truly said, to be a bashful virgin. But falsehood is naturally odious to bashfulness and justice. In other things, therefore, it is requisite to be cautious with respect to judging erroneously, but particularly as to throwing away armour in battle.

943e

For, it may happen that some one may be erroneously considered as base for an action of this kind, and may be punished for it undeservedly.

944a

For it is by no means easy to determine properly in this case. At the same time it is necessary that the law should endeavour to define according to parts. Employing a fable, therefore, we say, if Patroclus should have been carried to his tent without arms, and scarcely alive, as is frequently the case, and if his arms, which, as the poet says, were given to Peleus by the Gods on his marriage with Thetis, should be in the possession of Hector, would evil men in this case reproach the son of Menœtius, as if he had thrown away his arms?

944b

Further still, if any persons, being hurled from lofty places, either into the sea, or into places consisting of an abundant conflux of water produced through tempests, or into many other places of this kind, which might easily be adduced to free them from a suspicion of cowardice,—if, being hurled into these, they should lose their arms, ought they in this case to be blamed? But we ought to endeavour, to the utmost of our power, to separate the greater and the most grievous evil from the contrary. In slandering, therefore, the very words employed for the purpose, possess a certain division. For, as the throwing away arms cannot be justly asserted in all cases, but the losing them may; in like manner, he is not to be similarly called a thrower away of his shield who loses it by force, as he who voluntarily throws it away. For they totally and universally differ from each other. Let the following law, therefore, be established:

944c

—If any one, being assaulted by enemies, and having arms, does not defend himself against them, but voluntarily drops them, or throws them away, preferring a base life, in conjunction with infamy, to a beautiful

944d

and happy death, accompanied with fortitude, let sentence be passed on such a one, as a thrower away of arms, but let the judge neglect to consider the losing of arms mentioned above. For it is requisite always to punish the vicious, that they may become better, but not the

unfortunate. For no advantage would be derived from an action of this kind. But what punishment will be adapted to him who is condemned for throwing away his arms in a cowardly manner? For, it is impossible to change a man of this kind into a contrary character, as they report Divinity once changed the Thessalian Cæneus from the nature of a woman into that of a man. For a contrary generation would, after a manner, be the most adapted of all others to him who throws away his shield,—I mean, that he should be punished by being changed from a man into a woman. But now, since this is impossible, let us devise a punishment which approaches the nearest to this, I mean that, in consequence of his great love of life, he shall never afterwards engage in any dangerous enterprize, but, as being a vicious character, live as long as possible, covered with disgrace. Let, then, the following law be established for these:

944e

—When a man is condemned for shamefully throwing away his warlike arms, let neither any general of an army, nor any other military officer, ever employ him as a soldier, nor admit him into the army.

945a

But if any such officer does admit him, let the judge who inquires into the reasons of conduct punish him as follows: If he possesses the largest estate, let him be fined ten minæ; if the second in rank, five minæ; if the third, three; and, if the fourth, one mina. But he who was condemned for throwing away his armour, besides being excluded from engaging in manly dangers, through his cowardice, shall, if he possesses the largest estate, be in like manner fined ten minæ; if the second, five; if the third, three; and, if the fourth, one mina. But, with respect to those magistrates who inquire into the reasons of conduct, what ought we to determine;

945b

some magistrates being chosen by a yearly lot, but others for many years, and by selection? For who will be a sufficient judge of the

reasons of conduct, if it should happen that any magistrate, being bent by the weight of his government, should say or do any thing unworthy of his office? It is, indeed, by no means easy to find one adequate to the purpose. For, since one magistrate surpasses another in virtue, how shall we discover him who transcends all the rest. At the same time, we should endeavour to find certain divine men who may act for us as judges of the reasons of conduct. For the case is as follows:

945c

—There are many occasions for dissolving a polity, as there are of a ship, or a certain animal, of which, though there is one dispersed nature, yet we denominate them tones, transverse enclosures, extensions of nerves, and call them by many other names. But this is an occasion, by no means the smallest, of the preservation and dissolution of a polity. For, if the judges who require of the magistrates the reason of their conduct, are better than the magistrates, and

945d

this is managed in such a manner as to take away all occasion of complaint, the whole region and city will thus flourish and be happy.

945e

But, if an inquiry is made into the conduct of the magistrates in a different manner, then, that judgment being dissolved by which all political affairs are connected in one, a divulsion of all government takes place, and magistrates no longer verging to the same thing, they cause the city from being one, to be many, and filling it with seditions, bring it rapidly to destruction. On this account, it is necessary that those who inquire into the reasons of conduct should, in a wonderful manner, be endued with every virtue.

946a

We shall, therefore, thus devise the fabrication of these. Let the whole city assemble every year after the summer solstice, to a sacred grove common to the Sun and Apollo, in order to elect three men, which every one shall judge to excel all others except himself; and let these

be not less than fifty years of age. Afterwards, let the half of those who are chosen by the greatest number of votes be selected, if they form an even number; but if they form an odd number, then, leaving out one who had the fewest votes, let the half of the remainder be taken, and a judgment formed by the number of votes.

946b

If some happen to have an equal number of votes, and the half of these is more than three, let the excess be taken away, and the juniors rejected. Afterwards, out of these, let an election be made by votes, till three, whose votes are unequal, are obtained. But if all these, or two of them, have equal votes, then, committing the affair to good fate and fortune, let the three be distinguished by lot; and let him who is victor, together with the second and third, be crowned with leaves of olive.

946c

Afterwards, the rewards being conferred, let it be proclaimed to all men, that the city of the Magnesians having again obtained safety from Divinity, consecrates three of its best citizens as common first fruits to Apollo and the Sun, conformably to an antient law. Let these, too, in the first year, choose twelve examiners of the reasons of conduct, and continue to do this till each has accomplished his seventy-fifth year; and afterwards, let three always be added every year. Let these accurately observe all the magistrates, who are to be divided into twelve parts, with all possible free examination. Let them reside, too, at the time in which they act as examiners of the reasons of conduct, in the grove sacred to the Sun and Apollo, in which they were elected.

946d

Here, each inquiring into every thing by himself, and all examining in common, let them signify by public writings in the forum what each of the magistrates ought to suffer, or be fined, according to their decision. But if any one of the magistrates does not acknowledge that he has been condemned justly, let him go to the chosen judges

appointed to examine the reasons of conduct, and if he is acquitted by these, let him accuse, if he is willing, the examiners of the reasons of conduct;

946e

but, if he is condemned by the chosen judges also, and was before by the other judges condemned to death, let him die, as necessity requires. But if he was sentenced by them to pay a fine, the double of which he is capable of paying, let him be fined the double of it.

947a

It is, however, now requisite to hear what the accusations of these judges will be, and after what manner they will take place. The first places, then, in all public spectacles should always be given to those who are appointed by the common consent of the whole city to preside over all others as long as they live. And further still, when it is found necessary to send magistrates to inspect the common sacrifices, spectacles, and other sacred rites of the Greeks, let them be sent from these. Likewise, let these alone in the city be adorned with a crown of laurel; and let them all be priests of Apollo and the Sun. Let him, too, be the high-priest every year from among these, who in the former year was judged to excel the other priests;

947b

and let his name every year, as long as the city is inhabited, become the measure of the number of time. But when these priests die, let care be taken that their funerals and sepulchres surpass those of the other citizens. Let every one, too, on this occasion have a white robe, and let there be no weeping and lamentation. Let there be also two choirs, one consisting of fifteen girls, and the other of as many boys; and let each of these surround the bier, praising the priests, as it were, in a hymn, and each by turns celebrating their felicity in songs through the whole day.

947c

On the morning following, let a hundred young men, who are engaged in gymnastic exercises, carry the bier to the sepulchre which the

relations of the deceased have chosen.

947d

And, in the first place, let the unmarried young men march before the bier armed in a warlike manner, together with horses and horsemen; the foot with their light arms, and others in a similar manner. But let boys, going before the bier, sing a paternal song; and let them be followed by girls, and women who are no longer capable of bearing children. After these, let priests and priestesses follow, as to a pure sepulchre, though they are forbidden to go to other sepulchres; if the Pythian deity likewise assents. Let the sepulchre, too, for these be built under the earth; and let it be a long arch composed of valuable and undecaying stones, and containing on each side beds of stone.

947e

In this let them place the blessed deceased, and plant a grove of trees in a circular order round the monument, except in one part, that the sepulchre may be always enlarged when it is requisite. Every year, too, let musical, gymnastic and equestrian contests be instituted in honour of these deceased priests. And such are the honours which ought to be paid to those whose judgments concerning the reasons of conduct are not condemned. But, if any one of these, confiding too much in his decision, should make the imbecility of human nature apparent, and become depraved after his decision, let him be accused by any one who is willing; and let the following law respecting the mode of his accusation be established:

947e

—In the first place, let him be brought before a court of justice, and let the guardians of the laws at the same time be present.

948a

Afterwards, let the colleagues of the accused be present; and, lastly, let the court of justice be composed of select judges. Then, let his accuser signify in writing that he who is accused is an unworthy character, and that he does not deserve either the rewards, or to act in the capacity, of a magistrate. If, therefore, he is condemned, let him be

deprived of magistracy, of a sepulchre, and of those other rewards which pertain to his office. But if his accuser has not a fifth part of votes, let him who possesses the largest estate be fined twelve minæ; he who possesses the second, eight; the third, six; and the fourth, two minæ.

948b

Rhadamanthus, indeed, deserves to be admired with respect to his decision of judicial affairs. For he perceived that the men of that time evidently believed that there were Gods, and this very properly, because at that time many of them were the progeny of the Gods; and he is said to have been one of these. He appears, therefore, to have conceived that causes ought not to be referred to any human judge, but to the Gods; and, on this account, causes were decided by him in a simple and rapid manner. For, causing the litigants in every case to take an oath, he determined causes rapidly and with safety. But now, as we have said, a certain part of mankind denies that there are Gods;

948c

others conceive that they take no care of us; and the opinion of the greatest and worst part is, that they may be appeased by trifling sacrifices and abundance of flattery, and that those who thus appease them, may with impunity defraud others of great sums of money.

948d

Hence, the art of Rhadamanthus in judicial affairs will not be adapted to men of the present time. The opinions of men, therefore, respecting the Gods being changed, it is necessary that laws also should be changed. A prudent legislator, therefore, in judicial contests, will not suffer the litigants to take an oath, that as well the intention of the accuser, as the entreaty of the defendant, may be committed to writing without an oath. For if every one in the city should be freely permitted to take an oath, in consequence of many cases

948e

being every day brought before the judges, almost every one would be perjured, through connections arising from feasting together, and

other associations, and from private meetings. Let it, therefore, be established by law, that he who is about to be judged shall swear to the judge, and that he who appoints the public magistrates shall either appoint them through oaths, or by suffrages. Likewise, that the judge of choirs, and all music, together with the presidents and those that confer rewards on gymnastic and equestrian exercises, shall take an oath; and, in short, in all cases in which, according to the opinion of men, perjury is not attended with gain. But let those cases in which any one may derive great advantage from perjury be judged without an oath.

948e

Likewise, in judicial cases, let not the litigants by any means be permitted either to swear for the sake of

949a

persuading, or imprecate themselves and their family, or employ base supplications or feminine excitations to pity;

949b

but let them always in an honourable manner teach and learn that which is just. But if they do not act in this manner, let the magistrates again bring them back to the affair in hand, as those who speak foreign to the purpose.

949c

When strangers, like us, quarrel among themselves, let them be permitted, if they are willing, to take an oath. For, as they are not allowed to grow old in the city, there is no reason to fear lest they should corrupt others. In the same manner, let justice be executed among free men, if any one of these is not persuaded by the city in things which are neither punished with blows, nor bonds, nor death. If any one does not attend at the celebration of a choir, or solemn procession, or any other common adornings of this kind, or public office, such as take place for the sake of pacific sacrifice or warlike tributes,—in all these cases let the damage be repaired as soon as possible;

949d

or let the pledge be taken to him to whom the city and law have committed it, and when the limited time is expired let the pledge be sold, and the money applied to public use. But, if there is occasion for a greater fine, let the magistrates bring those that refuse to pay it before a court of justice, and compel them to pay the fine enacted by the laws.

949e

It is necessary, however, to consult what ought to be done with a city which does not apply itself to the acquisition of wealth, except that which arises from agriculture, since it neither exports nor imports commodities, nor admits foreigners. The legislator, therefore, ought to consult about these particulars, employing, in the first place, persuasion to the utmost of his power. The mixture, indeed, of different nations naturally causes a mixture of all-various manners; and the association of strangers with strangers produces innovations which injure in the highest degree cities that are well governed through good laws.

950a

But, to the greater part of cities, as being by no means well governed, it is of no consequence if as well the old as the young travel into other countries whenever they please, and receive foreigners in their own country. But, on the contrary, in these never to receive strangers, and never to visit foreign countries, would appear rustic and savage to other men, who would call the city by opprobrious names, such as, that it is the enemy of strangers, and that its manners are arrogant and morose.

950b

The appearing, however, to be good, or not good, to others, ought never to be considered as a thing of small importance. For the multitude, though deprived of virtue themselves, are capable of distinguishing the worthy from the unworthy:

950c

and in certain vicious characters there is something divine, and a power of conjecturing well. So that many, and even some that are vicious in the extreme, are able to distinguish, both in words and opinions, the better from the worse sort of men. On this account, the multitude of cities are very properly exhorted not to despise the good opinion of the multitude. For it is a thing of the greatest rectitude and magnitude, when a man is truly good himself, that he should aspire after a renowned life; since, without this, a man will by no means become perfect.

950d

On this account, it will be proper that the city which is to be inhabited about Crete should endeavour to obtain the most beautiful and excellent reputation for virtue among other men. But there is every reason to hope, that this city in a short time will be beheld both by the Sun and other Gods, in well-governed cities and regions, living according to reason. Let the following law, therefore, be established respecting travelling into other regions and places, and the reception of guests:

950e

—In the first place, let it not be lawful for him who is less than forty years of age by any means to travel; and further still, let no person be permitted to travel privately; but let cryers, ambassadors, or certain speculators, be allowed to travel publicly. Leaving a country, however, in order to wage war, is not to be considered as political travelling. It is likewise requisite that certain persons should be sent to Pythian Apollo, to Olympian Jupiter, and also to Nemea and Isthmus, for the purpose of communicating in the sacrifices and contests sacred to these Gods. But let as much as possible many, and these such as are the most beautiful and the best, be

951a

sent on this occasion, who may procure for the city renown, and glory corresponding to warlike glory in sacred concerns, and things pertaining to pacific communions. And when they return home, let

them teach the young men, that the legal institutions of other nations, respecting political affairs, are inferior to their own. If any speculators, likewise, who abound in leisure, are desirous of surveying the affairs of other men, let no law belonging to the guardians of the laws restrain them from executing their desire.

951b

For a city, when ignorant of good and evil men, cannot, in consequence of being unsociable, be sufficiently mild and perfect. Nor, again, can it preserve its laws by manners alone, without a knowledge of them. For among the multitude of mankind, there are always some divine men, not indeed many, but who in the highest degree deserve to be associated with: and these do not spring up in well-governed cities, more than in their contraries. Every one, therefore, who is an inhabitant of a well-governed city, and whose manners are uncorrupt, ought, leaving his country, to tread in the steps of these men, exploring both by land and sea, that when he returns to his country he may give stability to such legal institutions as are beautifully ordained, and correct such as are in any respect deficient. For without such a speculation and inquiry a city can never continue perfect, nor yet if the explorers speculate badly.

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Clinias: How, therefore, can both these take place?

951c

Guest: Thus. In the first place, let a speculator of this kind not be more than fifty years of age.

951d

In the next place, let him be approved both in other respects, and for the purposes of war, if he intends to leave to other cities an example of the guardians of laws. But, when he is more than sixty years of age, let him no longer travel as a speculator. Let him, therefore, return when he pleases, within the space of ten years, and on his return go to the assembly of those that examine the laws. But let this assembly be composed of the old and the young; and let it be held every day from

necessity, before the dawn of day, till the sun rises. And, in the first place, let it be composed of those priests who receive rewards, as being more excellent than the rest;

951e

in the next place, of twelve of the senior guardians of the laws; and, in the last place, of the president of all erudition, together with the young, and those who no longer act in this capacity. Let not any one of these be alone, but let him go with some young man whom he may choose, between thirty and forty years of age.

952a

Let these, when they assemble, always discourse concerning the laws and their own city; and, if they have heard any thing excellent respecting these, let them communicate it to each other. Let them also discourse concerning such disciplines as appear to conduce to this speculation, and which those who are skilled in will be enabled to understand more clearly; but those who are not skilled in them will more darkly comprehend the things pertaining to laws. Afterwards, let such particulars among these as are approved of by the more aged, be learnt with the greatest assiduity by the younger. If any young man of the assembly shall appear to be an unworthy character, let the whole assembly blame him by whom he was brought thither.

952b

But let the whole city defend and honour those young men whose conduct in the assembly is approved. If such young men as go to the assembly are worse than others, let them be more disgraced than others. Let him who speculates the legal institutions of other men immediately go to this assembly on his arrival from foreign parts;

952c

and if he has discovered any thing among others, respecting the establishment of laws, or discipline, or education, or has himself found out any thing pertaining to these, let him communicate it to the whole assembly. If, too, it shall appear that he has returned neither worse nor better than he was before, let him be praised for having

done his best; but if he returns much better, let him while living be greatly honoured, and, when dead, let all the assembly pay him those honours which are his due. But if it shall appear that he has returned corrupted, though he pretends to be wise, let him not dare to associate with any young or old person. And if he is obedient to the magistrates, let him live as a private man; but if not, let him be put to death.

952d

Likewise, if, when he ought to be brought before a court of justice, any magistrate neglects to bring him, let such magistrate be disgraced when a contention takes place about rewards. Let him, therefore, who travels, travel in this manner, and let him be such a person as we have described. But, in the next place, foreigners ought to be kindly received. There are four kinds of foreigners, then, of whom we ought to make mention.

952e

The first is, of those who are always summerly, and most of whom, like birds, fly over the sea in summer to other cities, for the sake of acquiring riches.

953a

It is proper that these should be received in the forum, in the ports and public buildings, beyond the city, by the magistrates who preside over these places; such magistrates at the same time taking care that no innovation is made by any of these foreigners. Let justice, too, be properly distributed to them, and no association be held with them, beyond what is absolutely necessary.

953b

The second kind is, of those who travel for the sake of beholding what Muses are received by different cities. It is proper that all such as these should have habitations near the temples, properly constructed for hospitable purposes. Priests, too, and the purifiers of temples, ought to take care of these, that after they have staid a sufficient time, and have seen and heard all that they came to see and hear, they may

depart without any detriment either to themselves or others. Let the priests, too, be the judges of these. And, if any one of them commits an injury, or is injured, let the priests fine the offending party as far as to fifty drachms. But it is proper that greater offences should be punished by those that preside over the markets. The third kind of foreigner that ought to be publicly received, is he who is sent from another region on some public affair. Him let the generals of the army, the masters of the horse, and the military tribunes, alone receive. And let him be alone taken care of by him with whom he resides together with the chief magistrates. The fourth genus of foreigners is indeed rare. Some one, however, may come from another region with the same design that our speculators travel into foreign parts.

953c

Let such a one then be received on the following conditions. In the first place, he must not be less than fifty years of age. In the next place, he must come with an intention either of beholding what is remarkably beautiful in other cities, or of instructing other cities in things of this kind. Let such a one, therefore, approach, unbidden, to the gates of the rich and the wise, since he comes under this description himself. And let him go to the house of him who takes care of the whole of discipline, believing that one who is victorious in virtue will be considered by such a character as a sufficient guest. Likewise, when he has learnt from others, and has taught others, what he considers as fit to be learnt and taught, let him depart like a friend from friends with gifts and becoming honours.

953d

All foreigners, both male and female, ought to be received according to these laws, and, in a similar manner reverencing hospitable Jupiter, we should send men from our city. For foreigners ought not to be expelled with food and victims, (as the inhabitants of the Nile do at present,) nor yet are they to be driven away by savage edicts.

953e

Let every surety be responsible for another in a conspicuous manner; and let the whole transaction be acknowledged in writing, before not less than three witnesses, if the security is within a hundred drachms.

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But, if it is beyond a thousand, let there be five sureties at least. Let the surety, if he is a shopkeeper, be one that acts justly in his business, or else let him by no means be considered as worthy of belief. If any one desires to search in the house of another person for something belonging to himself, let him first of all swear by the legal Gods that he hopes to find there what he is in search of. In the next place, let him enter the house naked, or with no other clothing than a tunic, and ungirded. Then let him be permitted to search the house, and examine every thing, whether sealed or unsealed.

954b

But, if any one refuses admittance to him who desires to search his house, let him who is forbidden access bring an action against him who refuses him admittance, for the value of what he has lost; and, if such person is condemned, let him be obliged to pay twice the value of the loss sustained. If the master of the house on such an occasion happens to be absent, let those that are present permit only such things as are unsealed to be examined; and let the person that searches the house seal with his own signet the things already sealed, and leave for five days any person he pleases as a guard in the house. But if the master of the house is absent for a longer time than this, let him who desires to search the house take the *ædiles* along with him, break open such things as are

954c

sealed, and, after he has examined them in conjunction with the domestics and *ædiles*, seal them again. With respect to things of an ambiguous nature, let not a limited time for the determination of them be left dubious: for by this means there will be no altercation about houses and land. But if any one is in possession of other things, and it appears that he has used them openly for the space of a year, in

the city, in the forum, and in temples, and no one has laid claim to them during that time, in this case let no one be permitted afterwards to demand those things as his own. But if such person used such things, neither in the city, nor in the forum, but openly in the fields, and the proper owner of them is not found in five years, let no one be suffered to demand them after the expiration of this time. But if such person uses these things at home in the city, let the period of laying claim to them be limited to three years.

954d

But if he uses them secretly in the fields, let it be limited to ten years.

954e

And, if he used them in another district, let the person who has lost them be permitted to lay claim to them at any time, If any one forcibly hinders another, whether a plaintiff or defendant, from having recourse to justice, if it is a slave that he hinders, whether his own or belonging to another person, let no notice be taken of the affair, and let the legal process be stopt: but if it is a free-born person, besides the legal process being stopt, let him by whom he was forcibly detained be imprisoned for a year, and let any one who is willing accuse him of mancipation.

955a

If any one forcibly prohibits a gymnastic or musical antagonist, or an opponent in any other contest, from contending in his art, let any one who is willing inform those that confer rewards on the victors in these exercises, of the affair; and these shall be the means of procuring admittance to the contests to such as are willing to engage in them. But if it should happen that they are incapable of procuring them admittance, if he who impedes is himself victorious, let the reward of his victory be given to the person he impeded, and let the name of the person so impeded be inscribed as victor in whatever temples he pleases.

955b

But let not the person that impedes be suffered to suspend an offering, or make any inscription of a victory of this kind. Likewise, let him be accused of having done an injury, whether he vanquishes in contending, or is vanquished. If any one receives stolen goods knowingly, let him suffer the same punishment as the person that stole them. Let death, too, be the punishment of him that harbours an exile. For every one should reckon him as a friend or an enemy, who is considered as such by the city.

955c

If any one of his own accord makes peace with, or denounces war against, certain persons, without general consent, let death be the punishment of such a one. But if any part of a city makes peace, or denounces war, by itself, let the generals of the army bring the authors of this action before a court of justice; and, when condemned, let their punishment be death. Let those that serve their country in any respect do this without gifts. And let no occasion or arguments ever induce us to believe that we ought to receive gifts for good offices, but not for such as are bad.

955d

For it is neither easy to know when actions are good or bad, nor to endure patiently when this knowledge is obtained. It is, therefore, more safe to listen to, and be persuaded by, the law, which says that no one shall serve his country for the sake of gifts. Let him, therefore, who is unpersuaded by this law, when condemned, be punished with death. Let public tributes, too, be disposed as follows: In the first place, every one's possessions must be considered as subsisting for the sake of many utilities. In the next place, let those of the same tribe carry a written account of the annual fruits to the præfects of the land; so that, in consequence of there being two tributes, the republic may choose every year whichever of the two they please, viz. either a part of all the estates, or the annual crop, exclusive of such things as contribute to aliment.

955e

It is likewise proper that moderate offerings to the Gods should be dedicated by moderate men. Earth, therefore, which is the hearth of habitation, is the sacred possession of all the Gods. Let no one then consecrate the same thing a second time to the Gods. But gold and silver in other cities, both privately and in temples, are an invidious possession. Ivory, too, as belonging to a body deprived of soul, is not a pure offering to the Gods. And iron and brass are the instruments of war. Let, therefore, any one dedicate whatever he pleases, from wood, so as it is fashioned from one piece of wood, and, in a similar manner, any thing formed from stone, in the common temples. With respect to things woven, let nothing of this kind be dedicated which exceeds the monthly work of a woman. White colours will to adapted to the Gods, both in other things, and in such as are woven.

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But nothing dyed should be offered, except it belongs to warlike ornaments. The most divine gifts, however, are such birds and pictures as a painter has finished in one day. And let all other offerings be similar to these.

956b

Since, therefore, we have divided the parts of all the city, in such a manner as is proper, and have spoken in the best manner we are able respecting the laws which ought to be established in all the greatest compacts, it now remains that we should speak concerning judgments. In the first place, therefore, let there be select judges for the courts of justice, and such as are chosen in common by plaintiffs and defendants. These, indeed, may more properly be called arbiters than judges. In the next place, let those of the same street and tribe, when divided according to a twelfth part, be appointed as judges.

956c

Let the contending parties, if they cannot be reconciled by the former judges, go to these, and litigate with greater loss. Here, if the defendant is a second time condemned, let him pay the fifth part of the prescribed fine. But if any one accuses these judges, and wishes to

dispute the affair in a third court of justice, let him refer the cause to select judges. And if he is again condemned by these, let him pay the sum that is owing, and the half of it besides. But if the plaintiff, being repulsed by the first judgment, is not satisfied, but appeals to a second,—if he vanquishes let him receive a fifth part, but if he is vanquished let him lose the same part.

956d

And if he goes to a third court of justice, not being satisfied with the former judgments, let the defendant, if vanquished, pay (as we have said) the sum that is owing, and the half of it besides; but let the plaintiff pay the half only. With respect to the allotments of courts of justice, the perfection and establishment of things ministrant to the magistrates, the times in which each of these ought to take place, the particulars respecting votes, the delays, terms, citations and repulses which take place in judicial

956e

affairs, and whatever else necessarily pertains to these,—all this we have already discussed. However, according to the proverb, what is beautiful and right may be spoken twice and thrice.

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All such legal particulars, therefore, as are small and easy to be discovered, when omitted by an aged legislator, ought to be filled up by a junior legislator. And thus much may suffice concerning private courts of justice. But such as are public and common, and which are employed by magistrates to proper purposes, are found in many cities established in no unbecoming manner by equitable men. Whence it is requisite that the guardians of the laws should procure such things as are adapted to this new polity, by reasoning, correcting, and exploring them, till they appear to them to be sufficiently established; and then bringing them to a conclusion, that they should seal them as things immovable, and use them through the whole of life.

957b

With respect to the silence of judges, the praises which are given them, or the contrary, and likewise concerning things just, good, and becoming, which differ in other cities, we have already spoken, and shall again speak in the end.

957c

But it is requisite that he who in future will be an equitable judge should look to all these particulars, and being in possession of them, when committed to writing, should make them the object of his study. For written laws are more calculated to make him who learns them better, than all other disciplines, if they are properly established. For, indeed, divine and admirable law does not rashly possess a name adapted to intellect⁷².

957d

And besides this, the writings of the legislator afford us a perspicuous examination of the assertions of others respecting praise and blame, which are partly transmitted to us in verse, and partly in prose, and which likewise daily take place in all other associations, when men contend with each other through emulation, and concessions which are vain in the extreme. These a good judge should always keep in his possession, as remedies against the poison of other discourses, correcting by them both himself and the city;

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confirming and praising the good, and recalling, to the utmost of his power, such of the evil as are curable from ignorance, intemperance, timidity, and, in short, from all injustice. For, if they are incapable of being cured, those judges, and governors of the judges, that put them to death, as the only remedy to souls in such a condition, may be often said, with justice, to deserve praise from the whole city. After annual judgments are finished, let them use the following laws:

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—In the first place, let the magistrate who exercises the office of a judge consign over all the money of the debtor to the victor, leaving him only sufficient for necessary uses. And let this take place

immediately after the giving of votes, the affair being announced by a cryer, and in the hearing of the judges.

958b

In the next place, if, after sentence is passed, one month has elapsed and a second commenced, and the vanquished person has not voluntarily paid what is due to the victor, let the judicial magistrate deliver up the money of the debtor to the victor. But if the debtor has not sufficient money to discharge the debt, and he is deficient not less than a drachm, let not the debtor be suffered to go to law with any other person till he has paid all that is due to the victor;

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but let any other person be permitted to go to law with him. If any one, when condemned by a magistrate, unjustly takes any thing from him, let the injured magistrate take the offender before the court of justice of the guardians of the laws. And if he is condemned by these, let him be punished with death, as one who subverts the whole city and the law. But a man who is born and educated, and who begets and educates children, under these laws, who engages moderately in contracts, is punished if he acts unjustly, and sees those punished that injure him, and, lastly, who grows old together with the laws,—such a one will end his days according to nature.

958d

With respect to the funeral rites of the dead, whether male or female, and the particulars which pertain

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to the infernal and supernal Gods, let them be instituted according to the answers of the interpreters. Let there be no sepulchres in cultivated places, neither large nor small. But let that place alone receive the bodies of the dead which is useless for other purposes, and will in the smallest degree injure the living. For no one, either living or dying, should impede the fecundity of mother earth, and thus deprive some living person of aliment.

959a

Likewise, let no tomb be raised higher than five men are able to raise in five days. Let the stone columns, too, be no larger than are sufficient to admit an encomium of the dead in four heroic verses; and let the dead be laid out no longer a time than is sufficient to evince that they are truly dead. But, with respect to human affairs of this kind, an interval of three days before the burial will be nearly sufficient. It is likewise proper to believe the legislator in other things;

959b

and when he asserts that the soul is in *every respect* different from the body; and that, in the present life, it causes each of us to be that which each of us is; but, that body follows each of us like an image; and, that bodies may be beautifully said to be the images of the perfectly dead. That, besides this, each of us may be truly denominated an immortal soul, which will depart to other Gods to give an account of its conduct, as the law of our country asserts.

959c

This, however, is a circumstance which produces confidence in the good, but is terrible in the extreme to the evil; for no great assistance can be rendered them after death. Hence, it is necessary to give them all proper assistance while living, that they may live in the most just and holy manner, and that after the present life they may escape the punishments which await the commission of crimes. Since this, then, is the case, we ought by no means to ruin our families, in consequence of thinking that this mass of flesh which is buried is truly our relative; but we should be persuaded that the son or brother, or any person for whom we have an affection, and whom we consider as buried, has departed hence in consequence of having finished and filled up his fate. We shall, therefore, act well on these occasions by employing a moderate expense, as upon an inanimate altar of terrestrial natures. But the legislator will not, in the most disgraceful manner, divine what this moderate expense should be. Let this, then, be the law:

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—That he who possesses the greatest estate shall not spend more than five minæ on any funeral; that he who possesses the second estate shall spend three minæ;

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the third, two; and the fourth, one mina. For thus the funeral expenses of every individual will be moderate. But, as the guardians of the laws ought necessarily to take care of many things, so especially of this, that their life may be employed in attending to boys and men, and to males and females of every age. And besides this, on the death of every citizen, one of the guardians of the laws, whom the relations of the deceased shall think fit to choose, should take care that every thing pertaining to the funeral is conducted in a becoming and moderate, and not in an unbecoming and disgraceful manner. And let them be honoured when the former, but considered as infamous when the latter, is the case. Let, therefore, every thing pertaining to funerals take place according to this law. But things of the following kind ought to be committed to the care of the legislator who establishes political law:

960a

—It would be unbecoming either to order, or not, the dead to be lamented with tears; but loud lamentations on this occasion, out of the house, are to be forbidden. The dead body, likewise, should not be suffered to be carried openly in the more frequented roads, accompanied with lamentations, nor yet out of the city before day. Let such, therefore, be the established laws respecting these particulars. And let him who is obedient to them be exempt from punishment; but let him who disobeys one of the guardians of the laws be punished by all of them in such a manner as shall appear fit to all. With respect to other particulars, which either pertain to sepulchres, or to those who through patricide and sacrilege are deprived of sepulchres, these we have spoken of before, and legally established. So that legislation has now nearly obtained its completion. But the end of all things must be considered as taking place, not from their being performed, or

possessed, or inhabited, but from their being properly accomplished, and firmly established. For, in a preservation of this kind, it is proper to think, that what ought to be done is done, but that prior to this the whole is imperfect.

960b

Clinias: You speak well, O guest. But inform me in a yet clearer manner what was your design in what you just now said?

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Guest: Many things, O Clinias, are beautifully said by the antients, and this is true, in no small degree, with respect to the names of the Fates.

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Clinias: How so?

960c

Guest: That the first

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of these is Lachesis, the second Clotho, and the third Atropos⁷³, who is the preserver of what has been asserted by us. These are assimilated to things conglomerated by fire, and which possess an inconvertible power. And in a city and polity these ought not only to procure health and safety to bodies, but a good establishment of laws in souls, or rather the preservation of laws. But it appears to me that this is yet wanting to laws,—I mean, an inquiry how they may obtain an inconvertible power according to nature.

960e

Clinias: You speak of no small affair, if it is possible to find how a thing of this kind may take place in every possession.

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Guest: But this is possible, as it appears in every respect to me at present.

960e

Clinias: Let us not, therefore, depart hence, by any means, till we have added this to the laws we have now delivered. For it is ridiculous to

labour in any thing in vain, and not to lay down something stable.

960e

Megillus: You exhort in a proper manner: and you will also find me to be such a one.

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Clinias: You speak well. What then is this preservation, and after what manner may it be obtained in our polity and laws?

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Guest: Have we not said that an

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assembly ought to be held in our city of the following kind:—That always ten of the oldest guardians of the law, together with all such as are honoured with gifts, should make a part of this assembly? That, further still, those who have travelled over many regions in order that they might find something adapted to the preservation of the laws, should go to this assembly, if on their return their manners were found to be uncorrupted, and themselves worthy to be members of this assembly?

961b

That, besides this, each of these ought to bring with him young men, who are not less than thirty years of age, and who are judged to deserve this honour both by nature and education, and by the approbation of the whole assembly? And that if any unworthy young man should be brought to the assembly, the sentence which is passed should be of no moment? Lastly, that this assembly should be convened before day, when there is a perfect leisure from all other business, both public and private? Was not something of this kind asserted by us in the preceding discourse?

961c

Clinias: It was.

961c

Guest: Again, therefore, resuming the discourse about this assembly, we say, that if any one hurls forth this, as an anchor of the whole city,

and which contains in itself every thing that can be desired, every thing will be preserved which we wish to be so.

961c

Clinias: How so?

961c

Guest: We shall after this take occasion to speak with rectitude, and, to the utmost of our power, leave nothing unfinished.

961d

Clinias: You speak exceedingly well: act, therefore, agreeably to your conceptions.

961d

Guest: It is proper therefore, O Clinias, to understand, with respect to every thing, a fit saviour in every work; as in an animal, the soul and the head are naturally the greatest saviours of the whole.

961d

Clinias: How again do you say?

961d

Guest: The virtue of these, doubtless, affords safety to the whole animal.

961d

Clinias: But how?

961d

Guest: In soul, indeed, besides other things, intellect is inserted; and in the head, besides other things, sight and hearing. And, in short, intellect being mingled with the most beautiful senses, so as to produce one thing, the preservation of the several parts may most justly be said to be thus effected.

961e

Clinias: It appears so.

961e

Guest: Undoubtedly. But does not intellect, mingled with the senses, become the safety of ships, both in tempests and fair weather? Or, in a

ship, do not the pilot and the sailors, in consequence of mingling their senses with the piloting intellect, preserve both themselves and every thing pertaining to the ship?

962a

Clinias: Undoubtedly.

962a

Guest: But there is no need of many examples about things of this kind: let us consider, therefore, in an army, and in medicine, to what mark both commanders and physicians directing their attention, become the means of preservation.

962a

Clinias: It will be proper to do so.

962a

Guest: Do not the former of these, then, direct their attention to victory, and the strength of the enemies, but the latter to the health of the body?

962a

Clinias: Undoubtedly.

962a

Guest: But, if the physician is ignorant of that respecting the body which we now denominate health, or the commander of victory, or of other things which we might mention, would they appear to be endued with intellect about any of these particulars?

962a

Clinias: How could they?

962b

Guest: But what with respect to a city? If any one is ignorant of the mark at which a politician ought to look, could he, in the first place, be justly denominated a governor? And, in the next place, would he be able to preserve that, the scope of which he is perfectly unacquainted with?

962b

Clinias: How could he?

962b

Guest: It is necessary therefore now, as it appears, if the establishment of this our city is to obtain its completion, that there should be some one in it who knows, in the first place, this which we call the political scope; in the next place, after what manner it is requisite to partake of this; and, in the third place, which of the laws, and who among men, will properly or improperly consult with a view to this. For, if any city is destitute of a thing of this kind, it will not be wonderful, since it must be void of intellect and sense, if all its actions are the result of chance.

962c

Clinias: You speak the truth.

962c

Guest: Now, therefore, are we able to say in what part of our city, or by what studies, any guard of this kind will be sufficiently obtained?

962c

Clinias: I cannot clearly inform you, O guest. But, if I may be allowed to jest, it appears to me that this discourse tends to that nocturnal assembly which you said ought to be instituted.

962d

Guest: You have rightly conjectured, O Clinias; and, as the present reasoning announces, this assembly ought to possess every virtue; the chief of which is not to wander, by regarding a multitude of particulars, but, looking to one thing, always to emit all things like darts to this.

962d

Clinias: Entirely so.

962d

Guest: Now, therefore, we learn that it is not wonderful that the legal institutions of cities wander. For different establishments of the laws in each city look to different things. And to some, the end of what is

just consists in certain persons governing in the city, whether they are better or worse than others. But, with others, the end consists in becoming rich, whether they are slaves or not. The attention of others again is directed to a life of liberty. Others establish laws for two purposes, that they may be free themselves, and that they may become the despots of other cities. And those that are most wise direct their attention to these, and to all such particulars, at once; but they are unable to assign any one principal thing to which the rest ought to look.

962e

Clinias: Hence, O guest, that which was formerly established by us is right; for we said that the whole of our laws should always look to one thing. And we granted that this might, with the greatest rectitude, be called virtue.

963a

Guest: We did so.

963a

Clinias: And it was likewise established by us that virtue was, in a certain respect, fourfold.

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Guest: Entirely so.

963b

Clinias: And that intellect, likewise, was the leader of all these, to which all other things, and three of the virtues, ought to look.

963b

Guest: You have followed me in a beautiful manner, O Clinias; continue, therefore, to follow me in what remains. For we have said, that the intellect of the pilot, the physician, and the commander, looks to one thing; but, accusing the politic intellect, we have arrived thus far, and we shall now thus interrogate it as if it were a man:—O wonderful man! to what do you tend? What is that one thing which the medicinal intellect can speak of in a perspicuous manner; but you, who, as you say, excel all prudent persons, are not able to do this in

your art? Or can you, O Megillus and Clinias, answer for him what this is, as I have often done to you for others?

963c

Clinias: By no means, O guest.

963c

Guest: But should we not desire to perceive what this is, and in what things it subsists?

963c

Clinias: In what particular things do you mean?

963c

Guest: As we have said that there are four species of virtue, it is evident that each of them must necessarily be one, since they are altogether four.

963c

Clinias: Undoubtedly.

963c

Guest: We likewise denominate all these one. For we say that fortitude is a virtue, and that prudence is a virtue; and, in a similar manner, the two others, as if this thing virtue was not in reality many things, but one thing only.

963d

Clinias: Entirely so.

963d

Guest: So far, therefore, as these two differ from each other, and receive two names, and, in a similar manner, the other two, there is no difficulty in speaking of them; but so far as we call both of them, together with the other two, one thing, viz. virtue, it is not easy to speak of them.

963d

Clinias: How do you say?

963d

Guest: There is no difficulty in explaining what I say. For let us only divide among ourselves the business of interrogating and answering.

963e

Clinias: How again do you mean?

963e

Guest: Do you ask me why, denominating virtue one thing, we again give this appellation to two things, one of which is fortitude, and the other prudence? For I will tell you the cause, which is this:—One of these is conversant with fear, whence savage beasts also participate of fortitude, and the manners of very young children. For the soul may be brave from nature without reason, but without reason it never was prudent and endued with intellect, nor is, nor ever will be. So that this latter differs from the former.

964a

Clinias: You speak truly.

964a

Guest: You, therefore, understand from my discourse in what manner these are two, and how they differ from each other; but how they are one and the same do you again inform me. But think as if you were telling me how being four they are one, and as if I afterwards should show you how being one they are again four. And after this, let us consider, whether he who wishes sufficiently to understand any thing which has both a name and a definition, ought only to know the name, but should be ignorant of the definition; or whether it is base for him who has any knowledge respecting things which transcend in magnitude and beauty, to be ignorant of all such particulars as these.

964b

Clinias: It appears so.

964b

Guest: But is there any thing greater which a legislator, a guardian of the laws, and he who is thought to surpass all others in virtue, and for this receives rewards, can possess, than fortitude, temperance, justice, and prudence?

964b

Clinias: How is it possible there can?

964c

Guest: Ought not, therefore, interpreters, teachers, legislators, and guardians of others, to teach those who desire to know and to perceive things of this kind, or who require punishment and reproof, what power virtue and vice possess; and must they not, through information of this kind, in every respect excel others? Or will any poet coming into the city, or any instructor of youth, be considered as better than him who excels in all virtue? And, in the next place, will it appear wonderful if a city, in which the guardians have not a sufficient knowledge of virtue, in consequence of being without a guard, should suffer the same things which many cities at present suffer?

964c

Clinias: It will not appear wonderful.

964d

Guest: What then? Shall we do what we just now spoke of? Or shall we consider how we may enable the guardians to excel others in virtue, both in words and in reality? Or after what manner our city may become similar to the head and senses of the prudent, through possessing in itself a guard of this kind?

964d

Clinias: How, therefore, O guest, and after what manner, shall we speak, assimilating it to a thing of this kind?

964d

Guest: It is evident that the city itself will resemble the cavity of the head;

964e

and that the junior guardians, who are ingenuous and sagacious, will be placed, as it were, on the highest summit, whence they can survey, in a

965a

circle, the whole city, and, while they defend it, deliver the senses to the memory, and announce to the elders every thing that takes place in the city. But these being assimilated to intellect, through understanding in the highest perfection a multitude of things which are worthy of regard, they will consult for the city, and employ the junior guardians as agents in their consultations. For thus both will truly preserve the city in common. Whether, therefore, shall we say they are to be established in this manner, or not? Or shall we say that they are all to be considered as equal, and not accurately determine the difference between them, in education and discipline?

965b

Clinias: But this, O wonderful man, is impossible.

965b

Guest: Let us, therefore, proceed to a more accurate discipline than the former.

965b

Clinias: By all means.

965b

Guest: But is not that which we just now touched upon the very thing which we are in want of?

965b

Clinias: Entirely so.

965b

Guest: We said, then, that in every thing a consummate artificer and guardian ought not only to be capable of looking to many things, but should eagerly tend to one thing, and, when he has obtained a knowledge of it, orderly dispose according to this whatever he beholds.

965c

Clinias: Right.

965c

Guest: Can, therefore, any speculation be assigned more accurate than that which is able to look to one idea from things many and dissimilar?

965c

Clinias: Perhaps not.

965c

Guest: Not perhaps, but in reality, O dæmoniacal man! there is not any human method more clear than this.

965c

Clinias: Believing what you say, O guest, I will admit it. Let us, therefore, proceed, speaking agreeably to this assertion.

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Guest: As it appears, therefore, the guardians of a divine polity must be compelled by us to see accurately, in the first place, what that is which is the same in all the four virtues; and which, being one thing in fortitude and temperance, justice and prudence, we very properly call by one name, virtue. Strenuously laying hold of this at present, O friends, if you are willing, we will not leave it till we have sufficiently said what that is which is to be looked to, whether as one thing, or as a whole, or as both, or in whatever way it may subsist. Or can we think that, if this escapes, us we can ever sufficiently possess the things pertaining to virtue, respecting which we are neither able to say whether it is many things, nor whether it is four things, nor whether it is one thing? If, therefore, you are persuaded by our advice, we shall devise some method by which this may take place in our city. Or, if it appears in every respect agreeable to you, we will dismiss it.

965e

Clinias: A thing of this kind, O guest, is by the hospitable God by no means to be dismissed, since you appear to us to speak with the utmost rectitude. But how can any one devise this method?

966a

Guest: We shall not yet say how this is to be devised: but, in the first place, is it requisite or not that we should firmly consent among

ourselves?

966a

Clinias: It is doubtless requisite, if possible.

966a

Guest: But what with respect to the beautiful and the good? Are our guardians to know that each of these is alone many? Or should they, likewise, know that it is one, and how it is so?

966b

Clinias: It nearly seems necessary, that they should know scientifically how each of these is one.

966b

Guest: But what? ought they to understand this, and at the same time be incapable of evincing by arguments that they do understand it?

966b

Clinias: But how can this be? For you speak of a certain habit belonging to a slave.

966b

Guest: But what with respect to all serious pursuits? Shall we in a similar manner say, that those who are to be truly guardians ought truly to know the particulars respecting the truth of laws, be able sufficiently to unfold them in discourse, and act agreeably to them, judging what things subsist beautifully according to nature, and what have a contrary subsistence?

966b

Clinias: How is it possible we should not?

966d

Guest: Is not that one of the most beautiful things which we seriously discussed concerning the Gods? As that they are, that they appear to possess a mighty power, and that this ought to be known by man, as far as he is capable of knowing it? Likewise, that we should pardon the greater part of those in the city, if they only follow the mandates of the laws, but that we should not commit the guardianship of them to

any one who has not laboured to acquire all possible faith in things pertaining to the Gods? And that we should never choose any one for a guardian of the laws, who is not a divine man, who has not laboured in the study of the laws, and who does not excel in virtue?

966d

Clinias: It is just, therefore, as you say, that he who is sluggish, or incapable of judging respecting things of this kind, should be far removed from beautiful concerns.

966e

Guest: Do we, therefore, know that there are two things which lead to a belief of the particulars concerning the Gods, which we discussed above?

966e

Clinias: What are they?

966e

Guest: One is that which we asserted respecting the soul, that it is the most antient and divine of all things, of which the motion receiving generation imparts an ever-flowing essence: but the other is concerning the orderly motion of the stars, and such other things as through the dominion of intellect adorn the universe. For he who contemplates these things neither in a negligent nor in a stupid manner, can never become so impious as not to be affected in a manner perfectly contrary to the conjectures of the multitude. For these conceive that those who apply themselves to things of this kind, I mean to astronomy and other necessary arts in conjunction with it, become atheists, in consequence of beholding things subsisting from necessity, and not from the dianoëtic energies of a will by which all things are rendered good.

967a

Clinias: How then do these subsist?

967a

Guest: They now subsist,

967b

as I have said, perfectly contrary to what they would if they were conceived to be deprived of soul. For though such as more accurately investigate these things than others, in a wonderful manner touch upon the truth, and by employing accurate reasoning evince that they are not destitute of soul and intellect; and though some of these⁷⁴ dared to assert that it was intellect which adorned every thing in the heavens; yet again erring with respect to the nature of the soul, as not knowing that it is more antient than body, but conceiving it to be junior, they again, as I may say, subverted all things, and, much more, themselves.

967c

For, believing that all such things as are obvious to the sight subsist in the heavens⁷⁵, they considered the celestial regions as full of stones and earth, and many other inanimate bodies, and attributed to these the causes of the whole world. It was owing to this, that many who touched upon such like particulars were accused of impiety, and of engaging in difficult undertakings. And, besides this, those who philosophised were reviled by poets, and compared by them to dogs barking in vain; and other things were said of them which it would be foolish to repeat. But now, as I have said, the very contrary to this takes place.

967e

Clinias: How so?

967e

Guest: No mortal man can ever become firmly pious who does not admit these two things: viz. that soul is the most antient of all things which participate of generation, and is immortal; and that it rules⁷⁶ over all bodies. But, besides this, our guardian of the laws should not be ignorant of that which has been often asserted by us, that there is a true intellect in the stars; and he should likewise possess the necessary disciplines which are previous to these things; and employ a proper Muse, in order to harmonize the pursuits of manners and legal institutions. And, lastly, he should be able to render a reason for such

things as admit one, and to show why this is not possible with other things.

968a

He who has not these requisites for public virtues will nearly never be a sufficient governor of the whole city, but will be subservient to other governors. But it is now proper to consider, O Clinias and Megillus, whether we ought to establish the character we have been describing, as the future legal guardian of all the preceding laws, for the sake of the preservation of the whole city; at the same time, that nocturnal assembly of governors, endued with all such discipline as we have mentioned above, being adopted: or how shall we act?

968b

Clinias: But, O best of men, why should we not to the utmost of our power establish him?

968b

Guest: We certainly ought all of us to strive to accomplish this. I, indeed, will cheerfully be your helper. For perhaps through skill in, and the consideration of, things of this kind, I may find many other assistants besides myself.

968c

Clinias: Let us, O guest, proceed in this path rather than any other, in which Divinity himself nearly leads us. But let us now speak of and devise the method by which this may be properly accomplished.

968c

Guest: Laws about things of this kind, O Megillus and Clinias, cannot be established till the city is orderly disposed; for then their authority may be legally determined. But they cannot in any other way be adopted with rectitude than by erudition and frequent examination in conjunction with others.

968c

Clinias: How so? Why do we again say this?

968c

Guest: In the first place,

968d

without doubt, a catalogue should be made of those men who are adapted to be guardians, by their age, by the power of disciplines, and by their manners and habits. In the next place, it is neither easy to find what ought to be learnt, nor to become the disciple of him who discovers this. Besides this, the times will be in vain prescribed in writing, in which the several particulars ought to take place. For neither will the learners be able to know when any thing may be opportunely learnt, before science of the discipline is generated in their souls. Hence, all these particulars being spoken of occultly, will not be spoken of properly: but they are occult, because they cannot be rendered clearer by narration.

968e

Clinias: Since this then is the case, O guest, what shall we do?

968e

Guest: We must act, O friends, according to the proverb. For we must discuss the affair in common and publicly. And if we wish to make the dangerous trial, respecting the whole polity, we must do all things, either, as they say, throwing thrice six, or three dice.

969a

I will, however, undergo the danger with you, in speaking and explaining what appears to me respecting the discipline and education which we have now discussed. The hazardous enterprise is, indeed, neither small, nor similar to any other. But I exhort you, O Clinias, to make this the object of your care. For you, in the city of the Magnesians, or in that to which Divinity shall give a name, will obtain the greatest glory if you establish it properly. Or certainly, in this case, you cannot avoid appearing to be the bravest of all that shall succeed you.

969b

If then this divine assembly shall be established for us, O friends and companions, the city must be delivered to its care. Nor will there be any altercation, as I may say, with any of the legislators at present

respecting these institutions. But, in reality, we shall nearly effect that in a vigilant state, which we touched upon in our discourse a little before, as in a dream, when we mingled together a certain image of the agreement of the head with intellect, if these men are accurately mingled together for us, are properly disciplined, and when disciplined reside in the acropolis of the region, so as to become such guardians, and possess the virtue of preservation in such a degree as we have not known any to possess it in the former part of our lives.

969c

Megillus: O friend Clinias, from all that has been now said by us, it follows, that we must either omit the establishment of this city, or not dismiss this our guest, but by entreaties and all manner of devices make him a partaker with us in establishing the city.

969c

Clinias: You speak with the greatest truth, Megillus. And I indeed shall act in this manner; but do you also cooperate with me.

969c

Megillus: I will.

969c

THE END OF THE TWELFTH AND LAST BOOK OF THE LAWS.

Notes

¹ Minos was an intellectual hero, or, in other words, a hero who energized according to intellectual virtue; and, as he was illuminated by Jupiter, from whom he proceeded, he is on this account said to have conversed with his father. For an ample account of heroes, see the Notes to the Cratylus.

² According to the Greek Scholiast, not only the greatest mysteries of Jupiter but also those of the Curetes were performed in this cavern.

³ Alluding to Minerva being called the Goddess of Wisdom.

⁴ Tyrtæus was an elegiac poet, lame, and despised by the Athenians. The Oracle of Apollo, however, ordered the Lacedæmonians to use him as their general, in the

war in which they were then engaged with the Messenians. Tyrtæus therefore coming to Lacedæmon, and being inspired by the God, so animated the Lacedæmonians that they vanquished the Messenians. He flourished 684 years before Christ.

⁵ This poet flourished about 549 years before Christ.

⁶ “Theophrastus (says the Greek Scholiast) observes, that if wealth had life, it would come only to the good. For every thing desires its proper good; but this is the good of wealth, to become an instrument to the worthy: since that which is the good of any thing is the object of desire to that thing, and this also is according to nature to it. But all things aspire after a disposition according to nature. However, since wealth is without life, it now also falls among the evil.” Ὁ Θεοφραστος φησιν· εἰ ζωὴν εἶχεν ὁ πλοῦτος, πρὸς μόνους ἀν ἀπηλθε τοὺς ἀγαθοὺς· ἕκαστον γὰρ τοῦ οἰκείου ἐφίεται ἀγαθόν· τοῦτο δὲ τῷ πλούτῳ ἐστὶν ἀγαθόν, τὸ τοῖς ἀγαθοῖς ὄργανον γίνεσθαι· τὸ γὰρ ἕκαστῳ ἀγαθόν, τοῦτο καὶ ἐφετὸν ὑπάρχει· τοῦτο δ’ αὐτῷ καὶ κατὰ φύσιν· πάντα δὲ τῆς κατὰ φύσιν ὀρεγεται διαθεσεως· νῦν δὲ ἐπειδὴ ὁ πλοῦτος οὐκ ἔχει ζωὴν, ἐμπίπτει καὶ εἰς τοὺς κακοὺς.—Schol. Græc. in Plat. p. 227.

⁷ Meaning intellectual prudence, through which we obtain a knowledge of things good and advantageous, of things beautiful and the contrary; and which, in short, is the governor of man, referring cities and houses, and the life of every individual, to a divine paradigm. Plato immediately after this calls it intellect, because it is generated from a pure and perfect intellect.

⁸ A young man was sent from the city, in order that he might not be seen for a certain time. He was therefore compelled to wander round the mountains, and could neither sleep without fear, lest he should be detected, nor employ servants, nor carry food for his subsistence. There was also another form of exercise for the purpose of war: for, stripping every one of the young men naked, they ordered them to wander for a whole year out of the city, among the mountains, and to support themselves by theft, and other stratagems, but in such a manner that no one might detect them. Hence this was called κρυπτεία, a concealment: for they were punished if they were at any time discovered.—Schol. Gr. in Plat. p. 225.

⁹ Plato, by divine animals, means the mundane, or, as he calls them in the *Timæus*, the junior Gods.

¹⁰ Viz. the intellectual form of life, or a life according to intellect. See the Additional Notes to the *Republic* for an account of the different ages.

¹¹ The prudence of which Plato speaks in this place is intellectual; for this is peculiarly adapted to old age, or the Saturnian period of life.

¹² The following account of the festivals of the antients, from the Descriptions of Libanius, fully proves the truth of what is here asserted by Plato represents to us the liberal, philanthropic, and hospitable spirit of Paganism in the most amiable point of view, and naturally leads the truly benevolent mind to regret that such philanthropy has been for so long a period banished from the earth; that the presence of divinity is no longer considered as essentially necessary to the splendour of festivity, and that a festival at present is every thing but a solemnity! “Solemn festivals when approaching produce desire in the human race, when present they are attended with pleasure, and when past with recollection: for remembrance places men very near the transactions themselves. The recollection also possesses a certain advantage. For, in speaking of solemn festivals, it is also necessary to speak concerning the Gods in whose honour they are instituted. Men prepare themselves for these festivals, when they approach, with joy. The multitude indeed procure such things as may furnish them with a splendid entertainment, but the worthy, those things by which they may reverence the Gods. Cattle and wine, and whatever else is the produce of the fields, are brought from the country. Garments also are purified; and every one is anxious to celebrate the festival in perfection. Those that are in want of garments are permitted to borrow such as are requisite to adorn themselves on this occasion, from those that have abundance. When the appointed day arrives, the priests open the temples, pay diligent attention to the statues; and nothing is neglected which contributes to the public convenience. The cities too are crowded with a conflux of the neighbouring inhabitants, assembled to celebrate the festival; some coming on foot, and others in ships. “At sunrise they enter the temples in splendid garments, worshipping that divinity to whom the festival is sacred. Every master of a house therefore precedes, bearing frankincense: a servant follows him, carrying a victim; and children walk by the side of their parents, some very young, and others of a more advanced age, already perceiving the strong influence of the Gods. One having performed his sacrifice departs; another approaches to perform it. Numerous prayers are every where poured forth; and words of good omen are mutually spoken. With respect to the women, some offer sacrifices in the temples; and others are satisfied with beholding the crowd of those that sacrifice. When such things as pertain to the divinities are properly accomplished, the tables follow, at which hymns are sung in praise of the God who is honoured in the festival. Social drinking succeeds, with songs which are partly serious and partly jocose, according to the different dispositions of the company. Some likewise feast in the temples, and others at home; and citizens request strangers to partake with

them of the banquet. In the course of drinking, antient friendships are rendered more firm, and others receive their commencement. After they have feasted, rising from table, some take the strangers and show them whatever is worthy to be seen in the city; and others sitting in the Forum gaily converse. No one is sorrowful, but every countenance is relaxed with joy. The exaction of debts gives place to festivity; and whatever might cause affliction is deferred to another time. Accusations are silent, and the judge does not pass sentence; but such things as produce pleasure alone flourish. The slave is not afraid of blows from his master, and pedagogues are mild to youth. "In the evening they sup splendidly, at which time there are so many torches that the city is full of light. There are also many revellers, and various flutes, and the sound of pipes is heard in the narrow streets, accompanied with sometimes the same, and sometimes different songs. Then to drink even to intoxication is not perfectly disgraceful; for the occasion in a certain respect appears to take away the opprobrium. On the following day the divinity is not neglected; but many of those that worshipped on the preceding day do not again come to the shows. Those that contend in the composition of verses attend on this, but those with whom the contest is in the scenes, on the preceding day. The third day also is not far short of these; and pleasure and hilarity are extended with the time of the festival. When the solemnity ends, prayers are offered for futurity, that they, their children and families may again be spectators of it; after which the strangers depart, and the citizens accompany them." The same author likewise in his account of the Calends observes as follows: "This festival is extended as far as the dominion of the Romans; and such is the joy it occasions, that if it were possible time could be hastened for mortals, which according to Homer was effected by Juno respecting the sun, this festival also would be hastened by every nation, city, house, and individual of mankind. The festival flourishes in every plain, on every hill and mountain, and in every lake and navigable river. It also flourishes in the sea, if at that time it happens to be undisturbed by tempest; for then both ships and merchants cut through its waves and celebrate the festival. Joy and feasting every where abound. The earth is then full of honours; in consequence of men honouring each other by gifts and hospitality. The foot-paths and the public roads are crowded with men, and four-footed animals bearing burthens, subservient to the occasion; and the ways in the city are covered, and the narrow streets are full. Some are equally delighted with giving and receiving; but others, though they do not receive any thing, are pleased with giving, merely because they are able to give. And the spring by its flowers, indeed, renders the earth beautiful; but the festival by its gifts, which pouring in from every place are every where diffused. He therefore who asserts that this is the most pleasant part of the year, will not err; so that, if the whole time of life

could be passed in the same manner, the islands of the blest would not be so much celebrated by mankind as they are at present. The first appearance of the swallow is indeed pleasant, yet does not prevent labour; but this festival thinks proper to remove from the days of its celebration every thing laborious, and permits us to enjoy minds free from molestation. These days free the youth from two-fold fears, one arising from their preceptors, the other from their pedagogues. They also make slaves as much as possible free, and exhibit their power even in those in chains, removing sorrow from their countenances, and exciting some of them to mirth. They can also persuade a father who expects the death of his son, and through sorrow is wasting away, and averse to nourishment, to be reconciled to his condition, to abandon darkness, lay aside his squalid appearance, and betake himself to the bath: and what the most skilful in persuasion are unable to accomplish, that the power of the festival effects. It also conciliates citizen with citizen, stranger with stranger, one boy with another, and woman with woman. It likewise instructs men not to be avaricious, but to bring forth their gold, and deposit it in the right hands of others.” He concludes with observing, “that the altars of the Gods in his time did not possess all that they did formerly, this being forbidden by the law of the Christians; but that, before this prohibition, much fire, blood, and fume of sacrifice ascended to heaven from every region, so that the banquets in honour of the Gods were then splendid during the festival.” The most remarkable circumstance in these festivals was the cause of this universal joy, which was no other than the firm persuasion that divinity was then present and propitious, as is evident from the following beautiful passage from Plutarch, in the Treatise in which he shows that pleasure is not attainable according to Epicurus: “Neither the discourses (says he) of those that wait in the temples, nor the seasons of solemn festivals, nor any other actions, or spectacles, delight us more than those things which we ourselves do concerning the Gods, when we celebrate orgies, or join in the dance, or are present at sacrifices, or the greatest of the mysteries. For then the soul is not sorrowful, abject, and languid, as if conversing with certain tyrants, or dire avengers, which it is reasonable to suppose she then would be; but where she especially thinks and rationally conceives divinity is present, there she especially banishes sorrow, and fear, and care, and lets herself loose even to intoxication, frolic and laughter. In amorous concerns, indeed, as the poet once said,

Remembrance of the joys that Venus gave,
Will fire the bosom of the aged pair.

But in public processions and sacrifices, not only the old man and the old woman,

not only the poor and the plebeian, but also

The dusty thick-legg'd drab that turns the mill,

and household slaves and hirelings, are elevated with joy and gladness. Banquets and public entertainments are given both by the wealthy and kings; but those which take place at sacrifices and solemnities, when through inspiration we appear to approach very near to a divine nature, are attended with much greater joy and pleasure, in conjunction with honour and veneration. Of this, the man who denies a Providence has no portion. For it is not the abundance of wine, nor the roasting of meat, which gives delight in solemn festivals, but the good hope and belief that divinity is propitiously present, and gratefully receives what is done. From some of our festivals we exclude the flute and the crown; but when divinity is not present at the sacrifice, as the solemnity of the banquet, the rest is impious, is void of festivity, and possesses nothing of divine fury; or, rather, the whole is unpleasant, and even painful.” Ουτε διατριβαι των εν ιεροις, ουτε καιροι των εορτασμων, ουτε πραξεις, ουτε οψεις ευφραϊνουσιν ετεραι μαλλον ων ορωμεν η δρωμεν αυτοι περι θεων, οργιαζοντες, η χορευοντες, η θυσιας παροντες, η τελεταις. ου γαρ ως τυραννοις τισιν η δεινους κολασταις ομιλουσα τηνικαυτα η ψυχη περιλυπος εστι και ταπεινη και δυσθυμος, οπερ εικος ην· αλλ’ όπου μαλιστα δοξαζει και διανοειται παρειναι τον θεον, εκει μαλιστα λυπας και φοβους και το φροντιζειν απωσαμενη, τω ηδομενω μεχρι μεθης και παιδιας και γελωτος αφησιν εαυτην. Εν τοις ερωτικοις ως ο ποιητης ειρηκε,

Και τε γερων και γρηϋς, επην χρυσης Αφροδιτης
Μνησωνται, και τισιν επηερθη φιλον ητορ.

εν δε πομπαις και θυσιας ου μονον γερων και γρηϋς, ουδε πενης και ιδιωτης, αλλα και παχυσκελης αλετρις προς μυλην κινουμενη και οικοτριβες και θητες υπο γηθους και χαρμοσυνης αναφερονται. πλουσιοις τε και βασιλευσιν εστιασεις και πανδαισιαι τινες παρεισιν· αι δ’ εφ’ ιεροις και θυηπολιας, και οταν εγγιστα του θειου τη επινοια ψαυειν δοκωσι, μετα τιμης και σεβασμου πολυ διαφερουσαν ηδονην και χαριν εχουσιν. ταυτης ουδεν ανδρι μετεστιν απεγνωκοτι της προνοιας. ου γαρ οινου πληθος, ουδε οπητης κρεων το ευφραϊνον εστιν εν ταις εορταις, αλλα και ελπις αγαθη και δοξα του παρειναι τον θεον ευμενη, και δεχεσθαι τα γινομενα κεχαρισμενω· αυλον μεν γαρ ετερων εορτων και στεφανον αφαιρουμεν, θεου δε θυσια μη παροντος, ωσπερ ιερον δοχης, αθεον εστι και ανεορταστον και ανενθουσιαστον το λειπομενον μαλλον δε ολον ατερπες αυτω και λυπηρον. The same author also observes, in his Treatise on Superstition, “that holy days, temple

feasts, the being initiated in mysteries, processions, with public prayers and solemn devotions, were considered as the most agreeable things in human life.”

¹³ Viz. in another life: for the soul carries with it into another the habits and manners which it possessed in the present life.

¹⁴ From hence it is evident that they are not genuine Platonists, who contend that according to Plato the world had a beginning. See the *Timæus*.

¹⁵ *Odyss.* lib. ix.

¹⁶ *Il.* xx. ver. 216.

¹⁷ Viz. the king of Persia, who, as is well known, was usually called *the great king*.

¹⁸ *Iliad.* lib. xiv.

¹⁹ Plato here means that temperance which belongs to the physical virtues, or those virtues which we possess from our birth, and may be said to be the forerunners of the moral, political, cathartic, and theoretic virtues; for an account of which see the Notes to the *Phædo*.

²⁰ According to Plato, a *royal polity* is produced when every thing is administered according to reason, and the supreme governor is the best of men.

²¹ An oligarchy takes place when a few only, and those the worst, govern the city. See the *Republic*.

²² Saturn is a deity with an intellectual characteristic.—See the Notes to the *Cratylus*.

²³ Plato here, as it is well observed in the Greek Scholium on this place, by *Divinity*, means the Demiurgus of the universe; and, by the *antient saying*, appears to allude to these Orphic verses:

ΖΕΥΣ ΑΡΧΗ, ΖΕΥΣ ΜΕΣΣΑ, ΔΙΟΣ Δ' ΕΚ ΠΑΝΤΑ ΤΕΤΥΚΤΑΙ.
ΖΕΥΣ ΠΥΘΜΗΝ ΓΑΙΗΣ ΤΕ ΚΑΙ ΟΥΡΑΝΟΥ ΑΣΤΕΡΟΕΝΤΟΣ.

i. e. “Jupiter is the beginning and the middle; and all things were fabricated from Jupiter. Jupiter is the profundity of the earth, and of the starry heavens.” He is the beginning, indeed, as the producing cause; but the end, as the final cause of the universe. He is the middle, as being equally present to all things, though all things participate him differently. But by *that which is direct according to nature*, Plato signifies desert according to justice, and undeviating energy, and as it were by one rule. And by a *circular progression*, he signifies the eternal, and that which is perpetually after the same manner, and according to the same; for circulation in

sensibles possesses this property. See the Notes on the Cratylus, for a further account of Jupiter.

²⁴ This passage, among many others in the writings of Plato, sufficiently proves that philosopher to have been a firm believer in the religion of his country; and that he did not secretly despise it, as has been asserted with no less impudence than ignorance by certain sophistical priests, whose little soul (in the language of Julian) was indeed acute, but saw *nothing* with a vision healthy and sound.

²⁵ Hesiod. Op. et Di. lib. i.

²⁶ The laws of Plato, being perfectly equitable, consider the good of the offender in the punishments which they enjoin, and not the good of the community alone; but our laws, especially in crimes pertaining to money, alone consider the good of the community. This is one among many of the baneful effects of commerce.

²⁷ As in London, and all great modern cities.

²⁸ Viz Gods according to similitude. For, as intellect is called a God by Plato, according to union, and soul according to participation, so the most exalted characters among men are called by him Gods according to similitude.

²⁹ The reason why Plato adopts this division is, because the number 12 is an image of all-perfect progression, being composed from the multiplication of 3 by 4, both which numbers, according to the Pythagoreans, are images of perfection.

³⁰ It is well observed by Proclus, “that a change is produced in different nations from the places themselves which each inhabits; from the temperament of the air, and from habitude to the heavens; and still more partially from spermatic reasons. But they most especially differ according to the gregarious government of the Gods, and the diversities of inspective guardians; through which (says he) you will find colours, figures, voices, and motions changed in different places. Hence emigrants often change their colour and their voice, when they settle in other countries; just as plants are changed with the quality of the region, if they happen to be transplanted into a foreign land.” Δει γινωσκειν ὅτι τοῖς διαφοροῖς ἐθνέσιν ἡ ἐξάλλαγή γίνεται μὲν καὶ παρὰ τοὺς τοποὺς αὐτοὺς ὅς ἐκαστα κατοικεῖ, καὶ παρὰ τὰς τῶν αἰρῶν κρατεῖς, καὶ παρὰ τὴν πρὸς τὸν οὐρανὸν σχέσιν, καὶ ἐτι μερικώτερον, εἰ βούλει, παρὰ τοὺς σπερματικούς λογούς· πολὺ δ’ ἂν μάλιστα διαφέρειν εἰποῖς αὐτὰ, κατὰ τὴν ἀγελαιοκομικὴν τῶν θεῶν ἐπιστάσιαν, καὶ τὰς τῶν ἐφορῶν διαφοροτήτας, παρ’ ἃς καὶ χρώματα, καὶ σχήματα, καὶ φωνάς, καὶ κινήσεις ἐξάλλαττομένας εὐροῖς ἂν ἐν τοῖς διαφοροῖς τοποῖς, ὥς τε καὶ τοὺς ἀποίκους πολλακίς μεταβάλλειν, τὸ τε χρῶμα καὶ τὴν φωνήν, ὧτων εἰς ἄλλους

αφικωνται τοπους καθαπερ τα φυτα τη ποιότητι της χωρας συμμεταβαλλονται, καν εις αλλοτριαν γην μεταβληθεντα τυχανη Procl. in Tim. p. 31.

³¹ Viz. arithmetical equality, which takes place when a series of numbers have the same common difference; as 1, 2, 3, 4, &c. or 1, 3, 5, 7, &c.

³² The true equality which Plato here speaks of is geometric equality, which is identity of ratio, and according to which the merits of individuals are to be estimated; so that as merit is to merit, so should gift be to gift. The equality, therefore, here is that of ratio, and not of number; as, for instance, in the numbers 2, 4, 6, 12, which form a geometric proportion.

³³ Viz. rain.

³⁴ Viz. water.

³⁵ Plato, by the divinity in men, means intellect; for this is the divine part of our nature.

³⁶ Mariandynum was a place near Bithynia, where, according to the poets, Hercules dragged Cerberus out of Hades. Perhaps, therefore, the contention which Plato alludes to, was that of the inhabitants of Mariandynum respecting the particular spot where Hercules performed this achievement.

³⁷ Odyss. lib. ii.

³⁸ The Orphic sacrifices were unbloody, as the hymns of Orpheus which are now extant abundantly testify.

³⁹ Epeus was the son of Endymion, and brother to Pæon, who reigned in a part of Peloponnesus. His subjects were called from him Epei. He conquered in boxing at the funeral games in honour of Patroclus.

⁴⁰ Amycus was the son of Neptune, by Melia, and was famous for his skill in the management of the cestus.

⁴¹ That is, says the Greek Scholiast, a lamentable Muse: for the Carians appear to be of a mournful disposition, and for hire lament over the dead bodies of foreigners.

⁴² Antient theologists and intellectual philosophers were accustomed to call the energy of divinity proceeding into the sensible universe sport, on account of the delusive, fictitious, and ever-gliding nature of matter, and the forms which it contains. So that in this sense man, considered as connected with body, may be said to be the sport of divinity.

⁴³ Odyss. lib. iii.

⁴⁴ A trimeter is an Iambic verse of three measures, or six feet.

⁴⁵ For he who leads the most excellent life will, like another Ulysses, purify his soul from the dominion of the passions, those baneful suitors, whose aim is to dethrone reason and debauch philosophy. He who destroys these secret foes may be justly said to perform the most true tragedy.

⁴⁶ That is to say, some quantities are incommensurable, and others not.

⁴⁷ For a perfectly good man cannot be injured; because he who is injured is deprived of some good: but virtue is the proper good of a truly worthy man, and this cannot be taken away.

⁴⁸ Viz. fighting with bucklers.

⁴⁹ A son of Labdacus, and king of Thebes. He was the father of Ædipus, by whom he was slain.

⁵⁰ A son of Pelops and Hippodamia, and grandson of Tantalus. He debauched Ærope, the wife of his brother Ægeus.

⁵¹ A son of Æolus, who debauched his sister Canace, and had a son by her.

⁵² Astyllus is mentioned by Pausanias as a victor in the Olympic repeated course. See vol. ii. of my translation, p. 119.

⁵³ i. e. Jupiter the guardian of bounds.

⁵⁴ i. e. Jupiter the guardian of a tribe or kindred.

⁵⁵ Viz. who presides over nations and families.

⁵⁶ Paternal.

⁵⁷ Plato here alludes to those natural philosophers Democritus, Anaxagoras, and Archelaus; the first of whom asserted, that the universe was constituted by a certain rash chance rather than by a divine intellect; and the other two, that the celestial orbs have nothing in them more divine than the sublunary elements.

⁵⁸ Plato, when he uses the word *generation*, in speaking of the soul, does not mean to imply a *temporal origin*, but an *eternal procession from an eternally energizing cause*.

⁵⁹ Viz. That which changes its place changes the centre of place, to which the circumference of the moving body is compared; and sometimes, besides changing the centre, it preserves after a manner the same centre, when, not being fixed, but transferred from one place to another, it is carried round by a certain equal circumference.

⁶⁰ By the principle here, Plato means a motive and seminal nature. This nature by alteration proceeds through three degrees, i. e. into length, breadth, and depth,

and finally arrives at vitality and sensation.

⁶¹ This motion belongs to nature.

⁶² This is the motion of soul.

⁶³ Plato in this book distinguishes the genus of motions into ten species, viz. circulation about an immovable centre, local transition, condensation, rarefaction, increase, decrease, generation, corruption, mutation or alteration produced in another by another, and mutation produced from a thing itself, both in itself and in another. This last is the tenth motion, of which he now speaks, and is the motion of soul.

⁶⁴ Plato, by an evil soul, here means the nature or natural life suspended from the rational soul of the world, and which is the proximate *vis motrix* of bodies. As this life, without the governing influence of the rational soul of the world, would produce nothing but confusion and disorderly motions, it may be said, when considered as left to itself, to be evil.

⁶⁵ The reader must carefully remember that soul leads all things circularly, from its possession of a divine intellect; for Plato has just before shown, that a circular is an image of intellectual motion.

⁶⁶ Aristotle also, in the twelfth book of his Metaphysics, shows, that each of the heavenly bodies possesses a divine intellect, which is the source of its motions; to my Translation of which I refer the reader.

⁶⁷ Hesiod.

⁶⁸ Body, when corrupted, is resolved into the elementary wholes from which it originated, but is never destroyed.

⁶⁹ *Law* here signifies intellectual distribution. So that the Gods according to *law* are those divine natures which proceed from the intellect of the fabricator of the universe. These Gods are thus denominated in the Golden Verses of Pythagoras.

⁷⁰ The keeping an inn or victualling-house.

⁷¹ Meaning the celestial orbs, which, in consequence of being divine animals, from the participation of divinity, are called Gods.

⁷² For νομος, law, is properly νομ διανομη, a distribution of intellect.

⁷³ For an account of the Fates, see the Notes to the Tenth Book of the Republic.

⁷⁴ Viz. Anaxagoras and his followers. See the Phædo.

⁷⁵ This is the doctrine of modern astronomers.

⁷⁶ As Plato, therefore, has demonstrated in the preceding Tenth Book, that the apparent orb of every star is the vehicle of a ruling soul, it follows, according to him, that no one is firmly pious who does not believe this. And hence, the gross ignorance or impudence of those sophistical priests who have dared to assert that Plato ridiculed the religion of his country is sufficiently obvious.